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PRESIDENTIAL PARASTATAL SECTOR REFORM COMMISSION v. AZANIA BANCORP LIMITED

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Munuo, Nsekela and Kaji, JJ.A.)

CIVIL APPEAL No. 117 OF 2004

(Appeal from the decision of the High Court of Tanzania (Commercial Division) at Dar es Salaam, Kalegeya, J., dated 23 July 2004, in Commercial Case number 277 of 2002)

Civil Practice and Procedure – Proving or establishing a case – Parties granted leave to make submissions on points of law only instead of calling witnesses – Court orders counsel to first draw up and file a joint memorandum of facts not disputed – Whether Court order was tenable – Order XIV rule 2, Order XII rule 3 of the Civil Procedure Code 1966

Civil Practice and Procedure – Proof of matters of both fact and law – Counsel pray for and are granted leave to submit on points of law only instead of calling witnesses – Court orders Counsel to first draw up and file a joint memorandum of facts not disputed followed by written submissions – Joint memorandum not filed but all facts disputed in the written submissions – Whether proceedings were regular.

The plaintiff/respondent extended credit facilities to BHESCO, a specified public corporation amounting to TZS. 300 000 000. As security, BHESCO executed a mortgage of a Right of Occupancy, Certificate of Title Numbers 186066/76 and 186066/70 Plot Nos. 70 and 76 Gerezani Industrial Area, Dar es Salaam. BHESCO defaulted in the repayment of the credit facility, and the respondent filed a summary suit under Order XXXV of the Civil Procedure Code, 1966. Before the hearing of the suit Counsel for the parties prayed that instead of calling witnesses they be allowed to submit on points of law only as the facts of the case were not in dispute. The Court granted the prayer and ordered the Counsel to first draw up and file a joint memorandum of facts not in dispute before the filing of the written submissions. The Counsel did

not file the joint memorandum but in their written submissions all the facts were disputed. On appeal:

Held: (i) In the absence of evidence, disputed matters of mixed fact and law cannot be resolved by considering written submissions of learned advocates only;

(ii) The procedure adopted by the trial judge of dispensing with witnesses was highly irregular and, in the result, the proceedings of the Court from 30 March 2004, and the judgment of the Court were null and void.

Hearing of the case to resume before another judge

Cases referred to:

(1) *Abualy Alibhai Aziz v. Bhatia Brothers Limited*, (CAT), Misc. Civil Appeal number 1 of 1999 (unreported)

(2) *Board of Internal Trade v. M/s G.B.L. and Associates Limited* (CAT) Civil Appeal number 4 of 1983 (unreported)

Statutes referred to:

(1) Civil Procedure Code 1966, Order XXV; Order VIIIB rule 3(4); Order XIV rule 2; and Order XVII rule 3.

(2) Public Corporations Act, 1992 as amended, section 40A(1)(g) and (m)

Mr. Fungamtama for the appellant

Mr. Chipeta for the respondent

JUDGMENT

(Dated 07 June 2005)

Nsekela, J.A: This is an appeal against the judgment of Kalegeya, J., in Civil Appeal number 277 of 2002 in which he entered judgment jointly and severally against the first defendant, Building Hardware and Electrical Supplies Limited (BHESCO) and the second defendant, Presidential Parastatal Sector Reform Commission (now appellant). BHESCO did not prefer any appeal. The facts leading to this appeal

may be briefly stated as follows. The plaintiff/respondent, Azania Bancorp Limited extended credit facilities to BHESCO a specified public corporation who purportedly accepted an offer from the respondent amounting to TZS 250 000 000 on the 6 February 2001. There was an additional credit facility dated the 8 March 2001 for TZS 50 000 000 thus making a total of TZS 300 000 000. To secure this credit facility, BHESCO executed a mortgage of a Right of Occupancy, Certificate of Title number 186066/76 and 186066/70 Plot number 70 and 76 Gerezani Industrial, Dar-es-Salaam. BHESCO defaulted in the repayment of the credit facility leaving an outstanding liability of TZS 352 798 513-40 due and owing to the respondent. Consequently, the respondent filed a summary suit under Order XXXV of the Civil Procedure Code, 1966. The High Court, Commercial Division, (Dr. S J Bwana, J) granted to both the defendants leave to appear and to defend the suit.

The decision of the High Court was challenged on three grounds, namely that:

1. The Court erred in law in holding that the credit facility agreement between the plaintiff and the first defendant was valid and therefore enforceable in law;
2. The Court erred in law in finding that the lack of the defendant's approval was incapable in itself of vitiating the transaction executed between the plaintiff and the first defendant.
3. The Court erred in law in holding that the second defendant had given consent to the mortgage transaction impliedly.

At the hearing of the appeal Mr. Fungamtama, learned advocate for the appellant, argued the three grounds of appeal generally rather than arguing one ground after another. The cornerstone of the appeal however seemed to revolve around section 40A(1) (g) and (m) of the Public Corporations Act, 1992 as amended (the Act). The learned advocate contended that under the Act, a specified public corporation is debarred from doing certain prescribed transactions without the

approval of the appellant. He added that the learned judge did not specifically refer to section 40A(1)(g) of the Act in his judgment. The learned advocate was of the opinion that the use of the word "**express**" in this provision indicated that it was mandatory for BHESCO to seek and obtain such approval before entering into the prescribed transactions, which are the subject matter of this appeal. Furthermore, the learned advocate submitted that when the Letter of Offer and Acceptance; Mortgage of a Right of Occupancy were executed, Act number 17 of 1999 had already been enacted and so the respondent was well aware of the requirements of the Act.

Mr. W. Chipeta, learned advocate for the respondent, strongly countered Mr. Fungamtama's contentions. He was of the view that the learned judge correctly found that the appellanthad impliedly consented to BHESCO entering into the disputed transactions. BHESCO did not ask for the necessary approvals but the agreement between BHESCO and the respondent remained intact. The anchor of Mr. W. Chipeta's submissions, was the decision of this Court in Misc. Civil Appeal number 1 of 1999, *Abualy Alibhai Aziz v. Bhatia Brothers Limited* (1). In conclusion, the learned advocate submitted that the appellantas Official Receiver, was jointly and severally liable to settle the liability of BHESCO.

Before we proceed to consider and determine the merits or otherwise of the appeal, we think that it is desirable that we should first examine the sequence of the proceedings upon which the judgment of the High Court was founded. On the 26 March 2003, an amicable settlement of the dispute was not achieved during the final pre-trial and scheduling conference. Then Order VIIIB rule 3 (4) came into play and the High Court framed and recorded issues according to the provisions of Order XIV of the Civil Procedure Code. The following four issues were framed and recorded, namely:

1. Whether the credit facility agreement between the plaintiff and the first defendant is valid and thus enforceable in law.

2. Whether the plaintiff had a duty to ascertain that the approval of the second defendant had been sought and actually obtained before entering any agreement with the first defendant.
3. Whether upon being declared a specified public corporation the first defendant became incapable of owning property as the property was vested onto the second defendant, and thus had no property to offer as security.
4. To what reliefs are the parties entitled to.

By consent of the parties hearing of the case was scheduled to be held on the 13 - 14 May 2003. For various reasons, hearing of the case did not take place as scheduled until the 30 March 2004. We take the liberty to reproduce the proceedings on this date:

30 March 2004

Coram: L. B. Kalegeya, J.

For the Plaintiff: Mr. Baravuga

For the first defendant: Mr. Ngasala

For the second defendant: Mr. Nassor

CC: Kanyochole, S.H.

Mr. Nassoro: We are agreed that the factual situation is not disputed. We pray that instead of calling witnesses, we submit on points of law with the 4 issues so far drawn up in mind.

Mr. Ngasala: That is our consensus

Mr. Baravuga: I am on all fours with my learned friends.

L.B. Kalegeya

Judge

Court:As the dispute stands, I am satisfied that the Counsel are very correct in their proposition. However, for record purposes, the Counsel should first draw up and file a joint Memorandum of Facts not disputed.

L. B. Kalegeya

Judge

Order:

1. By consent, joint Memorandum to be filed by 2.4.2004
2. Defendants to file their written submissions by 16.4.2004
3. Plaintiffs to file their written submissions by 30.4.2004
4. Rejoinder, if any, by 7 May 2004
5. Judgment on notice

L.B. Kalegeya

Judge

30 March 2004"

The learned judge did not indicate in this Order upon what provision of the Civil Procedure Code he derived powers for the parties to file a joint Memorandum of Facts not in dispute, then skip the taking of evidence from witnesses. Instead, the parties were required to file their respective written submissions, on the basis of which judgment was pronounced by the learned judge. The learned advocates duly complied with the time frame as prescribed by the Court. However, the first document to be filed, that is, the joint Memorandum, was not filed. This meant that the purported agreed facts not in dispute were not before the Court. Obviously, as night follows day, all the facts were then in dispute!

Order XII Rule 3 of the Civil Procedure Code provides as follows:

> 3. Any party may by notice in writing at any time not later than nine days before the day fixed for hearing, call on any other party to admit, for the purposes of the suit only, any specific fact or facts mentioned in such notice; and in case of refusal or neglect to admit the same within six days after service for such notice, or within such further time as may be allowed by the Court, the costs of proving such fact or facts shall be paid by the party so neglecting or refusing, whatever the result of the suit may be, unless the Court otherwise directs!
>
> (Proviso omitted)

We have not been able to find on the record that any party to this suit, by notice in writing, did call on any party to admit for the purposes of this suit any fact or facts. In any event, Order XII Rule 3 above does not provide a procedure of jointly filing a memorandum of agreed facts by the parties. Even then, the learned advocates did not file any joint memorandum as per Court order. This means that there were no agreed facts before the Court.

We now come to Order XIV, rule 2 of the Civil Procedure Code. It provides as under:

> 2. Where issues both of law and fact arise in the same suit, and the Court is of the opinion that the case or any part thereof may be disposed of on the issues of law only, it shall try those issues first, and for that purpose may, if it thinks fit, postpone the settlement of the issues of fact until after the issues of law have been determined.

The question is, what were the issues of law that the Court wanted to dispose of first? It will be recalled that on the 30 March 2004 the learned advocates for the parties put forth an intriguing proposal to the Court that the facts before the Court were not in dispute and so based on the issues framed, the Court should decide the issues of law. We however now know for a fact that there were no such issues of fact agreed upon. The issues of law were apparently the four issues framed and recorded by the Court on the 30 March 2004. Issues 1 and 2 are at the core of the dispute. The question of approval of the agreements in dispute is a very contentious issue in the pleadings. These issues cannot in our considered view, be decided as purely legal issues without recording the evidence. The Court was enjoined to make findings of fact first and then apply the law to the facts as established by evidence. The issue of whether or not the appellantgave

approval to BHESCO goes to the root of the case and this cannot be disposed of as an issue of law only under Order XIV rule 2 of the Civil Procedure Code. In the absence of evidence, disputed matters of mixed law and fact cannot be resolved by considering written submissions of learned advocates only (see: (CAT) Civil Appeal number 4 of 1983, *Board of Internal Trade v. M/S G.B.L. and Associates Limited* (2)

In the course of his judgment, the learned judge proceeded to answer the question, what is meant by "approval of the Commission". After seeking inspiration on the meaning of the words "approval, confirmation," "consent" and "implied consent" from **Black's Law Dictionary**, (6th Edition) the learned judge had this to say namely:

> The term "approval" therefore has very wide ambit and in my view, the extent thereof differs from one usage to another. In our case however, the underlined wording in ss 42 and 40A enjoins the Boards of specified public corporations to seek and obtain approval of the second defendant for various intended actions as outlined including entering agreements and charging assets/properties. *In this case, it is beyond doubt there is no evidence of any formal approval by the second defendant regarding the transactions forming the basis of this action* [emphasis supplied].

With respect, we are in total agreement with the learned judge that there was no evidence of any formal approval by the appellant. The question we ask ourselves, is, where could the learned judge get such evidence when on the 30 March 2004, he inexplicably acceded to the learned advocates' prayer that witnesses were not necessary even after framing the issues. On our part, we are not persuaded in the least that the resolution of the suit involved questions of law only. We fully appreciate that the words "without approval" will give rise to interesting questions of law, but it is clear to us that the issues framed by the Court cannot be answered without ascertaining the factual background and surrounding circumstances.

We are of the settled view that the procedure adopted by the learned judge of dispensing with witnesses was highly irregular. Now

the issue for consideration and decision is whether or not the findings and judgment of the High Court are valid in law. With respect, we do not think so. We have already stated that the learned judge made findings on disputed matters of mixed law and fact without evidence. In the absence of evidence such disputed matters cannot be determined on the basis of written submissions by learned advocates. Yet in his judgment, the learned judge was freely referring to "evidence" when there was none both oral and documentary.

In the result, we have no option but to declare the proceedings of the Court from the 30 March 2004 and the judgment of the Court a nullity. The omission to call witnesses was a fundamental procedural error. We order the hearing of the case to resume before another judge. Since no party is really the winner in this appeal, we make no order as to costs.

ATTORNEY GENERAL v. SISI ENTERPRISES LTD

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Ramadhani, Msoffe and Kaji, JJA)

CIVIL APPEAL No. 30 OF 2004

Land Law – Land Acquisition – Acquisition of land for public purposes – Acquisition made in order to allocate the land to a foreign embassy – Whether it is acquisition for a public purpose – section 4(1) of the Land Acquisition Act 1967.

The respondent company sued the Government of Tanzania in the High Court seeking a declaratory order that the acquisition of a piece land, over which it is a title holder, was unlawful. The company intended to sell the land to the US Government but before the completion of the deal the Government acquired the land and offered it to

the US Government for the purpose of an embassy. The respondent protested and declined to accept the offer of compensation made by the Government, and filed a suit in the High Court. The trial judge found in favour of the respondent and ordered that the respondent be given a sum of USD 3000 000 as compensation, together with interest at market rate under section 3(1)(g)(vii) of the Land Act 1999. On appeal there were rival submissions on whether the land was acquired for a public purpose, and whether Courts in Tanzania can enter judgment in foreign currency.

Held: (i) The land was not acquired for a public purpose as defined under section 4(1) of the Land Acquisition Act, and the acquisition was thus invalid;

(ii) The prudent option for the respondent was to be granted viable and adequate compensation for the land.

(iii) ***Obiter:*** In determining compensation the market value was the determining factor.

Appeal dismissed

Cases referred to:

(1) *Ellis v. Home Office* [1953] 2 QB 139

(2) *Agro Industries Ltd v. Attorney General* [1994] T.L.R. 43

(3) *Continental Agencies v. AC Berrillo Co. Ltd* [1971] EA 2005

(4) *Transport Equipment v. D.P. Valambhia and another* [1993] T.L.R. 91

(5) *B.P Bhatt and another v. Habib Rajani* [1958] EA 536

(6) *Hawabai Franjee Petit v. Secretary of State for India* [1915] 39 BOM 279

Statutory provisions referred to:

(1) Land Acquisition Act 1967, sections 4(1) and 12(1) and 2

(2) Land Act 1999, section 3(1)(g)(vii), GN 485 of 2001

Mr. Nyangarika for the appellant

Mr. Bomani for the respondent

JUDGMENT

(Dated 15 June 2005)

Msoffe, JA: In Civil Case number 47 of 2001 of the High Court of Tanzania at Dar es Salaam the respondent herein sought, *inter alia*, a declaratory order that the acquisition of all that piece of land comprised in certificate of title number 16395 measuring 21.3 acres and popularly known as Drive-In Cinema, was unlawful.

The respondent's case was that it was the holder of the land in issue since 18 June 1966 in a 99-year lease. That, consequent upon being granted the lease it developed the land by building the complex known as Drive-in Cinema. On 5 June 1999 it signed a letter of intent with the Department of State of the Government of the United State of America to enter into an exclusive option to purchase the land at a consideration of USD 3 000 000. However, before the intent could materialize it received a letter from the Commissioner for Lands informing it that the Government of Tanzania intended to acquire the land under section 4 of the Land Acquisition Act, 1967. In spite of its strong objections to the intended acquisition, the Government went ahead to acquire the land and eventually offered it to the Embassy of the United States of America. In return, the Government offered to compensate it a sum of TZS. 602 363 000. The respondent declined to accept the above sum of money for being inadequate and accordingly proceeded to file the above mentioned suit.

On the other hand, the case for the appellant herein was that the acquisition of the land was lawful under the Land Acquisition Act, 1967. That on 16 July 1999 the President, vide General Notice number 469 acquired the land essentially because the respondent had ceased to operate the Drive-in Cinema, and the land was required for a public purpose. And that, at any rate, the President's intention to acquire the land was published in the aforesaid Government Gazette on 16 July 1999.

The Trial Court framed the following issues:

(a) Whether there was proper and sufficient notice for acquiring the suit land under the Land Acquisition Act 1967.

(b) Whether the purpose for which the land was purportedly acquired is a public purpose under section 4 of the Land Acquisition Act 1967.

(c) Whether the proposed compensation offered by the government is adequate having regard to all the circumstances of the case.

After a full trial the High Court, Ihema, J., answered the issues in the negative. In essence the High Court decided that the acquisition was not in the public interest and no reasonable notice was given before the said acquisition. Henceforth, the said Court ordered compensation of USD 3 000 000 with interest at market rate under section 3(1)(g) (vii) of the Land Act number 4 of 1999.

This is an appeal against the above decision of the High Court. There are four grounds of appeal which read as follows:

1. That the Trial Court erred in law and in fact in its finding that there was no proper and sufficient notice in acquiring the suit land under the Land Acquisition Act, 1967.

2. That the Trial Court erred in law and in fact in its finding that the acquisition was not for a public purpose as provided for under section 4 of the Land Acquisition Act, 1967.

3. That the Trial Court erred in law and in fact in finding that the compensation of the suit land be pegged at USD3 000 000 or its equivalent in Tanzania shillings for it is on the high side.

4. That the Trial Court erred in law in its finding and granting interest at the current commercial rate as provided for under section 3(g) of the Land Act 1999, number 4 of 1999 for at the time of filing the suit this law was not operative.

At the hearing of the appeal the parties were represented by the same advocates who appeared on their behalf at the trial. Mr. Ngwembe, learned Senior State Attorney, appeared for the appellant. On the other hand, Mr. Bomani, learned advocate, appeared and resisted the appeal on behalf of the respondent.

We propose to begin with the second ground of appeal. The crucial issue here is whether the acquisition for purposes of the American Embassy was in the public interest. In his oral submission on the point, Mr. Ngwembe essentially repeated his earlier submission at the trial: That the general public was to benefit from services offered by the American Embassy at the acquired piece of land. With respect, we do not agree with him that the acquisition was in the public interest. We say so for reasons which will emerge hereunder.

he starting point is the definition of "public interest," or "public purpose" as it is sometimes called. In **Stroud's Judicial Dictionary** (5 ed), Volume 4, a matter of public interest:

> is that in which a class of the community have a pecuniary interest, or some interest by which their legal rights or liabilities are affected.

In **Black's Law Dictionary**, (7 ed), by Bryan A. Garner, "public interest" means:

1. The general welfare of the public that warrants recognition and protection.

2. Something in which the public as a whole has a stake, especially an interest that justifies governmental regulation.

Black's Law Dictionary also defines "public purpose" as:

> An action by or at the direction of a government for the benefit of the Community as a whole.

In Ellis v. Home Office (1) Morris L. J. stated:

> One feature of the public interest is that justice should always be done and should be seen to be done.

To come back home, we have the case of *Agro Industries Ltd v. Attorney General* (2) where this Court cited a headnote in *B.P. Bhatt and Another v. Habib Rajani* (3) that to be in the "public interest:"

it is not sufficient that public interest may benefit indirectly or incidentally, if the primary purpose of the application is to benefit the landlord's interest and not that of the public.

In *Bhatt's* case, Law J. relied on the Indian case of *Hawabai Franjee Petit v. Secretary of State for India* (4) where in defining "public purpose" it was stated:

> ... the phrase, whatever else it may mean, must include a purpose, that is to say an aim or object, in which the general interest of the community, as opposed to the particular interest of individuals, is directly and vitally concerned.

In *Agro's* case (2) this Court then concluded:

> So what do we understand by an action being in the public interest? We think it is so when looked at objectively with impartial eyes, the action is primarily and not incidentally in the interest of the public ....

In the light of the above definitions, it is clear to us that "public interest" or "public purpose" must include a purpose, that is to say an aim or object, in which the general interest of the community is concerned or involved, as opposed to the particular interest of individuals or institutions.

In the instant case, the acquisition was made under section 4(1) of the Land Acquisition Act, 1967, which reads:

> 4(1) Land shall be deemed to be required for a public purpose where it is required for any of the following purposes:
>
> (a) for exclusive Government use, for general public use, for any Government scheme, for the development of agricultural land or for the provision of sites for industrial, agricultural or commercial development, social services or housing;
>
> (b) for or in connection with sanitary improvement of any kind, including reclamations;
>
> (c) for or in connection with the laying out of any new city, municipality, township or minor settlement or the extension or improvement of any existing city, municipality, township or minor settlement;

> (d) for or in connection with the development of any airfield, port or harbour;
>
> (e) for or in connection with mining of minerals or oil;
>
> (f) for use by the community or corporation within the community;
>
> (g) for use by any person or group of persons who, in the opinion of the President, should be granted such land for agricultural development.

The crucial question here is whether the acquisition and the subsequent grant to the US Embassy was within the ambit of the above sub-section. In our respectful opinion, the answer is in the negative. The acquisition did not fit in any of the situations mentioned in the above sub-section. Indeed, the spirit of the above Act was, and indeed still is, to acquire land for public purpose and not for any other use. Therefore, the validity of any acquisition under the Act depends on whether the land is required for a public purpose. In the instant matter, the acquisition for purposes of the foreign embassy was not in line with the "public purpose" or "public interest" envisaged under the Act. We will, therefore, find nothing to fault the trial Judge in his findings and conclusions on the point in issue.

We now move forward to consider the third and fourth grounds of appeal which were argued together by Mr. Ngwembe. The complaint here is threefold: One, that it was wrong to invoke the Land Act, 1999 in determining compensation and interest. Mr. Ngwembe maintained that sub-sections 1 and 2 of section 12 of the Land Acquisition Act, 1967 were relevant for purposes of determining compensation and interest. Two, that the decreed sum of USD 3 000 000 was on the high side. Three, that it was wrong to enter the judgment in foreign currency in the light of the decision in *Continental Agencies v. A.C. Berrillo Co. Ltd.* (5), Mustafa, JA that a Tanzania Court can only enter judgment in Tanzania shillings.

On the other hand, Mr. Bomani was of the general view that both the Land Acquisition Act, 1967, and the Land Act, 1999, did not

apply for purposes of determining compensation. He urged that the point should be determined on the basis of the prevailing market value where the criterion should be "willing buyer willing seller" basis. Hence, in his view, the price agreed by the parties in the letter of intent would be appropriate compensation in the circumstances. As for interest, he at first contended that a rate of 31% was pleaded at the trial. On reflection, he submitted that the respondent would be satisfied with an award of interest prevailing at the time the judgment was given.

In considering the third and fourth grounds of appeal we think it is necessary to introduce the subject by making the following observations. One, since the acquisition was unlawful as we have tried to demonstrate in the second ground of appeal, *de jure* the respondent remains the lawful owner of the suit premises. De facto, however, the embassy of the United States of America has been offered the land and a new chancery built on it. In the premises, the only realistic and prudent option for the respondent is to be granted viable and adequate compensation for unexhausted improvements. Two, in the light of the position we have taken on the second ground of appeal, it will follow that since the acquisition was not made under the provisions of the Land Acquisition Act, 1967, then the Act would not apply in determining compensation. Likewise, the Land Act 1999 would not be relevant because the acquisition took place before the Act came into force. The acquisition was made on 16 July 1999 and the said Act came into effect on 1 May 2001 by virtue of G.N 485/2001.

Pursuant to the above introductory observations, it will now be clear that the market value will be the determining factor. We have considered the rival positions given by Messrs. Ngwembe and Bomani on the matter. In the end, we are inclined to go along with the value given by the Government valuer. We do so not out of disrespect to the valuation report given by the private valuer, PW2 Titus Kalokola. On the contrary, much as we respect the report, we are of the view that justice will demand that we trust more the value given by the Government valuer than that of the private valuer. In this context,

the value of TZS. 998 467 000 given by the Government valuer, DW2 Deodatus Kalyanda, will be fair and adequate compensation to the respondent. We further think that this will be fair compensation given the fact that the unexhausted improvements were on a prime area of the city.

A word about a judgment entered in foreign currency. Mr. Ngwembe's contention that a Tanzania Court cannot enter judgment in foreign currency in view of the decision in Continental Agencies is, with respect, no longer good law. The current position is as stated by this Court in *Transport Equipment v. Valambhia and another* (6) where it was held, *inter alia*, that following the enactment of the Foreign Exchange Act number 1 of 1992, which came into force on 16 March 1992, as per G.N 37/92, the principle of law propounded in *Continental Agencies* (3) no longer applies in this country.

In view of the position we have taken on the second, third and fourth grounds of appeal we find no need of discussing the first ground of appeal. In the end result, and for the above reasons, we dismiss the appeal on ground two. As for grounds three and four, we allow it to the following extent:- One, the amount of money due and payable to the respondent as compensation for unexhausted improvements is TZS. 998 467 000. Two, the above sum of money will attract interest at the commercial rate prevailing at the date of this judgment. Three, since we have dismissed and partly allowed the appeal, it will be fair that each party bears its own costs here and the Court below.

We so order accordingly.

OLIPA DANIEL *v.* JANGAWE MSUYA

HIGH COURT OF TANZANIA
AT DODOMA
(Kaijage, J.)

(DC) CIVIL APPEAL No. 31 OF 1998

(From the decision of the Resident Magistrate's Court of Dodoma at Dodoma, W.P. Dyansobera, Esq., Resident Magistrate, in RM Civil Case number 26 of 1996)

Civil Practice and Procedure – Appeal – Appeal from orders – Memorandum of Appeal accompanied by decree not an order – Whether the appeal is properly before the Court.

This was an appeal against an order of the Court striking out a civil case, sustaining a preliminary objection that the case was time barred. Counsel for the respondent raised an objection pointing out, *inter alia*, that the appeal was misconceived as it did attach a copy of decree instead of the formal drawn order appealed against as required by the law.

Held: (i) Since the present appeal was against the order striking out the appellant's suit, the Memorandum of Appeal ought to have been accompanied by a copy of an order appealed from and not a decree;

(ii) In the present appeal, the Memorandum of Appeal was not accompanied by an order properly drawn as envisaged under the provisions of Order XL Rule 2 of the Civil Procedure Code, 1966 and the appeal is incompetent and should be struck out.

Order accordingly

Case referred to:

(1) *Jewels and Antiques T. Ltd v. Nasaco Ltd.* [1994] T.L.R. 107

Statutory provisions referred to:

(1) Civil Procedure Code, 1966, Order XXXIX, Rule 1(1) and Order XL, Rule 2

(2) Magistrates Courts Act, 1984 as amended by Act number 25 of 2002, section 43(2).

Mr. Kuwayawaya for the appellant

Mr. Nyangarika for the respondent

JUDGEMENT

(Delivered 15 July 2005)

Kaijage, J: An order striking out RM Civil Case number 26 of 1996 made on 25 September 1998 by the Resident magistrates Court, Dodoma, is what prompted the appellant, Olipa Daniel, to prefer the present appeal. In that matter, the said Trial Court sustained the preliminary points of objection raised on behalf of the respondent, Jangawe Msuya, thereby making an order striking out the appellant's suit for having been time barred. It is to be noted, at this stage that subsequent to the filing of the present appeal, Mr. Nyangarika, learned counsel for the respondent, filed a Notice of Objection grounded on the following;

(i) That, the appeal is misconceived as it originates from a non-appellable order.

(ii) That, the appeal is misconceived as it did not attach the formal drawn order as required by the law.

It seems to me that the decision/order in a Ruling of the Trial Court which is appealed against had the effect of finally determining RM's Civil Case number 26 of 1996. Thus, that order/decision is appellable and it is not the one covered under the provisions of section 43(2) of the Magistrates Courts Act, 1984 as amended by Act number 25 of 2002 which bars appeals in respect of any preliminary or interlocutory decisions or orders. It is basically on the strength of this brief observation that I find myself inclined to overrule the respondent's first point of objection, as I hereby do'.

On the other hand, it is my considered view that the second point of objection has force and merit. As already observed, the present appeal is against the order striking out the appellant's suit. It is certainly not an appeal against a decree. However, in terms of the provisions under Order XL, Rule 2 as read with order XXXIX of the Civil Procedure Code, 1966 (hereinafter referred to as the 'CPC'), rules governing appeals from original decrees also apply to appeals from orders. In this regard, Order XXXIX, Rule I(1) provides:

> Every appeal shall be preferred in the form of a memorandum signed by the appellant or his advocate and presented to the High Court or to such officer as it appoints in his behalf. *The memorandum shall be accompanied by a copy of the decree appealed from* and (unless the Court dispenses therewith) of the judgment on which it is founded. [emphasis supplied]

Indeed, Order XL Rule 2 provides;

> *The rules of Order XXXIX shall apply, so far as may be to appeals from orders* [emphasis supplied].

The combined effect of the provisions in the CPC herein above quoted is that the Memorandum of Appeal in the present matter ought to have been accompanied by a copy of an order appealed from and not a decree. RM'S Civil Case number 26 of 1996 was not heard on its merits and, consequently, no judgement was delivered. It should have been an order striking out the appellant's appeal and the extract of that order which ought to have accompanied the memorandum of the present appeal.

Admittedly, the present appeal is accompanied by what is captioned as a 'decree'. The last paragraph of that purported Decree is titled the word "Order". Surely, the Memorandum of Appeal envisaged under Order XXXIX, Rule I(1) cannot be accompanied by both a Decree and an Order at one and the same time. It is perhaps in recognition of this apparent deficiency that Mr. Nyangarika was quick to submit that; in the absence of a drawn order accompanying the memorandum, the appeal cannot stand in the light of Order XL Rule 2 as read with

Order XXXIX, Rule I(1) of the Civil Procedure Code. With respect, I agree.

It cannot be said that in the present appeal the memorandum is accompanied by an order properly drawn and which is envisaged under the forestated provisions of the Civil Procedure Code. However, the mistake made by the Trial Court in captioning the word 'Decree' instead of the word 'Order' on a document accompanying a memorandum could be cured under the provisions of section 96 of the Civil Procedure Code which provides:

> Clerical or arithmetical mistakes in judgements, decree or orders or errors arising therein from any accidental slip or omission, may at any time be corrected by the Court either of its own motion or on the application of any of the parties ...

In the absence of an order accompanying the memorandum, the present appeal is certainly not proper before this Court. It is incompetent and should be struck out, as I hereby do.

In view of the fact that applications to correct mistakes are not subject to any limitation period *Jewels & Antiques T. Ltd .v. Nasaco Ltd* (1), the appellant is at liberty to file, in the Trial Court, the necessary application for correcting mistakes apparent on the document accompanying the memorandum. Should he succeed in that endeavour, he may as well feel free to pursue his intended appeal subject to the law of limitation.

MVITA CONSTRUCTION COMPANY *v.* TANZANIA HARBOURS AUTHORITY

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Mroso and Kaji, JJA)

CIVIL APPEAL No. 94 OF 2001

(From the decision of the High Court of Tanzania at Dar es Salaam, Msumi, P.J., dated 23 January 2001, in Miscellaneous Civil Cause number 138 of 1999)

Advocates – Right of audience – Advocates admitted to the High Court of Zanzibar with right of audience before the Court of Appeal of Tanzania sitting in Zanzibar – Whether they have automatic right to appear in the High Court of Tanzania and the Court of Appeal sitting in Tanzania Mainland.

Arbitration – Arbitration proceedings – Statutory provisions prescribing special conditions to be observed in instituting legal proceedings against defendant – Whether the conditions similarly apply to arbitration proceedings against that defendant – section 67 of the Tanzania Harbours Authority Act 1977.

Arbitration – Matters for reference to arbitration – Contract requiring all matters referred to arbitration to be referred first to Engineer – Matters referred to arbitrator without first referring them to Engineer – Whether the arbitrator has jurisdiction to entertain them.

Arbitration – Objection to the jurisdiction of arbitrator – Party not registering protest to the jurisdiction of arbitrator and taking part in arbitration proceedings – Whether right to object is waived.

Contract – Building contract – Claim for compensation for devaluation of currency without prior reference of the matter to Engineer – Whether the claim is valid.

Civil Practice and Procedure – Case brought before two different judges at different times on different matters – No res judicata and no conflicting decisions or violation of stare decisis .

Civil Practice and Procedure – Appeal – Notice to affirm the decision being appealed against – Notice should contain the grounds for seeking to affirm the decision – Rule 87(1) of the Court of Appeal Rules, 1979.

Civil Practice and Procedure – Appeal – Notice to affirm decision the decision being appealed against – Notice of affirmation containing grounds that seek to vary the decision – Whether proper .

In August, 1977 the appellant and the respondent entered into a contract under which the appellant, a marine contractor, was to undertake certain civil engineering works at the Port of Dar es Salaam. The contract had a provision for the settlement of disputes between the parties by arbitration. Mvita undertook the works between September, 1977 and March, 1980, when the respondent entered upon the site and the works and took over the constructions, plant, temporary works and materials belonging to Mvita. The dispute that arose was referred to a sole arbitrator, one Geoffrey Hawker, under clause 67 of the contract. The parties further entered into a written agreement to refer which authorized the arbitration to determine, among others things, identified matters in dispute contained in a schedule to the agreement. Following a number of unsuccessful attempts to challenge interim awards and the issue of jurisdiction of the arbitrator the respondent, Tanzania Harbours Authority (THA), again raised the issue of jurisdiction of the arbitrator which led to a fourth interim award, by way of case stated. Eleven questions were stated for the opinion of the High Court. Msumi, P.J., who heard the application held against Mvita. Mvita appealed to the Court Appeal, arguing its grounds in nine groups relating to jurisdiction, estoppel and waiver of jurisdiction, pleadings before the Arbitrator, *res judicata*, limitation period, the application or otherwise of section 67 of the THA Act 1977 (prescribing special conditions for instituting legal proceedings against THA), clause 67 of the conditions of the contract between the partiers, conflicting decisions of the High Court, alleged violation of principles of *stare decisis,* damages, costs and compensation resulting from the devaluation and depreciation of the Tanzania shilling. THA also cross appealed, and also filed notice of affirmation, purportedly under Rule 87(1) of the Court of Appeal Rules, 1979, setting out three substantive grounds on which it

desired the High Court's opinion to be varied. Before the hearing of the appeal started the issue of whether the advocates admitted in Zanzibar with audience in the Court of Appeal sitting in Zanzibar had automatic audience in the High Court of Tanzania and in the Court of Appeal sitting on the Mainland.

Held: (i) Although the two advocates have audience before the Court of Appeal sitting in Zanzibar in order to appear before the High Court of Tanzania and the Court of Appeal sitting on the Mainland it is necessary to seek admission from the High Court of Tanzania;

(ii) section 67 of the Tanzania Harbours Authority Act 1977 envisions a situation where an action is taken against THA to settle a dispute or enforce a remedy in a Court of law; it was irrelevant to the powers or jurisdiction of the Arbitrator;

(iii) The Arbitrator had jurisdiction to entertain only those matters which had been referred to the Engineer in terms of clause 67 of the contract between the parties and were contained in the Agreement to Refer;

(iv) The Arbitrator was competent to adjudicate and give awards in all claims which were properly before him either because the procedural pre-requisites were followed or because THA had not raised any objection to jurisdiction;

(v) Since THA did not register any protest to jurisdiction following Mvita's failure to comply with the procedural preconditions under clause 67 of the contract to submit to arbitration but took part in the arbitration it waived, by conduct, the right to object to jurisdiction;

(vi) THA's objection to the claims for compensation resulting from devaluation and depreciation of the Tanzania shilling was valid since the issue had not been referred to the Engineer as required by clause 67, and THA had raised objection timely; there was therefore no waiver by THA;

(vii) As the two judges of the High Court, dealt with different aspects of the case the question of *res judicata* did not arise and there were therefore no conflicting decisions or violations of the principle of *stare decisis;*

(viii) The Notice of Affirmation was incompetent since it was made under an inapplicable provision of the law;

(ix) ***Obiter:*** A Notice of Affirmation should contain grounds upon which a party requires the Court of Appeal to affirm the decision of the High Court; to ask the Court to vary such a decision is to contradict the purpose of the Notice of Affirmation.

Appeal allowed in part

Cases referred to:

(1) *Ng'unda v. Ng'unda* [1995] T.L.R. 155

(2) *Allarakhia v. Aga Khan* [1969] EA 613

(3) *Frank M. Marrealle v. Paul Kyauka Njau* [1982] T.L.R. 32

(4) *Westminister Chemicals and Produce Limited v. Ecchholz and Loeser* [1954] 1 Llyod's List Law Reports 99 at 105

(5) *National Bank of Commerce v. Perma Shoe Company* [1988] T.L.R. 222

(6) *Zuberi Augustino v. Anicet Mugabe* [1992] T.L.R. 137

(7) *National Bank of Commerce v. Sadrudin Meghji,* [1998] T.L.R. 503

(8) *Almas Iddie Mwinyi v. National Bank of Commerce and Another,* Civil Application number 88 of 1998 [2001] T.L.R.

(9) *Citibank Tanzania Ltd. v. Tanzania Telecommunications Co. Ltd. and Five Others,* Civil Application number 64 of 2003 (unreported).

Statutory provisions referred to:

(1) The Advocates' Ordinance Chapter 344 of the Laws of Tanzania sections 8(1), 39(2)

(2) The Court of Appeal Rules, 1979; Rules 2(1), 31(3)

(3) The appellant Jurisdiction Act, 1979

(4) The Appellate Jurisdiction (Amendment Act, 1984)

(5) The Constitution of the United Republic of Tanzania Article 108(1) and 114

Mr. M.J.A. Lukwaro, Mr. Pherose Erukch Nowrojee and *Mr Dalipsingh Obhrai* for the appellant Company

Mr. Kibuta, Mr. Lamb, QC, Dr. Mapunda and *Mr. Sikila* for the respondent Authority

JUDGEMENT OF THE COURT

(Dated 18 August 2005)

Mroso, JA: In this appeal the appellant company was represented at the hearing by Mr. M.J.A. Lukwaro together with Mr. Pheroze Eruch Nowrojee and Mr. Dilip Singh Obhrai, learned advocates. The respondent authority was represented by Mr. Kibuta together with Mr. Tim Lamb, QC, Dr. Mapunda and Mr. Sikila, learned advocates. A question arose whether Mr. Nowrojee and Mr. Obhrai who are both advocates on the Rolls of Kenya and Zanzibar, had a right of audience before us.

Three days before the appeal was to come for hearing Mr. Lukwaro had sent petitions to the Chief Justice for special licence in respect of those two advocates from Kenya. It was the prayer of Mr. Lukwaro that considering that the two advocates had been enrolled in Zanzibar and held current practicing certificates there, they did not need any special licence under section 39(2) of the Advocates Ordinance, Chapter 341 of the Laws of Tanzania.

Section 39 of the Advocates Ordinance has provisions on the conditions for acting as an advocate and sub-section (2) thereof says:

> (2) Notwithstanding anything to the contrary contained in this Part, the Chief Justice may upon payment to the High Court of the prescribed fee admit to practice as an advocate for the purpose of any case any of the persons mentioned in subsection (1) of section 8 who has come or intends to come to Tanzania for the purpose of appearing in such case.

Subsection (1) of section 8 of the Ordinance lists the qualifications of a person who applied to the Chief Justice to be admitted as an advocate.

According to Mr. Lukwaro, the Chief Justice said that there might be merit in the proposal he (Lukwaro) gave but to avoid delay in the hearing of the appeal granted a special licence to the two advocates pending clarification on the legal position.

Mr. Kibuta was of the view that although Zanzibar advocates have a right of audience before the Court of Appeal in Zanzibar, they do not have an automatic right of audience before the Court on the Mainland. So, although the Chief Justice granted the two advocates special licence to appear before the Court they had to pay the necessary fees. The advocates for the parties agreed that the hearing of the appeal could proceed and, in the meantime, they would undertake legal research on whether an advocate of the High Court of Zanzibar has an automatic right of audience in this Court whether it sits on the Mainland or in Zanzibar. Following from that undertaking the Court proceeded to hear the appeal and written submissions on the right of audience before the Court followed thereafter.

In his written submissions Mr. Lukwaro referred to Rule 31(3) of the Court of Appeal Rules, 1979 where it is provided:

> Every advocate who is for the time being entitled to practice before the High Court shall have the right of audience before the Court.

And argued that from 1984, by Act number 16 of 1984, the definition of "High Court" was broadened to include the High Court of Zanzibar. So, under the Appellate Jurisdiction Act, 1979 as amended, an advocate of the High Court of Zanzibar is as well an advocate of the High Court of Tanzania for purposes of the right of audience before the Court of Appeal. To quote Mr. Lukwaro from his written submissions he said:

> In other words any reference to the High Court under the Appellate Jurisdiction Act, 1979 and the Rules made thereunder – the Tanzania Court of Appeal

> Rules – is reference to both the High Court of Tanzania and the High Court of Zanzibar.

He concluded that it followed that every advocate who for the time being was entitled to practice before the High Court had a right of audience before the Court of Appeal of Tanzania under Rule 31 (3) of the Court Rules. Mr. Nowrojee and Mr. Obhrai were therefore entitled to be head by the Court without the need to pay fees for a special practicing licence.

In his written submissions Mr. Kibuta agrees that the answer lies on whether the words "High Court" in Rule 31(3) of the Court Rules include every advocate who is entitled to practice before the High Court of Zanzibar. He submits, however, that an advocate referred to in Rule 31(3) in the Court of Appeal Rules must be one whose name has been entered by the Registrar of the High Court on the Roll of Advocates. The High Court envisaged here would be the High Court of the United Republic of Tanzania and not the High Court of Zanzibar. He argues that that is so considering the definition of "the High Court" in Rule 2(1) of the Court Rules which reads –

> The High Court" means the High Court of the United Republic of Tanzania established by the Constitution.

The High Court of the United Republic is provided for under Article 108(1) of the Constitution of the United Republic of Tanzania whereas Article 114 provides for the High Court of Zanzibar. Mr. Kibuta submits, therefore, that an advocate of the High Court of Zanzibar does not have automatic right of audience before the Court of Appeal when sitting on Mainland Tanzania.

We think Mr. Kibuta is correct to say that an advocate of the High Court of Zanzibar does not have automatic right of audience before the Court of Appeal on Mainland Tanzania, because the right to practice is territorial. Such an advocate will have a right of audience before the Court on Mainland Tanzania either if his name has been entered on the Roll of Advocates by the Registrar of the High Court on the Mainland and has paid the necessary fees for a practicing

certificate, subject to the five year practice requirement, or if he has a special licence under section 39(2) of Chapter 341 of the Laws. It must also be noted that although the definition of "High Court" in the Appellate Jurisdiction Act, 1979 has been broadened by Act number 16 of 1984 to mean the High Court of Tanzania or the High Court of Zanzibar "as the case may be", that definition must be read bearing the context in mind, that is to say, to provide for the jurisdiction of the Court of Appeal to hear appeals, revisions and applications from both the High Court of Tanzania and the High Court of Zanzibar. However, the Tanzania Court of Appeal Rules, 1979 have their own definition of "the High Court" in Rule 2 which was not amended to conform with the amended definition in the Appellate Jurisdiction Act. As mentioned earlier, for the purposes of Rule 31(3) of the Court Rules, the words "the High Court" have remained to mean "the High Court of the United Republic of Tanzania established by the Constitution", that is to say by Article 108 of the Constitution. Undoubtedly, that is an anomaly because the Court Rules are subsidiary legislation made under the Appellate Jurisdiction Act, 1979 and, normally, should not provide for a definition of the words "the High Court" which is inconsistent with the definition in the principal legislation.

But even if the definition of "High Court" in the Rules were the same as the definition in the Appellate Jurisdiction Act, 1979, as amended, so that the words "High Court" whenever they appear in the Rules meant "the High Court of Tanzania or the High Court of Zanzibar, as the case may be", for purposes of Rule 31(3) of the Court Rules, 1979 it could only mean that advocates who are entitled to practice before the High Court of Zanzibar, like their counterparts on the Mainland, have a right of audience before the Court of Appeal. In fact, in the absence of such a definition the appearance of advocates from Zanzibar before the Court was of questionable validity. Even so, the fact that an advocate of the High Court of Zanzibar is entitled to appear before the Court does not necessarily mean that such an advocate has automatic right of audience before the Court on the Mainland or that an advocate from the Mainland has automatic right

of audience before the Court in Zanzibar. Such advocates have to comply with the conditions in legislation relating to advocates for practicing on the Mainland and in Zanzibar.

In the case before us the two foreign advocates from Kenya were granted temporary admission and special practicing licence by the Chief Justice. All they needed to do thereafter was to pay the necessary fees. We now order that necessary fees in respect of both Mr. Nowrojee and Mr. Obhrai be paid to the Registrar within two days of this judgment. Now to the appeal.

About 28 years ago, in August 1977, the parties in this appeal entered into a written contract under which the appellant, a marine contractor, was to undertake certain civil engineering works at the Port of Dar es Salaam. The project was known as the Port Modernisation of Lighter Wharf Project, Phase II. Among other things the contract contained provisions for the settlement of disputes between the parties by arbitration.

The appellant, henceforth to be referred to simply as Mvita, embarked on the construction work at the port between September, 1977 and 6 March 1980 when the respondent, which for convenience will henceforth be referred to only as THA, entered upon the site and the works and took over Mvita's construction plant, temporary works and materials. Those acts gave rise to disputes between the parties. In accordance with Clause 67 of the Contract a sole Arbitrator, one Geoffrey Fort Hawker based in London, was appointed. The parties had entered into a written "Agreement to Refer" which, among other things, authorized the Arbitrator to determine:

> All questions and matters in difference between the parties hereto touching their respective rights and duties and obligations under the said agreement and all other matters in difference between the parties arising out of or relative to the said agreement on the subject matter thereof ....

A schedule identified the matters in dispute in difference. Arbitration started on 15 April 1985 and by 22 August 1985 the First Interim Award was given and this related to the expulsion of Mvita from the

construction site. Upon invitation of the parties the Arbitrator stated a special case for the opinion of the High Court. That was in accordance with the provisions of section 10(b) of the Arbitration Ordinance, Chapter 15 of the Revised Laws of Tanzania.

On 23 July 1986 Mapigano, J., gave his decision on the case stated, reversing the Arbitrator's provisional award. Both Mvita and THA were aggrieved by the High Court opinion resulting in an appeal and a cross-appeal to the Court of Appeal of Tanzania. The Court of Appeal partly concurred with Mapigano, J., and partly reversed him. That was on 26 February 1988 and arbitration proceedings resumed on 11 July 1988.

Four days after the resumption of arbitral hearing the Arbitrator made a second Interim Award which related to the proper identity of the Mvita contracting party. Subsequent to the award arbitral proceedings continued until on 25 May 1989 when the Arbitrator made and published a Third Interim award on certain questions of liability.

THA was aggrieved by the second and third interim awards and petitioned the High Court to set them aside for the reason that the Arbitrator lacked jurisdiction and was allegedly guilty of misconduct. So, in Miscellaneous Civil Cause number 35 of 1992 Kyando, J. heard the petition and dismissed it on 4 June 1993. He upheld the Arbitrator in his award that the expulsion of Mvita from the site was unlawful; that the Notice of Expulsion which had been served on Mvita was null and void and that a certificate of the Supervising Engineers – Messrs Berlin and Partners (Tanzania) Limited of 20 December 1979 on which forfeiture of assets and expulsion of Mvita was based, was null and void. Kyando, J. then directed the Arbitrator to proceed with the hearing and determination of quantum of damages.

THA sought to challenge Kyando, J.'s decision in the Court of Appeal by filing Civil Appeal number 9 of 1994. This appeal was struck out on 14 October 1994 for the reason that it was time barred. An application for extension of time to apply for leave to appeal was dismissed by Bubeshi, J. on 31 March 1995.

THA again raised the issue of the jurisdiction of the Arbitrator and this led to the fourth Interim award by way of case stated. The Arbitrator stated 11 (eleven) questions on which the opinion of the High Court was sought. Misc. Civil Cause number 138 of 1999 was opened in the High Court and was heard by Msumi, Principal Judge who delivered his opinion on 23 January 2001. On the whole, the High Court held against Mvita which, feeling aggrieved, has appealed to this Court, listing 46 grounds of appeal. THA has also cross-appealed, raising five substantive grounds although it later abandoned the fourth ground. It also filed a Notice of Affirmation purportedly under Rule 87(1) of the Court of Appeal Rules, 1979, setting out three substantive grounds on which it is desired the High Court Opinion should be varied, which sounds contradictory!

Although the appellant filed 46 grounds of appeal its advocates did not argue each one of them but divided them into nine convenient groups. Arguments and submissions therefore were made in respect of the nine groups of appeal. It may also be said that some of the points which were listed as grounds of appeal are not in reality grounds of appeal at all but arguments or submissions in disguise. Such are, for example, listed grounds 15D, 18, 24, 25 and 25A. Ground 15D reads:

> 15D The statute (section 67) does not require the details on the text of the statement of Claim/Plaint to be part of the notice or to be served separately on the THA Act. (*sic*) Had Parliament required this it would have and could have, so prescribed, as it has done under the Government Proceedings Act.

Ground 18 reads:

> (18) The foregoing issues were all *res judicata*

Ground 24 reads:

> (24) The Learned Principal Judge ought to have found and opined that the issue of jurisdiction of the arbitrator was *res judicata* (*sic*) as the new grounds thereon now being urged before him, could have been, and should have been, taken on the aforesaid previous proceedings.

Ground 25:

> This is so regardless of whether these "new" grounds are "defences" or "legal issues" touching the Legal Competence of the Arbitrator to determined (*sic*) them.

Ground 25A:

> The respondents" "new" points on jurisdiction were not new points coming into existence, or being discovered, 18 years later. They were, if they have any merit (which is expressly denied), in existence from the very beginning of this arbitration, and were available to the respondent long prior to the High Court and had already been dealt with and determined between the parties by Courts of competent jurisdiction aforesaid proceedings in the High Court and in the Court of Appeal.

There are several more such "grounds" and we think it is unnecessary to cite them all. It is apparent, therefore, that the proper grounds of appeal are not as many as were listed by counsel for the appellant. Besides grounds 36A, 36B and 36C were abandoned.

The nine groups which summarize the grounds of appeal relate to jurisdiction of the Arbitrator, estoppel and waiver on jurisdiction, pleadings before the Arbitrator, *res judicata*, limitation period, the application or otherwise of section 67 of the Tanzania Harbours Authority Act, 1977 and clause 67 of the conditions of the Contract between the parties, conflicting decisions of the High Court, alleged violation of the principle of precedent and *stare decisis* and Damages, costs and compensation resulting from devaluation and depreciation of the Tanzania Shilling.

It seems to us that the issue of jurisdiction of the Arbitrator was central to the 11 (eleven) matters or questions which the Arbitrator referred to the High Court for its opinion. The questions which were referred to the High Court are the following:

> 1. Whether the claimant's pleaded claim made in these proceedings is a single cause of action for damages for the alleged wrongful repudiation of the contract.

2. Whether the claimant's claim is not one single comprehensive claim for damages at common law but a series of discrete claims under clause 67 and or under other provisions of the contract.

3. Whether, if there be one cause of action and one claim only, that claim is within the jurisdiction of the Arbitrator because the claimants have complied with section 67 of the Conditions of Contract, and have referred to Arbitration their claim and their proceedings in respect of that claim, is encompassed within the Agreement to Refer, and has been pleaded by the claimant and/or is otherwise within the jurisdiction of the Arbitrator and/or because the respondents have waived any objection to the Arbitrator's jurisdiction and/or are estopped from denying that the Arbitrator has jurisdiction to determine the said claim.

4. In the light of:

   (i) Section 67 THA Act 1977; and

   (ii) Clause 67 of the Contract between the parties

   what procedural and pleading requirements were to be fulfilled in order that any given matter of complaint in the Claimant's Schedule of damages and document C3 (Appendix 1) might be adjudicated upon and has the Claimant complied with those procedural and pleading requirements.

5. Whether the four documents referred to in the narrative are capable of fulfilling any appropriate procedural requirements in respect of the matters of complaint raised in C3.

6. Whether the matters complained of in the Claimant's Schedule of Damages and C3 constitute but one "act, neglect or default" for the purposes of section 67 of the THA Act, 1977 or are they and/or have they conventionally become a number of separate "disputes or differences" and if so, how many?

7. Whether if there be more than one cause of action and several Claims, the Claims or elements of Claim as set out in the Schedule of Damages and "C3" are within the jurisdiction of the Arbitrator because the Claimant has complied with the aforesaid section 67 of the THA Act and Clause 67, and have referred to arbitration their claims and proceedings have been commenced in time and these claims are encompassed within the Agreement to Refer, or are otherwise within the jurisdiction of the Arbitrator and/or because the respondents have waived any objection to the Arbitrator's jurisdiction and/or are estopped from denying that the Arbitrator has jurisdiction to determine the said claims.

8. Whether as a matter of construction the Agreement to Refer embraces and/or provides the Arbitrator within sufficient jurisdiction to determine all the matters complained of in the Schedule of Damages and 'C3' (Appendix 2).

9. Whether the Agreement to Refer provides the Arbitrator with sufficient jurisdiction to determine in any final award whether as a matter of fact and/or law that the respondent's contentions as to whether the Claimant has complied with section 67 of the THA Act and/or Clause 67 are effective defences to the claim or claims or whether compliance with section 67 of the THA Act and/or Clause 67 is a condition precedent to the exercise of the jurisdiction referred to in Question 8 and that such compliance is determinable only by the Courts.

10. Whether the Arbitrator has jurisdiction as a matter of Tanzania law to compensate, if appropriate in the circumstances, the claim for the effects of the devaluation of the shilling since the Claimant's wrongful expulsion from the site.

11. Whether the Arbitrator has jurisdiction as a matter of Tanzania law to award if appropriate in the circumstances, either simple or compound interest.

To begin with, under the law in Tanzania, an arbitrator's authority, power and jurisdiction are founded on the agreement of parties to a contract to submit present or future differences to arbitration. The other source of the authority, power and jurisdiction of an arbitrator in Tanzania are the provisions to be implied in submissions found in

the First Schedule to the Arbitration Ordinance, Chapter 15 of the Laws. Indeed, the parties, Mvita and THA, agreed as regards the power of the arbitrator whom they chose to be, *inter alia*, as follows:

> The Arbitrator shall have all the powers given to arbitrators by the Arbitration Ordinance, (Chapter 15 of the Laws of Tanzania) or any statutory modifications or re-enactment thereof and shall make and publish his award in writing within three (3) months of the effective date of entering of this reference ...:

But in settling disputes between the parties in this appeal the Arbitrator had to have recourse to Clause 67 of the Contract between them. A dispute which did not come under the terms of clause 67 would be outside the jurisdiction of the Arbitrator.

Clause 67 says in part:

> If any dispute or difference of any kind whatsoever shall arise between the employer or the Engineer and the Contractor in connection with or arising out of the Contract or the carrying out of the works (whether during the progress of the works or after their completion and whether before or after the termination abandonment or breach of the Contract) it shall in the first place be referred to and settled by the Engineer .... All disputes or differences in respect of which the decision (if any) of the Engineer has not become final and binding ... shall be finally settled by arbitration in Tanzania in accordance with the Tanzania arbitration law .... The Arbitrator shall have the power conferred on him as such by any statutory enactment or amendment thereof from time to time in force and shall be competent to enter upon the references without any further or formal submission than is contained in the contract. The award of the Arbitrator shall be final and binding the parties.

One of the questions before the High Court, Msumi, Principal Judge, was whether the pleaded matters in dispute were within the jurisdiction of the Arbitrator. Such matters, eight in number, were listed in the Opinion which was rendered by the High Court and we think it is not necessary to repeat them here. But we wish first to dispose of

the question whether section 67 of the Tanzania Harbours Authority Act, number 12 of 1977, was relevant to Mvita's claims which were before the Arbitrator.

Section 67 of the THA Act relates to where "any action or other legal proceeding is commenced against the Authority for any act done in pursuance or execution or intended execution, of this Act ...." We are of the considered opinion that the matters which were before the Arbitrator were not "any action or other legal proceeding" within the meaning and purport of the section.

The THA Act does not define the term "action" or the phrase "legal proceeding" but the term "action" in its legal sense normally means "a civil proceeding as may be prescribed by the rules of Court..." See "a **Concise Law Dictionary**" by P. G. Osborn, (5 ed). **Black's Law Dictionary**, (7 ed) defines "action" in its legal sense as "a civil or criminal juridical proceeding". Non-legal dictionaries like **Chambers Twentieth Century Dictionary** defines "action", among other meanings, as "a law suit, or proceedings in Court." As for the phrase "other legal proceeding", it must be read *ejusdem generis* with the term "action". **Black's Law Dictionary** defines "legal proceedings" as "any proceeding authorized by law and instituted in a Court or tribunal to acquire a right or to enforce a remedy". The **Oxford Advanced Learners Dictionary**, which is a layman's dictionary, defines "proceeding" as "the process of using a Court of law to settle a dispute or to deal with a complaint". Section 67 of the THA Act, therefore, envisages a situation in which Court action is taken against the THA to settle a dispute or to enforce a remedy.

The High Court, Msumi, Principal Judge, said regarding section 67 of the THA Act:

> ... the jurisdiction of the Arbitrator in the present case is prescribed by section 67 of THA Act and Clause 67 of the Contract. In order for the Arbitrator to be seized with jurisdiction on any matter the party making the reference must have complied with the requirements of these provisions

> ... His (Arbitrator) jurisdiction is limited to only those matters which have been brought before him in compliance with, among other requirements, the provisions of section 67 of THA Act ....

We think the learned Principal Judge erred in so holding. The reference or submission to arbitration was not, we are satisfied, "action or other legal proceeding" under section 67 of the THA Act, 1977. The section was, therefore, irrelevant to the proceedings before the Arbitrator.

Having found that section 67 of the THA Act, 1977 was inapplicable to the matters which were before the Arbitrator we now reiterate that his jurisdiction was founded on the agreement to submit, Clause 67 of the Contract and any implied or express authority under the Arbitration Ordinance, Chapter 15 of the Tanzania Revised Laws.

We, also, at this juncture and for the avoidance of doubt, wish to highlight the distinction and similarities between the jurisdiction of Courts of law and that of an arbitrator. In the case of a Court of law, a decision reached by a Court without jurisdiction is null and void because jurisdiction goes to the very root of the authority of the Court to adjudicate upon the case. See *Ng'unda v. Ng'unda* (1). Also, in a Court case parties cannot by mutual consent confer jurisdiction on a Court which does not have jurisdiction to adjudicate on the matter. See *Allarakhia v. Aga Khan* (2) and *Frank M. Marealle v. Paul Kyauka Njau* (3).

In arbitration, like in a Court of law, want of jurisdiction renders a decision and an award a nullity. Also, both in Court cases and in arbitration objection to jurisdiction can be raised at any stage of the proceedings. In a civil case objection to jurisdiction can be raised even at the final appeal state and, in an arbitration, objection can be raised even after publication of an award. However, in arbitration, a party can waive objection to the jurisdiction of the arbitrator. According to Sir Michael J. Mustill and Steward C. Boyd on The **Law and Practice of Commercial Arbitration in England**, Butterworths 1982 Edition at page 522, irregularities of procedure in arbitration can be readily

waived "but the jurisdiction of the arbitrator must always depend on an agreement by the parties to abide by his award." For example, a party who appoints an unqualified arbitrator cannot afterwards complain that the arbitrator had no jurisdiction. Also, a party who relies on an arbitration agreement to have an action stayed and the claim referred to arbitration cannot later assert that the claim is outside the scope of the agreement. These examples though they relate to waiver, are more in the nature of estoppel. What seems to come out of these examples is that waiver of objection to the jurisdiction of the arbitrator is in quite limited circumstances, either in relation to mere irregularities or in estoppel situations.

We now wish to go to the question whether the pleaded matters in dispute were within the jurisdiction of the Arbitrator. The High Court found that since Mvita had not complied with section 67 of the THA Act, 1977 and also had not complied with Clause 67 of the Contract, the pleaded matters in dispute were not within the jurisdiction of the Arbitrator.

We already found that section 67 of the THA Act, 1977 was inapplicable to the arbitration proceedings, and the High Court erred to the extent that it found section 67 applicable. But it was correct to say that Clause 67 of the Contract was applicable. The question, however, is whether all the pleaded matters in dispute were outside the parameters of Clause 67 of the Contract as held by the High Court.

Clause 67 provides the prerequisites for a matter to go to arbitration. There are the conditions such as that a matter must first be referred to and settled by the Engineer within a given period of 90 days after reference to him. The Engineer too is expected to give a written notice of his decision to the parties. If a party is dissatisfied with the Engineer's decision he may within 90 days after receiving notice of such decision require that the matter be referred to arbitration.

It is not in dispute that some of the matters which were referred to arbitration and had formed part of the pleaded matters in dispute

did not comply with Clause 67. Mr. Nowrojee has argued very forcefully that the THA had willingly submitted to arbitration on all those matters and that for a whole period of eighteen years they appeared to accept that the Arbitrator had jurisdiction notwithstanding the non-compliance with Clause 67. Furthermore, that if parties appear before an arbitrator and participate in the proceedings until an award is given, such conduct is sufficient proof that the parties agreed to be bound by the award and should not be heard to complain later that the arbitrator lacked jurisdiction. In the alternative, Mr. Nowrojee was arguing that THA had waived objection to jurisdiction or had acquiesced or ratified the process and was estopped from questioning it later.

Mr. Lamb, QC does not concede that they had not raised objection to jurisdiction for a whole 18 years and referred the Court to paragraph 4.1 of the Points of Defence in which it was said:

> 4.1 In so far as averments under this section constitute the basis of the Claims under section 5 of the Points of Claim the respondent raises a preliminary objection to the effect that the following averments in this section and the corresponding claims in section 5 are incompetent and therefore inadmissible because they have not been in dispute between the parties that is to say:
>
> (a) Averments and Claims which relate to matters that have not been the subject of the Engineer's Decision.
>
> (b) Averments and Claims which relate to matters that have been the subject of Engineer's Decision No. 12 but decision of the Engineer has not been disputed in time ....
>
> (c) Averments and Claim which relate to matters that have been the subject of Engineer's decision No. 12 but which have not been set out in Agreement to Refer ....

On 16 December 1983, the late Mkude, then of the Tanzania Legal Corporation, acting as counsel for THA, wrote to the lawyers of Mvita to indicate that THA was abandoning the above preliminary objection. However, later in a so-called Re-Re-Amended Points of

Defence, THA retracted the abandonment of the Preliminary Objection. In other words, the preliminary objection was reinstated. It was said in paragraph 4.1:A – as follows:

> 4.1: A For the avoidance of doubt the respondent withdraws the concession contained in the letter of 16 December 1983 written on its behalf by the Tanzania Legal Corporation (i.e. Mr. Tom Mkude).

The pleadings were still being filed by way of amendments and the so-called Re-Re-Amendments. We think it was legitimate for THA to restore their preliminary objection and, therefore, it would not be correct to say that THA had not at all raised objection to jurisdiction, not to mention that even before Kyando, J. there was objection to jurisdiction. It must be said, however, that the instances of objection were limited in scope (to claims under section 5 of the Points of Claim) and were not all – encompassing.

We share the Arbitrator's, and by implication the High Court's, categorization of Mvita's claims; that the first category comprised those claims which arose out of the contract as a whole and related to Mvita's carrying out of the works prior to expulsion. The second category of the claims which relate to the use, retention and or sale of Mvita's plant, materials and temporary works. The third category related to the claim for general and special damages following what was later adjudged unlawful expulsion.

Mvita argued before the High Court – Msumi, Principal Judge, that as regards the post-repudiation claims, the issue was *res judicata* because Kyando, J. had dealt with the issues of liability and had decided that the Arbitrator had jurisdiction to deal with all those issues.

The THA disputed that contention, maintaining that Kyando, J., had decided only on questions of *locus standi* and identity of Mvita; that the expulsion was unlawful; on the questions of mistake and misrepresentation and on alleged misconduct of the Arbitrator. The High Court (Msumi, Principal Judge) agreed with THA's contention and said:

> On the question whether all issues of liability have been finally determined by Kyando, J. I had the advantage of going through the records of the case in question. I am respectfully of the respondent's view that not all issues of liability have been determined in the case. Indeed this view is also shared by the Arbitrator and the Claimant (Mvita) ....
>
> The categories of liability which are relevant for the final determination of the parties' dispute have not bee exhausted by Kyando, J. in his ruling. This assertion is, respectfully, without prejudice to Kyando, J.'s direction that the Arbitrator should proceed to determine the quantum of damages. I am therefore of the considered view that the issues raised in this case are properly before the Court.

We agree with the High Court that Kyando, J. did not decide on all the issues of liability and that his decision is limited to the matters as explained by THA. We also reiterate that disputes could be referred to Arbitration only if the procedure in Clause 67 of the Contract was followed.

It could have been argued by Mvita that considering that it was the Engineer who initiated the purported repudiation of the contract and the unlawful expulsion of Mvita it would have been an exercise in futility to refer any disputes to the Engineer before further reference to arbitration. But it is apparent that Mvita was not inhibited. It in fact invoked the provisions of Clause 67 of the Contract to refer the dispute over its expulsion to the Engineer who gave his Decision number 11 in conformity with the clause. Subsequently Mvita included that decision among the matters to be referred to Arbitration under "Matters in Dispute in Difference" item 4. It must have treated the contract as still subsisting and could have done the same for all the other disputes. Therefore, subject to what we will say later on waiver, estoppel, acquiescence and ratification, failure by Mvita to follow the procedure under Clause 67 made the Arbitrator lack jurisdiction to deal with those matters. Furthermore, since Kyando, J. did not deal with all the issues of liability, there could not be a valid plea of *res judicata* when THA raised the complaints on jurisdiction.

Was there waiver or estoppel? Msumi, Principal Judge held the view that there was waiver and estoppel regarding Mvita's failure to comply with Clause 67. He said:

> So in the present case the waiver in question is only sustainable against challenge of the Arbitrator's Objection based on claimant's failure to comply with Clause 67 of the Contract and not on non-compliance of section 67 of the Act .... As for the alternative argument of estoppel, the Court is of the opinion that this plea is sustainable against preliminary objection based on non-compliance of Clause 67 of the Contract and not against non-compliance of section 67. Based on these findings the Court is of the opinion that the Arbitrator has no jurisdiction to entertain the pleaded claims.

We have already held that section 67 of the THA Act, 1977 is not relevant to proceedings in arbitration. Once section 67 of the THA Act is put out of the way the position as far as the High Court was concerned was that THA had waived the failure by Mvita to comply with the procedural requirements of Clause 67 of the Contract and from that perspective the Arbitrator would have jurisdiction to hear the dispute on the pleaded claims.

Although it is obvious to us as we have previously indicated that Kyando, J. did not deal with all aspects of objection to jurisdiction, we are of the considered view that THA had indeed, by conduct, waived objection to jurisdiction following Mvita's failure to comply with the procedural pre-conditions under Clause 67 to submission to Arbitration. In Mr. Lamb's letter dated 4 June 1997 to Mr. G. F. Hawker, the Arbitrator, he said:

> I have broad instructions to bring this matter to a conclusion expeditiously .... My clients are anxious to proceed and, indeed, a team from Dar es Salaam is arriving at the beginning of July .... We feel, with all due respect, that it is time for MVITA formally to plead its quantum claim. From that pleading and our response it should be possible to distill points of principle, the resolution of which will go a long way towards disposing of this matter.

With all respect to THA, we find it somewhat refractory for it to turn round to complain that the Arbitrator had no jurisdiction. It did

not say it was submitting to jurisdiction under protest or that it was reserving its right to raise objection to jurisdiction after an award. We take it therefore that Mr. Lamb, QC on behalf of THA, was by implication expressing willingness to participate in Arbitration when Mvita formally pleaded its quantum claim. The following passage from *Westminster Chemicals and Produce Ltd. v. Eichholz and Loeser* (4) at page 105, per Justice Devlin, is perhaps relevant:

> .... If there is an agreement and if one of the parties has studied before hand and thinks that the dispute is outside it, he can then go before the arbitrator, if he so wishes, and protest. If he protests against the jurisdiction of the arbitrator ... it is held that he can take part in the arbitration without losing his rights and what he is doing, in effect is that he is merely saying: "I will come before you, but I am not, by my conduct in coming before you and arguing the case, to be taken as agreeing to accept your award ....

All those fundamental doctrines flow from the principle, which I think is well established; that if a man does not protest, but if, as it is called, he submits to the jurisdiction of the arbitrator, he is then bound by the award.

Later at page 109 the Court said:

> The whole essence of the doctrine of this Court is that you must protest at once. If you take part in the arbitration you thereby, merely by taking part in it, *prima facie* make the agreement.

The agreement referred to here is the agreement to accept to be bound by the award.

It must be noted, however, as clarified by Mr. Lamb, QC for THA, that it was not its case that the Arbitrator had no jurisdiction at all. Indeed, THA could not in all sincerity advance such an argument. If we understand THA's stand correctly, it appears to us that THA is contending that matters of claim contained in the Re-Re-amended Points of Claim were not subject to arbitration first because requisite notice was not served under Clause 67 in respect of all the decisions

of the Engineer but only in respect of some of the decisions. Further that as regards the majority of the matters for which Mvita sought relief there was no reference at all to the Engineer for decision. We have already dealt with this complaint. Mvita did not dispute that there was non-compliance with Clause 67 regarding some of the matters taken to arbitration but claimed there had been waiver and or estoppel. Secondly, that Damage Elements 1 to 8 which contain a number of specific claims set out in Document "C3" did not meet threshold tests, that is to say that they were not time-barred under section 67 of the THA Act, 1977, that they complied with Clause 67 of the Contract; that they were referred under the terms of the Agreement to refer and that they had been properly pleaded. Unless they passed all those tests, then the Arbitrator had no jurisdiction.

Earlier in the judgment we disposed of the relevance of section 67 of the THA Act, 1977. So, the question whether the claims were time-barred under section 67 of the THA, 1977 is no longer an issue before us. The questions to explore are whether the claims were referred under the terms of the Agreement to Refer and had been pleaded.

We wish to make two general pronouncements. First, that objection to jurisdiction in respect of claims which had been made prior to the Third Interim Award and Kyando, J's ruling (of 4 June 1993) whether or not they complied with procedural requirements of Clause 67 of the Contract should be taken to have been waved. This is because there was no clear indication that participation in the arbitration was made without prejudice. Objection to jurisdiction had been made in a limited issue which did not encompass the objections which were made and which led to the fourth Interim Award and the subsequent Special Case Stated to the High Court. Secondly, certain claims or Damage elements were raised by Mvita after Kyando, J's Ruling. These included the Claim for Costs and for Compensation arising from Devaluation. We think THA was entitled to raise objection to jurisdiction of the Arbitrator on these later claims.

We think that once we take the view that THA's objection to jurisdiction regarding the "new" matters such as the claim for compensation resulting from devaluation and depreciation of the shilling was valid, we find no useful purpose to consider whether such claims had been properly pleaded. This time THA raised objection timely to the jurisdiction of the Arbitrator. Mvita had not complied with Clause 67 of the Contract regarding those "new" matters and the question of waiver on the part of THA could not be validly raised.

We do not accept the contention by Mvita that the opinion by Msumi, Principal Judge, conflicted with Kyando, J. We agree that Kyando, J. did not decide on all the issues of liability and that was what Msumi, P.J. said – "I am respectively of respondent's view that not all issues of liability were determined in that case (before Kyando, J.)" In that logic we find that there were no conflicting High Court decisions nor is *res judicata* a valid ground of complaint. To the extent that Kyando, J. ruled that the arbitrator should proceed to deal with quantum, that decision is intact. But the Arbitrator should deal with quantum to the extent only of the matters on which he had jurisdiction largely because THA had, as decided by this Court, waived its objection to jurisdiction. In other words, the Arbitrator had acquired jurisdiction because of the default on the part of THA.

But as regards the claims which were "new" and were pleaded by Mvita subsequent to the ruling by Kyando, J., and to which THA has timeously raised jurisdictional objection, we uphold the objection and the Arbitrator may not proceed to deal with any such claims.

It was indicated earlier in the judgment that THA had filed a Notice of Cross-Appeal containing five substantive grounds but at the hearing, the fourth ground was abandoned. Mr. Kabuta for THA argued the cross-appeal.

In the first ground of the cross-appeal the Principal Judge is criticized in giving the following opinion:

> As for the alternative argument of estoppel, the Court is of the opinion that this plea is sustainable against preliminary objection based on non-compliance of Clause 67 of the Contract and not against non-compliance of section 67.

THA thinks that the High Court should have held that:

(a) none of the matters relied upon by the appellant (Mvita) as founding the waiver/estoppel operated to circumvent the contractual requirements to refer disputes to the Engineer under Clause 67 of the Construction Contract;

(b) If there had been any such waiver or estoppel the Arbitrator in the exercise of his discretion had allowed the respondent to resile from it;

(c) the Court cannot substitute its opinion for that of the Arbitrator on a matter of discretion.

Mr. Nowrojee disputes that the Arbitrator had allowed THA to resile from general waiver or estoppel but had only allowed THA to resile in respect of Mkude's letter.

We think the High Court was correct in that opinion but as regards section 67 of the THA Act, we need not repeat our opinion that it was not relevant to the proceedings before the Arbitrator.

THA waived its objection to the non-compliance with Clause 67 of the Contract to the extent already explained earlier in this judgment. We uphold the view, however, that as a general rule the Court may not substitute its own opinion for that of the Arbitrator on a matter of discretion. Where discretion was not exercised judicially or was exercised wrongly the Court can only quash the opinion and direct the Arbitrator, where appropriate, to reconsider the matter in a judicious manner.

As regards the second ground in the cross-appeal the question of compensation for devaluation had not been decided by the Arbitrator. In any case, since it was one of the "new" claims which we considered should have complied, but did not comply, with Clause 67 of the Contract it is unnecessary for us to consider as an academic matter

whether or not the arbitrator could award compensation. The cases cited, that is to say, *National Bank of Commerce v. Perma Shoe Company* (5) and *Zuberi Agustino v. Anicet Mugabe* (6) are both authorities that compensation for devaluation is payable but these authorities are not helpful to either party in this appeal because of failure by Mvita to comply with the procedural pre-condition in Clause 67 of the Contract.

On the third ground in the cross-appeal, we uphold the High Court on the law regarding the award of simple and compound interest. It is left to the Arbitrator to decide whether he will allow simple or compound interest taking into account, among other things, Clause 60(10) of the Contract of Construction.

If the fifth ground of the cross appeal is a summing up of the first, second and third grounds in the cross-appeal we will say that in some instances, like in the case whether or not an arbitrator can assess and award simple or compound interest, it is legitimate for the arbitrator to take a decision and make an award. In all the claims which the Court considers were properly before the Arbitrator either because the procedural pre-requisites were followed or because the THA had not raised objection to jurisdiction, it is competent for the Arbitrator to adjudicate and give awards. All-in-all, the cross-appeal is dismissed with costs.

The Notice of Affirmation is made under Rule 87(1) of the Court Rules, 1979. That provision does not relate to Notice of an Affirmation. Rule 87(1) is on Notice of Cross-appeal. The relevant provision should have been Rule 93(1) which provides for Notice of Grounds for Affirmation of a decision of the High Court.

In a number of cases this Court has held that it must be moved under the correct enabling provision of the law otherwise a prayer or application is incompetent and will not be considered. In *National Bank of Commerce v. Sadrudin Meghji*, (7) an application for revision which cited the wrong provision of the law was dismissed for incompetence on the ground that the Court had not been properly

moved. That view of the Court was followed in several subsequent decisions of the Court like *Almas Iddies Mwinyi v. National Bank of Commerce and Another,* (8) and *Citibank Tanzania Ltd. v. Tanzania Telecommunication Co. Ltd., and 5 others*, (9). In this last cited case, the Court said:

> It hardly needs to be emphasized that in a notice of motion an applicant must state the specific provision of the law under which an applicant wants to move the Court to exercise its jurisdiction.

In most of those cases an application was dismissed because either that no enabling provision was cited or a wrong provision was cited. The principle is that the Court will not consider prayers like the ones in the Notice of Affirmation where the wrong provision of the Rule of the Court was cited. The Notice is therefore dismissed for incompetence.

We wish to observe also as hinted earlier that in fact there is apparent contradiction in the Notice of Affirmation. It reads:

> TAKE NOTICE that on the hearing of this appeal, the above named respondent will contend that the above mentioned decision ought to be varied in part to the extent and in the manner and on the grounds hereinafter set out namely.

The Notice shows dissatisfaction with parts of the judgment sought to be affirmed.

We wish to summarize that the appeal partly succeeds. For example, because of estoppel against the respondent, the Arbitrator had jurisdiction on claims which were made prior to objection to jurisdiction being raised. The cross-appeal and the Notice of Affirmation are dismissed with costs.

The appellant will get half the costs to be taxed and we certify for two counsel.

FADHILI GUMBO alias MALOTA AND THREE OTHERS *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Munuo, Nsekela, and Msoffe, JJA)

CRIMINAL APPEAL No. 52 OF 2003

(Appeal from the decision of the High Court of Tanzania at Dar es Salaam, Kimaro, J., dated 11 December 2002, in Criminal Sessions Case number 8 of 1998)

Evidence – Identification – Identification by name – Whether identification by name is satisfactory where the witness knows the accused persons.

Criminal Law – Murder – Malice aforethought – Death caused by an unlawful act in the furtherance of an intention to commit on offence – whether murder is committed – section 200(c) of the Penal Code, Chapter 16.

The accused were charged with and convicted of murder before the High Court, Dar es Salaam. The killing was committed in the course of committing a robbery. During their appeal they argued that it was important for the prosecution witnesses to describe how exactly they identified them, say by height, dresses, etc.

Held: (i) Where the witnesses were close to allow proper identification and were not contradicted that they knew the appellants before the date of the incident, their identification by name cannot be faulted;

(ii) If death is caused by an unlawful act in the furtherance of an intention to commit an offence, malice aforethought is deemed to be established in terms of section 200(c) of the Penal Code, Chapter 16.

Appeal dismissed

Cases referred to:

(1) *Raymond v. R.* [1994] T.L.R. 100

(2) *Mohamed Alhui v. Rex* (1942) 9 E.A.C.A. 72

(3) *Olenja v. R.* [1973] EA 546

(4) *Sentali Lemandwa v. R.* (1953) 20 E.A.C.A. 230

(5) *Manazo Mandundu and Another v. R.* [1990] T.L.R. 92

Statutory provisions referred to:

(1) Penal Code, Chpater 16, section 200(c)

Mr. Ndolezi for the Appelants

Ms. C.S. Maganga for the respondent

JUDGMENT OF THE COURT

(Dated 1 September 2005)

Msoffe, JA: On the night of 19 January 1997 PW1 Abdallah Ngeleza and PW2 Mwanahamisi Hashimu, a husband and a wife respectively, were at their house which is situated somewhere at Mvumi Village, Kimamba Division, Kilosa District, Morogoro Region. At around 10.00pm they were ambushed by armed bandits. The bandits were wielding a gun, machetes and iron bars. As the bandits broke into the house, PW1 attempted to confront and stop them but to no success. In the course of time he (PW1) decided to jump through a window and seek refuge at his father's house which was a short distance away. His father was Rashid Lekaningo, the deceased in this case. As he ran to his father's house some of the bandits followed and beat him. The deceased came out in an attempt at rescuing his son, PW1. The deceased asked the bandits if they wanted to kill PW1. Apparently the bandits were not happy with the question asked by the deceased whereupon they left PW1, set out on the deceased, beat him up with the use of iron bars and machetes and eventually shot him to death. As the bandits left PW1 and began the assault on the deceased this was the time when PW1 identified Shaha, Malota, Salehe and Majuto, the appellants in this case.

In the meantime, PW2 also identified Malota and Shaha when the invading bandits were following PW1 to the deceased's house. At the same time, PW3 Ngesse Elias, a neighbour, who was asleep at the time, was awaken by his grandmother and told of the incident at the house of PW1 and PW2. PW3, whose house was a short distance of only fifty paces away from that of PW1 and PW2, went out. He heard PW1 crying for help. As the bandits were firing gunshots he was scared and hid by a nearby mango tree. While there he saw PW1 being dragged to his father's house. As the dragging was going on he identified Shaha, Malota and Majuto.

The appellants were charged on the basis of the above evidence. In their respective defences they denied committing the offence. Indeed their defences were that of an alibi. The High Court, Kimaro, J. sitting at Dar-es-Salaam, rejected their defences and convicted them accordingly. They are dissatisfied, hence this appeal.

It was common ground at the trial, as it is here, that determination of the case depended on identification. Mr. Ndolezi, learned advocate for the appellants, urged at length, *inter alia,* that in the justice of the case it was important for the prosecution witnesses to describe how exactly they identified the appellants. In this regard, he maintained the view that the witnesses ought to have described the appellants, say by their height, dresses etc. In support of this point he cited this Court's decision in the case of *Raymond v. R.* (1) where it was stated:

> ... it is elementary that in a criminal case whose determination depends essentially on identification, evidence on conditions favouring a correct identification is of the utmost importance.

Further to the above passage Mr. Ndolezi also referred us to the case of *Mohamed Alhui v. Rex* (2), which was also cited in *Raymond's* case, where it was held:

> In every case in which there is a question as to the identity of the accused, the fact of there having been a description given and the terms of that description given are matters of the highest importance of which evidence ought always to be given; first of all, of course, by the persons who gave the description and purport to identify the accused, and then by the person or persons to whom the description was given.

On her part Ms. C.S. Maganga, learned State Attorney, maintained basically that the appellants were identified on that fateful night on account of three main aspects: the witnesses knew the appellants before the date of incident; the night was moonlit, and there was torchlight.

We are in entire agreement with Mr. Ndolezi that in a fit case it is important for an identifying witness to give the terms of description of an accused person. In this vein, a witness would be expected to describe the accused person, his/her attire, height etc. In that context, the decision in *Raymond*, especially the passage quoted thereto from *Alhui*, would be relevant. However, in the facts and justice of this case we are settled in our minds that such description was not necessary. We say so for one main reason:- The witnesses identified the appellants by their names. We are not persuaded that identification by giving descriptions could have taken the place of identification by names.

Having said so, the issue is whether the appellants were identified on the day in question. Our answer to the issue is in the affirmative. We say so in view of the following aspects of the evidence: One; the incident, specifically the identification process, had three stages. The first stage was when the bandits released PW1 and embarked on the deceased. This was the time when PW1 identified Shaha, Malota, Salehe and Matola. In the second stage the bandits were pursuing PW1 when he was running to the deceased's house for his safety. At this stage PW2 identified Shaha and Malota. The last stage was at that point in time when PW3 saw PW1 being dragged out by the bandits. This was the occasion when PW3 identified Shaha, Matola and Majuto. Two; in the three stages the witnesses stood, or rather were, close to the appellants to allow for correct identification. Three; the prosecution witnesses were not contradicted that they knew the appellants before the date of incident. They were fellow villagers and knew each other

quite well. Four; the witnesses were also not contradicted that the night was moonlit. Through the moonlight they identified the appellants. Five; it may also be significant to mention here that all the above three prosecution witnesses were consistent in their respective pieces of evidence that Malota was the one carrying the gun on that fateful night.

Surely in the light of the above aspects of the evidence, like the trial judge, we are satisfied that the identification of the appellants was watertight. In this regard, there will be nothing to fault the trial judge in her findings and conclusions on the evidence of identification. In the same vein, she was justified in rejecting the appellants' defences of *alibi.*

Before we conclude the judgment we wish to make the following point. A look at the evidence in its entirety will show that the murder in question was committed in the course of committing a felony. The evidence shows that the appellants, and their colleagues who were not arrested and brought to justice, were involved in a robbery. Indeed, in the evidence of PW2 a sum of money was actually stolen in the process, although she did not state or specify the exact or specific sum. In this regard, the law is clear that a person who uses violent measures in the commission of a felony involving personal violence does so at his/her own risk and is guilty of murder if these violent measures result in the death of the victim. In other words, if death is caused by an unlawful act in the furtherance of an intention to commit an offence malice aforethought is deemed to be established in terms of secton 200(c) of the Penal Code, Chapter 16. (Also see *Olenja v. R.* (3), *Sentali Lemandwa v. R.* (4), and *Manazo Mandundu and Another v. R.* (5). In the instant case malice aforethought was established in that the death occurred in the course of committing the robbery in question.

In the event, we are satisfied that the appeal has no merit. It is dismissed accordingly.

ABDALLA ABASS NAJIM *v.* AMINI AHMED ALI

HIGH COURT OF ZANZIBAR
AT VUGA
(Kihiyo, J.)

CIVIL APPEAL No. 13 OF 2005

(From Original Civil Case number 32 of 2003, Regional magistratee's Court at Vuga)

Evidence – Documentary Evidence – Annexes to the Plaint – Whether documents attached as annexes to the plaint may be taken as documentary evidence tendered in Court.

Evidence – Documentary Evidence – Annexes attached to the Plaint but not tendered in evidence in Court as exhibits – Whether the Court may decide a case on the basis of such annexes.

The respondent filed a suit against the appellant in the regional magistratee's Court of Zanzibar at Vuga, claiming vacant possession of a house situated at Jang'ombe. The respondent claimed to have purchased the said house from the appellant at 2 000 000. In support of his claim the respondent had annexed some documents to the plaint but he did not tender them in evidence in Court as exhibits. The respondent was successful in the suit, hence this appeal to the High Court.

Held: (i) Annexures to the Plaint are not exhibits in evidence; they cannot be relied upon as evidence and cannot be the basis of a decision;

(ii) As the Annexures to the respondent's Plaint were not tendered in Court as exhibits and were not tested in evidence, it was improper for the learned Regional magistratee to base his judgment on those annexures.

Appeal allowed

Statutory Provisions referred to:

(1) Civil Procedure Decree Chapter 8, Order XV rule 7(2)

JUDGEMENT

(Delivered 8 September 2005)

Kihio, J: The appellant, Abdalla Abass Najim, was the defendant in the Regional Court of Zanzibar at Vuga Civil Case number 32 of 2003 where by the respondent had filed a suit against him claiming that he (appellant) be ordered to hand over vacant possession of the house situated at Jangombe within Mjini district, Mjini Magharibi Region Unguja he (respondent) had purchased from him (appellant) at a price of TSZ. 2 000 000 and won the case.

Dissatisfied with the decision of the learned Regional magistratee the appellant filed this appeal. The appellant filed four grounds of appeal in his Memorandum of Appeal. The four grounds of appeal are:

1. That the learned regional magistratee erred in law in deciding that there was a sale agreement in respect of the house situated at Jang'ombe between the appellant and the respondent when there was no proof to that effect.

2. That the learned regional magistratee erred in law in failing to decide that he (appellant) owed the respondent TZS. 2 000 000.

3. That the learned regional magistrate erred in law in basing his judgment on respondent's documents which were not tendered and admitted in evidence in Court and according to the provisions of a order XV, rule 7(2) of the Civil Procedure Decree, Chapter 8 of the Laws of Zanzibar the documents were not supposed to be part of evidence.

4. That the learned Regional magistratee erred in law by failing to take in to consideration the discrepancies between the evidence of the respondent and that of PW2 and PW3 and as a result he gave judgment in the respondent's favour.

The parties are unrepresented.

The appellant submitted in Court that there was no sale agreement produced in the Trial Court and decided to adopted the other grounds

of appeal in his Memorandum of Appeal. The respondent who strongly resisted the appeal submitted that the sale agreement document was tendered in Court as an exhibit to establish that there was a sale agreement between him and the appellant.

In regard to the second ground of appeal he submitted that there was no claim of money and so the learned Regional magistratee could not decide that he claimed TZS. 2 000 000 from the appellant.

In resisting the third ground of appeal he submitted that he tendered the documents in Court as exhibits in accordance with the law and the same were admitted in accordance with the law.

In resisting the fourth ground of appeal he submitted that there was no discrepancies in his evidence and that of PW2 and PW3 and so the learned Regional magistrate gave judgment in his favour on the strength of the evidence adduced.

In reply, the appellant submitted that the respondent did not tender the sale agreement document in Court as an exhibit in trial. He further submitted that the respondent did not tender documents in Court as exhibits in accordance with law and so there were no documents admitted in Court in accordance with law.

Three issues were framed for determination by the Trial Court, namely, (1) Is there any sale agreement between the plaintiff and the defendant (2) Did the plaintiff give the defendant TZS. 2 000 000 (3) If yes then for what purpose.

In his decision the learned Regional magistrate said as follows:

Well now let us go back to our framed issued.

(1) Is there any sale agreement between the plaintiff and the defendant.

To my view there is an agreement made before the police station and written agreement, which was made before the sheha. Together with that in the testimony of PW1, PW3 police officer and the testimony of the defendant bruses all these witnesses told about a handover of the house folier to recover the said TZS. 1 900 000. And that at

that point it is crystal clear that the defendant freely agreed on the whole matter. Perhaps that is why PW1 refused to take the sum of TZS. 350 000 from DW2 and DW4. Because by then the agreement was made already annexture D1 in the plaint. Connecting thereto if you look at annexture B from the plaint it shows clearly that DW1 had agreed that he sold his house for the recovery of the debt and these agreement made at the police station as it was supported by the witnesses from the plaintiff's side.

Most of the witnesses from defence side they were not aware of how the whole issue had happened. DW1 got to know when the whole issue had reached very deep and the whole debt was now TZS. 1 900 000. And from her testimony it is seen that she is not aware of the agreement made at the police station or of what happened there.

At the final stage I see that the claim has been proved by the plaintiff and I hereby order the defendant to evacuate the said house located at Jang'ombe with Deed 1179/Volume V /book A-3/1993 and hand it over to the plaintiff immediately.

I find it necessary to start with the third ground of appeal as I feel that the determination of this ground will dispose of the whole appeal. In the third ground of appeal the learned regional magistrate is faulted by the appellant for basing his judgment on the respondent's documents which were not produced and admitted in evidence in the trial.

From the record, it is plain that the learned regional magistrate based his judgment on documents which are annextures on the respondents' plaint and which were not produced in Court in the trial as exhibits and tested in evidence and admitted as part of the evidence. The two annextures on which the learned regional magistrate based his judgment are annexture "D1" and "B2". However, it is not irrelevant to point out here that a peep at the Trial Court's record shows that the annexture annexed at the respondent's plaint is annexture "B" and not "D" as indicated in the learned regional magistrate's judgment. I assume that the indication of annexture "D1" in the learned regional magistrate's judgment is a typing error.

In that said, I now revert to the point in issue. The point for determination here is whether it was proper for the learned regional magistrate to base his judgment on the respondent's documents annexed at the plaint as annextures and which were not produced and admitted in evidence in the trial or otherwise.

It should be pointed out here that annextures to the plaint are not exhibits in evidence, cannot be relied upon as evidence and cannot be the basis of a decision.

As I have already indicated above the respondent's submission is to the effect that he tendered the document in Court as exhibits in accordance with the law and the same were admitted as exhibits in accordance with the law. With due respect, I am unable to accede with the respondent's submission in this regard.

The appellant submitted, rightly in my view, that the respondent did not tender documents in Court as exhibit in accordance with law and so there were no documents admitted as exhibits in accordance with law.

I hold the view that as the annextures B1 and B2 annexed to the respondent's plaint were not tendered in Court as exhibits and tested in evidence it was improper for the learned regional magistrate to base his judgment on those annextures. Therefore, I unhesitatingly hold that the learned regional magistrate erred in law in basing his judgment on respondent's documents which were not tendered and admitted in evidence in Court.

In my opinion, all this caused injustice on the appellant and so vitiated the decision with the result that the judgment cannot stand and must be set aside. This finding is sufficient to dispose of the whole appeal and I find no necessity of determining the other grounds of appeal. For the foregoing reasons, I set aside the judgment of the Trial Court and order that the case be re-tried before another magistrate of competent jurisdiction.

The appeal is allowed to the extent demonstrated above. I make no order for costs.

GENERAL TYRE EAST AFRICA LTD *v.* HSBC BANK PLC

HIGH COURT OF TANZANIA
AT ARUSHA
(Sheikh, J.)

MISCELLANEOUS CIVIL APPLICATION
No. 35 OF 2005

Injunctions – Temporary injunction – Conditions for grant of temporary injunction – Applicant has defaulted payment of a loan and respondent gives notice of intention to appoint a Receiver – Whether failure to grant temporary injunction may cause irreparable loss or injury to the Applicant.

Injunctions – Temporary injunction – Ruling principles guiding Courts in granting temporary injunctions – Whether Court may grant injunction in breach of express contractual terms in a lending agreement.

Civil Practice and Procedure – Temporary injunction – Application for temporary injunction – Application brought under the provisions of Order XXXVII Rules 1 and 3 and section 95 of Civil Procedure Code 1966 – Whether the application was properly filed.

Having filed a plaint, the applicant/plaintiff is by this application seeking a temporary injunction to restrain the defendant/respondent from commencing receivership proceedings against its assets pending the determination of the main suit. The applicant contended that because the respondent had given notice of its intention to appoint a receiver, an order of temporary injunction was necessary so as not to defeat the very purpose of the main suit and also to prevent irreparable loss/injury to the applicant.

The respondent strongly opposed the application on, among other grounds, that the pre-conditions for grant of a temporary injunction were not met and that the law applicable was not properly cited.

Held: (i) This application for an interlocutory injunction was properly brought under Order XXXVII, Rules 1 and 3 of the Civil Procedure Code and, to that extent, cannot be faulted;

(ii) The right to appoint a receiver is overdue as this right accrued to the respondent as a debenture-holder immediately upon default being made by the appellant in repayment of the principal and interest; to say otherwise would be to defeat the very purpose for which a debenture is issued as a security;

(iii) The Court's jurisdiction to interfere in the case of a contract by granting an interlocutory injunction is limited to cases where it is clear that a breach must result from the acts of the defendant; in the instant case no breach will result from the act of the defendant/respondent of appointing a receiver as it is his contractual right;

(iv) Banks/lenders and their customers/borrowers must fulfill and enforce their respective contractual obligations under the various lending/securities agreements entered into by the parties; to restrain a debenture-holder from exercising his contractual rights and enforcing his security is not only unreasonable but contrary to the express contractual terms of the agreements entered into by the parties which, in this case, were clearly admitted by the applicant himself;

(v) A grant of a restraining order in this case would be contrary to generally established banking principles and securities law.

Order accordingly

Cases referred to:

(1) *Suriyakant D. Ramji v. Savings and Finance and three others* (HC-CD) Commercial Case number 30 of 2000: (unreported)

(2) *Attilio v. Mbowe* [1969] HCD number 289

(3) *Agency Cargo International v. Eurafrican Bank* (*T*) (HC) DSM, Civil Case number 44 of 1998 (unreported)

(4) *American Cyanamid Co. v. Ethicon Ltd.* [1975] 1 All ER 504

(5) *Giella v. Cassman Brown* [1973] EA 358

Statutory authorities referred:

(1) Civil Procedure Code 1966, sections 68(c) and 95 and Order XXXVII rules 1 and 3

Mr. Rwechungura for Applicant

Prof. Mwaikusa for respondent

RULING

(Delivered 15 September 2005)

Sheikh, J: Having filed a plaint, the applicant/plaintiff is by this application seeking a temporary injunction to restrain the defendant/respondent from commencing receivership proceedings against its assets pending the determination of the main suit. This application is brought under the provisions of Order XXXVII, Rules 1 and 3 and section 95 of the Civil Procedure Code and is supported by an affidavit deponed by one Deven Lohani as Chief Executive Officer of the applicant.

In the plaint in Civil Case number 8 of 2005 it is alleged that the plaintiff/applicant is a limited liability company incorporated in Tanzania carrying on the business of a manufacturer of tyres and allied products. The defendant respondent is a corporate body incorporated in the United Kingdom carrying on the business of a banker in and outside the United Kingdom.

In the plaint the plaintiff seeks "(a) a declaratory order that the defendant's intention to commence a receivership is premature, and (b) an order to restrain the defendant or any of its agents from instituting receivership action against the assets of the plaintiff until the negotiations between the plaintiff and the defendant are concluded."

In the affidavit evidence (and in the plaint too) the applicant admits that the applicant is indebted to the respondent for an unconfirmed

amount pursuant to a loan agreement dated 30 November 1999, that repayment of the said loan both the principal sum and interest thereon has not been done, and it is now due and outstanding, that the unpaid loan is secured by a debenture and a legal mortgage dated 30 May 1997, that the respondent now wishes to commence receivership action and appoint a receiver to take possession of the charged assets, and that the intended commencement of receivership and appointment of a receiver will be in accordance with the respondent's contractual powers/rights under the debenture and mortgage referred to herein. In the affidavit it is also stated that the applicant has been offered a medium-term loan of USD 10 000 000 which is guaranteed by the Government of the United Republic of Tanzania, by the National Social Security Fund (NSSF) pursuant to a Loan Agreement dated 8 February 2005 as amended by an Addendum dated 25 February 2005, a portion of which loan amount is intended for repayment of the HSBC secured loan. It is further stated in the affidavit that:

(a) pursuant to the Addendum to the NSSF loan the aforesaid loan is conditional upon agreement being reached by the applicant with the respondent for a discount of the outstanding amount of the HSBC loan,

(b) that negotiations have been going on with the respondent for a discount of the HSBC loan with a view to reaching a debt-settlement agreement,

(c) that the respondent has so far exhibited an unwillingness to discount the HSBC loan or to offer any realistic debt-settlement options,

(d) no settlement agreement having been signed as required in the NSSF Loan Agreement, NSSF has not paid the respondent,

(e) and that while negotiations were still continuing on 1 July 2005 the respondent issued notice of its intention to commence receivership proceedings.

According to the applicant, the appointment of a receiver is unjustified, premature and would disrupt, the applicant's business and result in loss of jobs to over 400 employees.

The respondent has strongly resisted this application and has denied the claim that the outstanding amount is unconfirmed or that there are any negotiations continuing. According to the counter-affidavit filed by the respondent the applicant having failed to repay the loan and meet its obligations under the HSBC Loan Agreement the respondent is entitled to appoint a receiver. It is also clear from the counter-affidavit that while the respondent had indicated a willingness to discount the debt to a sum of USD 2.9 million in full settlement, the applicant's offer of USD 2.2 million in full settlement of the debt is totally unacceptable to the respondent.

The application was argued orally.

Adopting the contents of the affidavit in support of the application Mr. Rwechungura learned Counsel for the applicant submitted that as the respondent has given notice of its intention to appoint a receiver, unless the order sought is granted a receiver will be appointed which would not only defeat the very purpose of the main suit but would also thereby cause the applicant to suffer irreparable loss/injury. Mr. Rwechungura was emphatic that arrangements had been firmed up for raising the funds necessary for the repayment of the HSBC Loan and already there is an alternative source of funding (the NSSF loan). He urged that a temporary injunction was necessary to allow the parties to continue with the negotiations for a discount to meet the conditions of the NSSF loan and thereby and facilitate the release of the moneys necessary to liquidate the HSBC loan. Mr. Rwechungura contended that the conditions for granting the relief of a temporary injunction have been satisfied. In particular he cited Commercial Court Case number 30 of 2000 *Suriyakant D. Ramji v. Savings and Finance and three ohers* (1) and submitted with some force that a "triable issue" has been shown to exist in this case. According to him the issue is "whether or not receivership is justifiable in the circumstances of this case". The Court was urged to exercise its discretion in favour of the applicant.

In response Professor Mwaikusa, learned advocate for the respondent vehemently countered Mr. Rwechungura's submission. He submitted that:

(a) the three pre-conditions for the grant of a temporary injunction enunciated in the case of *Attilio v. Mbowe* (2) have not been met.

(b) the plaintiff has not shown a *prima facie* case and the reliefs sought in the main suit are not awardable.

(c) while the parties had negotiated in the past, no settlement had been reached despite the respondent's efforts to offer reasonable settlement options, and that negotiations had ceased upon the applicant having failed to accept the respondent's offer for a discount, in the sum of USD. 2.9 million, hence the decision to commence receivership proceedings was fully justifiable.

Professor Mwaikusa in his support also cited the following cases, *inter alia*:

1. *Agency Cargo International v. Euro African Bank (T) Ltd.* (2)
2. *American Cyanamid Co. v. Ethicon Ltd.* (3)
3. *Giella v. Cassman Brown* (4)

In his submission Prof. Mwaikusa belatedly also took objection to the application on the ground that the Chamber Summons was brought under the wrong provisions of the law. He was of the view that it ought to have been brought under section 68(c) of the Civil Procedure Code Act, 1966.

By way of rejoinder Mr. Rwechungura reiterated and elaborated his earlier arguments in support of the application. I have carefully considered the respective submissions by counsel. On the preliminary objection, in my considered opinion, this application for an interlocutory injunction was properly brought under Order XXXVII, Rules 1 and 3 of the Civil Procedure Code and to that extent cannot be faulted.

As to the merits of the application the law on the grant of temporary injunctions is fairly well settled. Apart from the *Attilio v. Mbowe* case, there is the case of *Giella v. Cassman Brown* (5) a decision of the then Eastern African Court of Appeal. The two opposing counsel are agreed as to the ruling principles guiding the Courts in the grant of a temporary injunction. These are basically the principles enunciated in the case of *Attilio v. Mbowe* and are:

(a) That there must be a serious question to be tried on the facts alleged, and a probability that the plaintiff will be entitled to the relief prayed for;

(b) That the Court's interference is necessary to protect the plaintiff from the kind of injury which may be irreparable before his alleged right is established,

(c) That on a balance of convenience, there will be greater hardship and mischief suffered by the plaintiff from the withholding of the injunction than will be suffered by the defendant from the granting of it.

Regarding condition (a) hereinabove, in Volume 24 **Halsbury's Laws of England** (4 ed) paragraph 955, the learned authors state the principle in the following words:

> It has been stated in the past that where the plaintiff is asserting a right he should show a strong *prima facie* case, at least in support of the right which he asserts. Now, however the best appears to be *whether there is a serious question to be tried.*

In the case of *American Cyanamid Co. v. Ethicon Ltd.* (4) at page 510 Lord Diplock had said:

> The use of such expression as a *'probability'*, a *'prima facie case'* in the context of the exercise of a discretionary power to grant an interlocutory injunction leads to a confusion as to the object sought to be achieved by this form of temporary relief. The Court must no doubt be satisfied that the claim is not frivolous or vexatious in other words, *there is a serious question to be tried* [emphasis mine].

Applying the principles to this application, has the applicant shown that there is a serious question to be tried and determined by this Court? As correctly pointed out by Mr. Rwechungura at this point in time all that I have is affidavit evidence which has not been tested by cross-examination. It is a fact that the applicant has filed in Court a suit Civil Case number 8 of 2005. Is this enough to establish a *prima facie* case? I do not think so. The applicant must go further and show that there is a serious question to be tried as to the existence of a legal right which he claims in the suit. At this early stage it is not proper to go into the merits of the case, but what does the plaint disclose?

Paragraph 3 of the plaint reads in part as under:

> That the plaintiff is indebted to the defendant for an amount yet to be verified and confirmed being principal amount and accumulated interest due and outstanding on a long-term loan extended to the plaintiff by the defendant....

The other allegations in the plaint regarding the securities, etc. are substantially the same as the facts deposed to in the affidavit. And paragraph 8 of the applicant's affidavit states as follows:

> It was and still is a condition of the loan that if the plaintiff/applicant failed to repay the loan as agreed, the defendant/respondent would enforce the debenture and mortgage by instituting receivership action against the assets of the plaintiff/applicant, by appointing a receiver who would take possession of the said assets and dispose of the same to repay the HSBC loan.

(i) Can it be said that the plaintiff/applicant has a lawful claim which deserves to be tried before the respondent proceeds with the receivership? (ii)Can it be said that the question posed by Mr. Rwechungura, "whether or not receivership is justifiable in the circumstances of this case" is a serious triable issue? My answer to both questions is a definite "NO". The allegations in the plaint, and the applicant's admissions in the affidavit as well as arguments by Mr. Rwechungura himself have only served to show that it is the respondent who is the injured

party and who has a claim against the applicant and not vice-versa. The contention that the amount outstanding is unconfirmed cannot justify the granting of an injunction as it is apparent on the affidavit evidence as well as arguments by counsel for the applicant that the difference in the sum outstanding is only on account of the discount to the extent expected by the applicant which was rejected by the respondent.

Paragraph 8 of the affidavit also clearly demolishes the plaintiff's claim for a declaration that the intention to commence receivership proceedings is premature. To my mind the right to appoint a receiver is overdue as this right accrued to the respondent as debenture-holder immediately upon default being made by the applicant in repayment of the principal and interest. To say otherwise would be to defeat the very purpose for which a debenture is issued as a security. The Court's jurisdiction to interfere in the case of a contract by granting an interlocutory injunction is limited to cases where it is a clear that a breach must result from the acts of the defendant (see **Halsbury's Laws**). In the instant case no breach will result from the act of the defendant/respondent of appointing a receiver as it is his contractual right.

On the facts as they stand now I am not satisfied that the applicant has been able to surmount, the first hurdle, that there is a serious issue to be tried with a probability of success.

The second principle that has to be considered is that the applicant has shown that in the event of the Court not granting the temporary injunction he will suffer irreparable injury which would not adequately be compensated by an award of damages or that in case the applicant should succeed in the main suit damages would be inadequate.

The facts before me do not show any irreparable injury which the applicant will suffer for which damages are not sufficient as a remedy. In the instant case it is undisputed that this is a straight forward banker/debenture holder borrower, relationship. If there is a breach by the respondent of the contractual obligations under the

relevant agreements the applicant can seek redress by way of damages for breach of contract *Agency Cargo International v. Euro African Bank (T) Ltd*) (3).

In the *American Cyanamid* case referred to earlier herein, Lord Diplock said at page 509:

> the object of the interlocutory injunction is to protect the plaintiff against injury by violation of his right for which he could not adequately be compensated in damages recoverable in the action if the uncertainty were resolved in his favour at the trial.

It is my considered view that the applicant has failed to satisfy this condition as well. The respondent, a bank, would generally be in a financial position to pay any damages that may be awarded to the applicant if his suit succeeds.

Lastly the respondent is a bank doing banking business. The applicant wants the Court to restrain the respondent from realising and enforcing its security. The object of the security - the debenture is to provide a source of satisfaction of the debt secured. As stated by Nsekela J in the *Agency Cargo International* case (3), in order for the respondent to continue being in banking business it must have funds to lend and which must be repaid by its borrowers-debtors. If a bank does not recover loans it will surely be an obvious candidate for bankruptcy (see *the Agency Cargo* case). The law is that banks/lenders and their customers/borrowers must fulfill and enforce their respective contractual obligations under the various lending/securities agreements entered into by the parties. To restrain a debenture - holder from exercising his contractual rights and enforcing his security is not only unreasonable but contrary to the express contractual terms of the agreements entered into by the parties which were clearly admitted by the applicant himself. Indeed the Courts have no jurisdiction to interfere into the express contractual terms of the parties by forcing the parties to negotiate when clearly there is a default entitling the respondent to enforce his security. A grant of a restraining order in this case would be contrary to generally established banking principles and security laws.

I am hesitant under the circumstances to say that the balance of convenience or justice is in favour of the applicant, notwithstanding the regrettable apprehension about loss of jobs by its employees.

In the final result the application is dismissed with costs.

It is so ordered accordingly.

TANZANIA – CHINA FRIENDSHIP TEXTILE CO. LTD *v.* OUR LADY OF THE USAMBARA SISTERS

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Ramadhani, Msoffe, and Kaji, JJA)

CIVIL APPEAL No. 84 OF 2002

(From the decision of the High Court of Tanzania (Commercial Division) at Dar es Salaam, Kalegeya, J., dated 30 July 2002, in Commercial Case number 69 of 2002)

Civil Practice and Procedure – Jurisdiction of the Court – Pecuniary jurisdiction – Determination of pecuniary jurisdiction of the Courts – Whether general damages erroneously quantified may affect the jurisdiction of the Court.

Civil Practice and Procedure – Jurisdiction – Pecuniary jurisdiction – High Court entertaining a claim not exceeding TZS. 10 000 000 – Whether High Court had jurisdiction to entertain the claim – section 13 of the Civil Procedure Code.

Civil Practice and Procedure – Jurisdiction – Pecuniary jurisdiction – Pecuniary jurisdiction of the High Court Commercial Division.

The respondents sued the appellant in the High Court for, *inter alia*, TZS. 8 136 729 being costs incurred for the production of *vitenge* fabrics, and general damages which the respondents quantified at TZS. 15 million. The High Court Commercial Division

entered judgment for the respondents but awarded TZS. 7 500 000 as general damages. At that time Subordinate Courts' pecuniary jurisdiction was limited to TZS. 10 million. The question of jurisdiction of the High Court in the matter was not raised at the trial. On appeal, one of the grounds of appeal was that the High Court Commercial Division had no pecuniary jurisdiction in the matter.

Held: (i) On the question whether the Trial Court had jurisdiction to adjudicate upon the matter, the issue was not raised before the High Court; but since it was about jurisdiction of the Court, it could be raised at any stage, even on appeal.

(ii) It is the substantive claim and not the general damages which determine the pecuniary jurisdiction of the Court;

(iii) Although there is no specific provision of law stating expressly that the High Court had no pecuniary jurisdiction to entertain claims not exceeding TZS. 10 000 000, according to the principle contained in section 13 of the Civil Procedure Code that every suit must be instituted in the Court of the lowest grade competent to try it,

(iv) The Trial Court could not have properly invoked its inherent powers under the provisions of section 95 of the Civil Procedure Code to vest itself with jurisdiction which it did not have.

(v) Since the Trial Court had not jurisdiction, all the proceedings and the decisions were null and void.

Appeal allowed

Statutory provisions referred to:

(1) Civil Procedure Code 1966, sections 6, 13 and 95

(2) Magistrates' Courts Act 1984, section 40(2)(6)

(3) Constitution of the United Republic of Tanzania, Article 108

(4) Judicature and Application of Laws ActChapter 453, section 2(1)

JUDGMENT

(Dated 19 October 2005)

Kaji, JA: In this appeal, the appellant, M/S Tanzania – China Friendship Textile Co. Ltd. is appealing against the decision of the High Court, Commercial Division (Kalegeya, J.) in Commercial Case number 69 of 2002.

Briefly, the facts giving rise to the case as accepted by the Trial Court are as follows:

The respondents, Our Lady of the Usambara Sisters, is a religious society based at Kwamndolwa, Korogwe District in Tanga Region. On or around 3 August 1998, the respondents made a special order of *vitenge* fabrics at the appellant's Textile Mills for celebrating their 40 years anniversary which was about to take place at the end of October, 1998. The said special order of fabrics consisted of exclusive and special design meant for the 40 years anniversary of the respondents to generate income for financing the said celebrations, and off-setting other expenses. The respondents paid TZS. 8 136 720 for the fabrics plus tax.

But before the celebrations took place, and without the knowledge and consent of the respondents, the appellant sold the said special *vitenge* fabrics to other customers at a lower price compared to the price the respondents would have to sell in order to realize sufficient money to meet the costs of the said celebration. The respondents complained that the appellant's act of selling and or releasing the said special order *vitenge* fabrics to other customers who flooded the market by selling the *vitenge* at a price which was lower than that of the respondents, occasioned loss to them in terms of the costs they had incurred as well as loss of expected profit. It also caused them to suffer great inconvenience in the preparation of the celebration, as well as embarrassment and hatred among the society in which the respondents were living.

Consequently the respondents sued the appellant for the following relief:

(a) TZS. 8 136 720 being costs incurred for the production of the *vitenge* fabrics and tax paid,

(b) TZS. 15 000 000 being general damages suffered by the respondents for the inconvenience caused in the preparation of their celebrations,

(c) Interest on TZS. 8 136 720 at the Court rate from the date of judgment till final payment,

(d) Costs of the suit,

(e) Any other relief the Court could deem fit and just to grant.

The appellant denied all the claims. But at the end of the day the respondents were awarded TZS. 8 136 720 which they had paid for the production of the *vitenge* plus tax, TZS. 7 500 000 being general damages, interest at 7% per annum on the decretal sum from the date of judgment till final payment. They were also awarded costs of the case.

The appellant was dissatisfied with the decision; hence this appeal.

The appellant, through is advocate, Mr. Magafu, preferred for grounds of appeal, namely:

1. That the honourable judge erred in law and in fact for failure to observe that the High Court had no jurisdiction to entertain the suit presented before it,
2. That the honourable judge erred in law and in fact in awarding the respondent a total of TZS. 8 136 720 allegedly being costs incurred for production of the said *vitenge* fabrics and tax paid,
3. That the honourable judge erred in law and in fact in awarding the respondent a total sum of TZS. 7 500 000 allegedly being general damages,
4. That the honourable judge erred in law and in fact in holding that the appellant breached the terms of the special order.

At the hearing, Messrs. Magafu and P.L. Chabruma, learned counsel, represented the appellant and the respondents respectively.

Arguing the first ground of appeal, Mr. Magafu contended that, at that time the pecuniary jurisdiction of the High Court was limited to amounts exceeding TZS. 10 000 000 as provided for under section 40(2)(b) of the Magistrates Courts Act, number 2 of 1984, and section 6 of the Civil Procedure Code, 1966, and that the High Court in its original jurisdiction had no powers to adjudicate upon claims whose amount did not exceed TSZ. 10 000 000. The learned counsel pointed out that, in the instant case the main amount claimed was TZS. 8 136 720, and that the amount for general damages which is granted on the discretion of the Court, is not required to be quantified in the plaint, and that, where erroneously quantified, it does not alter or affect the jurisdiction of the Court. In the instant case, since the substantive amount was below TZS. 10 000 000 the Trial Court had no pecuniary jurisdiction to adjudicate upon the matter, submitted the learned counsel.

Arguing the second ground of appeal, Mr. Magafu contended that, the learned trial judge erred in awarding the respondents TZS. 8 136 720 and at the same time retaining the vitenge fabrics. The learned counsel pointed out that, by being awarded TZS. 8 136 720 which was alleged to have been paid by the respondents for production of the vitenge plus VAT, and also retaining the vitenge in issue, the respondents were more or less paid twice, that is, the money and the vitenge which, in his view, is unjust.

Arguing the third ground of appeal Mr. Magufu argued that, the respondents did not prove sufficiently that they suffered embarrassment and inconvenience through the alleged breach of contract. The learned counsel further pointed out that, even if they could have proved the same sufficiently, yet they should not have been awarded TZS. 7 500 000 which, in his view, is on the high side. The learned counsel further pointed out that, the learned trial judge, by basing the assessment of damages on waiving the interest, acted on a wrong principle necessitating

this Court to interfere with the assessment. The learned counsel cited the decision of this Court in *Cooper Motor Corporation Ltd. v. Moshi/Arusha Occupation Health Services* (1).

Arguing the fourth ground of appeal the learned counsel contended that there was no breach of the terms of the special order in that the respondents collected what they had paid for, that is 8 bales, and that since they had not paid for the reject grade C, the appellant was free to sell them (grade C) to whoever was ready and willing to buy them.

On his part, Mr. Chabruma, learned counsel for the respondents, conceded that the substantive amount was below TZS. 10 000 000, that is TZS. 8 136 720. But he was quick to point out that since the claim of TZS. 15 000 000 for payment of general damages was quantified, it had to be added to the main amount thereby making a total claim of TZS. 23 136 720, which at that time, was within the pecuniary jurisdiction of the High Court.

The learned counsel denied the respondents to have been awarded twice. The learned counsel contended that, the respondent did not sell and could not have sold the *vitenge* for the reasons stated earlier, and that those *vitenge* were still lying idle in their store and the respondents were ready to return them to the appellant if ordered by the Court. The learned counsel emphasized that now the respondents' interest is no longer in the *vitenge* but in the money which they had paid for the same.

On whether there was enough evidence that the respondent suffered embarrassment and inconvenience, the learned counsel contended that, the same was substantially proved by Sister Mary Amedeus (PW2) in her testimony.

On whether the learned trial judge was right in taking into account that the respondents had not claimed for interest in assessing general damages, the learned counsel contended that, there was nothing wrong with the learned trial judge in taking into consideration that fact,

especially that the act of awarding general damages is entirely in the discretion of the Court. The learned counsel denied the amount of TZS. 7 500 000 to be on the high side, taking into consideration the embarrassment and inconvenience suffered by the respondents who had ordered those *vitenge* for a great occasion of celebrating 40 years anniversary.

On whether there was a breach of the terms of the special order, the learned counsel pointed out that, there was an implied term in the order that the appellant should not deal with the products of the order, be it grade A, B or C, in a manner which would defeat the purpose for which they were made. Further, that in selling them to a third party before the occasion, and at a low price, that was a clear violating of the terms of the special order, submitted the learned counsel.

We have carefully considered the arguments and submissions by counsel for both parties. We will start with the first ground of appeal, that is, whether the Trial Court had pecuniary jurisdiction to adjudicate upon the matter. Admittedly, this issue was not raised before the Trial Court. But since it is about the jurisdiction of the Court, it can be raised at any stage even before this Court.

It is common ground that, the substantive amount which the plaintiffs/respondents were claiming before the Trial Court was TZS. 8 136 720. They were also claiming for general damages which they quantified to the tune of TZS. 15 000 000. But since general damages are awarded at the discretion of the Court, it is the Court which decides which amount to award. In that respect, normally claims of general damages are not quantified. But where they are erroneously quantified, we think, this does not affect the pecuniary jurisdiction of the Court.

In our view, it is the substantive claim and not the general damages which determine the pecuniary jurisdiction of the Court.

In the instant case, the substantive amount is TZS. 8 136 720. It is this amount which determines the pecuniary jurisdiction of the

Court. At this juncture we ask ourselves: What is the pecuniary jurisdiction of the High Court Commercial Division? The High Court Commercial Division is a division of the High Court; and therefore its pecuniary jurisdiction is the same as that of the High Court. "What is the pecuniary jurisdiction of the High Court?", we ask. This question has taxed our minds a great deal. It has taxed our minds greatly because the answer is not found in a single piece of legislation; we have to consider several. For example, section 6 of the Civil Procedure Code, 1966 which states:

> 6. Save in so far as is otherwise expressly provided, nothing herein contained shall operate to give any Court jurisdiction over suits the amount or value of the subject matter of which exceeds the pecuniary limits (if any) of its ordinary jurisdiction."

Under section 3 of the said code the word "Court" has been defined to include the High Court. Section 6 limits the pecuniary jurisdiction of the Court to amounts not exceeding the amount prescribed. It is common knowledge that the High Court has unlimited pecuniary jurisdiction upwards, and therefore no amount can be said to exceed the pecuniary jurisdiction of the High Court. Another relevant provision is section 40(2)(b) of the Magistrates Courts Act, number 2 of 1984, which at the material time limited the pecuniary jurisdiction of a District Court or a Court of Resident Magistrate to TZS. 10 000 000 on movable properties. This, by implication, meant that a proper forum for a claim exceeding TZS. 10 000 000 was a Court higher than a District or Resident Magistrate's Court, that is, the High Court.

But does this mean that at the material time the High Court had or had no pecuniary jurisdiction over claims the amount of which did not exceed TZS. 10 000 000? The jurisdiction of the High Court was then specified under section 2(1) of the Judicature and Application of Laws Ordinance, Chapter 453, and under Article 108 of the Constitution of the United Republic of Tanzania. Articles 108 provides as follows (in Swahili);

108(1) *Kutakuwa na Mahakama Kuu ya Jamhuri ya Muungano (itakayojulikana kwa kifupi kama "Mahakama KUU") ambayo mamlaka yake yatakuwa kama yalivyoelezwa katika Katiba hii au katika Sheria nyingine yoyote.*

(2) *Iwapo Katiba hii au Sheria nyingine yoyote haikutamka wazi kwamba shauri la aina iliyotajwa mahsusi litasikilizwa kwanza katika Mahakama ya ngazi iliyotajwa mahsusi kwa ajili hiyo, basi Mahakama Kuu itakuwa na mamlaka ya kusikiliza kila shauri la aina hiyo. Hali kadhalika, Mahakama Kuu itakuwa na uwezo wa kutekeleza shughuli yoyote ambayo kwa mujibu wa mila za kisheria zinazotumika Tanzania shughuli ya aina hiyo kwa kawaida hutekelezwa na Mahakama Kuu.*

Isipokuwa kwamba masharti ya ibara hii ndogo yatatumika bila kuathiri mamlaka ya Mahakama ya Rufani ya Tanzania kama ilivyoelezwa katika Katiba hii au katika Sheria nyingine yoyote.

in this Constitution or in any other law.

It is clear to us that under this Article the jurisdiction of the High Court is also subject to some other laws. In the instant case there is also section 13 of the Civil Procedure Code, 1966 which reads:

13 Every suit shall be instituted in the Court of the lowest grade competent to try it. For the purpose of this section, a Court of a resident magistrate and a District Court shall be deemed to be Courts of the same grade.

Thus in our view, although we could not come across a specific provision of law stating expressly that the High Court had no pecuniary jurisdiction to entertain claims not exceeding TZS. 10 000 000, yet under the principle of this provision of law it is our considered opinion that, at the material time, in ordinary monetary claims, the High Court had no pecuniary jurisdiction to entertain claims not exceeding TZS. 10 000 000. We say "in ordinary monetary claims" because we are aware that, there are some passing that, in considering the circumstances of this case, we considered also section 95 of the Civil Procedure

Code 1966, to see whether, under the circumstances of the case, the Trial Court could properly have invoked its inherent powers. But we are satisfied that under the circumstances of the case, which involves jurisdiction, that the Trial Court could not properly have invoked its inherent powers by vesting itself with jurisdiction which it did not have. Generally speaking, inherent powers of the Court relate to matters of procedure for the ends of justice and to prevent an abuse of process of the Court. Since the Trial Court had no pecuniary jurisdiction as stated above, the whole proceedings and the decision there in are null and void.

After holding so, we do not consider that it is necessary to consider the other grounds of appeal.

In the event, and for the reasons stated, we allow the appeal and quash the proceedings and the decision of, the High Court. Costs to follow the event.

KHALID ATHUMANI *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA
AT ARUSHA

(Lubuva, Nsekela and Kaji, JJA)

CRIMINAL APPEAL No. 103 OF 2005

(From the conviction of the High Court of Tanzania at Arusha, Msoffe, J., dated 11 July 2003, in Criminal Appeal number 48 of 2002)

Criminal Practice and Procedure – Pleas – Plea of guilty – Whether and under what circumstances a conviction on an accused person's own plea of guilty is appealable – section 360(1) of the Criminal Procedure Act, 1985.

The appellant was convicted by the Trial Court on his own plea of guilty to a charge of rape and sentenced to the statutory term of imprisonment of thirty (30) years with twelve (12) strokes corporal punishment. His appeal to the High Court was dismissed. He further appealed to the Court of Appeal of Tanzania which considered whether or not it was open to the appellant to appeal against his own plea of guilty to the charge during trial.

Held: (i) The Courts are enjoined to ensure that an accused person is convicted on his own plea where it is certain that he/she really understands the charge that has been laid at his/her door, discloses an offence known under the law and that he/she has no defence to it; A plea of guilty having been recorded a Court may entertain an appeal against conviction if it appears; that the appellant did not appreciate the nature of the charge or did not intend to admit that he was guilty of it; or that upon the admitted facts he could not in law have been convicted of the offence charged;

(ii) The appellant pleaded guilty to the charge of rape with full understanding of the charge against him.

Appeal dismissed

Cases referred to:

(1) *Rex v. Forde* [1923] 2 KB 400

(2) *Adan v. Republic* [1973] EA 445

(3) *Chamrungu v. S.M.Z.* (1988) LRC (Crim.) 26

Statutory provision referred to:

(1) Criminal Procedure Act, 1985, sections 360(1) and 228(2)

Mr. Kagaigai for the respondent

REASONS FOR JUDGMENT

(Dated 26 October 2005)

Nsekela, JA: When the appeal was called on for hearing, we dismissed the appeal in its entirety and reserved our reasons for so doing which we hereby proceed to give. The appellant, Khalid s/o Athuman was

charged with the offence of rape contrary to sections 130 and 131 of the Penal Code as amended by the Sexual Offences Special Provisions Act number 4 of 1998. He was convicted on his own plea of guilty and sentenced to the statutory term of imprisonment of thirty (30) years with twelve (12) strokes corporal punishment. His appeal to the High Court (Msoffe, J. as he then was) was dismissed hence this appeal.

The appellant preferred a four-ground Memorandum of Appeal. The thrust of the appeal, in our view, was whether or not it was open to the appellant to appeal against his own plea of guilty to the charge during the trial. At the hearing of the appeal, the appellant, who appeared in person and unrepresented, did not have anything more to add apart from his rambling Memorandum of Appeal. For the respondent Republic, Mr. Kagaigai, learned Senior State Attorney, resisted the appeal. He briefly submitted that under section 360(1) of the Criminal Procedure, Act, 1985 (CPA) no appeal lies where an accused person has been convicted on his own plea of guilty save as regards the legality of sentences meted out to him. He added that the appellant knew the nature of the offence, did not deny it and that the particulars of the case as presented by the prosecution were very clear.

At this juncture, we think it is desirable to reproduce the appellant's plea in the Trial Court. His plea was recorded in the following words:

> I admit the charge that it is true that I raped the complainant Rabia d/o Maulid without her consent.

The public prosecutor then narrated the facts which essentially showed that the appellant forcibly detained the complainant Rabia d/o Maulid, a girl aged sixteen (16) years in his room from 13 December 2001 to 16 December 2001 and unlawfully had sexual intercourse with her. After the facts had been given in some detail by the public prosecutor, the appellant is recorded to have said:

> I admit the facts as true and correct.

Whereupon the Trial Court proceeded to enter a plea of guilty and convicted the appellant accordingly. Section 228(2) of the Civil Procedure Act provides as follows:

> (2) If the accused person admits the truth of the charge, his admission shall be recorded as nearly as possible in the words he uses, and the magistrate shall convict him and pass sentence upon or make an order against him, unless there shall appear to be sufficient cause to the contrary.

We do not entertain any doubts whatsoever that the summary of facts as narrated by the public prosecutor showed that the offence stated in the charge had been made out. For a charge of rape to succeed, the prosecution had to prove, *inter alia*, that the appellant had carnal knowledge of his victim without her consent. These were the essential ingredients that were put to the appellant and his plea of guilty was unequivocal. The Courts are enjoined to ensure that an accused person is convicted on his own plea where it is certain that he/she really understands the charge that has been laid at his/her door, discloses an offence know under the law and that he/she has no defence to it.

This takes us to the crux of the appeal. Section 360(1) of the Civil Procedure Act provides as under:

> (1) No appeal shall be allowed in the case of any accused person who has pleaded guilty and has been convicted on such plea by a Subordinate Court except as to the extent or legality of the sentence.

We are alive to the fact that under certain circumstances, an appeal may be entertained notwithstanding a plea of guilty. In the case of *Rex v. Forde*, (1) His Lordship Avory J. had this to say at page 403:

> A plea of guilty having been recorded, this Court can only entertain an appeal against conviction if it appears (1) that the appellant did not appreciate the nature of the charge or did not intend to admit he was guilty of it, or (2) that upon the admitted facts he could not in law have been convicted of the offence charged.

Our reading of the record shows that the public prosecutor gave a lucid summary of the facts which established the offence with which the appellant was charged. He pleaded guilty without equivocation. The Trial Court followed the procedure that has been consistently followed by the Courts where an accused person pleads guilty to an offence charged. The procedure was well explained by Spry V.P. in *Adan v. Republic* (2) at page 446 in the following terms;

> When a person is charged, the charge and the particulars should be read out to him, so far as possible in his own language, but if that is not possible, then in a language which he can speak and understand. The magistrate should then explain to the accused person all the essential ingredients of the offence charged. If the accused then admits all those essential elements, the magistrate should record what the accused has said, as nearly as possible in his own words, and then formally enter a plea of guilty. The magistrate should next ask the prosecutor to state the facts of the alleged offence and, when the statement is complete, should give the accused an opportunity to dispute or explain the facts or to add any relevant facts. If the accused does not agree with the statement of facts or asserts additional facts which, if true, might raise a question as to his guilt, the magistrate should record a change of plea to "not guilty" and proceed to hold a trial. If the accused does not deny the alleged facts in any material respect, the magistrate should record a conviction and proceed to hear any further facts relevant to sentence. The statement of facts and the accused's reply must, of course, be recorded (see also: *Chamrungu v. S.M.Z.* (3) at page 29).

Our perusal of the record leaves us in no doubt that the procedure laid out in *Adan's* case above and approved by this Court in *Chamrungu's* case was followed. The appellant pleaded guilty to the charge of rape with full understanding of the charge against him. There are no grounds for supposing that the appellant did not fully understand what he was doing when he pleaded guilty to the charge.

It is for the above stated reasons that we dismissed the appeal.

NICCO PETER alias RASTA *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lubuva, Nsekela and Msoffe, JJA)

CRIMINAL APPEAL No. 37 OF 2001

(From the decision of the High Court of Tanzania at Dar es Salaam, Kimaro, J., dated 21 March 2001 in Criminal Sessions Case number 67 of 1996)

Criminal Law – Defenses – Self Defense as a defense to a charge of murder – Circumstances that may justify the defense of self defense.

Criminal Law – Defenses – Defense of Intoxication – Deceased killed by the appellant while they were both drunk – Whether there was malice afore thought for murder.

The appellant and the deceased were friends and business associates. At the time of death, the deceased was indebted to the appellant in the sum of TZS. 75 000. On the fatefully day the appellant visited the deceased's kiosk to demand payment of the debt, but on arrival there, they started drinking beer until late hours. When the appellant then reminded the deceased of the debt, the deceased denied being indebted to him and, according to the appellant, the deceased started to attack the appellant with a knife which was one of the commodities sold by the deceased in the kiosk and the appellant, in defending himself, took the same knife and attacked the deceased with it, resulting in the death of the deceased.

Held: (i) There is no evidence that the appellant was repelling an actual attack from the deceased which would bring into play section 18A(1) of the Penal Code, which provides for the defense of self defense;

(ii) As a general rule intoxication affords no defense to a criminal charge but under section 14(4) of the Penal Code intoxication is taken into account in those cases requiring proof of a specific intention for the purpose of determining whether the person charged had formed any intention to commit the offence.

Appeal dismissed

Cases Referred to:

(1) *Bukulukulu Ndoma v. R* [1981] T.L.R. 353

Statutory Provisions referred to:

(1) The Penal Code, section 18A, as amended by Act number 14 of 1980, section 14

Mr. Kweka for the appellant

Mrs. C.S. Mathanga for the Republic

JUDGMENT

(Dated 26 October 2005)

Nsekela, JA: The appellant, Nicco Peter, also known as Rasta, was convicted of murder by the High Court (Kimaro, J.) sitting at Dar es Salaam and was sentenced to the statutory death sentence. The main thrust of the appeal relates first, to the availability of the defence of self-defence and second, whether or not the appellant was intoxicated at the time he committed the offence. The Trial Court had no difficulty in making a finding of fact, with which we are in respectful agreement, that the appellant was the person who inflicted the fatal injuries on the chest of the deceased.

Mr. Kweka, learned advocate for the appellant, preferred one ground of appeal namely:

> That the learned trial judge erred in law in holding that malice aforethought was proved beyond reasonable doubt.

Elaborating on this ground of appeal, Mr. Kweka submitted that first, the appellant and the deceased had taken some quantity of alcohol for a considerable period of time and so the appellant was incapable of forming the requisite intent to kill. Second, while in the kiosk the appellant and the deceased were engaged in a fight as a result of which the appellant was compelled to defend himself in the manner he did.

Mrs. C.S. Maganga, learned State Attorney, strongly countered these submissions. She was of the view that the appellant had committed a pre-meditated murder. She submitted that the appellant had gone to the deceased's kiosk to demand a refund of his unpaid money. After the appellant had allegedly denied any indebtedness to him, he stabbed the deceased with a knife on the chest and attempted to escape from the scene of crime. In the process, he threw away the knife but was arrested by PW1, PW2 and PW3. She added that the nature of the injuries on the chest indicated that the appellant had the requisite malice aforethought. Furthermore, she submitted that the appellant's conduct before and after the killing did not point that the he was intoxicated so as to negate *mens rea* on his part.

The prosecution case revolved around three witnesses. PW1 was one D 7993 PC Kulutera Makelena Mtaki, PW2 was Isawangu Assery Kimaro and PW3 was Fredrick Herema. The appellant and the deceased were apparently friends and business associates. On some occasions the appellant used to sell on credit commodities to the deceased. The appellant alleged that at the time of his death, the deceased was indebted to him in the sum of TZS. 75 000 for sugar not yet paid for. On the fateful day, the appellant visited the deceased at his kiosk from 6.00 pm. Since the appellant is the only person who knows precisely what events happened in the kiosk that led to the death of the deceased, we take the liberty to reproduce the material part of the appellant's evidence before the Trial Court. He stated this:

> I went to his kiosk (*sic*) for purposes of demanding payment of my debt. When I arrived at his kiosk he was selling beer (Stella). We drank with him inside the kiosk (*sic*). He was the one who was selling the beer (Stella). We drunk for long until late in the night but I cannot recall exactly when. I was the one who was paying for the beer. I reminded the deceased of my debt of TZS. 75 000. By then we were both drunk. I don't recall the exact number of beer taken. When I reminded him of my debt he said he was not indebted to me. I asked how could he say that he was not indebted to me. Before I finish the sentence he beat me on my head .... We started fighting and I took the knife and stabbed him. The knife belonged to the deceased. It was among the commodities he was selling. I had to defend myself because he had cut me with a knife on my head. He also cut me on my arm and on my back. My shirt was full of blood. When I stabbed Gasper he fell down.

According to the appellant's own evidence, the deceased was his friend and business associate. On the fateful day, the appellant visited the deceased ostensibly in order to collect an outstanding debt from him. The appellant did not introduce the purpose of the visit until after they had imbibed some alcoholic drinks. Apparently the deceased resiled from his undertaking to repay the debt. This prompted a fight inside the kiosk resulting in the appellant stabbing the deceased with a knife which was in the kiosk. The post-mortem examination report revealed that there were seven stab wounds on the chest. The evidence of the appellant, PW1, PW2 and PW3 was to the effect that the appellant then plotted his escape from the kiosk first, by running away from the scene of crime; second in the process, he threatened PW1 and PW2 with the blood stained knife he was holding; third, he threw it away, before being apprehended after a chase by PW1, PW2 and PW3. Earlier on, the appellant had explained the reason he had gone to visit his business associate to demand his unpaid TZS. 75 000; he testified that both of them had drinks for which the appellant paid for; the brief discussion they had on the unpaid debt; the stabbing and falling down of the deceased; how remorseful the appellant was at the turn of events and why he decided to run away from the kiosk for fear of being lyched by the crowd.

The anchor of Mr. Kweka's submission was the defence of self-defence. The essence of the defence is that the appellant was entitled to protect himself by the use of force to repel force used against the appellant. PW1 and PW2 testified that when the appellant came out of the kiosk, he was holding a blood-stained knife. They did not see any injuries on the head, at the back or on the arm suggesting that the appellant had been attacked. PW3 however testified that the appellant's shirt had blood. We are not surprised, but it is unlikely that it was blood from injuries on his body for these three witnesses

could have testified if they saw any injuries. Section 18A(1) of the Penal Code as amended by Act number 14 of 1980 reads:

> 18A(1) Subject to the provisions of the Code every person has the right to:
>
> (a) to defend himself or any other person against any unlawful act of assault or violence to the body.

In the case of *Bukulukulu Ndoma v. R.* (1) this Court observed in connection with section 18A(1)(a) as under at pages 354 – 5:

> It seems to us that the plain meaning of this provision is that where self-defence is pleaded, it has to be shown that the deceased committed an unlawful act of assault or violence to the body, and as a result of such conduct the prisoner inflicted the fatal blow on the deceased. In other words, the conduct which induces the fatal injury must have come from the deceased and not from some third party.

Whatever conclusions there are regarding the reality of the danger posed to the appellant by the deceased's conduct, this can only be drawn from the evidence on the record. The appellant in his evidence testified that the deceased attacked him first with a knife on the head, at the back and on the arm. However PW1 and PW2 did not see any such injuries on the appellant's body. These are the witnesses who arrested him as he was running away from the scence of crime. The learned trial judge termed the purported self-defence a "concoction." We, on our part, are in respectful agreement with the learned trial judge. On the totality of the evidence before the Court, the deceased did not attack the appellant with a knife. There is no evidence that the appellant was repelling an actual attack from the deceased which would then bring into play section 18A(1) of the Penal Code. With respect, we reject as untenable the appellant's defence of self-defence.

We now come to the question of intoxication. Sections 14(1) and (4) of the Penal Code provides as follows:

> 14(1) Save as provided in this section in this section intoxication shall not constitute a defence to any criminal charge.
>
> (4) Intoxication shall be taken into account for the purpose of determining whether the person charged had formed any intention, specific or otherwise, in the absence of which he would not be guilty of the offence.

As a general rule, intoxication affords no defence to a criminal charge but under subsection (4) of section 14 intoxication is taken into account in those offences requiring a specific intention "for the purpose of determining whether the person charged had formed any intention." The onus of establishing that the appellant was not by reason of the drink consumed incapable of forming the intention to kill rested on the prosecution. We rely on the appellant's own version on drunkenness and assume in his favour that he has told the truth as to what took place. We agree that the appellant had been drinking alcohol and was probably not sober. However, evidence of drunkenness per se is not enough, there must

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SANGIJO RICE MILLERS COMPANY LIMITED *v.* S.M. HOLDINGS LIMITED

HIGH COURT OF TANZANIA
(Commercial Division)
AT DAR ES SALAAM

(Massati, J.)

COMMERCIAL CASE No. 45 OF 2004

Contract – Contract of sale of goods – Whether and under what circumstances a mere purchase order may amount to an agreement to sell.

Contract – Contract of sale of goods – Delivery – Mode of delivery – Agreement is silent on mode of delivery – Delivery in one lot presumed.

Contract – Contract of sale of goods – A term of contract stipulates that presentment of documents be taken as delivery – Buyer fails to attach documents – Seller taken to have failed to deliver the goods.

Contract – Contract of sale of goods – Rules governing delivery of goods – Whether Buyer is bound to accept delivery in instalments.

Contract – Contract of sale of goods – Expiry of contract by effluxion of time – Liability of parties after such expiry of time.

Sale of goods – Contract of sale of goods – Whether and under what circumstances a mere purchase order may amount to an agreement to sell.

Sale of goods – Contract of sale of goods – Delivery – Mode of delivery – Agreement is silent on mode of delivery – Delivery in one lot presumed.

Sale of Goods – Contract of sale of goods – A term of contract stipulates that presentment of documents be taken as delivery – Buyer fails to attach documents – Buyer taken to have failed to delivery the goods.

Sale of goods – Contract of sale of goods – Rules governing delivery of goods – Whether seller is bound to accept delivery in instalments.

Sale of goods – Contract of sale of goods – Expiry of contract by effluxion of time – Liability of parties after such expiry of time.

A purchase order was relied upon by the parties as constituting a contract of sale of goods. The seller agreed to supply to the buyer 2000 bales of ginned cotton by the end of August, 2004 at the price of 58 cents per lb. Property in the goods would pass upon delivery of the goods which in turn required the seller to present documents on the strength of which the buyer would pay the price. At expiry of the time of contract the buyer had not taken delivery of the goods because the seller had not presented the requisite documents although the seller had notified the buyer that the goods were ready for delivery. Upon failure of the buyer to take delivery of the goods the seller sold the goods to other buyers at a lower than the contract price and sued the buyer to recover damages for the loss he had suffered.

The Court considered several issues including whether a purchase order may constitute an agreement, rules governing delivery of goods and liability of parties upon expiry of contract by effluxion of time.

Held: (i) The purchase order together with the conduct of the parties constituted an agreement to sell.

(ii) Where an agreement is silent on the mode of delivery, the presumption is that it is intended to be delivered in one lot, unless, by conduct the buyer accepts delivery by instalments;

(iii) By selling 500 bales out of the 2000 bales contracted before the expiry of the contract period the seller had prematurely breached the contract; full delivery of the 2000 bales within July/August 2004 was the essence of the contract and that term was breached by the seller;

(iv) The buyer was at liberty to rescind the contract.

Suit dismissed

Cases referred to:

(1) *Reuter v. Sala* [1876] 4 ChD 239

(2) *Brandt v. Lawrence* [1876] 1 QBD 344

(3) *Honck v. Muller* [1881] 7 QBD 92

(4) *R. v. Hall* (1932) 23 Cr. App. R 202

(5) *Musa andNgozi v. R.* [1970] H.C.D., n. 278

(6) *Minster Trust Ltd v. Trads Tractors Ltd* [1954] 3 All ER 136

(7) *Newton Abbot Development Co Ltd v. Stracman Brothers* (1931) 47 T.L.R. 616

(8) *Atkinson v. Maling* [1788] 2 Term Rep. 462

(9) *Smith v. Chance* [1819] 2 GB & Ad 753

(10) *Graves v. Legg* (1854) Exch. 709

(11) *Fiudon v. Parver* II M & W 675

Statutory provisions referred to:

(1) Evidence Act, 1967, sections 111, 112, 115, 122

(2) Sale of Goods Act, (Chapter. 214), sections 3(1) and (2), 29, 30, 31(1), 32(1), 33(1), 52, 53, 66(2)

(3) Cotton Industry Act, (Chapter 201), section 5(2)

Mr. Kwikima for the Plaintiff

Dr. Tenga for the defendant

JUDGMENT

(Delivered 9 November 2005)

Massati, J: The parties in this suit are both corporate persons represented by Mr. Kwikima learned Counsel, and Dr. Tenga, learned Counsel, who took over from M/s. M.A. Ismail, Advocate, for the Plaintiff and the defendant respectively.

In a plaint filed in this Court on 10 September 2004, the Plaintiff builds up its case in paragraphs 3, 4, 5, 6, 7 and 8. From these paragraphs, the Plaintiff's case is:

1. That the parties executed a contract deed for the purchase 2000 cotton lint bales or 370 metric tones on 28 May 2004.
2. That the defendant was to pay to the Plaintiff a total of USD 473 111-45 upon delivery of the crop.
3. That following this understanding the Plaintiff entered into a ginning agreement with Kahama Cooperative Union for ginning 2000 bales of lint cotton.
4. That the delivery was to be at the ginnery, Mhangalo, Kahama in the period, July and August 2004.
5. That by 30 July 2004, the Plaintiff had ginned a total of 470 bales and accordingly notified the defendant to collect the same to no vail.
6. That by the end of the contract period the Plaintiff had ginned all the contracted 2000 bales.

7. That the defendant refused to take delivery of the produced cotton bales forcing the Plaintiff to look for another buyer, who purchased 500 bales at the price lower than that offered by the defendant.
8. That by refusing to take delivery of 300 bales, the defendant acted in breach of contract.
9. That as a result, the Plaintiff suffered a loss of USD 171 298-97, for which the Plaintiff was claiming as damages in loss of anticipated earnings together with special damages in ginning and storage costs, general damages for breach of contract, interests at bank rate of 24% with effect from July 2004 to the date of this judgment, and lastly, costs.

In this plaint, the Plaintiff also annexed a number of documents, which we shall refer to later in this judgment.

The defendant, first instructed M/s M.A. Ismail, and Co. Advocates to file a petition under the Arbitration Ordinance for stay of the suit pending reference to arbitration. The petition was dismissed by Kimaro, J., on 14 December 2004. I had to refer to this event, because at the end of her ruling, the learned Madam Judge remarked:

> ... the purchase order is not an agreement worthy the name.

She was referring to what the Plaintiff had annexed to his plaint and marked P1, which was admitted in the course of the trial as Exhibit P2.

Upon dismissal of the petition, the defendant filed his Written Statement of Defence on 5 January 2005. The substance of the defence is carried in paragraphs 2, 3, 4, 5, 6 and 7 of the Written Statement of Defence. In short, the defendant's case is:

(1) The defendant executed an agreement for the supply of 2000 bales at the price of US cents 0.58 per lb, and not USD 473 111-45 for 2000 bales/370 metric tones.

(2) That the Plaintiff presented himself as the owner of a ginnery and could supply 2000 bales in one batch; therefore the ginning agreement is disputed.

(3) That the Plaintiff ought to have known that the 2000 bales were to be delivered at once, since the train could carry only 300 bales.

(4) That the Plaintiff failed to supply the contracted 2000 bales by the end of the contract period at the end of August 2004 and so the defendant was forced to look for an alternative supplier.

(5) That since the Plaintiff failed to supply the entire contracted quantity within the contracted period, and since time was of the essence for better world market prices, the defendant was forced to look for an alternative supplier.

(6) That it was the Plaintiff and not the defendant who was at fault, and so the Plaintiff's claim for loss of anticipated earnings, specific damages, storage costs and general damages were baseless.

The Plaintiff did not seek to file a reply to the Written Statement of Defence.

It was from the parties' above captioned pleadings that Kalegeya, J. framed the following issues for trial:

1. Whether the contract price for the 2000 lint cotton bales was USD 473 111-45 or USD 58-00 cts. per lb?
2. Whether it was the term of the contract that the 2000 lint cotton bales were to be supplied in one batch?
3. Whether the Plaintiff failed to deliver the 2000 lint cotton bales as contracted?
4. If the answer to issue 3 is in the affirmative, whether it was a term of the contract that upon failure by the Plaintiffs to deliver the 2000 lint bales; the defendant would be at liberty to look for an alternative supplier?
5. To what reliefs are the parties entitled?

The trial that followed was in search for the answers to the above issues. In so doing I was assisted by Mr. Mwamukonda and Mr. Khalfan gentlemen assessors. Before I embark on examining the evidence

on record, it may perhaps be opportune to remind myself that, the burden of proof is on the Plaintiff to prove his case on a balance of probabilities. Section 111 of the Evidence Act, 1967 reminds us:

> 111. The burden of proof in a suit proceeding lies on that person who would fail if no evidence at all were given on either side.

We should not, however lose sight of section 112 of the Evidence Act 1967.

> The burden of proof as to any particular fact lies on that person who wishes the Court to believe in its existence unless it is provided by any law that the proof of that fact shall lie on any particular person.

And section 115 of the Evidence Act, 1967:

> In civil proceedings when any fact is especially within the knowledge of any person the burden of proving that fact is upon him.

And lastly section 122:

> The Court may infer the existence of any fact which it thinks likely to have happened regard being had to the common course of natural events, human conduct and public and private business in that relation to the fact of the particular case.

It is on the basis of the above principles of the law of evidence that I will now proceed to examine the evidence on record.

In this case, the Plaintiff fielded three witnesses. The first witness PW1 was Peter Paulo Sangijo the Plaintiff's Managing Director. He told the Court that he was a licenced cotton buyer and began that business in the 2004/2005 season. He had met the defendant at a cotton dealers' meeting in Mwanza on 5 May 2004. The Plaintiff and the defendant's Managing Director agreed that the Plaintiff would supply and the defendant would buy from him the equivalent of 370 metric tones of cotton lint at the price of US cents 58 per Ib. He said the lint was to be collected from Kahama ginnery. Later this agreement was followed by a written purchase order faxed to him by the defendant and dated 28 May 2004. He signed the said purchase

order to signify his acceptance of the offer. The purchase order was admitted and marked exhibit P2. be some evidence that the appellant's capacity may have been affected by it so that he may not have been able to

PW1 went on to tell the Court that he started ginning the contracted cotton on 23 July 2004 and by 27 August 2004 he had reached the target of 2000 bales but in between he had been notifying the defendant of the respective quantities attained and requesting him to take delivery. To prove that he had reached that target by 27 August 2004 PW1 produced Exh. P1 collectively consisting of receipts, statement of account and credit note from Kahama Cooperative Union Ltd, the owners of the ginnery which ginned the cotton.

He said after informing the defendant and the defendant failing to fetch the crop, and after expiry of the contract period, he decided to sell 500 out of the 2000 bales to Virian (T) Ltd at the price of US cents 30 per lb, and finished selling the last consignment on 1 November 2004 at US cents 37 per lb to various persons. The Court presumes that he did so to mitigate his loss.

PW1 said in conclusion that he has decided to come to the Court to claim loss of earnings at the rate of US cents 21 per lb, which he computed at a total of USD 171 298-97. He also claimed for special and general damages and interest.

In cross examination PW1 said Exh. P2 was not a contract but a mere order. He denied knowing Jumanne Kishimba. He confessed that he was new in the cotton business and did not know such terms as "FCA". He said no date was set for delivery, except July/August 2004. He said he paid a total of TZS. 40 438 091 as ginning fees for 2000 bales, and that he had finished ginning the 2000 bales by 27 August 2004. He said he neither knew nor accepted the accuracy of ACE reports. As far as he was concerned, he had paid all the levies to the Tanzania Cotton Board but did not have their certificates with him. He did not remember the lot numbers allotted to him for his bales. PW1 said that after selling the 500 bales, he transferred the

other 1500 bales to some other godowns, but had no receipts or any document from the owner of the godowns, because he understood he had deposited them at his own risk. PW1 admitted in cross examination that he sold the 500 bales prior to the expiry of the contract period. Lastly he answered to a question put by the defence Counsel, that he was claiming general damages because of the trouble he took in traveling to look for other customers, but had no receipts.

In re-examination by Mr. Kwikima PW1 said he never knew the Liverpool Cotton Association Rules. He said he never received any receipts for storage of his lint bales with KACU because he was never charged. He said he was not involved in the preparation of data and reports by ACE.

Examined by the gentlemen assessors, PW1 repeated that Exh. P2 was just an order. That he didn't remember even a single person who had purchased the remaining 1500 bales at USD 37 cents per lb. He said he did not know how much it cost him to purchase 2000 bales in terms of seed cotton nor the cost of ginning the same. He further said even if the order had specifically required him to deliver 2000 bales in one lot he would still sign the order, despite the storage problem. He said he was unable to quantify the loss sustained from selling the 500 bales. Lastly he said although the "order" was in English with which he was not well versed, he was nevertheless aware of the arbitration clause, although the Liverpool Cotton Association Rules were not attached.

The second witness for the Plaintiff was PW2 Kalima Christopher Dalaka Dele. He is a clerk at Kahama Cooperative Union Ltd ginnery since 1 June 2004. Led by the learned Counsel for the Plaintiff, PW2 said the Plaintiff had ginned 2000 bales by 27 August 2004. He admitted that ACE reports were issued to both KACU and the Plaintiff. He told the Court that all the 2000 bales were stored in one godown at the ginnery, but he would not know whether they are still there or who bought them.

However, in cross examination PW2 told the Court that the Plaintiff started ginning in July 2004 and by 27 August 2004, all the 2000 bales had been ginned. He told the Court that the Plaintiff stored all the bales in KACU ginneries, where a storekeeper would issue a receipt. Contrary to his previous statement in examination in chief, PW2 told the Court in cross examination that the 2000 bales could not be stored in one godown, but had to be stored in 2 godowns. He said the duty of ACE, on behalf of the Tanzania Cotton Board was to inspect seed cotton for weight and quality before ginning and after ginning the cotton is weighed again and the bales allotted with lot numbers by the Board. The Cotton Board would also issue quality certificates.

He further informed the Court that storage was only limited to the time it took to gin a customer's cotton. In the present case it was up to the end of August 2004. In reexamination PW2 said there were also other cotton buyers whose cotton was ginned at the ginnery.

Asked by the gentlemen assessors, PW2 said he was positive the Plaintiff had the 2000 bales in store by 27 August 2004 but was not aware when the 500 bales were sold, nor was he aware of the transfer of 1500 bales to another godown. He told the Court that the production figure was reflected in the ginning fee invoice and Exh. Pl collectively.

The last witness for the Plaintiff was PW3 Hassan Said, a goods clerk at Isaka Railway Station, Kahama. Led by the learned Counsel for the Plaintiff PW3, he told the Court that TRC transports cotton lint. He told the Court the capacity for one wagon was 100 bales, and that in 2004 TRC never loaded as many as 20 wagons of cotton bales from that station. He told the Court that the Tanzania Railways Corporation had no godowns at that station with a capacity to handle more than 1000 bales.

Cross-examined, PW3 told the Court that although cotton bales were mostly transported by rail, it was for the customer in each case to decide on the mode of transporting his goods.

Asked by the gentlemen assessors PW3 told the Court that although he was not in a position to know, whether or not it was cheaper, he thought it was more convenient to transport cotton bales by rail. He told the Court since he was stationed there in 1998, he never witnessed the haulage of 2000 bales.

This witness marked the end of the Plaintiff's case. Before the commencement of the defendant's case, one of the gentlemen assessors, Mr. Khalfan got involved in a motor accident which disabled him from proceeding with the case.

The defendant's case also consisted of 3 witnesses. DWI Saleh Mbarak Nahdi told the Court that he was the defendant's Managing Director. He said he was in the cotton business for more than 7 years. He told the Court that he was introduced to PWI by one Jumanne Kishimba at Mwanza in May 2004. He said all the business negotiations were done by the said Jumanne Kishimba and he signed the contract on 28 May 2004 and faxed it to the Plaintiff. He said Kishimba was a mutual agent for both parties.

Continuing with his testimony, DWI told the Court that he was expecting the consignment by August 2004. He did not get it. Instead on 23 July 2004, the Plaintiff informed him that he had ginned 300 bales for delivery. On 30 July 2002 the Plaintiff informed him that he now had 470 bales in stock. He told the Court that in neither of these occasions, did he receive any documents, nor invoice. He told the Court that on 4 August 2004 he received a letter threatening to take legal action if he did not collect and pay for 2000 bales. Later on 1 September 2004 he received a letter informing him that 500 bales had already been sold to someone else for USD 37 cents per Ib. He was therefore put on notice for breach of contract. He concluded his examination in chief by telling the Court that at no time had the Plaintiff informed him of the availability of the 2000 bales, nor an invoice together with the quantity and quality certificate sent to him, nor the Plaintiff s account number. He said it was the Plaintiff who was in breach.

Cross-examined by Mr. Kwikima learned Counsel for the Plaintiff, DW1 said his company was a private company with 3 directors. He said his Company was not listed in the stock exchange market and so could not trade there. He informed the Court that the Written Statement of Defence was signed by one of his officers. He told the Court that in the world market cotton is transacted in US cents per pound. He said that the contract did not indicate whether the Plaintiff owned a ginnery or that the 2000 bales would be ready for delivery at once in one lot but in his experience, cotton bales would be transported once they are ready for shipment. He said he did not go there physically to collect the bales from the ginnery, but he sent someone on 31 August 2004, who informed him there was no cotton.

He did not however, mention the name of the person he sent. DW1 admitted having advised the Plaintiff to contact Kishimba if he was in dire need of cash. He told the Court that after 31 August 2004 he checked with MS ACE and the Tanzania Cotton Board, where he learned that as at that date the Plaintiff had only 518 bales in stock. He said the Plaintiff was a willing party who supplied all the particulars. He described the role of Kishimba in their contract as that of an agent for negotiating the price, quantity, quality and time of delivery. He clarified that the term NL WF appearing in Exh. P2 meant Net Land Weight Finally at port of destination. He said the port of destination in this case was Indonesia. The witness also said PWI had never sent to him any document to support his claims.

On re-examination by Dr. Tenga DWI said in Exh. P2, the price was expressed in US cents per pound and not per kilogram, and that the Plaintiff signed it. He told the Court that it was a trade usage in the cotton world market to transact in these units. He told the Court that it was not necessary for him to visit the ginnery physically to verify the quality. He said he would have been contented if he received the requisite documents "and then send someone to arrange for the cargo's haulage. He told the Court that all the letters he had received from the Plaintiff were just informing him that he was going on

with ginning. He said by his letter of 23 July 2004, he did not mean to rescind the contract but only referred the Plaintiff to Mr. Kishimba for clarification and assistance. He said the Plaintiffs act of informing him subsequently that he had ginned more cotton was evidence that even the Plaintiff did not treat his letter as an act of rescission.

Asked by the remaining gentleman assessor, DWI told the Court that the cotton was finally destined to one Albert Muller of Indonesia who first contacted Kishimba, who in turn arranged the contract between the Plaintiff and the defendant. He informed the Court that the defendant was the official agent of Albert Muller in Tanzania. He told the Court that in this business, payment has to be preceded by an invoice, weight and certificate of quality followed by delivery. He said in this case the Plaintiff never sent any of those documents. He told the Court that he did not authorize the Plaintiff to sell the bales and since the Plaintiff did not produce any evidence of the availability of the 2000 bales in stock, he could not be held liable for breach of the contract. Finally DWI told the Court that on receipt of those documents he would have sent them to his principal in Jakarta, Indonesia who would in turn pay before the cotton was delivered.

The next witness was Michael Charles Mjunga (DW2) who introduced himself as a Regulatory officer with the Tanzania Cotton Board. He said his principal duties, included monitoring the production, buying, ginning and transportation of cotton in Tanzania. He told the Court that the Plaintiff was a licenced cotton buyer in 2004/5 season and so was the defendant Company. He told the Court that in such capacity he would collect and keep data of all ginned cotton from all the ginners in the country. However, he told the Court, to collect all this data, the Board had appointed various agencies. Ms Audit Control and Expertise Ltd (ACE) was one of the agencies. This agency was assigned to collect data from that zone which covered Kahama ginnery.

He told the Court, ACE compiled and sent to the Board weekly reports. Reading from those reports, DW2 said according to the reports, the Plaintiff had ginned 200 bales by 23 July 2004, 470

bales by 30 July 2004, 518 bales by 3 September 2004, and 869 bales by December 2004, and 969 bales by 3 May 2005. He told the Court that from this data it was impossible for the Plaintiff to have ginned 2000 bales by August 2004.

DW2 went on to tell the Court that every ginnery is alloted lot numbers for all the bales it gins of 100 bales per lot. He informed the Court that no bale could leave the premises of a ginnery without the approval of the Board because the Board issues Certificates of Levy, without which no bales can be delivered. He told the Court that no Certificate of Levy for 2000 bales was issued to the Plaintiff. He told the Court that Exh. P1 (a statement of account prepared by KACU) showing that the Plaintiff had paid TZS. 40 438 019 as ginnery fees for ginning 370,991 of cotton lint or the equivalent of 2049.7 bales is directly contradicted by the September Report which shows that only 91,116 kgs of the Plaintiff's cotton lint had been ginned. He said if the production figures shown in Exh. P 1 were correct then the levies due to the Board and the Cotton Fund were underpaid. DW2 finally insisted that from the records he had, the total seed cotton purchased by the Plaintiff for the whole of the 2004/5 season would not yield the bales of cotton lint as alleged by the Plaintiff. He also said the Cotton Board also issues quality certificates and export permit before any cotton lint is exported.

In cross-examination, DW2 said upon obtaining his M.Sc. in Plant Production from Ukraine, he underwent a cotton crop induction course at Ukiriguru. He said he was initially posted at Magu as a cotton inspector. He told the Court he did not know who was it that signed the weekly reports, but was positive that ACE was one of the agencies appointed to collect the data at Kahama ginnery. He told the Court that apart from the Plaintiff there were other companies who were ginning their cotton at Kahama.

He said the reports were filed weekly. He told the Court that offhand, he did not remember the lot numbers allotted to the Plaintiff's cotton, but that such data is available in his office. He told the Court

that Certificates of Levy are issued to the cotton buyer, not to the lint buyer, but no lint bale could leave the ginnery premises without the Certificate of Levy. Lastly DWI said he would not remember when did DW1 come to ascertain the Plaintiff's production in his office.

On re-examination, DW2 told the Court, that in Ukraine, an M.Sc. degree is a first degree. He said he had worked as a cotton inspector from May 1997 to December 1999. As such he was also an extension officer and represented the Board in all its regulatory functions. He said it takes 1,080,000 kgs seed cotton to produce 2000 bales. However, DW2 said it was not the board's business to see what the parties in the cotton business had agreed on. Finally he said the data his office compiles is for public consumption and is accessible to all and sundry even through the Board's website.

Asked by the gentleman assessor, DW2 told the Court that his office keeps information on all cotton buyers and exporters but he had no record of the sale of 500 bales by the Plaintiff to Virian although according to the reports such number of bales are shown to have been dispatched.

Dadi Luhwano Mwenda (DW3) was the last defence witness. He told the Court that he works with the Audit Control Expertise (T) Ltd which was an inspection house, as a collateral manager. He said their Company checks and counts goods at the request of their clients and issues reports to them. He is a Senior Support Analyst in the Company. He said in such capacity he had to oversee that all work assigned to the Company is executed to the letter and issue reports. His duty is to inspect the reports and sign them. He said in the 2004/5 cotton season ACE was appointed by the Cotton Board and assigned to the Western Zone, which covers Kahama ginnery. Their duty was to check quality of the seed cotton and cotton lint and thereafter compile statistics.

He told the Court that upon there being Certificates of Levy payments the ginned cotton lint bales are given special lot numbers, and can

only leave the ginnery premises on production of the levy certificates for payment of levy to the Cotton Board and the Cotton Fund. Then weight notes are issued for ginned cotton. He told the Court that these reports are compiled weekly. He identified his signature in the weekly reports which were identified by DW2 and accordingly marked identification "IDD". DW3 admitted those reports as exhibit D2 collectively. Reading from those reports (Exh. D2) DW3 said by 16 July 2004, the Plaintiff had purchased 350781 kgs of seed cotton and had ginned 200 bales, but had dispatched none. By 30 July 2004 the Plaintiff had purchased 458,000 kgs of seed cotton and had ginned 470 bales, without dispatching any. By 3 September 2004 the Plaintiff had purchased 548643 kgs of seed cotton and ginned 518 bales of which 500 had been dispatched. By 24 December 2004 the Plaintiff had purchased 681693 kgs of seed cotton and had ginned 869 bales, with a dispatch of 500 bales. He was positive that there was no omission in the records.

DW3 was thoroughly cross examined by Mr. Kwikima, learned Counsel for the Plaintiff. DW3 told the Court that he was a holder of a Diploma in Business English from Manchester National School of Sales, and an intermediate in principles of accounting. He confessed that he was not a Certified Public Accountant (CPA). He told the Court that although he had some experience in the cotton industry he would not know the volume of one bale of cotton lint although he was sure that the average weight was between" 180 to 190 kgs per bale. He confessed his ignorance of the amount required of seed cotton to produce a bale of cotton lint.

DW3 went on to tell the Court that as far as his Company was concerned its employer was the Tanzania Cotton Board and did not have any thing to do with the claims now under litigation. He said he knew that there were 3 ginneries in Kahama, and that apart from the Plaintiff there were 2 other cotton buyers who ginned their cotton at KACU ginnery, and the production of those others was higher than that of the Plaintiff. DW3 said he did not know the capacity of Kahama ginnery godown. He told the Court that the levy is collected

by KACU on behalf of the Board. He said the weekly reports are sent to, Tanzania Cotton Board and they (ACE) usually remain with counterparts. He wound up in cross examination by saying that ACE had nothing to do with the sales of cotton lint bales.

On re-examination, DW3 told the Court that Exh. D2 was a cumulative report in that the current report carries forward the previous ones. He said he was not required to have a CPA when he joined ACE. He said his duties were in the office and not the ginneries.

Asked by the gentleman assessor, DW3 told the Court at Kahama, the data would be prepared by a supervisor stationed at the ginnery and sent to their Dar es Salaam office, where he compiles them, sends to his manager for checking before signing them. He said Exh. D2 does not contain weekly reports for August 2004, but according to Exh. D2 by 24 December 2004, the Plaintiff had a balance of 369 bales after dispatching 500 bales. Now, the parties have also produced documentary evidence, some of which I have referred to above. It is now necessary to examine them in detail.

The Plaintiff produced a total of 4 documentary exhibits. Exh. P1 collectively consists of receipts number 1422 for TZS. 30 000 000 of 19 July 2004; Receipt number 1423 of 27 August 2004 for TZS. 438 091 and a statement of account dated 5 August 2004 and a credit note for TZS. 9 000 000 dated 27 August 2004. All these were issued by Kahama Cooperative Union Ltd and were meant to show that by 27 August 2004 the Plaintiff had ginned 370991kgs of lint at the ginning fee of TZS.109 per kg.

What confounds me is that given that there were 2 other ginners ginning their cotton at Kahama ginnery and no doubt also issued with receipts for the ginning fees, and given that the two receipts are too close serially, yet too far in the dates of their issue, is it possible that after issuing receipt number 1422 on 19 July 2004, the next receipt number 1423 had to wait for the Plaintiff again until 27 August 2004? What receipt book was used for the other ginners? I can find no immediate answers to these questions?

Exh. P2 is the purchase order from the defendant Company dated 28 May 2004. This essentially spells out the terms, conditions and warranties of the contract between the parties. Exh. P3 consists of 3 letters collectively from the Plaintiff to the defendant. The letter dated 23 July 2004 informs the defendant that 300 bales had been ginned and that the 1700 bales would be ready within the contract period. The letter of 30 July 2004 informs the defendant that there were then 470 bales ready for collection. It also undertook to avail the balance of 1570 bales within the contract period. The letter of 4 August 2004 reminded the defendant of his duty to take delivery of the 470 bales and pay therefor USD 105 999-8 within 72 hours. And finally the letter of 23 August 2004 was a warning to the defendant to collect the bales or face legal action. Exhibit P4 was an agreement for the sale of 500 bales of cotton lint by the Plaintiff to Virian (T) Ltd, dated 14 August 2004.

Undoubtedly the Plaintiff had sought it fit to inform the defendant of every stage of the production of the bales of lint cotton. It must be noted that the Plaintiff informed the defendant of the production of up to 470 bales of cotton lint. But, I must hasten to observe here that the Plaintiff did not deem it fit to inform the defendant when he attained the targeted 2000 bales.

On the defendant's part 2 documentary exhibits were tendered. Exh. D1 is a note from the Plaintiff dated 1 September 2004 containing computation of the Plaintiffs damages amounting to USD 289 576-83 Exhibit D2 are collective weekly reports of seed cotton lint bales and cotton seed at Kahama ginnery prepared by Audit Control Expertise (T) Ltd for the period 16 July 2004 to 24 December 2004. Notably the Exhibit does not contain reports for the whole of August 2004, part of September 2004, the whole of October, part of November 2004 and part of December 2004. However, according to DW3 those reports are cumulative, so that the report would also reflect data for the previous productions. It is on the basis of the above principles of the law of evidence and the evidence on record, that I will proceed to analyse that evidence. But in order to avoid duplicity, I intend to

examine the evidence of the parties on each of the agreed issues, together with the submission of the learned Counsel the opinion of the gentleman assessor and conclude with my own opinion.

As shown above the first issue relates to the price of the contracted quantity of cotton lint. Of the 3 witnesses for the Plaintiff only PWI testified on this issue. After tendering Exh. P2, the purchase order dated 28 May 2004 from the defendant, the witness said:

> According to that order the defendant needed 370,000 kgs equivalent to 370 metric tones of lint cotton. The price offered was US cents 58 per pound.

As was later to be seen, Dr. Tenga learned Counsel for the defendant did not cross examine PW1 on this because according to him, it was a non issue. We will shortly come to that. But perhaps this explains why the learned Counsel did not lead DWI, to answer that issue. Apart from acknowledging the contents of Exh. P2, DW1 had to answer the question when it was put to him in cross examination by Mr. Kwikima learned Counsel for the Plaintiff. According to DW1's testimony:

> According to the WSD, the defendant admitted to have contracted to purchase 370 metric tones or 2000 bales at the price of US cents 58 per lb (pound). That is the measurement in which cotton is sold in the world market.

Thus, the parties admitted that according to the agreement, the price was to be US cents 58 per lb. This is illustrated by Exh. P2.

The learned Counsel for the Plaintiff submitted that the Plaintiff has proved on a balance of probability that 2000 bales would weigh 315709.4 which would fetch USD. 473 111-45 at the agreed rate of USD cents 58 per Ib. With respect I am unable to pin down PWI as having orally testified to that effect. However, this piece of evidence (of the computations) is contained in a document from the Plaintiff dated 1 May 2004 and tendered by the defendant as Exh. Dl . Part of that document reads:

SELLING PRICE. 0.58 US cents/lb FOT (Gin yard Kahama Ginnery. 370,000 kgs x 0.58 x 2.20462 = USD 473 111- 5.

1. Kwa robota 2000 (370,000 kgs Tulitegemea kuuza na kupata USD 473 111-45.

This is the evidence on record which the defendant tendered. The only thing that the Plaintiff did was to plead it in paragraph 3 of the plaint.

Be that as it may, Dr. Tenga, learned Counsel, wondered why this should have been framed as an issue because, the agreement refers to 58.00 cts/lb and considering that the weight of 2000 bales would be 370 metric tonnes, then, using the established rates of conversion the contract price would surely be USD 473 111-45. The gentleman assessor concurred with Dr. Tenga that the price amount was irrelevant because it was merely a matter of arithmetic.

In my considered view, the issue as framed is important, and its answer will go a long way in solving the issue of damages. This is because, although the purchase order (Exh. P2) talks of US cents 58. per lb, the Plaintiff claims in paragraph 3 of his plaint, the total sum of USD 473 111-45 for 2000 lint cotton bales weighing 370 metric tonnes. And the answer is provided in Dr. Tenga's own submission. The total price of USD 473 111-45 is only correct on the assumption that all the bales shall have equal weight. But according to DW2 and DW3, the average weight of a bale of cotton lint is between 180 kgs and 190 kgs. So, the total price of 2000 bales would definitely vary and not fixed at USD 473 111-45 as pleaded by the Plaintiff.

Now coming back to the issue at hand, I would only say this. The price of US cents 58 per lb is not necessarily equivalent to USD 473 111-45 for 2000 bales, and that was not what was agreed between the parties. What was agreed was the price of US cents 58 per lb, and not USD 473 111-45 for 2000 bales of cotton lint. I would thus slightly differ with the gentleman assessor and Dr. Tenga.

The second issue that calls for determination is whether it was the term of the contract that the 2000 lint cotton bales be supplied in one batch? According to the Plaintiff, the 2000 bales were to be delivered within the contract period of July/August 2004. So he took the liberty to supply such quantities, as he was able to gin. The Plaintiff therefore presumed that he could supply the whole contract in instalments, provided this was done during the contract period. In the words of PW1:

> When ginning started on 23 July 2004 I sent him a message to come and collect 300 bales. The deadline for delivery was 31 August 2004. The defendant never showed up to collect the 300 bales.
>
> On 30 July 2004, 170 bales had been ginned. So the total shot up to 470 bales. I informed him. He never showed up ... I went on with the production. On 27 August 2004 I reached the target of 2000 bales. Exhibit P3 collectively are the letters that the Plaintiff sent to the defendant.

On the other hand, the defendant pleaded that the 2000 bales were to be delivered in one batch to easen up transportation by rail. In the words of DW1:

> We were to get the consignment latest by August 2004. We did not however get the contracted quantity. In 23 July 2004, he sent a letter to inform me that he had 300 bales ... I did not receive any of the documents mentioned in the contract. Then he wrote again on 30 July 2004 informing me that he had 470 bales. Again he did not send me any invoice. He said he needed money. I wrote to refer him to Jumanne Kisimba. However this was not one of the terms of contract.

On the basis of this evidence on record, Mr. Kwikima submitted that:

> It was neither specified nor implied that delivery would be in one lot. Otherwise the Plaintiff would not have been given 62 days within which to deliver.

In other words according to the learned Counsel, since the contract was silent on the mode of delivery, the Plaintiff was at liberty to

deliver in instalments. Unfortunately Mr. Kwikima learned Counsel did not show the basis of his proposition. Dr. Tenga learned Counsel for the defendant submitted that by using the term "shipment" referring to 370 tonnes July/August 2004 earliest possible in the term of the contract (Exh. P2), it is clear that 2000 bales were to be supplied at once. He submitted that the testimony of PWI that it was not a term that the 2000 bales were to be supplied at once was merely speculative. Dr. Tenga augmented his proposition by enlisting the provisions of section 33 of the Sale of Goods Act, and so submitted that if the term was not clear, then section 33 gives the defendant/buyer the option not to accept delivery of the goods by instalments.

The gentleman assessor was of the view that the contract demanded delivery of the 2000 bales of cotton lint in one lot. Before embarking on the task that is before me of resolving the second issue, let me first deal with the question of the status of Exh. P2. This document has been invariably referred to by both parties, both in their evidence and their submissions as "an order" and "contract". Kimaro J. has, as I have shown above, concluded that Exh. P2 was a mere purchase order and not an agreement. At this stage I cannot make any other finding to the contrary, because I have no jurisdiction to reverse that finding. Now, given that, Exh. P2 was a mere purchase order, I have, however, no doubt that it constitutes an offer from the defendant. The Plaintiff had accepted the offer by signing it and subsequently attempted to fulfill the terms of the offer. In my view, Exh. P2, together with the conduct of the parties constituted an agreement to sell, which is defined in section 3(2) of the Sale of Goods Act (Chapter 214):

> Where in a contract of sale the property in the goods is transferred from the seller to the buyer, the contract is called a sale, but where the transfer of the property in the goods is to take place at a future date or subject to some condition to be fulfilled after the transfer, the contract is called an agreement to sell.

In the present case, the parties had agreed that the Plaintiff was to supply 2000 bales and payment of the price depended on the presentation

of some documents mentioned in the purchase order. Title in the property would only be transferred upon payment of the agreed price. In short much as Exh. P2 was a mere purchase order, the conduct of the parties subsequent to the signing of Exh. P2, heightened the transaction to that of an agreement to sell.

Having so held, let me now go back to the subject at hand. Was there any term in the agreement of sale whether expressly or by conduct, that all the 2000 bales of cotton lint, would be supplied in one batch?

It is true that according to Exh. P2 "shipment" was to be made in July/August 2004, without specifying whether it was to be in one lot. Mr. Kwikima has suggested that therefore the Plaintiff had an option to deliver it in instalments.

I think the position of the law is very clear. According to section 31(1) of the Sale of Goods Act (Chapter 214):

> 31(1) Where the seller delivers to the buyer a quantity of goods less than contracted to sell the buyer may reject them, but if the buyer accepts the goods delivered he must pay for them at the contract rate.

And section 33(1) of the Sale of Goods Act is even more explicit:

> 33(1) *Unless otherwise agreed, the buyer of goods is not bound to accept delivery thereof by instalments.*

These provisions only codified he case law developed at common law. Thus in *Reuter v. Sala* (1) 239 *Brandt v. Lawrence* (2) and *Honck v. Muller* (3) it was held that, unless otherwise agreed, the buyer of goods is not bound to accept delivery thereof by instalments. In *Brandt v. Lawrence* it was further held that an agreement to accept delivery by instalments, may, in the absence of an express agreement, be inferred from the conduct of the parties and the circumstances of the case.

On the authorities I would, with due respect to Mr. Kwikima not agree with him on this point, and would accept the proposition laid by Dr. Tenga. If the agreement is silent as to the mode of delivery,

the presumption is that it is intended to be delivered in one lot, unless, by conduct, the buyer accepts delivery by instalments. In other words the option lays not in the seller delivering by instalments but in the buyer accepting or rejecting to accept instalments.

In the present case, it was clearly shown in Exh. P2 that delivery was expected in July/August 2004. Mr. Kwikima took this to mean that delivery could be spread out within the 62 days period. However although it was not shown which date was the delivery-to be made, it was not expressly indicated either, whether the supply would be by instalments. In the absence of such term, the fall back position is the presumption that delivery would have to be in one lot, either in July at the earliest or August at the latest.

Besides, the defendant's silence meant that he did not accept part or instalment delivery. If any of the instalments had been accepted by the defendant, that would amount to acceptance by conduct, in which case the buyer would have been bound to pay for the price as dictated by section 32(1) of the Sale of Goods Act.

It is on the above premises that I would answer the second issue in the affirmative. In the absence of any express term or conduct of the parties together, it was an implied term of the agreement to sell, that the 2000 bales of the cotton lint were to be supplied in one batch. I would therefore concur with the opinion of the gentleman assessor.

I now come to the third issue, whether the Plaintiff failed to deliver the 2000 bales as contracted?

It was contended by the Plaintiff that by the end of the contract period he had ginned the 2000 bales as contracted but the defendant failed to accept/take delivery. To prove this, PW1, testified:

> When ginning started on 23 July 2004, I sent him a message to come and collect 300 bales. The deadline for delivery was 31 August 2004. On 30 July 2004 170 bales had been ginned. So the total was 470 bales.

> I went on with the production. On 27 August 2004 I had reached the target of 2000 bales. The bales were stored at KACU godowns.

On that aspect PWI also produced Exh. P3 collectively. There are 4 letters in this Exhibit. Chronologically, the first letter is that of 23 July 2004. The letter, which is very brief, reads:

> Please take note that 300 lint bales are ready at the ginnery. Please arrange to pay and take delivery immediately. As regard the balance of 1700 bales we shall deliver within the contracted period.

The second letter is that of 30 July 2004 which informed the defendant that there were then 470 bales and asking the defendant to collect the consignment. Shown therein were lot numbers allocated to the said bales together with ACE weight note. Again it was indicated by the Plaintiff that the balance would be delivered within the contract period. In the third letter of 4 August 2004 the Plaintiff demanded that the defendant take delivery of 470 bales and pay for them USD 10 599-98 within 72 hours. The last letter dated 23 August 2004 refers to the previous letter of 4 August 2004, and puts the defendant on notice for breach of contract.

PW1 also produced Exh. Pl collectively to show that at the end of the contract period he had ginned 2000 bales. There are 3 documents in this collective exhibit. The first is a receipt for TZS. 30 000 000 from Kahama Cooperative Union Ltd dated 19 July 2004 described as an advance for ginning fees. Another receipt was for TZS. 1 438 019 from Kahama Cooperative Union Ltd and the amount is shown to be the last instalment for ginning fees for 2004/5. The next document is a statement of account between the Plaintiff and Kahama Cooperative Union Ltd dated 27 August 2004. According to this document the total lint produced for the Plaintiff was Kgs 370 991 worth 40 438-014 as ginning fees at the rate of 109 per kilogram. The last document is a credit note for 9 000 000. The Credit Note is dated 5 August 2004, being the value of baling materials.

PW2 Kalima Balakadele, also testified on this matter. He said:

> The 2000 bales target was attained on 27 August 2004 when the Plaintiff came to pay ginning fees for the bales.

Even in the vigorous cross examination to which he was subjected by Dr. Tenga the witness said:

> Although I am a stores clerk, I am sure there were 2000 bales. For the Plaintiff I opened his records when we started ginning his cotton in July and closed on 27 August 2004 with the closing balance of 2000 bales. They were taken to the godown. The storekeeper would receive them. I am sure the storekeeper would issue a receipt.

By the said pieces of evidence the Plaintiff intended to prove that he had 2000 bales by 27 August 2004, for delivery to the defendant. The defendant however, sought to show that the Plaintiff did not have the 2000 bales by end of the contract period as the Plaintiff claims. Said DW1:

> ...our contract was to expire on 31 August 2004. However by then the Plaintiff had neither informed me that he had 2000 bales in stock, nor sent any of the documents accompanying the invoice. An invoice had to contain the bale lot numbers quality certificate, quantity and the customer's account number.

In cross examination, DW1, admitted that he did not go to the ginnery physically to collect the bales, but that on 31 August 2004 he sent his official there, and found there was no cotton. He was emphatic that he would have been satisfied if he had received the relevant documents from the Plaintiff, which he did not. He further said he had cross/checked with ACE and the Cotton Board only to learn that as at 31 August 2004 the Plaintiff had ginned only 518 bales. The purport of the testimonies of DW2 and DW3 was to show that by 3 September 2004 the Plaintiff had ginned only 518 bales from 548,648 kgs of seed cotton. DW2 said the weight of cotton lint bales was 181 kgs per bale. Said DW2:

> 370,991 kgs of lint cotton divided by 181 kgs, gives a total of 2048/7 bales. This contradicts the September Report which gives the total weight of 91196 kgs of lint. If that is true it means the production exceeded the cotton purchased by Sangijo.

DW2 therefore concluded his testimony in chief thus:

> The total cotton purchased by Sangijo for the whole season would not yield the bales alleged to have been produced.

In cross-examination, DW2 said the seed cotton buyer has to be issued with a certificate of levy from the Cotton Board and that no bale can be dispatched without a certificate of levy payments. DW3 said he was an executive with the Audit Control Expertise (ACE), a firm hired by the Tanzania Cotton Board and stationed at various ginneries to check the quality and quantity of the seed cotton and cotton lint, and to prepare reports' for the consumption of the Cotton Board. He said the reports were to be prepared weekly. He tendered the Weekly Reports of Ginnery Stock and Levy Payments for the period 16 July 2004 to 24 December 2004 as Exh. D2 collectively. The witness then went on:

> In this Exhibit, it is shown that by 16 July 2004 Sangijo had bought 207, 685 kgs of seed cotton. There were no bales in stock. By 23 July 2004 Sangijo had 350, 781 kgs of seed cotton and had ginned only 200 bales. By 30 July 2004 Sangijo had 458,000 kgs of seed cotton and had ginned 470 bales. By 3 September 2004 Sangijo had 548,643 kgs of seed cotton and had ginned 518 bales, and 500 bales had been dispatched. By 24 December 2004, Sangijo had 681,693 kgs of seed cotton and 869 bales had been produced, while 500 bales were shown to have been dispatched.

Cross-examined by Mr. Kwikima, DW3 said:

> I don't know the volume of one bale of cotton lint, but the average weight is 180 - 190kgs per bale. I don't know an outright answer as to how many kgs are needed to produce a bale of cotton lint.

DW3 also said the weekly reports were cumulative in that all reports had to carry over the previous balances. On the basis of this evidence Mr. Kwikima, learned Counsel submitted that since the defendant did not visit the ginnery to see if the Plaintiff had the 2000 bales

during the contract period but in fact disowned the contract, the Plaintiff had the right to treat the defendant as in breach. Dr. Tenga, learned Counsel submitted that in terms of s. 29 of the Sale of Goods Act it was the duty of the Plaintiff as a seller to deliver the goods and of the buyer to accept and pay for them in accordance with the terms of contract. And since it was a term of the contract that the documents had to be taken as delivery, and since the Plaintiff did not attach the said documents he must be taken to have failed to deliver the 2000 bales. Dr. Tenga also referred this Court to section 30 of the Sale of Goods Act. Mr. Kwikima acknowledges the fact of non-delivery of the documents, for in his submission he says:

> ...there can be no question of payment being demanded when the requisite document (*sic*) were not submitted to the defendant.

Mr. Kwikima also submitted that the weekly reports were hearsay evidence and in admissible. He also said the Plaintiff could also have borrowed from the other ginners to fill in any gap.

On the basis of the evidence on record and the submissions of the learned Counsel the gentleman assessor found PW1's credibility wanting, and opined that the Plaintiff failed to deliver 2000 bales.

Let me first deal with Mr. Kwikima's submission regarding the admissibility of the weekly reports and the suggestion that the Plaintiff could rely on other ginners to fulfill his obligation. I think, it is speculative on the part of Mr. Kwikima to suggest in his submissions that the Plaintiff could call on other ginners to fulfill his obligation. This is because that part of the Plaintiff's intention is not on record. At no time had any of the Plaintiffs witnesses suggested so. On the contrary, the Plaintiff has led evidence to show that the 2000 bales were his own. As to the admissibility of the weekly reports, it is true that the said reports were initially sought to be produced by DW2. Mr. Kwikima, rightly, I think, objected to the production of these reports by this witness, as he was not the author. However he identified the reports which were marked "IDD". DW3, the person whose signature appears in the reports tendered these documents as

ExhD2 collectively. Mr. Kwikima did not object, but he has thought fit to take it up in his final submission. I think, the law would not allow of such course of action, because the law requires that such objections be taken at the trial and not in the course of submission. At this stage the learned Counsel is estopped from raising such an objection. Besides, after admitting Exh. D2, Mr. Kwikima took time to cross examine DW3. I do not see where the learned Counsel questioned the contents of the weekly reports, apart from the fact about the missing August reports.

If, Mr. Kwikima's intention is to question the accuracy and therefore the weight to be attached to Exh. D2, his duty was to challenge the figures shown therein in cross examination. He did no such thing. This, in my view, this was a vital point on the issue whether the Plaintiff had ginned 2000 bales by 27 August 2005. As it was held in *R v. Hall* (4) that:

> It is wholly wrong for a prosecutor to make a submission to the Court to disbelieve a defence witness on a crucial point of the case when he has not cross examined on it.

And that:

> Failure to cross examine may imply acceptance of the truth of the witness's testimony.

That is the position I take of Mr. Kwikima's submission on the admissibility and weight of Exh. D2 and on the probative value and credibility of DW3's evidence. This is more so, as the Plaintiff was served with a notice that those weekly ACE Reports for 2004/5 would be produced at the trial by a notice to that effect filed on 12 July 2005 by the defence.

Furthermore the requirement to produce weekly reports is not an idle one. It has legal foundations. Under the Cotton Regulations GN 471 of 2000, both the cotton buyer and ginner have a duty to keep such records and make such returns. In particular the Plaintiff, as a cotton buyer is required to produce standard weekly reports to

the Board under paragraph (h)(ii) of the Conditions set in the Seed Cotton Buying Licence, whose form is prescribed under section 5(2)(a) of the Cotton Industry Act (Chapter 201). The said condition reads:

> (h) *buyers shall produce standard weekly reports to the Board showing:*
>
> (ii) *Weekly purchases and deliveries of seed cotton by grade for every buying post.*

The ginner is also required to produce correct weekly reports under paragraph (g) of the Conditions for Cotton Ginners Licences. At the end of the Cotton Regulations there are prescribed forms which are to be filled by the cotton buyer and the ginner and returned to the Cotton Board.

The above position takes me to the next question. Did the Plaintiff have 2000 bales by end of August 2004?

This question is vital because delivery of 2000 bales would definitely depend on whether or not the Plaintiff did have the said bales at that date. This is so, because in mercantile transactions a sale is a transfer of property and no one can pass property if he himself has no rights of those goods in the first place. For this proposition I have the support of section 3(1) of the Sale of Goods Act, which reads in part:

> A contract of sale of goods is a contract whereby the seller transfers or agrees to transfer the property in the goods to the buyer for a money consideration called the price...

Whether the Plaintiff did have the 2000 bales of lint was obviously peculiarly within the Plaintiffs knowledge, and it was therefore upon him to so prove, and not on the defendant to show that he went to Kahama to physically check for himself whether the Plaintiff did have the 2000 bales as suggested by Mr. Kwikima in his submission. But, as I will show below that is not intended to belittle Mr. Kwikima's submission altogether. Now, the Plaintiff has attempted to do so by producing Exh. P1, and P3 collectively in addition to his oral testimony.

In view of the provisions of the Cotton Regulations which require both the cotton buyer and the ginner to keep records of purchases and ginning of seed cotton and make returns in prescribed forms and since PW1 and PW2 did not produce such records as required by law, I would accord no weight to Exh. P1, as there was no explanation why the required legal forms were not produced by these witnesses. I will thus draw adverse inference against the Plaintiff on this aspect. I am fortified on this view by my misgivings on Exh. P1 generally which I expressed above. If only for the sake of emphasis, I observed above that the two receipts number 1422 of 19 July 2004 for TZS.30 000 000 and number 1423 of 27 August 2004 for 1 438 019 are too near to each other and yet so far apart. What I mean is that unless there is evidence on record that this particular receipt book was meant only for transactions with the Plaintiff, it is incredible, given that there were also other cotton buyers ginning their cotton at the said ginnery that the next receipt serially should wait for more than 6 weeks, to be issued to the Plaintiff again. Since there is no explanation for this situation and since it is not usual to happen if these documents were issued in the normal course of business, I would treat Exh. P1 as suspect. That notwithstanding, it does not mean that the whole of PW1 and PW2 evidence is discredited. For it has been said by this Court in *Musa and Ngozi v. R.* (5) that:

> Rejection of part of the testimony of a witness does not necessarily make the whole testimony suspect or discredited.

So, while I reject and accord no weight to Exhibit PI, I find that there is some truth in Exh. P3. These letters, taken together lead to the conclusion that by 30 July 2004, the Plaintiff had ginned only 470 bales of cotton lint. The truth of this fact is also confirmed by Exh. D2 which shows that by that date (i.e 30 July 2004, the Plaintiff had indeed ginned 470 bales, and that by 3 September 2004 the total number of ginned bales was 518 to the Plaintiff's credit. This can't be a coincidence, but reflects heavily in favour of the authenticity of Exh. D2. Exh. D2 is a consolidation of all the statutory forms of return prescribed under the Cotton Regulations, which as I said above,

the Plaintiff was obliged to fill in and return to the Board, as well as the ginner. So I will attach to Exh. D2, the deserving weight.

Exh. D2, apart, I also had occasion to observe the demeanour of PWI and PW2 as they testified in Court, on this particular aspect. PW1 performed very poorly in cross examination by the defence Counsel and by the gentlemen assessors, especially when he was asked to account for the disposal of the 1500 bales over and above the 500 sold to Virian (T) Ltd. In examination in chief, PW1 said:

> On 27 August 2004 I reached the target of 2000 bales. Later I transferred 1500 bales to another godown belonging to KACU at my expense. I don't have any receipts for the rent because they did not charge me.
>
> After the expiry date of 31 August 2004 I had to dispose of the lint. The 500 bales we sold to Virian (T) Ltd.

But PW1 had forgotten that he had tendered Exh. P4, an agreement for the supply of cotton lint with Virian (T) Ltd, of which clause 2 reads:

> The supplier shall supply total of 500 bales to the buyer during the month of August 2004.

And when cross examined by Dr. Tenga, learned Counsel for the defendant, PWl admitted that he disposed of the 500 bales, before the expiry of the contract period. When asked by one of the gentleman assessors he said he could not remember even a single person who purchased any of the 1500 bales.

August 2004 was within the contract period between the Plaintiff and the defendant. According to Exh. D2, the Plaintiff had already dispatched 500 bales by the week ending on 3 September 2004. So, the irresistible conclusion is that if at all he had ginned 2000 bales by 27 August 2004, then certainly he did not have all of them by the end of August 2004. Exh. D2 further disproves PW2 and Exh. P1 which shows 27 August 2004 as the last ginning date for the Plaintiff because Exh. D2 shows the ginning continued until December 2004.

Furthermore PW2's testimony did not improve matters for the Plaintiff. He said in examination in chief:

> The 2000 bales were stored in one godown which was at the ginnery.

But when cross-examined by Dr. Tenga PW2, shifted his position. Asked on the question of storage, he said:

> For lint we have 2 of them (i.e. godowns). The 2000 bales cannot fit in one godown. We had to store them in 2 godowns.

And when asked by the gentleman assessors he said:

> I don't know whether the 500 bales had been sold. I am not aware of the transfer of 1500 bales to another godown.

A close analysis of the testimony of PW2 shows that either he was not fully conversant with what he had come to testify on or ignorant of all that was happening at the ginnery or worse still what he was telling the Court was not all that true. I will therefore treat his testimony with extra caution. But there is also another dimension of the evidence of PWl and PW2. While PW1 testified both in examination in chief and cross examination that he was not aware of the role of ACE at the ginnery nor accepted the accuracy of their reports, PW2 said in examination in chief:

> When ACE was inspecting, the Plaintiff was involved. Both ACE and TLM & SB issued its certificates to both KACU and the respective cotton buyer.

And in cross examination, he added:

> Cotton seed is inspected by ACE for TLM & SB for weight and quality before it is ginned. Quality certificates are issued by TLM SB after ginning.

These contradictions have not been explained away nor commented upon by the learned Counsel in their final submissions.

In view of the provisions of' the Cotton Industry Act and the regulations thereunder the evidence of PW2 and DW3, I find and hold that weight notes quality and quantity of lint bales ginned were

necessary documents to prove the existence of 2000 bales. And that in terms of Exh. P2, the burden of producing those documents was on the Plaintiff. If he was not aware of and did not accept the ACE reports, he should have produced his own, which the law requires him to prepare and return to the Cotton Board. But that is a lame excuse because in his letter dated 30 July 2004 (part of Exh. P3) the Plaintiff himself refers to ACE weight notes numbers 02552, 02554, 02553, 02555 and 02556. This shows that the denial by PW1 of the existence of ACE was an afterthought.

Delivery of those documents was a term of the contract. It was part of the conditions for delivery and implied in law that the delivery of those bales of cotton were subject to the certification of a third party which was the Tanzania Cotton & Seed Board. At common law where goods are to be supplied to the buyer to the satisfaction of a third person, the standard required to satisfy the certifier may either be laid down in the contract or be that of the certifier or both. (See *Minster Trust Ltd v. Trads Tractors Ltd* (6) *Newton Abbot Development Co. Ltd v. Stracman Brothers* (7).

It follows that no delivery of the bales in this case could be made to the defendant in the absence of certificates of quality and quantity approved/issued by the Tanzania Cotton Lint and Seed Board. I am satisfied in this case, and on the basis of the evidence of DW2 that no such certificate were issued by the Board for 2000 bales of cotton lint as at 31 August 2004 in favour of the Plaintiff. And if the Plaintiff had them he would have produced the same in Court given that the Plaintiff had been given notice to produce them at the hearing of the suit.

On the above premises, I will proceed to hold that the Plaintiff did not have in possession the 2000 bales by the end of August 2004.

But being in possession of 2000 bales is one thing. Failing to deliver them within the contract period is another, although the two aspects are hand and glove. Let us assume for the sake of argument, as Mr. Kwikima has submitted, that the Plaintiff could have procured

the contracted goods from his fellow cotton buyers, and assuming therefore that the Plaintiff did have the 2000 bales for disposal within the contract period. Let us now examine the rules governing delivery and whether the Plaintiff complied with them.

The rules as to delivery are set out in section 31 of the Sale of Goods Act (Chapter 214). As I have set out above, under section 33 of the Act the buyer is not bound to accept delivery of the goods by instalments unless otherwise agreed. So in the absence of such contrary agreement the law presumes that delivery shall be in one lot.

With that presumption in mind, the general rule is that delivery of the goods may be made by the seller doing any act or thing whereby the goods are put into the custody or under the control of the buyer or his agent in that behalf. (See *Atkinson v. Maling* (8), or whereby the buyer or his agent is enabled to obtain such custody or control. See *Smith v. Chance* (9).

And as to delivery, the general rule is that whether it is for the buyer to take possession of the goods or for the seller to send them to the buyer, is a question depending in each case on the express or implied terms of the contract. (See **Halsbury's Laws of England** (3 ed) Volume 34) at page 93.

In the present case, the place of delivery was at Kahama Ginnery gin yard, according to Exh. P2. It is on record that after ginning 470 bales and although he was not informed of the availability of 2000 bales and seen by the Plaintiff previous conduct towards 470 bales the Plaintiff informed the defendant to go and collect the bales. But I do not however agree with DW1 when he said he sent his officer to Kahama to check on the information, because we are not told who that person was, nor did he testify. I will therefore discard that piece of evidence and hold that neither the defendant nor his official ever went to Kahama ready for delivery of the bales. Notwithstanding however, that the bales ginned and ready for delivery were reported to be only 470, bales, it is on record that the defendant did advise the Plaintiff to contact Kishimba for clarification. According to PW1,

he did not know who Kishimba was. I find this assertion also totally unacceptable, because according to DW1, Kishimba was their mutual agent, who negotiated with the Plaintiff on the quality and price of the cotton to be purchased. DWI was not cross examined on that part of the evidence I will therefore take the Plaintiff's denial of who Kishimba was, as untrue and since he is mentioned in Exh. P2 as an agent and since the Plaintiff signed and therefore bound by the contents of Exh. P2, I will conclude that the Plaintiff knew that Kishimba was both his and the defendant's agent, for the purposes of that order.

As an agent, Kishimba could act on behalf of the defendant in deciding to accept delivery either in one lot or by instalments. But to exercise such powers the Plaintiff had to contact him, as advised by the defendant. The Plaintiff did not contact Kishimba. There is a very strong inference that the Plaintiff did not have the 2000 bales as contracted either of his own, or those that he could have obtained from the cotton buyers. For those reasons, I will hold like the gentleman assessor, that the Plaintiff failed to deliver the 2000 bales of cotton lint as contracted. Therefore the third issue is answered in the affirmative.

I now come to the fourth issue, which is: if the answer to the 3rd issue is in the affirmative, whether it was a term of contract that upon failure by the Plaintiff to deliver the 2000 bales, the defendant would be at liberty to look for an alternative supplier? As matters are, this issue is closely linked with the second and third issues above discussed.

Mr. Kwikima, learned Counsel for the Plaintiff submitted that since the terms of sale did not bind either party to trade with the other exclusively, as the contract was voidable, the parties were at liberty to trade with other buyers/suppliers regardless of whether or not the delivery was made. He submitted further that, it was not an implied term that the Plaintiff had to deliver lint cotton ginned by himself and so the defendant would not suffer any disadvantage by taking delivery of cotton not ginned by the Plaintiff.

On the other hand Dr. Tenga, learned Counsel for the defendant submitted that so long as the Plaintiff failed to honour his contract and so long as the contract period had expired after 31 August 2005, the defendant was discharged from the contract, and so neither party was bound by the term of the contract.

The view of the gentleman assessor is that since the Plaintiff failed to deliver as per contract, it was implied that the defendant was at liberty to look for an alternative supplier since he had an obligation to his principals in Indonesia.

There is, I think, some consensus among Counsel on this issue. I quite agree with Mr. Kwikima, that no party was bound to trade with the other to the exclusion of other traders. I also agree with Dr. Tenga that once a contract expires by effluxion of time, the parties are discharged from the contract; especially in this case where the suit was filed after the effluxion of the contract period. It appears that the issue arose from the defendant's reply in his Written Statement of Defence to paragraph 7 of the Plaint. In the said paragraph the Plaintiff alleged that at the end of the contract the Plaintiff had to sell 500 bales at a reduced price. Whereas the defendant, alleged that it was the Plaintiff's failure to supply 2000 bales in one batch that forced him to look for an alternative supplier in order to meet the deadline. That is why I said above, that this issue is closely linked to the second and third issues.

I have already held above that it was an implied term that the 2000 bales of lint cotton were to be supplied in one lot, and that the Plaintiff failed to deliver the same as contracted. I further held that by selling the 500 bales out of the 2000 bales contracted before the expiry of the contract period, the Plaintiff prematurely rescinded the contract. In my judgment full delivery of the 2000 bales within July/August period was the essence of the contract, and that term was breached by the Plaintiff.

Under the Sale of Goods Act (Chapter 214) the buyer has several remedies for breach of contract. He may sue for non delivery (section 52)

or for specific performance (section 53) and recover special damages and interest if he had paid the price in advance. Whether the buyer could look for an alternative supplier is implied, but not openly envisaged by the Sale of Goods Act. But at common law, whose application is saved under s. 66(2) of the Sale of Goods Act, in such cases, the buyer may rescind the contract. According to **Halsbury's Laws of England** (3 ed), Volume 34 at page 102 this is possible:

> Where the seller's breach constitutes a total failure of consideration, as ... where, a full delivery thereof is otherwise the essence of the contract.

In view of this position of the law and my findings above, I entirely agree with the gentleman assessor and proceed to hold that in the circumstances the buyer in this case (the defendant) was entitled to rescind the contract. As such the defendant was at liberty to look for an alternative supplier. So the answer to the fourth issue is also in the affirmative.

The last issue is to what reliefs' are the parties entitled? The Plaintiff in this case has filed a claim for USD 171 298-97, as loss of anticipated earnings, special damages, ginning and storage costs, general damages and interest at bank rate from July 2004 to the date of judgment. The claims are based on breach of contract. This was an action for non acceptance. Such an action can only be maintained if the buyer wrongfully neglects or refuses to accept and pay for the goods. But, as in the present case if there are certain conditions precedent to be performed by the seller and the seller fails to perform them no action can lie against the buyer. See *Graves v. Legg* (10). As Lord Arbinger said in *Fiudon v. Parver* (11) at page 680, no man shall take advantage of his own wrong.

I have, I hope, amply demonstrated above that the Plaintiff herein, has failed to prove and satisfy the Court, on a balance of probabilities, that he did have the 2000 bales of cotton lint ready for delivery between July and August 2004. The condition precedent for delivery of these bales was the production of quality and quantity certificates from the Tanzania Cotton Lint and Seed Board. The Plaintiff must

be taken to have been aware of this condition precedent because, not only is it implied by law, but also expressly provided in Exh. P2 which forms part of the Plaintiffs evidence. He failed to produce the said documents and therefore to deliver not only to the defendant the 2000 bales but failed to produce those documents in this Court. In the event, I find that, the Plaintiff has failed to prove his case on a balance of probabilities. I would with respect, once more concur with the opinion of the gentleman assessor.

Consequently, the suit is devoid of substance and I will therefore dismiss it with costs. I would however, wish to express my appreciation to the gentlemen assessors and particularly Mr. Mwamukonda and the learned Counsel for their immense contribution and assistance to the Court.

Order accordingly.

YUSUFU MANJI *v.* EDWARD MASANJA AND ABDALLAH JUMA

COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM

(Lubuva, Msoffe, and Kaji, JJA)

CIVIL APPEAL No. 78 OF 2002

(From the decision of the High Court of Tanzania at Dar es Salaam, Kyando, J., dated 8 February 2002, in Miscellaneous Civil Application number 227 of 2002)

Company Law – Corporate personality – Veil of incorporation – Lifting of the veil of incorporation – Circumstances under which veil of incorporation may be lifted.

The respondents had won a labour case against Metro Investments Company in the Court of the Resident Magistrate. At the stage of execution of the decree the appellant, who was the Managing Director of the company, was involved. His involvement was based on the fact that he was the Managing Director of the company and he was alleged to have concealed the assets of the company. Dissatisfied with the decision of the Court the appellant unsuccessfully applied to the High Court for revision, challenging his involvement in the case. Aggrieved by the decision of the High Court the appellant appealed to the Court of Appeal of Tanzania.

Held: (i) While a company is at law a different person altogether from the subscribers, in certain special and exceptional circumstances, the Court may go beyond the purview of this principle by what was described in *Salomon v. Salomon* as lifting the veil;

(ii) Having regard to the relationship of the company, at the time, with the appellant as the managing director, the alleged concealment of the assets of the company by the appellant, which was not denied by way of counter-affidavit, this was a proper case in which to apply the principle of lifting the veil of incorporation.

Appeal dismissed

Case referred to:

(1) *Salomon v. Salomon* [1897] AC 22

Mr. Kamara for the appellant

JUDGEMENT

(Dated 15 November 2005)

Lubuva, JA: This appeal arises from the decision of the High Court (Kyando, J.) in Miscellaneous Civil Appeal number 227 of 2001. In the Court of resident magistrate at Kisutu, Employment Cause number 126 of 1999 was filed by the Labour Officer on behalf of the respondents, Edward Masanja and Abdallah Juma. In the proceedings the respondents were claiming overtime payment, transport and rent allowance from Metro Investment Limited, the Company which had employed them as watchmen. In an *ex-parte* judgment, the trial Resident Magistrate awarded the respondents their claim against the Company.

In the process of executing the decree, proceedings were instituted against the appellant, Yusufu Manji, the Managing Director of Metro Investment Limited. The trial Resident Magistrate ordered the appellant to satisfy the *ex-parte* decree issued against the Company within 30 days failure of which, he would be committed as a civil prisoner. From this order, Miscellaneous Civil Application number 227 of 2001 was filed moving the High Court to examine and satisfy itself on the propriety and legality of the Trial Court's order against the appellant, Yusufu Manji, and not Metro Investment Limited, the Company.

In support of the application for revision, it was urged that it was improper to execute against the applicant, Yusufu Manji the decree which was passed against the company, Metro Investment Limited. It was strongly urged that a Company being a separate legal entity from its shareholders as directors, the shareholders as directors should not be held liable for the debts of the company. It was further submitted that this was an appropriate case in which the veil of incorporation could be lifted in order to hold the director, personally liable.

Dealing with the application, the learned judge took the view that it was in the interest of justice to lift the veil of incorporation of the company. According to the judge, this was so because at the time the Decree against the company was passed and executed, the appellant was the Managing Director of the company, and that there was evidence that effort was being made to conceal the identity of the person running the affairs of the company. Consequently, the appellant was held liable for satisfying the decree passed against the company.

Dissatisfied, the appellant has preferred this appeal. He was represented by Mr. Kamara, learned advocate. In a two-ground Memorandum of Appeal, the substance of the complaint raised was that the learned judge erred in finding that the appellant was liable to satisfy the Decree because he was not a party to the original suit, Employment Cause number 126 of 1999. In elaboration, he contended that as the appellant was not a party in Employment Cause number 126 of 1999,

there was no basis upon which to involve him in the matter at the stage of execution. He maintained that the principle of lifting the veil of incorporation was not applicable in the circumstances of the case. First, he said as the Company, Metro Investment Limited, has since gone into liquidation, the principle of lifting the veil of incorporation would therefore not apply. Secondly, in this case even if it is accepted that the principle was applicable, it would only come into play in so far as the shareholders were concerned. Here, it was not shown that the appellant was a shareholder. At any rate, Mr. Kamara further submitted, whatever might be the case, evidence was required to show the relationship between the appellant and the company. It was not a matter of mere allegation. If it was established that the appellant was a shareholder then in that situation he could be held liable. In support of this submission, the Court was referred to a book titled **The Principles of Modern Company Law** by the learned author L.C.B. Gower at page 191.

On their part, the appellants who were unrepresented did not have anything to say on these submissions. However, the first respondent, Edward Masanja, observed that at the time when execution process was being carried out, the appellant was the Managing Director of the Company.

In this case, the central issue is the propriety of involving the appellant at the stage of executing the decree which emanated from a suit in which he was not a party. In the application lodged to set aside the *ex-parte* judgment of the Resident Magistrate's Court in Employment Cause number 126 of 1999, the learned judge addressed this issue by applying the principle of "lifting the veil of incorporation". This principle, it is to be observed, was enunciated in the case of *Salomon v. Salomon and Co. Ltd.* (1).

Briefly stated, the facts were that Salomon had initially carried on prosperously the business of a leather merchant. Later on he converted the business into a limited company which ran into difficulties. The company went into liquidation and its assets were sufficient to discharge the debenture, but nothing was left for the unsecured creditors. The Court of Appeal held Salomon liable but the House of Lords reversed

the decision holding that the company being a legal person its members including Salomon were not liable for its debts. As per Lord McNaughten the House of Lords at page 49, *inter alia* held:

> The company is at law a different person altogether from the subscribers ... and, though it may be that after incorporation the business is precisely the same as it was before, and the same persons are managers, and the same hands receive the profits, the company is not in law the agent of the subscribers, as members liable, in any shape "or form, except to the extent and in the manner provided by the Act.

In our view, and as correctly held by the learned judge, in certain special and exceptional circumstances, the Court may go beyond the purview of this principle by what was described in *Salomon* (1) lifting the veil. Were there such circumstances in this case, we pose to ask. With respect, we do not agree with Mr. Kamara, learned counsel for the appellant, that there were no such circumstances. First, the alleged liquidation of the company, Metro Investment Limited is not borne out from the evidence on record. That is, at the time the matter was before Makwandi, resident magistrate, in Employment Cause number 126 of 1999, there was evidence to the contrary that the company was still legally in existence and that the appellant was the Managing Director.

Secondly, while the appellant was still the Managing Director, it was expressly alleged in the affidavit sworn by the first respondent, Edward Masanja, in support of the Employment Cause number 126 of 1999 that the appellant Yusufu Manji was to be held liable because there was effort to conceal the assets and identity of the company. This allegation was not specifically denied by the appellant by way of a counter-affidavit.

In the circumstances, it is our view that the respondents would be left with an empty decree as it were, against the company, Metro Investment Limited. Furthermore, it is apparent that the company's Managing Director was at the time the appellant, who, as said before was alleged to be involved in concealing the assets of the company.

For this reason, we think it would not serve the interest of justice in this case to shield the appellant behind the veil of incorporation.

Therefore, having regard to the fact that the appellant was the Managing Director of the company, we do not accept Mr. Kamara's contention that evidence was required to prove the appelant's relationship with the company or that he had shares in the company. The principle enunciated in *Salomon* (1) would apply to the contrary once special and exceptional circumstance is shown. Here, as just shown such circumstance is premised upon the fact that the appellant was the Managing Director of the company. The appellant was also alleged to be involved in concealing the identity and assets of the company. In that capacity, and as held by the learned judge, we agree that the appellant was in a better position to know the trend of affairs regarding the alleged concealment of the company's assets.

In summary therefore, having regard to the relationship of the company at the time with the appellant as the Managing Director, the alleged concealing of the assets of the company by the appellant which was not denied by way of counter-affidavit, we are satisfied that this was a proper case in which to apply the principle of lifting the veil of incorporation. The learned judge cannot, in our view, be faulted in his decision to apply the principle.

In the event, we find no merit in the appeal which is accordingly dismissed with costs.

HOTEL TRAVERTINE LIMITED AND TWO OTHERS *v.* NATIONAL BANK OF COMMERCE LIMITED

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Lubuva, Nsekela, and Msoffe, JJ.A.)

CIVIL APPEAL No. 82 OF 2002

(Appeal from the decision of the High Court of Tanzania (Commercial Division) at Dar es Salaam, Dr. Bwana, J., dated 16 April 2002, in Commercial Case number. 135 of 2001)

Contract – Offer and Acceptance – Offer prescribing mode of acceptance – Whether the offer can be accepted otherwise than by that mode – Law of Contract Act, Chapter. 345 R.E. 2002

Civil Practice and Procedure – Appeals – Matter not pleaded or taken in the Trial Court – Whether the matter can be raised on appeal

The respondent successfully sued the appellants in the High Court for recovery of moneys purportedly advanced to the first appellant on an overdraft facility. By a letter, Exhibit P3, the respondent signified its willingness to extend the facility to the first appellant on terms and conditions enumerated therein. The letter prescribed the mode by which the terms and conditions were to be accepted, namely, signing on the duplicate of that letter and returning it to the respondent. That was not done. Instead the first appellant wrote a letter, Exhibit P6, to the respondent. Whether or not Exhibit P6 constituted an acceptance of the offer was the basic question. The trial judge considered it to be an acceptance. That decision was challenged on appeal, where the respondent also contended that the first appellant had by subsequent conduct accepted the offer, a matter which was not pleaded in the High Court.

Held: (i) The appellant's letter did not constitute an acceptance of the offer because it was not the mode of acceptance the respondent had prescribed in the offer;

(ii) Acceptance by conduct is a matter that could not be raised on appeal as it was not pleaded or argued in the High Court.

Appeal allowed

Cases referred to:

(1) *Brogden v. Metropolitan Railway Co* (1989) 2 App Cas. 666 (HL)

(2) *Gibson v. Manchester City Council,* [1979] 1 WLR 294 (HL)

(3) *Gandy v. Gaspar Air Charter Ltd* (1956) 23 E.A.C.A. 139

(4) *James Funke Gwagilo v. Attorney General, CAT,* Civil Appeal number 67 of 2001 (unreported.....?.....)

Statutory provisions referred to:

(1) Civil Procedure Code 1966, Order XIV

(2) Law of Contract Act Chapter 345 R.E. 2002

Mr. Nyangarika for the appellants

Mr. Mjuluzi for the respondent

JUDGEMENT

(Dated 25 November 2005)

Nsekela, JA: The facts leading to this appeal may be briefly stated as follows. The first appellant, Hotel Travertine Limited, is a limited liability company; the second and third appellants are Directors of the first appellant. The respondent bank, National Bank of Commerce Limited, purportedly granted to the fist appellant an overdraft facility amounting to TZS. 400 000 000. The agreement was secured by a joint and several guarantee of the Directors. The first appellant allegedly defaulted in the payment of the overdraft facility and this triggered the respondent bank to institute a suit against the first appellant for the recovery of monies advanced. The High Court (Dr. S.J. Bwana, J.) entered judgment against the first appellant as principal debtor and against the Directors as guarantors of the overdraft facility. In addition the Court below ordered that in default of the repayment

of the decretal sum, Hotel Travertine should be attached. Aggrieved by this decision, the appellants have lodged this appeal.

At the hearing of the appeal, Mr. Y.K. Bwahama and Mr. K, Nyangarika, learned advocates, appeared on behalf of the appellants, while Mr. Mujuluzi, learned advocate, represented the respondent bank. The appellants, in their joint Memorandum of Appeal, challenged the decision of the Court below on thirteen grounds. Basically, the appellants dispute the existence of an agreement between the first appellant and the respondent bank; the actual amount of the overdraft facility that the respondent bank disbursed to the first appellant; the obligations of the Directors in perfecting the mortgage of the occupancy on CT title number 24842 Plot number 138 Block D at Magomeni Mapipa, Dar es Salaam; the legality of the order to attach Hotel Travertine and, lastly, the appellants dispute the dismissal of their counter-claim.

Mr. Nyangarika, learned advocate for the appellants, submitted that the learned Judge had started on a wrong premise in stating that the fundamental issue in the suit was whether or not the first appellant had made use of the overdraft facility and had complied with the terms and conditions of Exhibit P3. He added that the overdraft facility was not made available on the basis of the said terms and conditions. The learned advocate challenged the conclusion of the learned trial Judge that exhibits P3 and P6 read together, contained the terms and conditions that are binding on the appellants and that the appellants were in breach of the same. Mr. Nyangarika also disputed the quantum of the decretal sum of TZS. 592 250 163. He contended that the respondent bank did not adduce any evidence how this figure was arrived at. For instance, the respondent bank did not produce in Court the first appellants' cheques of withdrawal or a bank statement to that effect. He also questioned the Court order to attach Hotel Travertine. As regards the counter-claim Mr. Nyangarika complained that the respondent bank had prematurely determined the overdraft facility as a result of which the first appellant suffered damages as enumerated in the counter-claim.

Mr. Mujuluzi, learned advocate for the respondent bank, forcefully resisted the appeal. He submitted that the learned trial Judge was entitled, under Order XIV of the Civil Procedure Code, 1996, to frame and record the issues and that the issue, the subject matter of the complaint, did not prejudice the appellants' case before the Court below. In addition, the learned advocate submitted that the Court below considered issues numbers 4, 5, 6, and 7 which the learned trial Judge as key issues. The question of the existence of a loan agreement was specifically dealt with and the learned trial Judge concluded that there was indeed an agreement between the first appellant and the respondent bank. Moreover, he submitted that the subsequent conduct of the first appellant showed that the overdraft facility was actually utilized. Mr. Mujuluzi referred to the counter-claim wherein the first appellant allegedly admitted that there was an overdraft facility of TZS. 400 000 000 to be disbursed over a period of one year.

Although the learned advocates for the appellants had preferred thirteen grounds of appeal against the judgment of the Court below, we propose to deal only with the fourth ground of appeal because, in our considered view, the resolution of that ground is sufficient to dispose of the appeal. The fourth ground of appeal was framed in the following manner:

> 4. The learned trial Judge erred in law in holding that Exh. P6 constituted acceptance by the first appellant of the terms and conditions contained in the respondent's letter, Exh. P3.

Exh. P3 is a letter from the respondent bank dated 2 December 1998 to the first appellant. This letter signified willingness on the part of the respondent bank to extend to the first appellant overdraft facilities on the terms and conditions enumerated therein. The concluding sentence was in the following terms:

> Kindly acknowledge acceptance of the terms and conditions on the duplicate hereof.

Section 2(1) of the Law of Contract Act, Chapter 345 R.E. 2002, provides as follows:

> 2(1) In this Act, unless the context otherwise requires:
>
> (a) When one person signifies to another his willingness to do or to abstain from doing anything, with a view to obtaining the assent of that other to such act or abstinence, he is said to make a proposal;
>
> (b) When the person to whom the proposal is made signifies his assent thereto, the proposal is said to be accepted, and a proposal when accepted, becomes a promise.

The real question for decision in this appeal is whether or not the first appellant's letter, Exhibit P6, dated 7 December 1998 constituted acceptance. This takes us to section 7 of the Law of Contract Act which provides:

> 7. In order to convert a proposal into a promise, the acceptance must:
>
> be absolute and unqualified;
>
> be expressed in some usual and reasonable manner, unless the proposal prescribes the manner in which it is to be accepted. If the proposal provides a manner in which it is to be accepted, and the acceptance is not made in such manner, the proposer may, within a reasonable time after the acceptance is communicated to him, insist that his proposal shall be accepted in the prescribed manner, and not otherwise; but if he fails to do so he accepts the acceptance.

Exhibit P6 is a letter from the first appellant to the respondent bank dated 7 December 1998. This letter is central to the resolution of this appeal. It reads in part as follows:

> Please refer to your letter Ref. number NBC (1997)/FB/adv/C50/1 of 2 December, 1998, which I received on 5 December 1998, regarding granting of TZS. 400 000 000 *with the terms and conditions attached.* The main work now being undertaken is to complete valuation of Hotel Travertine building which will be ready during this week. *A reply to your above quoted letter will also be ready during the same variation period.*

> In the meantime, when valuation is being done *at the same time a reply to your letter is being prepared*, we request the service of the loan to continue being provided so as to enable us to make orders for the purchase of essential articles such as three lifts and others [emphasis added].

This letter was a reply to Exhibit P3, a letter from the respondent bank to the first appellant which was rightly referred to by the learned trial Judge as "an offer". The learned trial Judge was of the view that exhibits P3 and P6 read to together constituted an offer from the respondent bank and an acceptance by the first appellant respectively, thereby constituting a concluded agreement whose terms and conditions were embodied in exhibit P3.

As rightly pointed out by the learned trial Judge, Exhibit P3 was the offer from the respondent bank. As stated before, the letter contained thirteen terms and conditions and concluded-

> *Kindly acknowledge acceptance of the terms and conditions on the duplicate hereof* [emphasis added].

The thrust of Mr. Nyangarika's submission on this point is that the first appellant did not accept these terms and conditions. The first appellant did not sign the duplicate of Exhibit P3 thus signifying the acceptance of its terms and conditions. On his part Mr. Mujuluzi countered by submitting that the learned trial Judge considered the existence of the loan agreement and his answer was in the affirmative. The learned advocate referred to section 7(b) and 8 of the Law of Contract Act, and submitted that the subsequent conduct of the first appellant showed that the first appellant utilized the overdraft facility in terms of the contract.

The learned trial Judge after considering Exhibits P3 and P6 came to the following settled conclusion:

> I consider the contents of Exh. P3 as being the offer and those of Exh. P6 as the acceptance. Therefore in brief, there was a loan agreement between the parties and governed by the terms and conditions acknowledged by J.D. Lamba in Exhibit P6.

In Exhibit P3, the respondent bank had prescribed an express method by which the terms and conditions of Exhibit P3 were to be accepted, namely on the duplicate of that letter. This was not done. Instead, the first appellant wrote a letter Exhibit P6 quoted earlier on.

DW1 John Lamba, the second appellant, in his examination in chief also stated so;

> Concerning clause 2, to deposit some money. I can't tell where I would get the money to deposit even before the hotel opened. *I didn't sign the letter* because there was confusion regarding clause 2 as shown earlier [emphasis added].

In the case of *Brogden v. Metropolitan Railway Co.* (1) Lord Blackburn observed as under:

> I have always believed the law to be this, that when an offer is made to another party, and in that offer there is a request express or implied that he must signify his acceptance by doing some particular thing, then as soon as he does the thing, he is bound.

The respondent bank had prescribed the mode of acceptance and the first appellant did not comply with the full knowledge of the respondent bank. How did the learned trial Judge handle this issue?

He stated as follows:

> The next key issue is whether there was a loan agreement *inter partes*. My considered view is in the affirmative. The defence case seems to suggest that there was none, as the defendants never countersigned any document accepting the same. This line of reasoning seems to be shortsighted. Exh. P3, which advises the defendants of the facility, authorizing a revolving overdraft of TZS. 400 million, was made in the form of a letter. *Therefore it was up to the defendant to counter sign it and send back a copy to the plaintiff or to adopt a different approach. It seems the defendants opted for the latter* [emphasis added].

With respect, we do not read anything in exhibit P3 which provides for an alternative route of accepting the offer – Exhibit P3. The only method was to countersign the duplicate letter and the learned

trial Judge clearly said so in his judgment. There is no provision for 'a different approach' in exhibit P3.

There is another aspect to Exhibit P6. In this letter, the first appellant stated, *inter alia*:

> A reply to your above quoted letter will also be ready during the same valuation period.

The learned trial Judge quoted this letter in his judgment but he inadvertently omitted this sentence. It is abundantly clear to us that this letter was not an acceptance of the letter dated 2 December 1998 (Exhibit P3). In the first place, this was not the prescribed mode of acceptance. Secondly, assuming it was, it was not a mirror image of Exhibit P3. The import of Exhibit P6 was to inform the respondent bank that a letter of reply was not ready as yet. In addition there was a request that the respondent bank do provide funds to enable the first appellant to purchase "essential articles such as lifts and others." In the case of *Gibson v. Manchester City Council* (2) Lord Diplock, at page 297, made the following pertinent observations:

> My Lords, there may be certain types of contract, though I think they are exceptional, which do not fit easily into the normal analysis of a contract as being constituted by offer and acceptance; but a contract alleged to have been made by an exchange of correspondence between the parties in which the successive communications other than the first are in reply to one another, is not one of these. I can see no reason in the instant case for departing from the conventional approach of looking at the handful of documents relied upon as constituting the contract sued upon the seeing whether upon their construction there is to be found in them a contractual offer by the corporation to sell the house to Mr. Gibson and an acceptance of that offer by Mr. Gibson.

With the greatest respect to the learned trial Judge, if we adopt the convectional approach as outlined above, as we do, the first appellant in his letter, exhibit P6 , did not in law, accept the offer, Exhibit P3. The parties it would appear were still locked up in negotiations. There is no evidence on the record that the first appellant had Exhibit P3

at any time. A reply to Exhibit P3 was not ready and in any case the notification of acceptance was supposed to be on the duplicate letter of Exhibit P3 and not a different letter from the first appellant.

Mr. Mujuluzi, learned advocate for the respondent, like the good "soldier" he is, had also submitted that there was acceptance of the offer by conduct. The anchor of this submission was the alleged disbursement of TZS. 373 378 200 to the first appellant. On the face of it, this is an attractive argument. However, acceptance by conduct was not pleaded. It should have been pleaded in the alternative of the respondent bank relying solely on Exhibits P3 and P6. Not surprisingly, the Court below did not frame an issue along these lines and the learned trial Judge did not address his mind to this issue as well. His decision on the liability of the appellants was squarely based on the purported breach of agreement contained in Exhibits P3 and P6. The issue of acceptance by conduct, if at all available, should have been pleaded and argued before the learned trial Judge. As a matter of general principle, an appellate Court cannot allow matters not taken or pleaded in the Court below, to be raised on appeal: See: *Gandy v. Gaspar Air Charters Ltd.* (3) and *James Funke Gwagilo v. Attorney General* (4).

On full consideration of the available evidence and the law on the issue we are of the settled view that the learned trial Judge was wrong to conclude that there was an agreement based on Exhibits P3 and P6. It will be recalled that the first appellant had filed a counter-claim, claiming damages for the purported premature termination of the overdraft facility by the respondent bank. This was ground number 12 in the Memorandum of Appeal. In view of the conclusion we have reached, the counter-claim has equally no leg upon which to stand.

In the result, we allow the appeal with costs and set aside the Judgment and order of the High Court. The appeal on the counter-claim is also dismissed.

TANZANIA CIGARETTE COMPANY LIMITED *v.* MASTERMIND TOBACCO (T) LIMITED

HIGH COURT OF TANZANIA
(Commercial Division)
AT DAR ES SALAAM

(Massati, J)

COMMERCIAL CASE No. 11 OF 2005

Trade and service marks – Infringement of trademark – Meaning of infringement – How infringement may be established – section 32(1) of the Trade and Service Marks Act, number 12 of 1986 Chapter 326 RE 2002.

Intellectual Property Law -Trade and service marks – Registration of a trade mark – Effect of registration - When such registration becomes valid – Whether a proprietor of a trademark can commit infringement.

Intellectual Property Law -Trade and service marks – Registration of a trademark – Registration of a trademark which is identical with a trademark belonging to a different proprietor and already on the register in respect of the same goods – Prohibited – section 20 of the Trade and Service Marks Act, number 12 of 1986.

Intellectual Property Law -Trade and service marks – Registration – Date of registration of a trademark – section 28(1)(b) of the Trade and Service Marks Act, number 12 of 1986.

Intellectual Property Law – Trade and service marks – Registration – Prior right of use of a trademark – Whether a person has a prior right of use of a trademark which he has only applied for registration – Whether such prior right of use of a trademark is entitled to protection.

Intellectual Property Law – Trade and service marks – Registration – Registration has been opposed – Effect of such opposition on the validity of the registration.

Intellectual Property Law -Trade and service marks – Ownership of a trademark – Two similar and deceptively confusing registered trademarks – Who owns the trademark – Who has exclusive right to the use of the trademark – Legal basis of establishing ownership and right to the use of a trademark – sections 14(1), 20 and 32 of the Trade and Service Marks Act, number 12 of 1986.

Intellectual Property Law - Trade and service marks – Registration – Imitation of a trademark – An earlier application raises a rebuttable presumption that a subsequent application may be a result of imitation.

Torts – Tort of infringement of trademark – whether the defendant infringed the trademark of the plaintiff – Meaning of infringement.

Torts – Passing off – Elements of the tort of passing off – When an action for passing off may be maintained.

The defendant, Mastermind Tobacco (T) Limited (Mastermind), a manufacturer of cigarettes applied for registration of "Master" trademark. The application was filed on 24 June 2004 and after following the requisite procedures the trademark was registered on 20 May 2005 and the registration became effective from the date of filing the application. With knowledge of the pending application for registration of the defendant's "Master" trademark filed three months before, the plaintiff, Tanzania Cigarette Company Limited (TCC) manufacturer and distributor of cigarettes, filed an application for registration of its "Safari" trademark on 6 September 2004 and was eventually registered on 20 January 2005. After procuring registration, on 4 May 2005 the plaintiff filed an opposition to the application of the "Master" trademark pointing out that it was the registered proprietor of the "Safari" trademark registered on 6 September 2004. That opposition was not determined in favour of the defendant. In this case, the parties, manufacturers of cigarettes, claimed against each other for infringement of trademarks, passing off and unfair competition. The dispute between the parties was based on the similarity in the pictorial representation in the packets of the two products, namely, "Safari" cigarettes and "Master" cigarettes. The labels on the packets of the "Master" and "Safari" cigarettes resembled and were deceptively and confusingly similar. The defendants denied any infringement of the plaintiff's trademark and counterclaimed that the plaintiffs were passing off the defendant's "Master" cigarettes by manufacturing "Safari" cigarettes. The defendant charged

that the plaintiff's registration of the "Safari" trademark was obtained fraudulently and that the plaintiff practiced unfair competition. The Court considered a number of issues including the duty of the Registrar of Trade and Service Marks, which of the two trademarks was valid, whether the plaintiff got the registration of its trademark fraudulently, whether the defendant had infringed the plaintiff's trademark, whether a trader's right of use to a trademark is protected before registration and whether there was unfair competition.

Held: (i) While section 20(1) of the Trade and Service Marks Act 1986 protects a trade or service mark of a proprietor which is already in the Register, section 30 protects the right of an unregistered user of a trademark. In view of the spirit of the provisions of section 30, public policy and the fact that registration is valid from the date of application for such registration, the term "already in the register" in section 20(1) of the Act may be defined to include a trademark whose registration is pending with the Registrar;

(ii) Although the "Safari" trademark had been registered, its registration was obtained by fraud and in terms of section 50(2) of the Act its registration was invalid and did not confer in law exclusive right of use of that trademark to the plaintiff and the plaintiff could not maintain an action on infringement.

(iii) Since at the time of registration of the defendant's "Master" trademark a Notice of Opposition against its registration was pending, and since the opposition was not decided in favour of the defendant and since by proceeding to register the "Master" trademark while an opposition was pending the Registrar violated the provisions of section 28(1)(b) of the Act, the defendant was not the lawful proprietor of the "Master" trademark under dispute.

(iv) Although the plaintiff procured the registration of "Safari" trademark earlier/ before that of the defendant, the defendant nevertheless had prior rights over the "Master" trademark by virtue of making the application first.

(v) Although a trader may maintain an action for passing off at common law whether or not the respective trademark has been registered, no exclusive right of use is conferred if the subsequent registration is bad in law.

(vi) Although the defendant had filed its application for registration earlier, since the subsequent registration violated the provisions of section 28(1) of the Act

and therefore bad in law, no exclusive right of use of the "Master" trademark was conferred on the defendant.

Both the suit and counterclaim dismissed

Cases referred to:

(1) *Pharmaceutical Manufacturing Co. v. Novelty Manufacturing Co. Ltd* [2001] 2 EA 521

(2) *Aktiebolaset Jonkoping Vulcan Indstricks Fabriksak Tiebolag v. East African Match Co. Ltd.* [1964] EA 62

(3) *Michael Aboud and Sons v. Pee Cee and Sons Pautap Stores Ltd.* [1970] 3 AIR (Commercial)

(4) *American Cyanamid v. Ethicos* [1975] PRC 513

(5) *Registrar of Trade Marks and Another v. Kumar Raujan Sen Air* [1966] Calcutta 311

(6) *Ratilal Gordhawbhai v. Lalji Lakani* [1957] EA 314

(7) *N.R. Dongre v. Whirlpool Corporation* [1996] 5 SCC 714

(8) *R. v. Taibali Mohamed Bahi* (1943) 10 E.A.C.A. 60

(9) *Morandi. Rutakyamirwa v. Petro L. Joseph* [1990] T.L.R. 49

(10) *Inter Lotto U.K. Ltd. v. Camelot Group PLC* [2003] 3 All ER 191

(11) *Lever and Others v. Goodwin and Others* (1886 – 1890) All ER 427

(12) *Supa Brite Ltd. v. Pakad Enterprises Ltd* [2001] EA 263

(13) *Reckitt and Colman* [1990] 1 WLR 59

(14) *Erven Warnink B.V. v. V.J. Townsend and Sons* [1980] RPC 31

(15) *Agro Industries Ltd. v. Attorney General* [1994] T.L.R. 43

Statutory provisions referred to:

(1) Trade and Service Marks Act, number 12 of 1986, sections 2, 14(1) and (2), 20(1), 28(1)(b), 30, 31, 32(1), 37, 50(1) and (2),

(2) Evidence Act, 1967, section 59

(3) Fair Trade Practices Act, number 4 of 1994, section 20(1)(a) and (3)(a) to (e) [Repealed and replaced by the Fair Competition Act, (Chapter 285) Ed.]

(4) Fair Competition Act (Chapter 285) section 20

Mr. Mnyele from Marando, Mnyele and Company Advocates, for the Plaintiff

Ms. Kasonda from Mkono and Company Advocates, for the defendant

JUDGMENT

(Dated 28 November 2005)

Massati, J: At the behest of the Plaintiffs, M/S Tanzania Cigarette Company Ltd, M/S Marando, Mnyele and Company Advocates, filed a suit in this Court against the defendants Ms Mastermind Tobacco (T) Limited for the following relief:

(a) A perpetual injunction restraining the defendants whether acting by their directors, officers, servants or agents of or otherwise howsoever from infringing registered trademark number 30524 Safari Graphics.

(b) The defendants be ordered to deliver all the manufactured and or imported cigarettes infringing the trademark for destruction.

(c) General damages and any other relief that the Honourable Court may deem it fit to grant.

(d) Costs of this suit

The plaint was filed on 18 February 2005.

The defendant instructed M/S Mkono and Company Advocates who prepared and filed a Written Statement of Defence in which they pray for the dismissal of the suit. The defendant also proceeded to file a Counterclaim for the following reliefs:

(a) An injunction restraining the Plaintiff/(defendant), whether by itself or its officers, servants, or agents or any of them or otherwise, from manufacturing, importing, selling or offering or exposing or advertising for sale or procuring to be sold or passing cigarettes and tobacco products not of the Plaintiff/(defendants)'s manufacture or merchandise in packaging, labeling or other appearance which by reason of colorable or other resemblance to the Plaintiff (defendants) packaging or otherwise, leads to belief that such goods are of the Plaintiff (defendant).

(b) An order declaring that only the Plaintiff/(defendant) is the proprietor of, and is entitled to use or authorize other persons to use the trade or business name MASTER in any form in Tanzania and that the acts of the defendant (plaintiff) of attempting to appropriate and register the Plaintiff (defendant) Corporate name and trademark MASTER in its name is unconscionable, undesirable and contrary to law and morality.

(c) The defendant (Plaintiff) be condemned to pay general damages and costs of this counterclaim, and as the Honourable Court may determine.

(d) Any other or alternative relief that this Honourable Court may deem just to grant.

In a simple language, the parties' claims against each other are for infringement of trade marks and passing off and unfair competition. For the purposes of this judgment, I will retain the description of Plaintiff and defendant when dealing with the suit, and the parties in the counterclaim shall be baptized as "MASTERMIND" and "TCC" for the counterclaimant and the counter defendant respectively.

At the beginning of the trial the following issues were framed for the suit, and the counterclaim respectively.

FOR THE SUIT

1. Whether the defendant has infringed the Plaintiff's trademark?

2. Whether the Plaintiff registered trademark SAFARI graphic fraudulently?

3. Whether the defendant has prior rights over MASTER trademark by virtue of making the application first?

4. Whether the defendant has extensively marketed the MASTER brand cigarette so as to make it well known?

5. Whether the trademark SAFARI was changed by the Plaintiff so as to resemble the trademark MASTER?

6. To what reliefs are the parties entitled?

ON THE COUNTERCLAIM

1. Whether TCC has passed off MASTERMIND'S "MASTER" cigarettes by manufacturing SAFARI cigarettes?

2. Whether MASTERMIND has exclusive rights in "MASTER" trademark?

3. Whether MASTERMIND has goodwill in the trademark "MASTER" to protect?

4. Whether TCC has engaged in unfair competition against MASTERMIND?

5. To what reliefs are the parties entitled?

The parties lined up several witnesses to prove their respective cases. The Plaintiff's case was conducted by Mr. Mnyele, learned Counsel, whereas Ms. Kasonda, learned Counsel assisted by Ms. Gogadi led the defence case.

The Plaintiff's case was built by 7 witnesses. The first witness, Lucy Mandara, the Plaintiff's Legal Affairs Manager testified as to how she was involved in the registration of the SAFARI trademark. She said that SAFARI KING SIZE FILTER trademark is registered in the name of the Plaintiff. She said she applied for its registration on 6 September 2004. To illustrate it she tendered Exh. P1 collectively. The Registrar of Trade Marks accepted the applications by his letter dated 17 September 2004. She tendered the letter of acceptance as Exh. P2. She went on to say that the Plaintiff paid application and

advertisement fee, and for that she tendered the ERV receipt number 21206458 of 20 September 2004 as Exh. P3.

The trademark was then advertised in the Tanzania Patents Trade and Services Marks Journal of 15 November 2004, which she admitted as Exh. P4. She went on to tell the Court that after advertisement and after 60 days had gone without Notice of Opposition, she went ahead and filed Form TM 8 which she tendered as Exhibit P5 and paid 60 000 as registration fee. Thereafter the Registrar issued a Certificate of Registration for SAFARI trademark. The said certificate was tendered as Exh. P6. The trademark certificate was number 30524 and was effective 6 September 2004.

The witness was then led as to her knowledge and experience in the trade marks registration laws and regulations. When shown a letter from Mkono & Co, Advocates, dated 13 January 2005 asking for extension of time within which to file a Notice of Opposition the witness opined that there was no such provision in law.

PW1 further said the MASTER trademark of the defendant because simultaneously with the application for their SAFARI she had also applied for registration of MASTER trademark on 6 September 2004. However its registration was refused by the Registrar by his letter of 26 October 2004. PW1 then admitted a number of registration certificates for other brands of SAFARI cigarettes as Exh. P7 collectively Exhibit P1 she went on, was associated to but not the same as Exh. P6. She said the defendant infringed the SAFARI trademark by manufacturing MASTER cigarettes with a trademark that was deceptively and confusingly similar to SAFARI trademark number 30524. And she identified the trademark in question (a label of SAFARI trademark) and tendered it as Exh. P8. PW1 produced a total of 6 packets (3 for Safari Menthol and 3 (Safari King Size filter) as Exh. P9 collectively.

PW1 was also shown and asked to compare the Master labels (which she tendered as Exh. P10 and 6 packets of Master cigarettes (3 of Master Filter, and 3 of Master Lighter which she admitted as Exh. P11. She said Exh. P9 and P11 are confusingly similar, in that

in both SAFARI and MASTER Light, there are circles in the middle, and the words SAFARI and MASTER are similarly composed and positioned. She said the coloring of blue labels was also similar, so was the dress. She said the similarities are confusing.

PW1 went on to testify that their Company became aware of the infringement in early February 2005; and proceeded to instruct counsel to institute the suit which was filed on 13 February 2005. She thus refuted the defendant's claim that the Plaintiff acquiesced to the infringement. She said the grant for refusal of registering MASTER trademark was because it was similar to QTM number 001686. On following up the refusal through the Trademark and Service Journals she came across an advertisement of the Master label by the defendant in the 15 March 2005 Journal (Exh. P12). The defendant's application was number 001686 and filed by Mkono & Co. Advocates. PW1 said on seeing this she immediately instructed their lawyer to oppose the application. She tendered the instructing as Exh. P13.

She went on to tell the Court that the objection was filed through Form TM 5 which she tendered as Exh. P14. it was received by the Registrar and duly paid for vide ERV number 23376162 which she tendered as Exh. P15. She said since the 60 days lapsed on 14 May 2005 and their objection was filed on 4 May 2005 it was filed within time. She said according to law, the Registrar could not proceed to register the trademark after receiving the Notice of Opposition and not until after the disposal of the opposition.

She said, however, in the present case even after registering the Notice of Opposition, the MASTER trademark was registered all the same although their lawyers Marando, Mnyele & Co. had written asking the Registrar to recall the Certificate of Registration. She tendered the letter of the Registrar as Exh. P16. So, she wound up her testimony by opining that to her, the Certificate of Registration of MASTER trademark was *issued ultra vires* the law. She prayed for judgment in favour of the Plaintiff and dismissal of the counterclaim with costs.

On cross-examination by Ms. Kasonda, learned Counsel, PW1 said her duty was not to design logos, but boasted of her knowledge in trademarks and services regulations. She admitted that under Regulation 84 of the Trade and Service Marks Regulations GN 240/2000, the Registrar has powers to extend time.

She said she filed an application for registration of the Master trademark as instructed, and that the application was refused because another application for a similar trademark was pending. She said to her knowledge QTM was just an application number and that the Registrar has the right to refuse or accept to register.

She said, SAFARI cigarettes are not in the market yet but that in paragraph 6 of the plaint, she was only referring to a few cigarettes produced as surplus on trial basis. At the moment these cigarettes were only within the company premises, but feared that come the market trial period, confusion between the two brands of cigarettes would reign. She said SAFARI cigarettes were produced in late January 2005. She said she was not aware whether the Notice of Opposition had been served on the other party. She said in her view, until such time that the Registrar gives a decision on the opposition, the registration remains valid in law.

Re-examined, PW1 said, according to the Trade and Service Marks Act, opposition has to be filed within 60 days. She was not aware whether the defendant has applied for extension of time or whether the Registrar has granted that extension as there are no proceedings yet on the matter. She said according to the Regulations the Registrar is charged with duty of serving the other party and that she has never been summoned for a hearing of the opposition.

PW2 Stella Urio told the Court that she was the Plaintiff's brand Manager, in the Marketing Department. She said she manages the SAFARI Sweet Menthol, Club, and Winston. She said she holds a B.Sc. (Economics) of the University of Wisconsin, USA, and also a M.A. in Organizational Behaviour Specialty in International Business and Marketing; and that she joined the Plaintiff Company in 1999.

She said she was responsible for all the brands that she manages from strategic plans, annual plans, budgets and market research.

She went on to tell the Court she was fully conversant with the SAFARI brand. They are manufactured by the Plaintiff Company. She has also heard about the MASTER cigarettes which are manufactured by the defendant Company.

She said she was involved in the invention and design of the SAFARI brand although the trademark itself was not new to the Plaintiff Company. She said their intention was to launch another brand in the segments and decided to start with SAFARI taking into account the value of the segment, the targeted smokers and distributors. She said consumers are mostly product is to be produced consistently in terms of quality availability and what it stands for.

She said in the present case the MASTER cigarettes were introduced in early February 2005 whereas the counterclaim was filed on 10 March2005. Any known brand needs at least 15 years to acquire brand value or brand equity. So she said in this case since the counterclaim was filed before the launching of the defendant's production, the MASTER cannot be said to have acquired any goodwill.

PW2 went on to tell the Court that the Plaintiff's market is countrywide with consumers from all social and economic levels. She said in her view to the illiterate and semiliterate consumers the level of confusion between the two brands (i.e SAFARI and MASTER) would be very high in view of the similarity in the graphics and colours of the two brands.

And consumers are not likely to identify who manufactured which brand. She said since they have not started full scale manufacturing of SAFARI brand so they cannot be said to have been selling them. And since the Plaintiff has both a strong credibility and services, and excellent net working, putting a similar product would in fact benefit the new comer taking advantage of the Plaintiff's 30 years goodwill. This is more so because PWI said their products were of a higher quality than those of MASTERMIND. She said the defendant's

products are poor, without straight lines, and so cannot stand straight. The cigarettes are poorly wrapped. On the other hand the Plaintiff's cigarettes were of high quality, good quality packets, constant in shape and no loose tobacco between the cellophane and the packets. She therefore wound up her testimony by disputing that the Plaintiff's SAFARI were spurious or inferior in quality.

Cross-examined by Ms Kasonda learned Counsel, PW2 told the Court that the SAFARI design was adopted from Kenya, but in Tanzania it belongs to the Plaintiff, having adopted it in the earlier part of 2004. She said the Master brand was from their marketing department. She said although she knew Mastermind Tobacco (T) Ltd after it had started operations she was not aware of the MASTER brand. She said she was aware of other competitors such as BAT, Hedges, Mastermind and Iringa Tobacco Company Ltd, and took it to be healthy. She said on the similarity of brands the consumers would be the best judges. If the similarity is confusing or not she said their products entered the market in January 2005 but the Master products jotted in February 2005. Re-examined by the learned Counsel for the Plaintiff PW2 said "MASTER" and "MASTERMIND" were two different things with different meanings.

The next witness for the Plaintiff was Simon Masele who featured as PW3. He introduced himself as the branch Supervisor in the Plaintiff's sales department. He said his duty was to prepare for sales for Dar es Salaam branch, receive feedback from the market and prepare reports and has worked in that capacity for 6 years.

PW3 told the Court that he first heard of the Master cigarette in early February 2005. He said he first received a call from one of their customers one Gasper Maziwa, trading as Bahati Cold Drinks, who told him some people had approached him to introduce the new brand. He said the customer identified the salesmen as a former staff of the Plaintiff Company. He told the Court that he was also aware of SAFARI Cigarette manufactured by the Plaintiff but they are not yet in the market.

He said on 28 – 29 July 2005, he conducted some survey on the two cigarettes, SAFARI and MASTER. He produced a bundle of questionnaires as Exh. P22. He said the purpose of the survey was, first to establish to what extent the Master cigarettes were known, second, to see the similarity between MASTER and SAFARI, and thirdly to see if the two brands could confuse and deceive customers. He said by using Samples of MASTER and SAFARI Cigarettes he visited various parts of the city. They were MASTER filter and SAFARI filter and menthol. The areas he visited included, Kariakoo, Tandale, Mwenge and Sinza, and interviewed a total of 15 persons. He then made an analysis of the survey. He said of the people interviewed, about the Master cigarettes, 8 denied having even heard of it, while 6 admitted knowing it. He also concluded that all 15 persons admitted having been deceived by the samples of "MASTER" Cigarettes *("A" &"B")* while all admitted that the two brands of cigarettes resembled. He therefore concluded that SAFARI and MASTER cigarettes were confusingly and deceptively similar. Cross-examined by Ms. Kasonda, PW3 admitted that he prepared and marked the questionnaires himself. He said he indicated the names and places of the interviewed. He denied having interviewed "imaginary persons".

To illustrate what PW3 had just said, the Plaintiff summoned Gasper Stephen Mariwa PW4, Modest Munishi, (PW5) Abubakari Shabani (PW6 and Godwin Konda (PW7), PW4 testified that one Chomba an ex staff of the Plaintiff Company had brought to him samples of the Master cigarettes. After that he phoned to inform PW3. Asked to compare Exh. P9 and P 11, PW 4 said they looked similar, and that it was possible for customers to confuse them if put together in a shelf. He said normally customers do not look at labels. In cross examination PW 4 said he first came to know MASTER Cigarettes in February 2005. He said as they were not yet popular, they were slow moving. He said he had been selling SAFARI brands sometime before but had not yet started selling the current SAFARI brand. He said, Chomba who was an ex staff of the Plaintiff Company never told him the manufacturers of MASTER Cigarettes. On re

examination PW4 told the Court that the new SAFARI Cigarettes were brought to him as samples by PW3 few weeks ago.

PW5, Modes Munishi said he does business at Sinza, in the trade name of Africa Sana Corner Bar. He said he knew and identified PW3 as the one who visited him about a month ago. He said it was PW3 who showed him MASTER cigarettes for the first time. He also showed him SAFARI cigarettes, and asked him some questions from a questionnaire. He identified the questionaire with his name (Exh. P22) and said he agreed with the answers that had been ticked in the said Exhibit. Cross examined, PW5, admitted both brands of cigarettes were brought to him for the first time by PW3.

Abubakar Shaban (PW6) testified that he runs a shop called Just Imagine Corner Shop, at Africa Sana, Sinza. He said PW3 visited his shop some two weeks before with samples of SAFARI and MASTER cigarettes, and asked him several questions. He said that in answer to a question put by PW3 he told him that the two brands of cigarettes did not resemble. He identified from Exh. P22, one questionnaire as his own and associated himself with the answers to the questions therein shown.

And lastly PW7 Godwin Konda testified that he did his business at Mwenge. He told the Court that PW3 had gone to his shop two weeks before, holding two brands of cigarettes, namely MASTER and SAFARI and asked him to compare them. He identified one questionnaire from Exh. P22 as his own and associated himself with the answers therein. Cross examined by Ms. Kasonda, PW7 said he had heard of but not seen the MASTER cigarettes before, nor the SAFARI cigarettes. He said he could identify the two brands because he sells them in his shop.

With this the learned Counsel for the Plaintiff closed the Plaintiffs case. The defendant then took the turn to give her evidence. As hinted above in revisiting the defendant's evidence, I will refer to the parties as MASTERMIND and TCC respectively.

MASTERMIND began their case with the evidence of Jarvis Kalangu testifying as DW1.

DW1 introduced himself as the Marketing Manager of Mastermind Tobacco (T) Ltd, which was established in 1996. He said his Company produces 4 brands of cigarettes. He named them as master filter, master menthol, master light and Rocket. He said while TCC was suing them for infringement MASTERMIND is suing TCC for passing off their MASTER product, as theirs.

He said MASTER is owned by Mastermind Tobacco (T) Ltd because he was privy to and participated in registering it. He said, their application was filed on 22 June 2005 through their lawyers. He identified the application form and tendered it as Exh. D1. He also tendered the accompanying letter from Mkono & Co. Advocates to the Registrar of Trade Marks and Services as Exh. D2. The receipt ERV 21200102 of 23 June 2004 was admitted as Exh. D3. The letter of acceptance of registration of Trademark QTM number 001686 in class 34 for "MASTER" was tendered by DWI as Exh. D4. DW1 also tendered a letter dated 22 November 2004 from Mkono & Co. Advocates to the Registrar of Trade Marks as Exh. D5. DWI identified Exh. D5 as one accompanying an application for several trade marks including the "MASTER" and enclosing a cheque for 170 000. The ERV receipt number 22153669 of 22 November 2004 was admitted as Exh. D6.

DW1 went on to tell the Court that after the payments, the trademark was advertised in the Trademark Journal of 15 March 2005. Upon advertisement the trademark was registered vide a certificate which he tendered as Exh. D7.

He went on to inform the Court that TCC had also attempted to register the trademark as her own. For that he produced a copy of the letter dated 26 October 2004 from the Registrar to TCC as Exh. D8. He said according to Exh. D8, TCC's application for registration number QTM 001859 *"MASTER"* in class 34 was refused on the ground that it was similar to QTM 001686.

He went on to identify Exh. P 11 as the cigarettes manufactured by Mastermind. He said they came into the market in February 2005, and it was launched to the retail outlets by using picture brands and public address systems including posters and photos of a branded car. He admitted one poster and photo of a branded car as Exh. D9 collectively.

He said since issuing a press release the MASTER trademark is now well known in Tanzania. He mentioned the Guardian, the Daily News, Mtanzania, Tanzania Daima, the Citizen and Majira newspapers as carrying the said press statement. He said Mastermind now produces Filter, Master Menthol, Master Light and Rocket, and that marketing had now spread to Morogoro, Dodoma, Singida, Kigoma, Moshi, Tanga and Mtwara, expanding from Dar es Salaam. He said the Master Cigarettes are produced, packed and labelled as demonstrated in Exh. P 11. He said Mastermind has not authorized any other Company to produce or market the Master Cigarettes.

DW1 went on to tell the Court that TCC's passing off Mastermind's products is vividly admitted by TCC's own pleading in paragraph 6 of the plaint in which they admitted to have started manufacturing SAFARI cigarettes, (Exh. P6). He said there are certain similarities between Exh. P9 and Exh. P11 which include the blue background, the sun/moon, the lines on top and the bottom of the packets. DW1 said this was an infringement of their label.

He said his Company took 5 years to prepare before starting manufacturing those cigarettes. He said according to Exh. P3 and Exh. D3, Mastermind was the first to apply for registration. Exh. P3 and D3 are ERV receipts dated 20 September 2004 and 23 June 2004 respectively. With this the witness prayed for the dismissal of the suit, and judgment for Mastermind on the counterclaim.

DW1 was thoroughly cross examined by Mr. Mnyele, learned Counsel. He said he has over 40 years working experience in marketing, having worked for East African Tobacco Company in 1963, in the course of which he attended several courses in marketing and salesmanship in and out of the country.

He said it was true TCC's application for registration was refused because the trademark had been allotted to some one else. He said according to Exh. D1, Mastermind had applied for MASTER filter label and that is the registered trademark. He said in Exh. P1, there is also an application for MASTER trade mark by TCC also for MASTER filter label. He said according to Exh. D8, the Registrar had refused registration because it was similar to a previous application, and Mastermind has the trade mark already.

DW1 said Mastermind began to produce the MASTER Cigarettes in January, 2005 and distribution began in February 2005, but admitted that at that time the trademark was yet to be advertised and registered. He further admitted that no promotion was done prior to February 2005 and the stories/press statement carried in March 2005 was a follow up. DW1 identified Exh. P17 - 21 as the said newspapers. He said that it was therefore true that the promotion was carried out between 18 – 22 March 2005.

DW1 said he knew the meaning of goodwill in business or product or service. He said goodwill is based on the quality, availability, affordability and continuity of supply of a product and is acquired over a period of time, depending on the type of product and the market. On this account he admitted that no goodwill could be acquired within a week or a month. He told the Court that in this case, Mastermind started its promotion between 18 - 22/3/2005, but had filed her Written Statement of Defence on 10/3/2005. Therefore, the witness admitted, no promotion had been made, and no goodwill acquired before filing her defence.

Lastly, DW1, told the Court that passing off meant using somebody else's product/trademark as one's own. He said however, that he had no evidence to show, that TCC were selling SAFARI as MASTER Cigarettes. He also admitted that the two brands are similar and may be confusing and deceptive.

Ms Kasonda took time to re-examine DW1. In the course, DW1 told the Court that according to Exh. D4, the trade mark MASTER

was registered on condition that Mastermind delete all the words except "MASTER" which was the dominant word in the trademark. DW1 said although they started production in January 2005, their application for registration had been filed since June 2004.

Lastly DW1 said they were suing TCC to avert their intention to manufacture and sell SAFARI Cigarettes which DW1 said he had seen them in Court.

DW2 Lilian Thomas Kimaro is the Deputy Registrar of Trade and Service Marks. Her duties include scrutinizing new applications and signing certificates of trademarks and preparing patents for services and trade marks journals.

She said in the course of her duties she had come to deal with the registration of MASTER and SAFARI trademarks. She identified Exhibits P1, D1, and D3.

She said Exh. P1 was filed on 6 September 2004, whereas Exh. D1 was filed on 23 June 2004 and that both have similar/identical labels.

She opined that the validity of a trademark becomes effective from the date of filing. In priority of time, Exh. D1 was filed first. She said the law would not allow registration of two similar logos or trademarks. In this case, two similar logos were registered by mistake because the search personnel were unable to uncover the prior application. She said, if the first one would have been seen, the SAFARI trademark would not have been registered.

She went on to opine that the effect of registering the same trademark twice is that its registration remains valid until the aggrieved party proceeds under section 36 of the Trade and Service Marks Act. DW2 was then referred to Exh. P14, a Notice of Opposition filed by TCC. She told the Court that according to the law, the Registrar had to transmit the notice to the opposite party who would be required to reply. The reply is transmitted to the other party, who would then file evidence in reply, before the matter is heard by the Registrar.

She said however, in the normal circumstances, once a Notice of Opposition is filed, no Certificate of Registration can be issued. However, in the present case, the Notice of Opposition was belatedly filed in the file after issuing the certificate. But, she added, the registration was valid, and it was open to any aggrieved party to proceed under section 36 of the Act, and challenge the registration.

Cross-examined by Mr. Mnyele, learned Counsel, DW2 told the Court that she was conversant with the provisions of the Trade and Service Mark Act and the Rules. She said according to the law once a Certificate of Registration of a trademark is issued, a party is entitled to exclusive right of use of the trademark. She said she was the one who dealt with the registration of MASTER trademark. She said according to the rules any opposition has to be filed within 60 days, and that Exh. P14 (a Notice of Opposition of the registration of MASTER) was filed in time. It was the duty of the Registrar to serve the notice to the other party. She admitted that, in this case the Notice of Opposition was not promptly served on the other party due to the automation exercise that was going on in their office at the time. She said if she had seen the notice, the Registrar would not have registered the trademade. Lastly she said their office has not received any application for the removal of the MASTER trademark from the Register. And with that the defendant's case came to rest.

Learned Counsel then proceeded to argue their final submissions in writing. For the sake of avoiding duplicity, I will proceed to examine Counsel's arguments in each issue, and express my determination thereon. I will adopt the approach taken by the learned Counsel for the Plaintiff of discussing the issues in two sets, first those on the main suit; and second, those of the counterclaim.

On the main suit, the first issue is whether the defendant has infringed the Plaintiff's trademark? Mr. Mnyele learned Counsel for the Plaintiff submitted that the tort of infringement is provided in section 31 of the Trade and Service Marks Act 1986 which gives a right to a registered owner of a trademark to sue for damages and/

or prevent other persons from using the said trade mark. He then quoted section 32 of the Act, which defines what constitutes infringement. Mr. Mnyele learned Counsel pinned down his case by submitting that by manufacturing master cigarettes, using labels that resemble those of the Plaintiff, the defendant has committed an act of infringement as the labels are deceptive and confusing to the ultimate consumer of the products. On the general statement of the law of infringement the learned Counsel referred the Court to two cases one decided by the High Court (Commercial Court) of Kenya of *Pharmaceutical Manufacturing Co. v. Novelty Manufacturing Co. Ltd* (1) and one from Uganda; in *Aktiebolaset Jonkoping Vulcan Indstricks Fabriksak Tiebolag v. East African Match Co. Ltd* (2). Mr. Mnyele then proceeded to submit that on the facts and evidence on record, the Plaintiff has proved that it has good title on the infringed trademark, as exhibited by Ex.P6. He said according to **KERLY** at page 293; the Certificate of Registration was a *prima facie* evidence of title on a particular mark. He urged the Court to disregard the testimony of DW2 to the effect that the SAFARI trade was inadvertently and therefore wrongly registered because that allegation was not only not pleaded, but also reflected poorly on the running of the Registrar's office which should not be condoned by the Court. Besides, the evidence was hearsay and that it would be unjust and against public policy for a party to suffer at the hands of the Registrar's negligence. He said after all, Exh. P2 was in itself evidence of compliance with all the legal requirements as per Part IV of the Act. That learned Counsel then proceeded to submit that the Plaintiff has, on a balance of probabilities proved that the MASTER Cigarettes labels resemble and are deceptively and confusingly similar. The learned Counsel referred me to a case arising from Siera Leone of *Michael Aboud and Sons v. Pee Cee and Sons Pautap Stores Ltd* (3) for guidance as to how to consider similarity of trademarks. He submitted that there is sufficient evidence on record from PW1 and Exh. P9 and P11 apart from PW3, PW4, PW5, PW6 and PW7 who confirmed that the two labels were confusingly similar and deceptive. So he urged this Court to answer the first issue in the affirmative.

On the other hand, Ms. Kasonda, learned Counsel for the defendant, submitting on the first issue said that in order for infringement to be established under section 32(1) of the Trade and Service Marks Act number 12 of 1986, the trademark must be used by a person who is not a proprietor or registered user of the trademark. She submitted that the defendant was the owner of the Master trademark on the strength of Exh. D1. She submitted that according to Exh. D4. The application of the defendant was duly accepted, and duly registered on 20 May 2005. She submitted that therefore it was illogical to say that the defendant was infringing someone's trademark. She went on to quote a passage from **Jeremy Philip's Book Trademark Law** at page 228.

Ms. Kasonda went on to submit that the Plaintiff was very much aware of the existence of the defendant's pending application for MASTER label trademark as evidenced by Exh. D8 and admitted by PW1. She said there was no provision in the Trade Mark Act which prevented an applicant of a trademark from using the trademark pending the issuance of a Certificate of Registration. She therefore called upon the Court to answer the first issue in the negative.

The bone of contention here is that the defendant has infringed the Plaintiffs trademark registered in the name of SAFARI. Section 2 defines the term "trade or service mark" to mean:

> any visible sign used or proposed to be used upon in connection with or in relation to goods or services for the purposes of distinguishing in the course of trade or business the goods or services of a person from those of another .

The term "visible sign" is defined to mean:

> Any sign which is capable of graphic reproduction, including a word, name, brand, device, heading, label, ticket, signature, letter, number, relief, stamp seal, vignette emblem or any combination of them.

In the present case the name of the Plaintiff's registered trade mark is "SAFARI" whereas that of the defendant is "MASTER". So the

disputed visible sign is not in the form of a name, as the names are different. What the parties claim is the similarity in pictorial representation in the packet of the two products.

I gather this from the evidence of the parties on record. Thus PW1 testifies on page 15 of the typed proceedings:

> In SAFARI and MASTER Lights there are circles in the middle. The words SAFARI and MASTER are similarly positioned in the same manner. The colouring of the labels (blue) is also similar. The characteristics and simulation of the above and lower lines are similar. The dress up of the packets are similar.

And PW2 at page 20 of the proceedings says:

> From a distance the colours the shapes and the positioning of different elements in the packets (are the same)

Earlier on, PW2 had observed:

> The invention of the SAFARI trademark to indicate the introduction of either sunrise or sunset. The idea behind MASTER mark is also the rising and setting of the sun on a dark blue background. So these and SAFARI virtually represent the same thing.

And DW1, testified on page 43 of the proceedings that:

> There are certain similarities (between Exh. P9 and P11). The blue colour, the sun/moon the lines at the top and bottom are almost similar.

So, even as between the witnesses from each side, there is little doubt that the two brands of cigarettes "SAFARI" and "MASTER" (Exh. P9 and P11) are similar in appearance. That they are confusingly similar is, amply demonstrated by PW1, PW2, PW4, PW5, PW6 and PW7. Having myself closely scrutinized them I too conclude that the two brands have similar visible signs or get up except for the names. Therefore each is a trademark by definition. The question is who is the owner of the trade mark in dispute leaving the names aside.

Section 14(1) of the Trade and Service Marks Act stipulates:

14(1) The exclusive right to the use of a trade service mark as defined in section 32 shall be acquired by registration in accordance with provisions of this Act.

(2) Registration of trade or service mark shall not be considered validly granted until the application has fulfilled the conditions for registration.

Section 20(1) of the Act prohibits the registration of a trade or service mark which is identical with a trade or service belonging to different proprietor and already on the register in respect of the same goods services or closely related goods or services or that so nearly resembles that trade or service mark as to be likely to deceive or cause confusion.

This takes me to the next question. Resemblance of the graphics apart, which of the two trade marks is valid under sections 14(1) and 20(1) of the Act? It is evident from the wording of that section; this will have to be decided by reference to the date of registration of each of the trademarks.

From the evidence on record, the defendant filed her application for registration of the trademark on 24 June 2004 (Exh. D2) and the mark was finally registered on 20 May 2005 as per Exh. D7. According to Exh. D7, the registration became effective from 24 June 2004. It was registered in Class number 34 under number 30748. On the other hand the Plaintiff had filed her application for registration on 6 September 2004 (Exh. Pl) and was eventually registered on 20 January 2005 but with effect from the 6 September 2004 (Exh. P6).

According to section 28(1)(b) of the Act, the date of application is deemed to be the date of registration if the application shall not have been opposed, or if opposed, the opposition has been decided in favour of the application. True, in this case the Plaintiff filed an opposition to the application of the Master Mark on 4 May 2005 (Exh. P14). In that notice, the Plaintiff described herself as the registered proprietor of SAFARI registered on the 6 day of September 2004. It is also true that the opposition has not been determined in favour of the defendant.

In my view in the light of the provisions of sections 20(1) and 28(1) of the Act and the evidence of DW2 the Assistant Registrar of Trade and Service Marks, the Plaintiff's mark would appear to be not validly registered by reason of a prior application for registration of the defendant's mark. So apparently in the words of section 28 of the Act, the application of the Plaintiffs SAFARI trademark and Exh. P6, was accepted/issued in error, and therefore apparently invalid. The reason is to be traced in the chronology of the events, which shows that in priority of time, the defendant's MASTER trademark became effective on 24 June 2004, whereas the Plaintiffs became effective on 6 September 2004. On the face of it therefore it appears that the defendant is the lawful proprietor of the MASTER Lights trademark. (Ex.P11).

Mr. Mnyele, learned Counsel for the Plaintiff has referred to this Court a number of persuasive authorities. With great presence of mind, I have studied the decisions cited to me by Mr. Mnyele and I have no qualms in expressing my gratitude and appreciation to the learned Counsel. I have with respect, no doubt that the extracts from **Blancowhite Kerly's Law of Trade Marks and Trade Names** (12 ed), represent good law and are of persuasive authority especially on the manner of proving some aspects of infringement.

I have also no doubt that the statement of the law by Sir Udo Udoma in the *Tiebolac'* case represents the position of the law on trademarks, and have no hesitation in adopting that approach myself in the present case. However, with due respect to the learned Counsel, *Pharmaceutical Manufacturing Co. v. Novelity Manufacturing Ltd.*, was decided on different facts. In that case, the defendant admitted infringing the Plaintiff's trademark and accordingly judgment was entered against it. In the present case, the defendant has not admitted infringement; so that case is distinguishable from the one at hand. Again in *Aktiebolaget Jon Koping Vulvan Indstricksfa - Briksaktebolag v. East Africa Match Co. Ltd* (2), the Court there found that the two labels were completely different, both as to their get up and layout generally. In the present case, I have already found above that the

two competing trademarks SAFARI and MASTER are similar and confusing. And in the West African case of *Michael Aboud and Sons v. Pee Cee and Sons (Pauta Stores)* the Court found that since the defendant was willing to give some undertaking in their reply not to import JACK BRAND products, which appeared to resemble the Plaintiffs that was evidence of acknowledgement that they had done something wrong and judgment was partly based on the acknowledgment. Here the defendant has not made any undertaking of such a nature. The facts in this case are therefore different from those in the cited cases.

I accept the proposition put by the learned Counsel that infringement means counterfeiting or making a colourable imitation of another person's trademark which is registered (See *American Cyanamid v. Ethicos* (4)). I also accept the position enshrined in section 32 of the Trade and Service Marks Act that no infringement can be committed by a proprietor of a trademark. And I have no doubt in my mind that both "SAFARI" and "MASTER" labels, which are confusingly similar have been registered under the Trade and Service Marks Act and that under section 50(1) registration is *prima facie* evidence that the law has been complied with. The first question that I have to decide is whether or which of the trademarks is valid in the eyes of the law?

According to section 14(1) of the Trade and Service Marks Act, exclusive right of use of a trademark is acquired by registration in accordance with the provisions of the Act, and that registration shall not be considered validly granted until the application has fulfilled the conditions for registration. And section 20(1) of the Act prohibits the registration of a trademark which is identical with a trade or service mark belonging to a different proprietor and already in the register in respect of the same goods, or service closely related goods or service.

On the other hand, it is also the law that section 28(1) of the Act prohibits the registration of a trademark whose registration has been

opposed until that opposition has been decided in favour of the applicant. The case of the *Registrar of Trade Marks and Another v. Kumar Raujan Sen Air* (5), cited by Mr. Mnyele, learned Counsel, no doubt therefore represents the correct position of the law.

In the present case, there is no doubt that when the Registrar proceeded, to register the "SAFARI" trademark an application for registration of "MASTER" trademark was pending after it had been filed three months before. According to DW2, the SAFARI mark was wrongly registered in the circumstances. Mr. Mnyele has strongly protested to this evidence, branding it hearsay and against public policy as it reflects on the inefficiency of a public office. I do not agree with Mr. Mnyele. The Registrar has a statutory duty to see that all registrations are done in accordance with the law. And as seen above section 20(1) of the Act prohibits the registration of identical marks by two different persons. There can be no estoppel to that statutory duty. Although section 20(1) of the Act protects a trade or services mark of a different proprietor and already in the register and that the MASTER trademark had not been registered when the SAFARI trademark was registered but as we shall see below since it was pending and as long as; section 30 protects the right of an unregistered user of a trademark it is contrary to the spirit of that provision and public policy if the Registrar was allowed to ignore a pending application for registration in favour of a later applicant for the same mark. I would for that purpose be prepared to stretch the definition of the term "already in the register" in section 20(1) to include a trademark whose ... registration was pending with the Registrar. That is even more so if the concept of retrospectivity of the registration of a trade mark enshrined in section 28 of the Act is to have any meaning at all.

But there is something else. The registration of SAFARI has been challenged for having been registered fraudulently. That allegation is found in paragraph 4:2 of the defendant's written statement of Defence and opposed by the plaintiff in paragraph 4:2 of the reply.

It forms the second issue in the main suit, which I will have to consider before returning to the first issue.

Submitting on that issue Mr. Mnyele learned counsel submitted that is a question of fact and that the defendant had to prove it on a standard higher than on a balance of probabilities. He cited *Ratilal Gordhawbhai v. Lalji Lakani* (6) as authority for that proposition. He submitted that the defendant has failed to prove fraud to the required standard. Ms Kasonda learned counsel for the defendant submitted that there was sufficient evidence on record to prove fraud on the part of the Plaintiff. She said that PWI knew that MASTER'S application for registration was pending when the plaintiff submitted an application for registration of a trade mark which was similar to the MASTER. Furthermore the plaintiff also attempted to register the MASTER label but the application was refused. She borrowed a passage from T.A. Banco and Robin Jacob's book **Kelly Law of Trade Marks** (12 ed) and page 178 to define "fraud."

> It might be fraud for a person to procure the registration of a trademark as ...which he knows he is not entitled to claim the exclusive use of ... if for instance he knows that it is used by another trader

With that she concluded that by conceding their knowledge as to the existence of MASTER trademark pending with the Registrar and by proceeding to register the SAFARI with that knowledge, the Plaintiff must be deemed to have registered it fraudulently.

It is true that the term "fraud" is not defined in the Trade and Service Marks Act, although it is used in several provisions of the Act, such as sections 37 and 50(2). In **Broom's Legal Maxims** (10 ed) At page 542 the mode of proving fraud is discussed.

> .... Fraud is proved when it is shown that a... representation has been made (1) knowingly or (2) without belief in the truth or (3) recklessly without caring whether it be true or false

And in **Legal Thesaurus** edited by M. Monir at page 176 "fraud" is classified in to two categories 'actual' and "constructive"

> The former applied to those cases in which there is an intention to commit a cheat or deceit upon another person to his injury. But constructive frauds are meant of such acts or contracts as although not originating in any actual design or contrivance to perpetuate a positive fraud or injury upon other person .. but their tendency to deceive or mislead other persons or to violate private or public confidence or to improve or injure the public interest, are deemed equally reprehensive with positive fraud and therefore are prohibited by laws or within the same reason and mischiefs as acts or contracts done *mala anomie.*

In the present case, and on the facts and evidence on record there is no doubt that the defendant's application for registration was lying pending in the office of the Registrar. It is evident from the testimony of PWI that the Plaintiff knew of the pending application. The Plaintiff filed an application to register "MASTER" which was rejected on account of it being similar to a pending one. By proceeding to register the SAFARI, the Plaintiff either knowingly or recklessly did so without caring whether or not the two marks resembled. After procuring registration the Plaintiff then filed an opposition to the registration of MASTER which the Plaintiff knew had been pending for over three months prior to the filing of their application. So I have every reason to conclude that by so doing the Plaintiff intended to violate the defendant's right and cause injury to her. Direct evidence of actual design or contrivance to perpetrate a positive fraud, may he wanting, but I am positive that constructive fraud has been established by the available strong circumstantial evidence. For the above reason, I will answer the second issue in the affirmative. I find and hold that the registration of the SAFARI mark under dispute was procured fraudulently.

The combined effect of my finding in the second issue and my discussion on the first issue generally is that although the SAFARI mark has been registered, its registration was obtained by fraud, and in terms of section 50(2) of the Act its registration was invalid. And since infringement only protects a registered trademark and since in law, registration is valid only if it complies with all the

conditions of registration, and since DW2 has also shown that the SAFARI mark was registered by mistake, I will proceed to hold that the Plaintiff cannot maintain an action on infringement. On the other hand it is true that the defendant's trademark was eventually registered on 20 May 2005, and since it was pending since 24 June 2004, it is deemed to have been effective as from the latter date. However it is also true that when it was registered a Notice of Opposition against its registration was pending.

And it is clear that no registration in law could properly proceed without first deciding the opposition in favour of the applicant. By so proceeding to register, the Registrar violated section 28(1)(b) of the Act. For the same reasons, therefore the defendant is not the lawful proprietor of the Master trademark under dispute either. Therefore it cannot be protected under section 32(1) of the Act. The argument of the learned counsel for the defence therefore also fails.

So all said, the first issue is answered in the negative, not because the defendant is protected under section 32(1) of the Act but because the Plaintiff's trademark now in dispute was registered fraudulently and by mistake and would not confer in law, exclusive right of use of that trademark to the Plaintiff. And under sections 31 and 32 of the Act, only valid registration can be protected by an action in infringement.

The third issue is whether the defendant has prior rights over MASTER trademark by virtue of making the application first? It was submitted by Ms. Kasonda, that the validity of a trademark dates back to the date of the application for registration. She sheltered herself with the provisions of sections 20(1) and 28(1) of the Act. She therefore asked the Court to hold that the defendant has prior rights over the MASTER trademark.

Mr. Mnyele, learned counsel for the Plaintiff, while conceding the right of use of a prior applicant of a trademark, submitted that that right would only be effective upon the application being registered. And since under section 28(1) of the Act the MASTER trademark

should not have been registered pending the determination of an opposition against its registration the defendant had no prior rights over the mark. He reinforced his argument by citing an Indian case of the *Registrar of Trademarks and another v. Kumar Raujan Sen Air* (5).

I have no doubt that the case cited by the learned Counsel, represents good law. And I have already held above that both SAFARI and MASTER were wrongly registered in law. And I have no doubt in my mind that a proprietor of a trademark acquires exclusive use of the trademark, upon registration. But the question here is, whether the person has a prior right of use of a trademark which he has only applied for registration?

It was held by the Supreme Court of India in *N.R. Dongre v. Whirlpool Corporation*, quoted in **Sarkar on Trade Marks** - Law and Practice (4 ed) at page 172, that:

> A trader needs protection of his right to prior use of a trade mark as the benefit of the name and reputation earned by him cannot be taken advantage of by another trader by copying the mark and getting it registered before he could get the same registered in his favour.

Therefore a trader's right of use to a trade mark is protectable before registration.

In the present case, the defendant had filed her application for registration of her MASTER trademark three months prior to the Plaintiff s application. Although the Plaintiff procured the registration of SAFARI graphic label earlier/before that of the defendant, the defendant nevertheless had prior rights over MASTER trademark by virtue of making the application first. Therefore the third issue is answered in the affirmative.

The fourth issue is whether the defendant has extensively marketed the MASTER brand cigarettes so as to make it well known?

It was submitted by the learned Counsel for the Plaintiff that although the MASTER cigarettes were promoted through newspapers

and posters as demonstrated by Exh. P17 - P21, and Exh. D9, this was only for a short period, and its impact not demonstrated by any other witness apart from DW1 who stayed in office. He said the defendant could have but failed to produce corroborative evidence as to whether the MASTER cigarettes had reached Morogoro, Dar es Salaam, Singida, Kigoma, Moshi, Arusha, Tanga and Mtwara. He therefore concluded that the issue had not been proved by the defendant to warrant an affirmative nod.

Ms Kasonda, learned Counsel for the defendant submitted that a mark may be famous notwithstanding how long it has been in the market. For that proposition she quoted a passage from a book **Famous and Well Known Marks** by Frederick W. Master. She said Exh. P17 - P21 had a wide circulation in the country. She said even some customers interviewed by PW3 had indicated that they were aware of the MASTER cigarettes. She therefore said this constituted sufficient evidence to convince the Court to answer the 4th issue in the affirmative.

I am aware that this is a civil case, and that as a rule no corroboration is required to prove any allegation. What is required of any party in such case is to prove her case on a balance of probabilities. And that whether there is any evidence at all is a question of law, but whether that evidence is sufficient is a question of fact. See *R v. Taibali Mohamed Bahi* (8). Let me begin with Ms. Kasonda's submission in which she quotes a passage from **MASTERT'S** book. The passage was however, conveniently, not quoted in full. Whatever was available, the full passage reads:

> A mark may become famous and well known almost overnight through modern advertising and advanced technology.

That is the part quoted by Ms Kasonda. But the passage does not end there. It continues:

> More frequently a mark will become well known with the passage of time by dint of the continued expenses of resources, time...

My understanding of this passage read as a whole is that as a rule marks take time to be known although in exceptional cases, through modern technology and advertisement this could take a short time. So the fame of a trademark is normally a function of time.

In any case the passage quoted by Ms Kasonda, is not, in itself evidence. It is an opinion from an expert on science as to the type of technology that could be used to promote a trademark. Such opinion appears in the learned Counsel's final submission for the first time. But as the Court of Appeal of Tanzania once said in *Morandi Rutakyamirwa v. Petro L Joseph* (9) a submission is not evidence. And even if it were evidence it should have contained grounds for forming such opinion. The passage quoted by Ms Kasonda contains no grounds for forming that opinion, and it is therefore, together with all the other reasons above not evidence at all in law.

As for the newspapers Exh. P17 - 21, I accept and find as a fact that they published the MASTER trademark for about 3 or 4 days, but whether they are of wide circulation in the country is a question of fact. And the Court cannot take judicial notice of that fact as it is not expressly listed under s. 59 of the Evidence Act 1967. Exh. P17 - P21 were produced by PW2 under cross-examination. I do not remember to have heard her say that these newspapers had a wide circulation in the whole of Tanzania. Neither did DW1 ever say so. On the premises, I find that while there might be some evidence on record, that evidence is not sufficient to establish that that stint of promotion was enough to make the cigarettes well known. In fact, both PW2 and DW1 admit that a goodwill is acquired over a period of time. DW1 said in cross examination that no goodwill can be acquired within one week or one month. For all the above reasons I will answer the fourth issue in the negative.

The fifth issue is whether the trademark SAFARI was changed by the Plaintiff so as to resemble the trademark MASTER?

Mr. Mnyele learned Counsel submitted that on the evidence on record, it cannot be said that the Plaintiff imitated the MASTER

trademark to make the SAFARI trademark. He relied on the evidence of PW1. He said the defendant had a duty to prove the imitation and failed to do so. So he prayed that the issue be answered in the negative.

Ms. Kasonda, learned Counsel for the defendant submitted that since the Plaintiff has quite a number of SAFARI labels (Exh. P7) some of which she does not use and which are distinct from MASTER, the Plaintiff's application of the SAFARI trademark in dispute which resembles the MASTER was ill intentioned, as the Plaintiff was aware of the existence of MASTER'S application for registration. She said this was admitted by PW2. So by rushing for the registration of a similar trademark, the Plaintiff's intention was to prevent the defendant's entry into the market. So in her opinion this was sufficient evidence to prove that the Plaintiff changed the SAFARI trademark to imitate the MASTER trademark, and so, argued that the fourth issue be answered in the affirmative.

I agree with Mr. Mnyele, that imitation is a question of fact and has to be decided on the basis of the evidence on record.

It is true that according to Exh. P6 and P7, the Plaintiff had registered different types of SAFARI. The SAFARI Kali Filter and SAFARI King Size were graphically and colourably different from the SAFARI King Size Filter shown in Exh. P6. According to Exh. P1, this type of SAFARI brand was submitted for registration along with MASTER on 6 September 2004. The MASTER Lights trademark was by then pending registration. Looking at Exh. P8 (SAFARI King Filter and Exh. P7 and P10 (MASTER Lights) it is difficult to see the difference immediately. In fact, all the parties agree that the two brands are confusingly similar.

There is no direct evidence that the Plaintiff imitated the MASTER trademark in SAFARI label and resemblance *per se* does not prove imitation. But as I posed to answer the second issue, the 3 months prior existence of the application for registration of MASTER trademark, together with the Plaintiffs admitted knowledge of MASTER and

their intention to launch their products in the market, and the close resemblance of the two brands is not a mere coincidence. I think these factors build a strong circumstantial evidence that call for some satisfactory explanation from the Plaintiff. As I found in the second issue I find no satisfactory explanation for that coincidence from the Plaintiff as the existence of that coincidence is, I think, peculiarly within the Plaintiffs knowledge, and section 115 of the Evidence Act requires that:

> 115. In civil proceedings when any fact is especially within the knowledge of any person the burden of proving that fact is upon him.

The evidence of PW2, that she was involved in the SAFARI trademark graphics does not assist the Court because she did not indicate the date of that "invention". I suppose the intention of the evidence of PW3, and PW4, in mentioning an ex-worker of the Plaintiff by the name of Chomba was to introduce that Chomba may have transferred that "invention" to the defendant Company. However, we don't know when Chomba ceased employment with the Plaintiff; and since even PW2 did not indicate when that invention was made, the evidence PRESIDENTIAL PARASTATAL SECTOR REFORM COMMISSION *v.* AZANIA BANCORP LIMITEDof PW2, PW3 and PW 4 is not sufficient to prove that the Plaintiff "invented" the graphic in dispute and thus offer some explanation for that coincidence. On the other hand, DW1 produced Exh. D1 to show that at least for point of time, the defendant was the first to apply for registration of that brand. I think an earlier application raises a rebuttable presumption that any subsequent application of a similar mark, may be a result of imitation. The burden of rebutting that presumption is, in this case on the Plaintiff, and I am not satisfied that the Plaintiff had discharged that burden. Therefore, I will answer the fifth issue in the affirmative.

I will leave the answer to the 6th issue to the end of this judgment. I will now turn to examine the issues raised in the counterclaim.

The main suit in this case was tried together with the counterclaim. Masterminds' claims against and which are refuted by TCC are set

out in the introductory part of this judgment. And from the pleadings the following issues were framed for trial of the counterclaim:

1. Whether the defendant (TCC) has passed off Mastermind's MASTER Cigarettes by manufacturing Safari Cigarettes?
2. Whether Mastermind has any exclusive rights in MASTER trademark?
3. Whether MASTER has goodwill over the trademark MASTER to protect.
4. Whether TCC has engaged in unfair competition against Mastermind?
5. To what reliefs are the parties entitled?

Next I will examine the learned Counsel's final submissions on each of the issues. Submitting on the first issue Ms. Kasonda, learned Counsel for Mastermind submitted that passing off is a tort consisting of a representation that a person's goods or business are connected with the goods or services of someone else. Quoting section 30 of the Trade and Service Marks Act she submitted that the Act does not bar a suit for passing off even against a registered trademark proprietor. The learned Counsel went on to submit that on the evidence on record, TCC manufactured cigarettes similar in design and labels to those of MASTER. She said, quoting from **Kerly's, Law of Trade Marks and Trade Names** that this was wrong. She submitted that even a registered trade mark proprietor has no right to use a registered mark if that mark would deceive. For that proposition the learned Counsel referred me to some English decisions of *Inter Lotto Uk Ltd v. Camelot Group Plc* (10) and *Lever and others v. Goodwin and others* (11).

The learned counsel concluded that by imitating the get up of MASTER, TCC has brought itself within the old common law doctrine, in respect of which equity will give to Mastermind an injunction in order to restrain TCC from passing off the SAFARI goods as those of Mastermind's. So she submitted that the first issue be answered in the affirmative.

On the other hand, Mr. Mnyele learned Counsel, concedes that much as to the law of passing off, he quoted the same passages from **Kerly's Law of Trademarks and Trade Marks** At page 334 and **Salmond on Trademark Law and Practice** at page 194 as well as **Salmond on Tort** (17 ed), and the Kenyan case of *Supa Brite Ltd v. Pakad Enterprises Ltd* (12). He also quoted a passage from *Reckitt and Colman* (13). Having laid bare the position of the law, Mr. Mnyele went on to submit that in the present case, Mastermind has not established by evidence the commission of the tort of passing off because Mastermind had had no goodwill at the time of filing the counterclaims. He therefore concluded by submitting that the first issue be answered in the negative.

The concept, principle and law of passing off, is I think, fairly well developed and both Counsel in this case are not disputing these principles. **Sarkar on Trade Marks Law and Practice**, (4 ed.) has devoted quite a portion of Chapter IV of the book to revisit and summarise, the concepts and elements of the law of passing off, but nothing could be mere succinctly put than those put by Lord Diplook in *Erven Warnink B.V. v. V.J. Townsend and Sons* (14) at page 39; that the essential characterists of a passing off action should be:

(i) Misrepresentation.

(ii) Made by a person in the course of trade.

(iii) To prospective customers or ultimate consumers, of his goods supplied by him.

(iv) Which is calculated to injure the business or goodwill of another trader (in the sense that it is a reasonably foreseeable consequence) and

(v) Which causes actual damage to the business or goodwill of the trader by whom the action is brought, or (in *quia timet* action) will probably do so.

Here registration or non registration of trademark is immaterial. As the learned author captions at page 157:

> An action for passing off is thus a generalized action and is enforceable in respect of registered as well as un registered trade marks.

To maintain an action for passing off, there must not only be established that the party suing has goodwill in the mark, but also there must be intention to deceive even if there are a few confusions in the market. Although the party need not establish actual deception, but reasonable grounds for apprehending deception, he must however establish distinctive features, substantial user and wide reputation.

I have no doubt in this case that Mastermind and TCC are engaged in manufacturing cigarettes. I further find that in this case Exh. P9 and P11 are confusingly similar. I have already held above that in priority of application Mastermind had prior right of use of the MASTER trademark over the SAFARI trademark. However such right of use is not exclusive, unless. Mastermind can prove that the public have been deceived or that there is a reasonability of deception. It has been submitted in this case, that the confusion would reign in the get up of the products.

On the evidence on record, it is clear in mind that although Mastermind had launched its MASTER products in the market from 18 - 22, March 2005, TCC had not yet introduced the SAFARI graphic label, at all in the market. So SAFARI was not introduced by TCC in the course of trade. Besides I agree with Mr. Mnyele, that even if TCC had introduced it in the cause of trade Mastermind had acquired no goodwill by the time of filing the counterclaim which could be injured by SAFARI. Therefore I find that Mastermind has failed to meet the tests set in *Ŵaznink's* case. I would in the event, answer the first issue to the counterclaim in the negative.

The second issue in the counterclaim is whether the Mastermind has exclusive rights in the MASTER trade mark? Mr. Mnyele, learned Counsel, submitted that since exclusive right of use of a trademark is conferred on registration and since registration is not relevant in an action for passing off, that is a non issue; but in any case since Mastermind's registration was itself defective Mastermind cannot

be said to have acquired any exclusive right of use over the mark. Ms. Kasonda learned Counsel submitted that Mastermind had exclusive right of use to the MASTER trademark by virtue of it having been registered by virtue of sections 31 and 32(1) of the Trade and Service Marks Act. She said even if the mark is not registered, an owner of an unregistered trade mark has exclusive right to use it and to sue for passing-off.

I have already held above that a trader may maintain an action for passing off at common law, whether or not the respective trademark has been registered. But the right to exclusive use is conferred by statute upon registration of a trademark by virtue of the provisions of the statute cited by the learned Counsel for Mastermind. There is also no dispute that the right to exclusive use dates back to the date of application.

However, in the present case, although Mastermind had filed its application for registration earlier, the subsequent registration of the trademark was done contrary to the dictates of section 28(1) of the Act. To that extent the registration was bad in law and therefore conferred no exclusive right of use of the MASTER trademark to Mastermind. The second issue in the counterclaim is therefore answered in the negative.

The third issue is whether Mastermind has goodwill on the trademark MASTER to protect?

Mr. Mnyele who submitted on the first and third issues together stated by first stating that passing off cannot succeed without establishing goodwill. He relied on the speech of Lord Jauncy in *Reckitt and Colman Ltd v. Borpen Inc. and others* (13) to this effect:

> The fact that the propriety right which is protected by the action is the goodwill rather than in the get up distinguishes the protection afforded by the common law to a trader from that afforded by statute to the registered holder of a trademark who enjoys a permanent monopoly therein. Goodwill was defined by Lord MacNaughtan in *Inland Revenue Commissioner v.*

> *Muller and Co's Margarine Ltd* [1901] AC 217, 223-24 as the benefit and advantage of the good name, reputation and connection of a business. Get up is the badge of the Plaintiff's goodwill in the mind of the public ....

Mr. Mnyele then proceded to submit that in the present case, the promotion done by Mastermind between 18 - 22 March 2005 was not sufficient to build for Mastermind that goodwill which could be protected. He said this was admitted by DW1.

Ms. Kasonda, learned Counsel for Mastermind, conceded that this was the undisputed position of the law, by reinforcing her argument by quotations from the books **Passing Off Law and Practice** by Sdale and Silver Leaf and **Famous and Well - Known Marks** by Fredrick W. Master. But she said:

> We have already submitted in paragraph 7 above that the MASTER label trade mark is well known by virtue of its intensive advertising and marketing.

In paragraph 7 of her final submission the learned counsel was attempting to convince the Court to answer the fourth issue to the main suit in the affirmative. With respect, I did not answer that issue in the affirmative. I am still of the same view that in the circumstances of this case the promotion on the MASTER trademark was done in so short a time as it could not have built any goodwill to Mastermind on the MASTER Cigarettes. I would hold therefore that Mastermind had no goodwill to protect in the MASTER trademark as yet. This gives the third issue a negative answer.

The fourth issue is whether TCC had been engaged in unfair competition against Mastermind? Miss Kasonda, launched her submission on this issue by quoting section 20(1)(a) of the Fair Trade Practices Act number 4 of 1994. She submitted that the registration of SAFARI-label which is similar to MASTER was intended to drive Mastermind out of business, especially considering that TCC had attempted in vain to register the MASTER trademark in its own name in full knowledge that that name came from Mastermind's own name. She said this amounted to unfair competition.

Mr. Mnyele, submitted that according to the evidence of PW2 and PW3, the Safari cigarettes have never been introduced into the market. And even DW1 confirmed that TCC was selling SAFARI cigarettes as MASTER cigarettes.

It is clear from the submissions of the learned Counsel that the learned Counsel's submissions had crossed paths on this issue. Whereas Mr. Mnyele's submission is based on the fact that the SAFARI Cigarettes have not yet been introduced in the market to amount to unfair competition, Ms. Kasonda's submission is benchmarked on the provisions of section 20(1)(a) of the Fair Trade Practices Act number 4 of 1994.

The point introduced by Ms Kasonda is one of law. Although it can be accommodated in the fourth issue to the counterclaim, it was not directly tackled by Mr. Mnyele in his submission.

The stance taken by Mr. Mnyele in not replying to the substance of Ms. Kasonda's submission, cannot, in my view, be taken to mean that the issue was unpleaded. The issue in this case was framed and, Mr. Mnyele's omission was sufficiently indicative that he had left that point to the Court for decision. I am fortified on this position by the observations of the Court of Appeal of Tanzania in *Agro Industries Ltd v. Attorney General* (15). I find it imperative therefore for me to decide on that point of law, although not traversed at all by Mr. Mnyele.

I think it is true that the intention of the Fair Competition Act is to encourage competition in the economy by prohibiting restrictive practices, among other objects. And it is correct that section 20 restricts predatory trade practice if that person does so with the intention.

> (a) to drive a competitor out of business, or to deter a person from establishing a competitive business in the country or in any specified area of location within the country.

And section 20(3)(a) defines what a predatory trade practice means:

> A person sells or supplies or threatens to sell or supply goods or service at certain prices to be below their average variable cost, or intended to drive a competitor out of business or to deter a person from establishing a competing business in the country.

The criteria for determining whether a person's act is a predatory trade practice is the *"price"* whether current or future. The rest of sections 20(3)(b) to (e) are not relevant in the present case.

In the present case, it can no doubt be argued that by registering the SAFARI cigarettes, TCC may have threatened to supply the said cigarettes, but the missing link is the *"price"*. There is no evidence, as Mr. Mnyele has submitted whether those cigarettes were introduced in the market and if so, at what price. Thus section 20 of the Fair Competition Act (Chapter 285) is of no assistance in resolving the fourth issue. It has been prematurely introduced in the present case. Which leads me to the conclusion that since the SAFARI cigarettes had not been introduced in the market the question of unfair competition does not arise. Therefore the fifth issue is answered in the negative.

The last issues for both the main suit and the counterclaim are, to what reliefs are the parties entitled?

The Plaintiff's claim is based on infringement on its SAFARI trademark by the defendant, for which it prays for perpetual injunction, delivery of all manufactured/or imported cigarettes that infringe the trademark, general damages and costs. I have held above that although the Plaintiff had procured the registration of SAFARI label earlier than the defendant's MASTER and since the two get ups are confusingly similar to each other, and since the application for registration of the MASTER was made prior to that of SAFARI and was still pending when the SAFARI was registered, I declare that the SAFARI trademark was fraudulently and/or otherwise by mistake wrongly registered *vis-a-vis* the MASTER trademark. And since infringement is protected by registration, and by that, I mean lawful registration, and since fraud vitiates everything, the Plaintiff had no trademark in law in

the name of the disputed SAFARI which could be infringed. Therefore the Plaintiff has failed to prove its case on a balance of probabilities, and the suit is accordingly dismissed.

On the other hand, Mastermind's action is based on the common law tort of passing-off and unfair competition. I had held above that under common law a trader may maintain an action for passing-off even if the trademark is not registered. In the present case, although the MASTER trademark was eventually registered, its registration was not in accordance with the law, and therefore unlawful, but by reason of it having filed an application for registration of the trademark earlier than TCC'S SAFARI Mastermind had a prior right of use to the trademark which happened to be confusingly similar to SAFARI. Therefore Mastermind had a *prima facie* right to protect its trademark from passing-off. However to prove the tort of passing-off, one has to further prove that he had goodwill in the products that are alleged to be passed off.

In my judgment, Mastermind had not yet acquired any goodwill in the MASTER cigarettes when it launched the counterclaim. Without goodwill no action for passing off can succeed.

As to unfair competition since SAFARI cigarettes had not yet been put on the market and its prices known, no predatory trade practice has been established under the Fair Competition Act 1994 and therefore there was no evidence of unfair competition. That leg of the counterclaim too fails. Consequently the whole of the counterclaim fails and it too, is dismissed.

Before I pen off let me make a few remarks. From the look of things it appears to me that the parties have instituted their claims prematurely without first exhausting the machinery established within the offices of the Registrar of Trade and Service Marks, instanced by the pending Notice of Opposition filed by the Plaintiff. Their claims are to some extent, like premature babies whose proper place is the incubator who for this purpose is the Registrar, so that their

matters can, be regularized. And the Registrar could do well to assume and exercise his statutory duties in whatever area that has not been finally determined in this judgment.

Last, but not least, I would like to express my sincere gratitude and appreciation to the learned Counsel who have exhibited immense industry and invested valuable input in prosecuting the interests of their clients and in assisting this Court.

After so saying, I now proceed to pronounce that both the suit and the counterclaim are dismissed and each party shall bear its own costs.

Order accordingly.

SEIF AZIZ *v.* REPUBLIC

HIGH COURT OF TANZANIA AT DODOMA

(Mjasiri, J)

CRIMINAL APPEAL No. 15 OF 2003

(From the decision of the District Court of Dodoma at Dodoma, S.J. Awasi, Senior Resident Magistrate, in Traffic Case number 1 of 2003)

Road Traffic – Dangerous driving causing death – Distance at which the lorry traveled after the detachment of the wheel to the place where the lorry overturned – Whether distance is conclusive proof of driving at high speed sufficient to sustain a conviction.

The appellant was charged and convicted of the offence of causing death through dangerous driving contrary to sections 40(1)(d) and 63(2) of the Road Traffic Act, 1973 as amended by Act number 16 of 1996. The appellant was sentenced to three years' imprisonment and his driving licence was cancelled. Being dissatisfied with

the decision of the District Court the appellant appealed to this Court on the ground that the Trial Court erred in law and in fact in deciding that the prosecution did prove the charge beyond reasonable doubt;

Held: (i) A Court should not convict a person of dangerous driving when the finding of dangerous driving is based solely on opinion evidence about his speed, where such opinion is arrived at on quite insufficient data.

(ii) The prosecution has failed to prove the case beyond reasonable doubt.

Appeal allowed

Cases referred to:

(1) *Samuel Mbwambo v. Republic* (HC) Dodoma Registry, Criminal Appeal number 60 of 2002 (unreported)

(2) *Khalif v. Republic* [1973] EA 364

Statutory provision referred to:

(1) Road Traffic Act 1973, sections 40(1), 27(1)(d) and 63(2)

Mr. Nyabiri for the appellant

Mr. Mayeye for the Republic

JUDGEMENT

(Delivered 5 December 2005)

Mjasiri, J: The appellant Seif Aziz was charged and convicted of the offence of causing death through dangerous driving contrary to sections 40(1), 27(1)(d) and 63(2) of the Road Traffic Act 1973 as amended by Act number 16 of 1996. The appellant was sentenced to three years' imprisonment and his driving licence was cancelled.

Being dissatisfied with the decision of the District Court the appellant has appealed to this Court against both conviction and sentence.

The appellant filled the following ground of appeal.

That the Trial Court erred in law and in fact in deciding that the prosecution did prove the charge beyond reasonable doubt

The appeal was argued by way of written submission.

The facts of the case in a nutshell are as follows. The accused person was driving a motor vehicle (Scania Lorry) with registration number TZM 9628 at Mbwanga Village in Dodoma Municipality at around 20:45 hours. The motor vehicle was involved in an accident causing the death of one of the passengers.

It was alleged by the prosecution that the appellant drove the said motor vehicle in a manner which with regard to all the circumstances of the case was dangerous to the public road, to which he drove at a high speed while knowing that the rear tyre of the said motor vehicle was not tightened properly causing rear tyre to come off, the motor vehicle to overturn causing the death of the deceased who was a passenger.

The prosecution called two witnesses. PW1 was a police officer motor vehicle inspector and PW2 a traffic policeman.

Mr. Nyabiri, counsel for the appellant, submitted that the Court grossly erred in convicting the appellant. According to the counsel for the appellant the Court convicted the accused person on evidence which was not substantiated and was merely speculative. According to counsel for the appellant no evidence was presented in Court as to the actual speed the motor vehicle was being driven. The Court merely accepted the testimony of PW2 which was based on the distance where the detached wheel was found from where the lorry had overturned. The Court also accepted the evidence of PW2 that the studs were not properly tightened hence the appellant was negligent.

According to Mr. Nyabiri the distance at which the lorry traveled after the detachment of the wheel to the place where the lorry overturned cannot be conclusive proof of high speed. Mr. Nyabiri brought to the attention of this Court the case of *Samuel Mbwambo v. Republic* (1) where it was held as follows:

True that the deceased was found at a distance of about 59 feet from the point of impact, but that in itself cannot be taken as a conclusive proof that the appellant was driving beyond the speed limit prescribed in the relevant Traffic Regulation covering the area where the accident happened.

Counsel also cited the case of *Khalif v. Republic* (2) where it was held as follows:

The offence of dangerous driving is not an absolute offence. There must be some fault of the driver.

The learned State Attorney Mr. Mayeye did not support the conviction. His reasons for not supporting the conviction are based on the following reasoning. A conviction for dangerous driving cannot stand unless the driver is guilty of some act or omission which was a departure from the standard of driving expected of a reasonable prudent driver. According to Mr. Mayeye PW2 testified that the appellant was driving at a high speed because of the 132 feet distance from where the wheel was detached to where the motor vehicle was overturned. No evidence was provided to show that the detachment of the wheel was the fault of the driver.

On going through the evidence on record, PW2 was not present at the scene when the accident took place. The Trial Court's decision was based on the testimony of PW2. The learned trial magistrate concluded that the motor vehicle was driven at a high speed based on the distance where the rear wheel was detached and the distance the motor vehicle overturned.

On the basis of that conclusion the learned trial magistrate reached a finding that the accused was driving at a high speed. I am inclined to agree with the submission made by both the learned State Attorney and the Counsel for the accused that no solid evidence has been brought before the Court that the appellant was driving at a high speed. Had the learned Resident Magistrate addressed himself on the requirements of the law in respect of the offence of dangerous driving and had he, the learned Resident Magistrate taken into account the requirements under the law, he would have arrived at a different

conclusion. It is unfortunate that the deceased lost his life in the accident.

In the case of *Daya v. Republic* (3) it was held as under:

> A Court cannot convict a person of dangerous or careless driving when the finding of dangerous or careless driving is based solely on opinion evidence about his speed, where such opinion is arrived at on quite insufficient data.

In view of what has been stated hereinabove, it is my finding that the prosecution has failed to prove the case beyond reasonable doubt.

I therefore find the appeal to have merit and it is hereby allowed. The conviction is quashed, the sentence of 3 years imprisonment as a result of the conviction is hereby set aside accordingly. The appellant, who has been released on bail pending the appeal, should continue to enjoy his liberty unless restrained for any other lawful reason.

ABDUL-ABDUL-BAAD TIMIM *v.* SMZ

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Ramadhani, Lubuva and Munuo, JJA)

CRIMINAL APPEAL No. 185 OF 2005

(From the Decision of the High Court of Zanzibar at Zanzibar, Mbarouk, J., dated 13 June 2005, in Criminal Appeal number 24 of 2004)

Evidence – Witness – Expert witness – Whether opinion of an expert witness can override credible and trustworthy evidence of an eye witness.

Evidence – Medical evidence – Adverse medical evidence – Whether conclusive as against the evidence of a credible eye witness.

The appellant who was coming from Pakistan was suspected of being in possession of dangerous drugs. He was arrested at the Zanzibar Airport, taken to hospital for x-ray. When taken to the Police Headquarters he passed from his bowels a total of 70 pellets of heroine. Eye witnesses testified to the effect that the appellant was found in possession of 70 pellets of heroine. However, the x-ray report was not produced in evidence. The Regional magistrate's Court convicted the appellant and sentenced him to 20 years imprisonment. On appeal to the High Court he was not successful. In this appeal to the Court of Appeal he charged that the Lower Courts did not consider expert medical opinion, namely that the x-ray report was not tendered in evidence thereby entitling the Court to make adverse inference, which in turn should have overridden eyewitness evidence.

Held: (1) When the evidence of the eye-witness is found to be credible and trustworthy, medical opinion pointing to alternative possibilities is not accepted as conclusive;

(2) Once credibility is settled, then even adverse medical evidence will not be taken to be conclusive as against the evidence of an eyewitness;

(3) Where there is no medical evidence at all, as in this case, then there is nothing to challenge the evidence of the eyewitness.

Appeal dismissed

Statutory provisions referred to:

(1) Dangerous Drugs Act, 1986, sections 23, 32(1)

Mr. Ussi for the appellant

Mr. Khamis for the respondent

JUDGMENT

(Dated 8 December 2005)

Ramadhani, JA: The appellant, Abdul-Abdul-Baad Timim, was coming from Pakistan on 27 February 2001 when he was stopped at the Zanzibar Airport and was searched. He was not found with anything in his bags. So, he was taken to hospital for x-ray whose results were not disclosed. Eventually he was taken to the Police Headquarters where

he passed from his bowels a total of 70 pellets of heroine. That is the gist of the evidence of D/C Mosi Madafu (PW 4), D/C Hamad Fikira (PW 6) and D/C Ramadhani (PW 7). The three witnesses gave the 70 pellets to Sgt. Mwaka Mrisho (PW 8) who took them to the Government Chemist, Abdalla Musa Juma (PW 1), and he testified that the pellets were heroine.

The learned Regional Court Magistrate was satisfied with that evidence and he convicted the appellant with the offence of possession of dangerous drugs contrary to sections 23 and 32(1) of the Dangerous Drugs Act, 1986, as amended by Act number 6 of 1997. The appellant was sentenced to imprisonment for a term of 20 years. His appeal to the High Court of Zanzibar (Mbarouk, J.) was dismissed. This is his second appeal. He was advocated for by Mr. Ussi Khamis Haji, while the respondent/ DPP was represented by Mr. Khamis Kombo, assisted by Mr. Rashid A. Fadhil, learned State Attorneys.

Mr. Ussi had six grounds of appeal but he argued five grounds. He started with ground two which states that as the x-ray investigation did not disclose any foreign body in the appellant's stomach, then the appellant could not have discharged the pellets (Exh. P3). We better point out here that Mr. Ussi conceded that there is no prosecution witness who said that the x-ray did not disclose any foreign body in the appellant's stomach. That was said by the appellant. However, the failure to produce the x-ray report could raise an adverse inference.

Mr. Khamis responded by saying that expert opinion cannot override eyewitness evidence. We agree with him and with the authority he referred to us of **Sarkar on Evidence** by Sudipto Sarkar and V.R Monohar, (1999, 15 ed.) at page 908:

> When the evidence of the eye-witness is found to be credible, and trustworthy, medical opinion pointing to alternative possibilities is not accepted as conclusive.

The vital issue is the credibility of the prosecution witnesses. We shall turn to this shortly. Once credibility is settled then even adverse medical evidence will not be taken to be conclusive as against the evidence of the eyewitness. We hold that where there is no medical

evidence at all, as in this case, then there is nothing to challenge the eyewitness evidence.

Admittedly, there is an issue of adverse inference that the prosecution was hiding something by not producing x-ray report. But we say that the prosecution does not have to produce all the evidence in their possession unless non-disclosure would operate injustice to the accused person. In the present case we are of the decided opinion that no injustice was occasioned to the appellant. Any x-ray report would only have indicated whether or not there was a foreign body in the appellant's bowels but would not have specified whether or not that foreign body was heroine.

We might as well deal here with the third ground of appeal which attacked the introduction of matters not contained in evidence Mbarouk, J. said:

> After all I am of the view that direct evidence is much more reliable compared to x-ray expert evidence. This is because experience has shown that there is great possibility that x-ray machines especially at Mnazi Mmoja Government Hospital do break down or have some defects.

Now, there was no evidence of that at all and we do not agree with Mr. Khamis that the learned Judge was just taking judicial notice. However, we are at one with the learned judge that direct evidence is much more reliable and as we have already said it all depends on the credibility of the eyewitneses. Mr. Ussi has not challenged the trustworthiness of PWs 4, 6 and 7, the key witnesses here.

In ground four Mr. Ussi averred that PWs 4, 6 and 7 failed to identify the pellets in Court. That is correct as Mr. Khamis also conceded. PW 4 said that the pellets did not have any distinguishing marks and that if other pellets of similar colour were produced he would not have differentiated them. However, identification in Court is not important at all in this case. What is crucial to this case is the chain of the handing over of the pellets from the delivery from the appellant's bowels to the Government Chemist, PW 1. That was unbroken and Mr. Ussi conceded that far.

> in the custody of such officer or at any stage of the proceedings before such Court to give bail, such person may be admitted to bail [emphasis is ours].

That provision prohibits bail where a person is charged with "armed robbery". The Regional Court refused to grant bail because of that provision. It was the duty of Mwampashi, SRM (Ext Juris), to determine whether or not there is an offence of "armed robbery" in the penal law of Zanzibar. So, when Mwampashi, SRM, decided that there was no such offence then that determined finally the charge against the respondent. So, according to Mwakibete the only remedy for the DPP was that of appeal.

However, in *Mwakibete* this Court also said

> The Court of Appeal can be moved to use its revisional jurisdiction under section 2(3) of the Appellate Jurisdiction Act 1979 only where there is no right of appeal, or where the right of appeal is there but has been blocked by judicial process, *and lastly, where the right of appeal existed but was not taken, good and sufficient reasons are given for not having lodged an appeal.* [emphasis added]

So, revision can be resorted to even where there is a right of appeal if there is a good and sufficient reason. Was there such a reason in this case?

Mr. Msemo said that at the time the application was made there was an unprecedented wave of armed robbery in Zanzibar and the DPP was of the opinion that there was a sheer need for a speedy determination of the matter. So, the DPP made this application under a Certificate of Urgency which was granted by the Honourable the Chief Justice. Mr. Mbwezeleni countered that by saying that the reason advanced is an afterthought as the same is not contained in the affidavit in support of the certificate of urgency.

Admittedly, the affidavit does not contain a paragraph couched so explicitly as what Mr. Msemo articulated in his submission before us. But it is our considered opinion that that submission was required

at this stage when the Court has to make a decision whether or not revision is the proper remedy. The propriety or otherwise of revision is not decided by the Hon. Chief Justice. The affidavit was sufficient enough to persuade the Chief Justice that there was a need for determining the matter urgently and that is all that was required before him.

We are of the decided opinion that a good and sufficient reason has been given for preferring revision to appeal as the former venue is speedy and that is what was aimed at. So, we agree with the learned State Attorney. However, that speed was not realized because on the day the application was set for hearing in Dar es Salaam, 6 April 2005, the respondent could not afford the expenses of attending that session, so, the application, was adjourned for six months to this session of October here in Zanzibar.

Now, does the offence of "armed robbery" exist in Zanzibar? Mr. Msemo argued that section 285 of the Penal Act, 2004, defined the offence of robbery and that section 286 prescribes punishment for robbery which is made stiffer where "the offender is armed with any dangerous or offensive weapon or instrument". This couples with the categorical prohibition of bail in case of armed robbery by section 150(1) of the Criminal Procedure Act, 2004, leads to the irresistible inference that there is an offence of "armed robbery" but that it has not been so articulated. He referred us *Michael Joseph v. R.* (2). Mr. Mbwezeleni, on the other hand, argued that section 285 of the Penal Act, 2004, creates the offence of robbery and that section 286 (2) merely enhances the punishment where arms are used but that does not mean that an offence of "armed robbery" has been created.

It is abundantly clear to us that section 285 of the Penal Act, 2004, defines robbery and so creates that offence. Then section 286(2) enhances the punishment of those convicted of robbery and who in executing their crime were "armed with any dangerous or offensive weapon or instrument". That cannot be stretched to mean that a new offence of "armed robbery" has been created. It is our considered

opinion that those two sections, even when read together, cannot be said to create the offence of "armed robbery".

Mr. Msemo submitted that section 162(3) of the Criminal Procedure Act, 2005, takes care of the situation where the law has not given a specific name to an offence. Mr. Mbwezeleni said that that section is inapplicable. Section 162 deals with the content of a charge. We better cite all the relevant provisions of that section:

1. Every charge under this Act shall state the offence with which the accused is charged with brief particulars of the offence.

2. If the law which creates the offence gives it any specific name, the offence may be described in the charge by that name only.

3. If the law which creates the offence does not give it any specific name, so much of the definition of the offence must be stated as to give the accused notice of the matter he or she is charged.

4. The charge shall state the law and section of the law against which the offence is said to have been committed.

It is obvious that the Penal Act, 2005, does not give a name of the offence where an accused person was "armed with any dangerous or offensive weapon or instrument" as required by subsection (2). That is why Mr. Msemo sought to apply subsection (3).

Our reading of subsection (3) is that there are three factors:

(i) There must be a law creating an offence.

(ii) That law does not give a specific name for that offence.

(iii) Then, so much of the definition of that offence has to be used in the charge sheet to enable the accused person to know the charges against him.

We have not seen any law which creates the offence of "armed robbery" so the first requirement is absent. Since the offence has not been created then a name cannot be given to a non entity. The third requirement also is not available. Mr. Msemo was not able to tell us from which

law can we get the definition of armed robbery. Section 287(2) of the Penal Act, 2004, merely provides for enhanced punishment in the case of aggravated robbery. So, we agree with Mr. Mbwezeleni that section 162(3) does not apply at all in this case.

This Court in *Michael Joseph* provided a definition of 'armed robbery' in the following terms:

Though there is no express and specific definition of what constitutes 'armed robbery' it is clear that if a dangerous or offensive weapon or instrument is used in the course of a robbery such constitutes 'armed robbery' in terms of the law as amended by Act number 10 of 1989.

This Court was very careful in that it did not say that there is no express and specific definition of the offence of 'armed robbery'. But it dealt with what constitutes 'armed robbery' and in terms of Act number 10 of 1989 which is the law that has enhanced punishment for robbery in the case where arms have been used. This law is equivalent of section 286(2) of the Penal Act, 2004.

In that appeal, this Court was emphatic that "Otherwise, the basic definition of robbery still remains as provided for under the Penal Code". That is what is provided in section 285. We do not think that decision can be taken as an authority for establishing the offence of "armed robbery". In fact section 286(2) providing enhanced punishment for aggravated robbery does not at all use the phrase "armed robbery". That phrase is used in section 150(2) in refusing bail to that offence which does not exist.

What was before this Court in *Michael Joseph* was whether a knife is one of such weapons which, if used would call for sterner punishment for robbery. This Court said at page 281 "In the instant case, the weapon used was a knife which as already indicated is a dangerous or offensive weapon".

This Court has said in a number of times that the enhanced punishment for aggravated robbery under Act number 10 of 1989 of Tanzania is

Cases referred to:

(1) *Moses J. Mwakibete v. The Editor, Uhuru and Shirika la Magazeti ya Chama and National Printing Co. Ltd.* [1995] T.L.R. 134

(2) *Michael Joseph v. R.* [1995] T.L.R. 278

Statutory provisions referred to:

1. Penal Act, 2004, sections 285, 286 & 287.
2. Appellate Jurisdiction Act 1979, as amended by Act 17 of 1993, section 5(2)(d) .
3. Criminal Procedure Act, 2004, sections 150 (1) and 162(3).

Mr. Msemo S. Mavare and *Mohamed H. Hamad* for the appellant

Mr. Mbwezeleni for the respondent

RULING

(Dated 13 December 2005)

Ramadhani, JA: The respondent, Salum Ali Juma, who was charged with armed robbery contrary to sections 285 and 286(2) of the Penal Act, 2004 (Act number 6 of 2004) in the Regional Court at Vuga, Zanzibar, was refused bail because section150(1) of the Criminal Procedure Act, 2004, (Act number 7 of 2004) prohibit bail in cases of armed robbery. So, he went to the High Court where Mwampashi, SRM (Ext. Juris.) held that there is no offence of "armed robbery" under the Penal Act, 2004.

Being aggrieved by that holding, the DPP has sought this application for revision and he was represented by Ms. Salma Ali Hassan, while the respondent was in person. As there are legal considerations involved, we adjourned the matter and gave a Court brief to Mr. Hamidu Mbwezeleni, learned advocate. We directed the learned State Attorney and Mr. Mbwezeleni to come and address us whether this should not have been an appeal instead of an application for revision.

When the matter came up again, the DPP was represented by Mr. Msemo S. Mavare, learned State Attorney, who was assisted by Mr. Mohammed H. Hamad, learned State Attorney. He submitted that the Ruling of Mwampashi, SRM, is both appellable and subject to revision. He argued that the ruling was interlocutory and did not determine the matter finally and, so, it is not appellable under section 5(2)(d) of the Appellate Jurisdiction Act, 1979, as amended by Act number 17 of 1993, which prohibits appeals against interlocutory decisions. So, he submitted, the only venue open to the DPP was revision.

Mr. Msemo also said that even if it is taken that the decision of Mwampashi, SRM, was not interlocutory and, therefore, the remedy was an appeal, the DPP, he argued, is invoking revision *in lieu* of appeal under the authority of *Moses J. Mwakibete v. The Editor Uhuru, Shirika la Magazeti ya Chama and National Printing Co. Ltd.* (1) because there is a good and sufficient reason for doing so.

Mr. Mbwezeleni in reply said that the decision of Mwampashi, SRM (Ext. Juris) was not interlocutory but that it finally determined the matter. The learned advocate said that when the learned Magistrate ruled that the Penal Act does not provide for an offence of "armed robbery" that was the end of the proceedings. What is now before the Regional Court is another charge of "robbery". So, Mr. Mbwezeleni submitted, only an appeal is open to the DPP and not revision.

It is our well considered opinion that the ruling of Mwampashi, SRM (Ext Juris) that the crime of "armed robbery" is not in the statute books of Zanzibar, was not interlocutory but finally determined the matter before him and the Regional Court.

Section 150(1) of Criminal Procedure Act, 2004, prohibits bail in the following terms:

> When any person, other than a person accused of murder or treason or armed robbery or possession of firearms or drugs trafficking, is arrested or detained without warrant by an officer- in-charge of a police station, or appears or is brought before a Court, and is prepared at any time while

Mr. Ussi pointed out in ground five of appeal that the learned trial Magistrate contradicted himself on whether or not there was a possibility of tempering with the pellets during the handing over. Equally Mr. Ussi was right when he complained about the remarks of Mbarouk, J. that Mr. Ussi had put words in the mouth of the trial Magistrate.

The learned Magistrate at one place said "I can not also rule out the possibility of tempering with the exhibit for those ten days the police stayed with the exhibits". Later on he said:

> In this case it is my believe [*sic*] that the prosecution witness did not temper with the exhibits before sending the same to the Government Chemist as there is no circumstance which convences [*sic*] me to believe that.

We are satisfied that the problem is more with the power of expression and that pertains to the mastery of language and not to contradiction. As for the learned judge it is our considered opinion that he overlooked the first statement of the learned Magistrate.

Finally, in ground one Mr. Ussi submitted generally that the appelant's guilt was not established beyond reasonable doubt. We agree with Mr. Khamis that the evidence of PWs 4, 6 and 7 is above-board. The learned trial Magistrate believed them and in the first appeal the learned judge upheld that finding. Nothing has been shown to us to discredit the witnesses and disagree with the unanimous finding of the two Lower Courts.

For the reasons given above this appeal is dismissed in is entirety.

DIRECTOR OF PUBLIC PROSECUTIONS *v.* SALUM ALI JUMA

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Ramadhani, Lubuva and Munuo, JJA)

CRIMINAL APPLICATION No. 2 OF 2005

(From the decision of the Regional magistrate's Court of Zanzibar at Vuga, Mwampashi, SRM, Extended Jurisdiction, dated 15 February 2005 in Criminal Application no. 2 of 2005)

Criminal Law – Armed Robbery – Whether there is an offence of "armed robbery" –sections 285 and 286(2) of the Penal Act, 2004 [Z].

Criminal Practice and Procedure – Revision – Whether revision can be resorted to where there is a right of appeal – section 2(3) of the Appellate Jurisdiction Act, 1979.

The respondent who was charged with armed robbery contrary to sections 285 and 286(2) of the Penal Act, 2004 in the Regional Court at Vuga, Zanzibar, was refused bail because section 150(1) of the Criminal Procedure Act, 2004 prohibit bail in cases of armed robbery. He went to the High Court which ruled that there is no offence of "armed robbery" under the Penal Act, 2004. Being aggrieved by this holding the DPP applied for revision in the Court of Appeal.

Held: (i) Revision can be resorted to even where there is a right of appeal if there is a good and sufficient reason for doing so;

(ii) There is no law which creates the offence of "armed robbery"; section 286(2) of the Penal Act, 2004, merely provide for enhanced punishment in the case of aggravated robbery.

Application dismissed

RULING

(Dated 16 March 2006)

Nsekela, JA: This is an application for the "suspension and stay" of the interim Order of the High Court (Commercial Division) in Commercial Case number 92 of 2005 (Dr. S.J. Bwana, J.) issued on the 19 October 2005. The application was brought under a Certificate of Urgency and the Court was moved by the applicant, Selcom Gaming Limited, under Rules 3(2)(a) and (b) read together with Rule 9(2)(b) of the Court of Appeal Rules, 1979.

At the hearing of the application, Mr. D. Kesaria, learned advocate, represented the applicant; Mr. G.M. Kilindu, learned advocate, represented the first respondent, Gaming Management (T) Limited and Mr. E.D. Kisusi, learned advocate, represented the second respondent, Gaming Board of Tanzania.

In the High Court (Commercial Division) the first respondent, Gaming Management (T) Limited, instituted Commercial Case number 92 of 2005 against the second respondent, Gaming Board of Tanzania, seeking *inter alia:*

1. a declaration that the second respondent's act of allowing M/S Selcom Tanzania Ltd. to operate a sub-licence under the national lottery independently and without being under the auspices of the first respondent is unlawful;
2. an order enjoining the second respondent direct, oversee and compel M/S Selcom Tanzania Limited to conduct its activities under the sub licence under the auspices and direction of the first respondent;
3. An order enjoining the second respondent to compel M/S Selcom Tanzania Limited to enter into a contract to conduct its activities under the sub licence under the auspices and direction of the first respondent;

4. A declaration that the sub licence granted to SMS Tanzania Limited by the second defendant is illegal and void for being contrary to public policy and good morality;
5. An order restraining the second respondent from granting a sub-licence in respect of SMS lottery licence except under the auspices of the national lottery licencee.

The Notice of Motion by the applicant, Selcom Gaming Limited, seeks to "suspend and stay" the interim order made by Dr. S.J. Bwana, in Commercial Case number 92 of 2005 dated the 19 October 2005. This Ruling concerned a Chamber Summons made under sections 68(c) and (5) and Order XXXVII Rule 2 of the Civil Procedure Act. The parties to this application for injunctive orders were Gaming Management (T) Ltd. (first respondent) and Gaming Board of Tanzania (second respondent). In his Ruling, the learned judge, stated *inter alia,*

> Therefore I grant an interim Order restraining the respondent-Gaming Board of Tanzania its licencees, sub-licencees, servants, agents from continuing operation of an SMS Online National Lottery pending the hearing and determination of the main suit.

This is the Order which the applicant herein is seeking to be "suspended and stayed". In essence, the applicant is seeking for an order of stay of execution of the interim injunction made by the learned judge on the 19 October 2005. *Vesra and Paladin Ingra v. Ivan Makobrad* (1). The conditions which the applicant was to satisfy the Court included:

(i) balance of convenience;

(ii) the prospects of success of the intended appeal;

(iii) if applicant would suffer substantial and irreparable loss if execution takes place;

(iv) if the judgment or decision against which it is intended to appeal is problematic.

Mr. Kesaria stressed however that in exercising its discretion the Court takes into account the individual circumstances and merits of each case.

On his part, Mr. Kilindu, learned advocate for the first respondent, strongly resisted the application. He submitted that the application cannot be entertained as the Court Rules stand now. The rules as they are only apply to appeals and so the application before the Court was incompetent and should be dismissed. To bolster up his argument, the learned advocate referred to Civil Application number 72 of 2000, *NBC Holding Corporation v. Grace Ndeana* (2). As regards the substantive application, Mr. Kilindu submitted to the effect that the order of the High Court had been complied with. He relied on the passage from Civil Appeal No.16 of 1995, *National Bank of Commerce v. Dar es Salaam Education and Office Stationery* (3) wherein this Court stated:

> In this case, the matter had already been carried beyond the stage in which the restraining relief being sought would serve any purpose. That is, the house had already been sold in which case there was nothing from which the appellant would be restrained to do. The sale having taken place, any measure aimed at preventing the sale from taking place would be an exercise in futility.

He also cited *M/s Ilabila Industries Limited and Two others v. Tanzania Investment Bank* (4) and *Athanas Albert and Four Others v. Tumaini University, Iringa University College* (5). On whether or not the intended application for revision has any chances of success, Mr. Kilindu submitted that it was too early at this moment for the Court to make an informed comment and referred to *Millan Zinduadis v. Abdul Hakim and another* (6). As regards the allegation that the applicant is bound to suffer irreparable loss, Mr. Kilindu submitted that the applicant had not particularized the loss and in any case, the applicant could be compensated for any monetary loss that he would suffer. Mr. Kilindu implored the Court not to make any comment at this stage on whether or not the applicant was granted the right to

be heard before the learned judge made the interim injunctive order. In his view this issue should be raised when the application for revision is being determined. Lastly, the learned advocate submitted that an injunction cannot be stayed unless there are exceptional circumstances. In support of this proposition, Mr. Kilindu referred to a renowned text-book, **Kerr on Injunctions** (6 ed) by J.M. Paterson at page 334 where the learned author has this to say:

> The Court has a discretion to stay proceedings pending an appeal, but the general rule is that in the case of an injunction a stay will not be granted. But each case depends largely upon its own special circumstances.

Mr. Kisusi, learned advocate for the second respondent, fully associated himself with the submissions made by Mr. Kesaria, learned advocate for the applicant. As an additional ground in support of the application he referred to paragraphs 2 and 7 of the affidavit by James Bakinege Mbalwe to the effect that the licence issued to the first respondent expired on the 31 October 2005 and that it was this licence which was the basis for obtaining the interim injunctive order.

The first hurdle that the applicant has to jump over, is the competency of the application as raised by Mr. Kilindu. The applicant is not a party to Commercial Case number 92 of 2005 now before the High Court. Consequently, the applicant cannot invoke Rule 9(2)(b) of the Court Rules since the applicant does not qualify as "any person" who is involved in the original suit and therefore who can file a Notice of Appeal. (See: *Attorney-General v. Kadau* (7)).

As stated before the applicant also sought to move this Court by invoking Rule 3(2)(a) and (b) of the Court Rules which provides:

> (2) where it is necessary to make an order for the purposes of:
>
> (a) dealing with any matter for which no provision is made by these Rules or any other written law;
>
> (b) better meeting the ends of justice; or

only available if the particulars of the offence give details of the weapons used in committing robbery. To steer clear of problems we advise the DPP to seek to amend the Penal Act, 2005, so that there is specifically an offence of armed robbery and it be defined as such.

We cannot fault the learned SRM (Ext. Juris) in his finding. The revision, to that extent, fails.

SELCOM GAMING LIMITED *v.* GAMING MANAGEMENT (T) LTD AND GAMING BOARD OF TANZANIA

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Nsekela, JA)

CIVIL APPLICATION No. 175 OF 2005

(Application for suspension and stay of the interim Order of the High Court of Tanzania, Commercial Division at Dar es Salaam, Dr. Bwana, J., dated 19 October 2005, in Commercial Case number 92 of 2005)

Civil Practice and Procedure – Judicial Discretion – Exercise of judicial discretion – Whether exercise of discretion by a Court before which an application is made and heard may be interfered with by a higher Court.

Natural Justice – Right to be heard – Plaintiff granted a prayer for interim injunctive order against defendant – Order adversely affects the applicant who was not a party to the suit and was not heard before the order was granted – Breach of natural justice.

In a Commercial Case before the High Court, the first respondent Gaming Management (T) Limited, instituted a suit against the second respondent, Gaming

Board of Tanzania, seeking, *inter alia*, a declaration that the second respondent's act of allowing the Applicant, Selcom Gaming Limited, to operate a sub licence under the national lottery independently and without being under the auspices of the first respondent was unlawful, an order enjoining the second respondent to direct, oversee and compel the applicant to conduct its activities under the auspices and direction of the first respondent; and an order restraining the second respondent from granting a sub-licence except under the auspices of the national lottery licencee. The first respondent then made an application under sections 68(c) and 95 of the Civil Procedure Code for an interim injunctive order to restrain the second respondent and its licencees and sub-licencees from continuing to operate an SMS online national lottery pending hearing and determination of the main suit between the two respondents. The High Court granted the temporary injunction which adversely affected the interests of the applicant, who was not a party to the commercial suit or to the application in which the order was granted. The applicant then filed this application before the Court of Appeal, praying for the "suspension and stay" of the interim temporary injunction order of the High Court pending Revision by the Court of Appeal. The application was made under Rules 3(2)(a) and (b) and 9(2)(b) of the Court of Appeal Rules, 1979. The first respondent resisted the application on grounds, *inter alia,* that the execution of the interim order had already been carried out; that in any case the application was incompetent as the applicant was not an appellant, and that the order was as the result of the trial Judge's exercise of discretion which could not be called in question by the appellate Court.

Held: (i) The applicant was not a party to the Commercial Case then before the High Court and therefore could not invoke Rule 9(2)(b) of the Court of Appeal Rules 1979 because the applicant was not "any person" who is involved in the original suit and who could therefore file a Notice of Appeal;

(ii) Rule 3(2)(a) and (b) of the Court of Appeal Rules 1979 provides that where it is necessary to make an order for the purposes of dealing with any matter for which no provision is made by the Rules or any other written law, or for the better meeting the ends of justice, the Court may, on the application of a party or on its own motion, give directions as to the procedure to be adopted or make any other order which it considers necessary; as there was no provision in the Court Rules governing an application for stay of execution pending revision, the Court invoked Rule 3(2)(b) in entertaining the application as a competent application;

(iii) The Court has discretionary powers to grant stay orders pending the determination of an appeal, and this is what is embodied in Rule 9(2)(b) of the Court Rules, now extended by decided cases of the Court to applications for revision;

(iv) An interlocutory injunction is a discretionary relief and the discretion to grant it or not is vested in the Court before which the application is made and an appellate Court must not interfere with the exercise of that discretion merely on the ground that the appellate Court would have exercised the discretion differently; but it may set aside the Trial Court's exercise of discretion on the ground that it was based on a misunderstanding of the law or the evidence before that Court, or upon an inference that particular facts existed or did not exist, or upon the ground that there has been a change in circumstances which would have justified the Court to vary the order;

(v) Sometimes reasons given by judges for granting or refusing interlocutory injunctions may be sketchy and there can also be occasional cases where even though no erroneous assumption of law or fact can be identified, the judge's decision to grant or refuse an injunction is so aberrant as to justify setting it aside on the ground that no reasonable judge regardful of the duty to act judicially could have reached it;

(vi) The prayer for the interim injunctive order was given without giving the applicant an opportunity to be heard, contrary to the cardinal principle of natural justice that a person should not be condemned unheard, a principle now embodied in article 13(6)(a) of the Constitution; no reasonable judge mindful of the duty to act judicially should have made such adverse order against the applicant.

Application granted accordingly

Cases referred to:

(1) *Miloslav Katik Vesra and Paladin Ingra v. Ivan Makobrad* (CAT) Civil Application number 66 of 1998 (unreported)

(2) *NBC Holding Corporation v. Grace Ndeana* (CAT) Civil Application number 72 of 200 (unreported)

(3) *National Bank of Commerce v. Dar es Salaam Education and Office Stationery* (CAT) Civil Appeal number 16 of 1995 (unreported)

(4) *M/s Ilabila Industries Limited and Two Others v. Tanzania Investment Bank* (CAT) Civil Application number 133 of 2004 (unreported)

(5) *Athanas Albert and Four Others v. Tumaini University College* (CAT) Civil Application number 50 of 1999 (unreported)

(6) *Millan Zinduadis v. Abdul Halim and Another* (CAT) Civil Applicatioin number 64 of 1997

(7) *Attorney-General v. Kadau* (1997) TLR 96

(8) *In re Overseas Aviation Engineering (G.B.) Ltd.* 1 Ch. 24

(9) *Shell BP Tanzania v. University of Dar es Salaam* (CAT) Civil Application number 68 of 1999 (unreported)

(10) *Hadmor Productions Ltd. & Others v. Hamilton and Another* (1983) 1 AC 191

(11) *District Executive Director of Rufiji District Authority v. Abbas S. Likonda* (CAT) Civil Application number 69 of 2003 (unreported) .

(12) *Abbas Sherally and Another v. Abdul Sultan Haji Mohamed Faza* (CAT) Civil Application number 133 of 2002, (unreported)

(13) *Mbeya Autoparts and Transport v. Jestina George Mwakyoma* (CAT) Civil Appeal number 45 of 200 (unreported)

Mr. D. Kesaria for Applicant

Mr. G.M. Kilindu for first respondent

Mr. E.D. Kisusi for second respondent

Statutory Provisions referred to:

(i) Rules 3 (2) (a) and (b) of the Court of Appeal Rules, 1979

(ii) The Appellate Jurisdiction Act, 1979

(iii) Constitution. Article 13(6)(a)

(c) the Court may, on application or on its own motion, give directions as to the procedure to be adopted or make any other order which it considers necessary.

These provisions empower the Court to make orders for the purpose of dealing with any matter for which provision is not made in the Rules or any other written law or for the better meeting the ends of justice. What is before me is basically an application for stay of execution of an interlocutory order made by the High Court pending revision of the Order of the High Court. When the Appellate Jurisdiction Act 1979 was amended by Act number 15 of 1993 vesting in the Court powers of revision, Rule 9(2) (b) was not amended to reflect the change in the parent Act. I can safely state that there is no provision in the Court Rules governing an application for stay of execution pending revision. I am therefore inclined to invoke Rule 3(2)(b) to entertain this in "better meeting the ends of justice". I therefore reject Mr. Kilindu's contention that the application before me is incompetent.

The applicant advanced five grounds seeking "suspension and stay" of the interim order issued on the 19 October 2005, namely:

1. The aforementioned High Court restraining and prohibition Order is problematic and has been erroneously issued.
2. There are good and sufficient reasons for suspending and staying the aforementioned order so as to protect and preserve the applicant's rights and interests.
3. The suspension and stay of the aforementioned High Court Order is necessary on the balance of convenience.
4. The application for revision of the High Court proceedings, Rulings and Orders filed by the applicant contemporaneously with this application has overwhelming chances of success.
5. The applicant stands to suffer irreparable loss and injury if the application herein is not granted.

Mr. Kilindu, learned advocate for the first respondent, strenuously submitted that a stay order cannot be granted where execution has already taken place. Such an order, he said, would be an exercise in futility. He cited *National Bank of Commerce v. Dar es Salaam Education and Office Stationery* (3) and *Athanas Albert and four others v. Tumaini University* (5). The learned advocate relied mainly on paragraphs 15 and 16 of Mr. Sameer Hirji's affidavit in support of the application. Paragraph 15 provides as follows:

15. As a consequence of the said Rulings, the applicant received a letter from the second respondent on the same day requiring the applicant to stop operating the SMS Lottery. In compliance with the second respondent's said letter the applicant on 19 October 2005 stopped all operations and activities relating to SMS lottery.

Admittedly, the High Court made the interlocutory order and the applicant had no option but to comply with a lawful order of the High Court, otherwise they would face possible charges of contempt of Court for non-compliance. The fact of the matter however is that the main suit in Commercial Case number 92 of 2005 has not been heard and determined. It is still being litigated in the High Court. It is not like a house which has already been sold to third parties, i.e. the substratum does not exist any more. In the case of *In re Overseas Aviation Engineering (G.B.) Ltd* (8) Lord Denning, M.R. stated thus:

"Execution" means, quite simple, the process for enforcing or giving effect to the judgment of the Court: and it is completed when the judgment creditor gets the money or other thing awarded to him by the judgment.

Obviously, the High Court has not as yet pronounced judgment in respect of Commercial Case number 92 of 2005. Before there is any execution there must be a judgment of the Court to be enforced. Execution is the final act, the satisfaction of the judgment. (See: *Shell and BP Tanzania Ltd. v. The University of Dar es Salaam* (9).

The second matter which I would like to discuss was also raised by Mr. Kilindu. In the course of his submissions, he referred the

Court to the following sentence culled from the learned author of **Kerr on Injunctions** (6 ed) at page 334 which reads:

> The Court has a discretion to stay proceedings pending an appeal, but the general rule is that in the case of an injunction a stay will not be granted. But each case depends largely upon its own special circumstances.

Unfortunately, the learned advocate did not elaborate on the point being made. My understanding is that a Court has discretionary powers to grant stay orders pending the determination of an appeal. This is what is embodied in Rule 9(2)(b) of the Court Rules and now extended by decided cases of this Court to applications for revision.

However, I am not sure whether or not this general rule applies to interlocutory orders, that is orders of a purely interim or temporary nature which do not decide the rights or liabilities of the parties, and what principles should apply in the exercise of the judicial discretion. I have found inspiration in *Hadmor Productions Ltd. and others v. Hamilton and another* (10) wherein Lord Diplock stated as under at page 220:

> An interlocutory injunction is a discretionary relief and the discretion whether or not to grant it is vested in the High Court judge by whom the application for it is heard. Upon an appeal from the judge's grant or refusal of a interlocutory injunction the function of an appellate Court, whether it be the Court of Appeal or your Lordships' House, is not to exercise an independent discretion of its own. It must defer to the judge's exercise of his discretion and must not interfere with it merely upon the ground that the members of the appellate Court would have exercised the discretion differently. The function of the appellate Court is initially one of review only.
>
> It may set aside the judge's exercise of his discretion on the ground that it was based upon a misunderstanding of the law or of the evidence before him or upon an inference that particular facts existed or did not exist, which, although it was one that might legitimately have been drawn upon the evidence that was before the judge, can be demonstrated to be wrong by further evidence that has become available by the time of the appeal; or upon the ground that there has been a change of circumstances after the judge made his order that would have justified his acceding to an application to vary it. *Since reasons given by judges for granting or refusing interlocutory injunctions may sometimes be sketchy, there may also be occasional cases where even though no erroneous assumption of law or fact can be identified the judge's decision to grant or refuse the injunction is so aberrant that it must be set aside upon the ground that no reasonable judge regardful of his duty to act judicially could have reached it.* [emphasis added]

Mr. Kesaria complained that the applicant was not a party in the High Court Commercial case number 92 of 2005, and in particular to the Chamber Summons in which the first respondent prayed for the grant of interim orders the subject matter for this application. The prayer was granted without giving the applicant the opportunity of being heard. Mr. Kesaria submitted that this was a fundamental right and its non-observance should result in the Court nullifying the Order. The learned advocate cited a number of decisions of this Court including, *District Executive Director of Rufiji District Authority v. Abbas S. Likonda* (11) and *Abbas Sherally and another v. Abdul Sultan Haji Mohamed Fazaboy* (12). The response of Mr. Kilindu, to this was to the effect that the second respondent has raised the issue in the defence and hence the issue will be resolved by the High Court. I am in respectful agreement with Mr. Kesaria that it is a cardinal principle of natural justice that a person should not be condemned unheard but that fair play demands that both sides should be heard. It is not a fair and judicious exercise of power but a negation of justice, where a party is denied a hearing before its rights are taken away. (See: *Mbeya Rukwa Autoparts and Transport Ltd. v. Jestina George Mwakyoma* (13). This is now a constitutional right embodied in Article 13(6)(a) which reads in part as under:

> 13(6) Kwa madhumuni ya kuhakikisha usawa mbele ya sheria, Mamlaka ya Nchi itaweka taratibu zinazofaa au zinazozingatia misingi kwamba:
>
> (a) Wakati haki na wajibu kwa mtu yeyote inapohitajika kufanyiwa maamuzi na mahakama au chombo kingine chochote kinachohusika, basi mtu huyo atakuwa na haki ya kupewa fursa ya kusikilizwa

kwa ukamilifu, na pia haki ya kukata rufani au kupata nafuu nyingine ya kisheria kutokana na maamuzi ya mahakama au chombo hicho kinginecho kinachohusika;

Paragraph 11 of the affidavit in support by Mr. Sameer Hirji, reads:

> 11. The first respondent's application for injunction and the second respondent's petition for stay of proceedings were disposed of by way of written submissions.... *The applicant herein was deliberately or otherwise excluded from this process.* [emphasis added].

And paragraph 9 of Mr. Ramarujan Govinda Guru's affidavit in opposition to the application reads:

> 9. That the contents of paragraphs 11, 12, 13 and 14 of the affidavit are admitted as being substantially true.

So the fact that the applicant's rights were taken away without being heard is factually correct. In as much as the trial judge's exercise of his discretionary powers should not be lightly interfered with, I am of the settled view that the applicant has shown exceptional circumstances in that the applicant was on the face of it denied the right to be heard before the interim injunctive order was given. No reasonable judge regardful of his duty to act judicially could have made adverse orders against the applicant who was not a party in Commercial Case number 92 of 2005. Having reached this conclusion, I do not deem it necessary to consider the remaining grounds so very ably canvassed by the learned advocates.

In the result, the application for stay of execution of the interim injunctive order dated the 19.10.2005 is hereby granted pending the hearing and determination of the application for revision. Costs to be in the cause.

YONAH NGASSA v. MAKOYE NGASSA

COURT OF APPEAL OF TANZANIA AT MWANZA

(Munuo, Msoffe and Kaji, JJA)

CIVIL APPEAL No. 135 OF 2004

(From the decision of the Resident Magistrate Court at Tabora, Somi, PRM, Extended Jurisdiction, dated 9 May 2003, in (DC) Civil Appeal number 1 of 2003)

Tort – Action for damages for malicious prosecution – Whether sufficient to prove only that prosecution was instituted by defendant and terminated in the plaintiff's favour.

The respondent's claim against the appellant for damages for malicious prosecution was dismissed in the District Court. That decision was reversed by the Principal Resident Magistrate, Extended Jurisdiction, on appeal. On further appeal to the Court of Appeal, the Court, having been satisfied that the evidence established that the prosecution was instituted by the appellant and that it terminated in the respondent's favour, proceeded to consider whether that was all the respondent had to prove.

Held: It is not sufficient for a plaintiff that he was innocent of the crime for which he was prosecuted by the defendant, by proving that the prosecution terminated in his favour; he must show also that the defendant acted maliciously and without reasonable and probable cause.

Appeal allowed

Case referred to:

(1) *William Chanapwa v. Francis Birgeko* [1975] LRT, n.36

Mr. Mtaki for the appellant

JUDGMENT OF THE COURT

(Dated 16 March 2006)

Munuo, JA: In Civil Case number 7 of 1997 in the District Court at Nzega within Tabora Region, the respondent, Makoye Ngassa, unsuccessfully sued for general damages for malicious prosecution the appellant, Yonah Ngassa. Dissatisfied with the dismissal of the suit, the plaintiff lodged DC Civil Appeal number 12 of 2002 in the High Court of Tanzania at Tabora. The said appeal was transferred to the Court of resident magistrate at Tabora, Extended Jurisdiction, where it was registered as DC Civil Appeal number 1 of 2002. Mr. Somi, principal resident magistrate, extended jurisdiction determined the said first appeal in favour of the plaintiff Makoye Ngassa, now the present respondent. He was awarded TZS. 5 million general damages, the subject of this second appeal.

The parties to this appeal are uterine brothers. Yonah, the present appellant is the elder brother of Makoye. The two brothers were operating some hotel business at Nzega. Yonah left the business under the charge of Makoye while he stayed at Mwanza so that he could take care of their ailing father. The business did not generate profits so relations between the two brothers soured. Family members could not reconcile them.

Sometime in February 1997, the respondent, Makoye, allegedly threatened the appellant with violence during a reconciliation meeting whereupon the appellant reported the matter at Nzega police station. The respondent was arrested by PW2 PC Bunda and prosecuted with the offence of threatening with violence c/section 89(2)(a) in Criminal Case number 53 "B" of 1997. He was tried and acquitted per the copy of judgement Exhibit P1. Subsequently, the respondent sued the appellant for TZS. 10 million general damages for malicious prosecution on the ground that the appellant was actuated with malice, that he had no reasonable cause to instigate the police to arrest and prosecute him, that the arrest and prosecution injured the reputation

of the respondent. The latter claimed that he suffered damages, physical and mental torture and loss of liberty. Hence the action for malicious prosecution.

As stated earlier on, the trial District Court dismissed the suit with costs. On appeal, Mr. Somi, principal resident magistrate, extended jurisdiction granted TZS. 5 million general damages for malicious prosecution to the respondent, Makoye Ngassa. Dissatisfied with the said decision, the appellant preferred this second appeal seeking the restoration of the decision of the Trial Court.

In this appeal, Mr. Mtaki, learned advocate represented the appellant. The respondent appeared in person. Submitting on the 6 grounds of appeal, counsel for the appellant faulted the learned principal resident magistrate, extended jurisdiction, for according undue weight to the formal evidence adduced by PW2 PC Bunda who was merely instructed by his Officer-in-charge of station at Nzega Police Station, to investigate the complaint by the appellant that his younger brother, the respondent had threatened him with violence. Counsel for the appellant further contended that because the Officer-in-charge of Nzega Police Station did not testify at the trial, PW2's evidence remained and remains hearsay so it should not have been given any weight.

On ground two, counsel for the appellant contended that the learned appellate magistrate erroneously held that the appellant had made a false report against the respondent at Nzega Police that the respondent had a firearm which report the appellant never made and the evidence on record reflects the same. Mr. Mtaki maintained that the appellant reported that the respondent threatened him with violence and the same was asserted by PC Bunda who arrested the respondent and prosecuted him for threatening the appellant with violence.

In ground four of the appeal, counsel for the appellant criticized the learned appellate magistrate for shifting the burden of proof to the appellant by holding that it was the duty of the appellant to call the Officer-in-Charge of Nzega Police Station as a witness in the suit. Such duty, counsel for the appellant contended, rested on the

respondent who instituted the claim for general damages for he who alleges bears the burden of establishing his claim on a balance of probabilities. The burden of proof, counsel contended in ground 6, was not discharged by the respondent so the learned appellate magistrate erroneously awarded damages for malicious prosecution, he argued in ground 5 of the appeal. For want of proof on the balance of probabilities, the appellant's counsel urged us to allow the appeal and restore the judgement of the trial District Court.

The respondent supported the decision of the learned appellate magistrate. He complained that the appellant did not include the Primary Court judgement, Exhibit P1, the demand notice Exhibit P2 and his medical chit, Exhibit P3, in the record of appeal which documents show that he was acquitted by the Primary Court at Nzega. He also complained that the document transferring the first appeal to the Court of Resident Magistrate, Extended jurisdiction was not included in the record of appeal. The respondent stated that being a layman, he would not know if Rule 92(1) of the Tanzania Court of Appeal Rules, 1979 allowed him to file a supplementary record to include the documents the appellant left out of the Record of Appeal.

On the omission to include some of the documents in the record of appeal, counsel for the appellant contended that the said exhibits are not necessary for the determination of the appeal. The record of appeal, he further argued, complied with the provisions of Rule 89 of the Tanzania Court of Appeal Rules, 1979 which lists the contents of a record of appeal which do not include the document transferring an appeal from the High Court to the Court of resident magistrate, extended jurisdiction. On this, the Deputy Registrar of this Court informed the Court that document transferring the case to the Court of resident magistrate, extended jurisdiction, is in the High Court file so the transfer was properly executed.

The issue before us is the propriety of the decision of the learned appellate magistrate in awarding damages for malicious prosecution to the respondent in the quantum of TZS. 5 million, the subject of this appeal.

We shall begin by referring to the learned authors, **Salmond and Heuston on The Law of Torts**, (21 ed), Sweet & Maxwell, R.E.V. Heuston and R.A. Buckley at page 393 on which the ingredients of malicious prosecution are outlined, namely that:

1. The proceedings must have been instituted or continued by the defendant;
2. The defendant must have acted without reasonable and probable cause;
3. The defendant must have acted maliciously;
4. The proceedings must have been unsuccessful – that is to say, must have terminated in favour of the plaintiff now suing.

The learned appellate magistrate referred to the case of *William Chamapwa v. Francis Bitegeko* (1) in which Mwakibete, Ag. J. as he then was, held that to succeed in an action for damages for malicious prosecution, a plaintiff must prove that:

(a) The prosecution was instituted or carried on such proceedings maliciously and without reasonable and probable cause.

(b) The proceedings complained of terminated in the plaintiff's favour and

(c) The plaintiff had suffered damages.

The learned appellate magistrate concluded:

> In a nutshell ... I am satisfied that the appellant proved to the balance of probabilities that the respondent's report to the police was actuated by malice and it was made without reasonable and probable cause and that as a result of such false report which had to be followed by the arrest, search and the malicious prosecution, the appellant was mentally and physically injured, his dignity and reputation considerably lowered down as clearly shown herein above..... The appellant is hereby awarded half of the claimed general damages, that is TZS. 5 000 000 (five million only).

We have no doubt in our minds that the respondent was, upon the appellant's complaint to the police that the former had threatened

him with violence, arrested by PW2 PC Bunda and prosecuted in Criminal Case number 53 "B" of 1997 with the charge of threatening with violence c/section 89(2)(a) of the Penal Code, in the Primary Court at Nzega. There is no dispute that the respondent was acquitted as reflected in the judgement, Exhibit P1 which was produced at the trial.

It is clear from the evidence of PW2 and the three defence witnesses that the appellant's complaint to the police was that the respondent had threatened him with violence and not that he had a firearm. PW2 stated in his evidence that his OCS instructed him to investigate the appellant's complaint that the respondent had threatened him with violence. In the course of investigations PW2 searched the hotel premises for firearms. It is our considered view that the appellant was indeed threatened with violence at the family reconciliation meeting which ended in a breach of the peace as deposed by DW2 and DW3 who attended the said meeting. In those circumstances the appellant rightly reported the threats the respondent uttered to the police. His complaint was genuine and not actuated by malice. The reconciliation meeting having ended in a breach of the peace, it was reasonable for the appellant to report the matter to the police. Had the learned appellate magistrate considered these factors he would not have held that the appellant's report against the respondent was actuated by malice or was without a reasonable and probable cause. It is pertinent to observe here that the appellant did not make a false or any report to the police about the respondent possessing a firearm. Nor should the appellant be held liable for PW2's decision to search the hotel premises for firearms or for whatever other purpose he had in his mind. It is so because the appellant was not responsible for PW2's police investigations or search at the hotel premises of the parties.

The above said, we are satisfied the essential elements of malicious prosecution referred to *supra* were not established. One, the appellant had a probable and reasonable cause to report to the police, that is, threats with violence by his younger brother, the respondent as corroborated by DW Suleiman Michael and DW3 Marko Juma Lukelelwa

who attended the reconciliation family meeting which ended in a breach of the peace prompting the appellant to report the respondent's threats to harm him to the police. The report to the police, in our view, was *bona fide* and not actuated by malice. On this we are reinforced by **Halsbury's Laws of England** (3 ed) Volume 25 page 361 wherein it is stated that:

> The burden of proof in an action for damages for malicious prosecution lies in the first instance on the plaintiff. It is not sufficient for him to prove that he was innocent of the crime for which he was prosecuted by the defendant by proving that the prosecution terminated in his favour. He must show that the defendant acted maliciously and without reasonable and probable cause.

We demonstrated above that the evidence on record shows that the appellant had a reasonable and probable cause to report the threats the respondent uttered at the family meeting which ended in acrimony. The respondent adduced no evidence to prove that the appellant acted maliciously or without reasonable and probable cause.

In the light of the above, we find merit in this appeal.

We accordingly allow the appeal with costs.

CHINA HENAN INTERNATIONAL CO-OPERATION GROUP *v.* SALVAND K.A. RWEGASIRA

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Ramadhani, Lubuva and Mroso JJA)

CIVIL REFERENCE No. 22 OF 2005

(From the decision of a single judge of the Court of Appeal of Tanzania at Dar es Salaam, Nsekela, JA, dated 9 September 2005 in Civil Application number 114 of 2004)

Civil Practice and Procedure – Court of Appeal Rules – Application for reference – Whether Rule 119(1), (2) and (3) of the Court of Appeal Rules of Court 1979 is applicable

Court of Appeal Rules – Reference – Reference from decision of a single Judge of the Court of Appeal – Applicable provisions in applying for reference – Rule 57(1) of the Court of Appeal Rules 1979

Civil Practice and Procedure – Reference before the Court of Appeal – Application for reference citing wrong provision of the law – Whether the error is curable under Article 107A(2)(e) of the Constitution

Aggrieved by the decision of a single judge of the Court of Appeal the applicant applied for reference quoting Rules 119(1), (2) and (3) of the Court of Appeal Rules, 1979. The the respondent raised a preliminary objection against the reference on the ground that the application had been brought under an inapplicable provision of the law and therefore the applicant had failed to move the Court properly. The advocate of the applicant though conceding that he had cited a wrong provision of the law, argued that the defect was curable and did not go to the root of the matter. He further argued that the application should not be rendered incompetent on account of citing a wrong provision of the rule as that would be contrary to Article 107A(2)(e) of the country's Constitution.

Held: (i) A party wishing to apply for reference to reverse or vary the decision of a single Judge may either apply orally to the Judge at the time the decision is being given or by writing to the Registrar;

(ii) Once a party opts to apply for reference by writing to the Registrar it is imperative to cite the correct rule, namely rule 57(1) of the Court of Appeal Rules 1979;

(iii) The omission to cite the proper provision of the rule relating to reference or citing a wrong and inapplicable rule in support of the application is not a technicality falling within the scope and purview of Article 107A(2)(e) of the Constitution.

Application struck out

Cases referred to:

(1) *Aloyce Mselle v. The Consolidated Holding Corporation* CAT-Civil Appeal number 11 of 2002 (unreported)

(2) *M/S Ilabila Industries Ltd and Two others v. Tanzania Investment Bank and another* CAT-Civil Application number159 of 2004 (unreported)

(3) *Naibu Katibu Mkuu (CCM) v. Mohamed Ibrahim Vesses and Sons* CAT-ZNZ civil Application number 3 of 2003 (unreported)

(4) *Sadik Abdallah Alawi v. Zulekha Suleman Alawi and another* CAT-Civil Reference number 29 of 1997 (unreported)

(5) *D.T. Dobie (Tanzania) Limited v. Phantom Modern Transport* (1985) Ltd, Civil Application number 141 of 2001 (unreported)

(6) *National Bank of Commerce v. Sadrudin Meghji* [1998] TLR 503

(7) *Rukwa Autoparts Ltd v. Jestina G. Mwakyoma* Civil Application number 45 of 2000 (unreported)

(8) *Citibank (T) Ltd v. TTCL and others* CAT-Civil Application number 65 of 2003 (unreported)

(9) *Re Coles and Ravenshear* [1907] 1 KB 1

Statutory provisions referred to:

(i) Tanzania Court of Appeal Rules, 1979, rules 57(1) and 119

(ii) The Constitution of the United Republic of Tanzania, article 107A(2)(e)

Mr Ndyanabo for the Applicant

Mr Kamugisha for the respondent

RULING OF THE COURT

(Dated 21 March 2006)

Lubuva, JA: This is a reference from the decision of a single Judge of this Court (Nsekela, JA) striking out the Notice of Appeal in Civil Application number 114 of 2005.

Under the provisions of Rule 100 of the Court Rules, 1979 Mr. Kamugisha, learned counsel for the respondent, had given notice of preliminary objection against the reference. The objection raised is that the reference is incompetent, it should be struck out due to:

> The applicant's failure to move the Court properly under the law in that the application for reference has been brought under the wrong citation of a provision of the law

In support of the preliminary objection, Mr. Kamugisha submitted that the application for reference by letter of 14 September 2005 addressed to the Registrar, Court of Appeal was made under rules 119(1), (2) and (3) of the Court Rules, 1979. He said the application should have been made under rule 57(1) instead of rules 119(1), (2) and (3) which deals with reference on taxation matters. Under the provisions of rule 119, counsel went on, a person who is dissatisfied with the decision of the Registrar in his capacity as taxing officer, may apply for reference to a Judge of this Court.

The application having been made under wrong citation of the rule is rendered incompetent, it should be struck out, Mr. Kamugisha

urged. In support of this submission he referred to the decision of this Court in *Aloyce Mselle v. The Consolidated Holding Corporation* (1), *M/S Ilabila Industries Ltd. and Two others v. Tanzania Investment Bank and another* (2), *Naibu Katibu Mkuu (CCM) v. Mohamed Ibrahim Versi and Sons* (3).

On his part, Mr. Ndyanabo, learned counsel for the applicant, conceded that in the letter to the Registrar, Court of Appeal applying for reference, rule 119 (1), (2) and (3) was wrongly cited. Rule 57(1) was the proper rule, he said. However, he was quick to observe that the error did not render the application for reference incompetent because the defect is curable. In his view, application for reference under rule 57(1) was not envisaged under the provisions of rule 45. For this reason, Mr. Ndyanabo maintained, there is no particular procedure laid down to be followed in application for reference. In this light, counsel went on, rule 57(1) gives the option for any one dissatisfied with the decision of a single Judge to apply informally to the Judge at the time when the decision is given or by writing to the Registrar. Mr. Ndyanabo also submitted that the error in citing a wrong rule in this case did not fatally affect the application because it does not go to the root of the matter. He urged the Court to take a liberal interpretation of the rules in order to avoid denying justice to the parties on grounds of technicalities. For this proposition, Mr. Ndyanabo relied on the decision of the Court in *Sadik Abdallah Alawi v. Zulekha Suleman Alawi and Another* (4), *D.T. Dobie (Tanzania) Limited v. Phantom Modern Transport (1985) Ltd.*(5) and Article 107A(2)(e) of the Constitution of the United Republic of Tanzania 1977 as amended.

The central issue in this case revolves around the fact that the application for reference was made under a wrong citation of the rule. On this, both Mr. Ndyanabo and Mr. Kamugisha, learned counsel for the applicant and the respondent, respectively, are generally agreed. However, the learned counsel are not at one with each other with regard to the consequences of wrong citation of the rule under which

the application was made. While Mr. Kamugisha is firmly of the view that the application was rendered incompetent, on the other hand, Mr. Ndyanabo vigorously opposed this view.

We need not be delayed in this aspect. It is now settled that wrong citation of a provision of law or rule under which the application is made renders the application incompetent. It is common ground that in this case there was an application made by way of letter Ref. JC/875/CHICO/9 of 14 September 2005 addressed to the Registrar, Court of Appeal. In the letter, the applicants notified the Registrar that the Court was being moved to vary or reverse the decision of the single Judge. The letter was copied to the respondent in order to make the respondent aware that a reference was being preferred. Being an application it is our view that it was necessary to cite the applicable rule under which it was made.

In the instant case, not only was the proper rule 57(1) not cited, but an inapplicable rules 119(1), (2) and (3) was instead cited. It is elementary that this rule has no relevance at all to the subject matter in hand. It deals with reference on matters relating to taxation where, any person who is dissatisfied with a decision of the Registrar in his capacity as taxing officer may refer the matter to a Judge of the Court. This is different from the reference envisaged under rule 57(1).

As already observed, in numerous cases, this Court has held that wrong citation of the law or rule, renders the application incompetent. See for instance, *Aloyce Mselle v. The Consolidated Holding Corporation* (1), *M/s Ilabila Industries Ltd. and Others v. Tanzania Investment Bank and another* (2), and *Naibu Katibu Mkuu (CCM) v. Mohamed Ibrahim Versi and Son* (3).

In *Aloyce Mselle,* among other grounds of appeal, the complaint was that the High Court was not properly moved when leave to appeal was granted. In the chamber application section 5(2)(c) was cited instead of section 5(1)(c). The Court *inter alia* stated:

> .....There is an unbroken chain of authorities of this Court to the effect that wrong citation of a provision of law under which an application is made renders that application incompetent. Such decisions include: *NBC v. Sadrudin Meghji* (6), *Rukwa Autoparts Ltd. v. Jestina G. Mwakyoma* (7), and *Citibank (T) Ltd. v. TTC and others* (8). So, Mchome, J. should not have granted leave to appeal.

In this case, as indicated earlier, Mr. Ndyanabo strenuously urged that these cases do not apply because this is a reference in which there is no laid down procedure for filing the same. With respect, we agree that as yet there is no statutory or judge made rule regarding the procedure to be followed in filing a reference. Nonetheless, there is no denying the fact that there is rule 57(1) of the Court Rules, 1979 which specifically provides for the Court to be moved on a reference to reverse or vary the decision of a single Judge. This is the rule which should have been cited in the application for a reference. As correctly submitted by Mr. Ndyanabo, rule 57(1) gives the option for an application for a reference to be made to a Judge informally at the time the decision is given or by writing to the Registrar. Once the option is made to apply for a reference by writing a letter we think it is imperative to cite the correct provision of the rule, namely rule 57(1) in this case. We do not accept Mr. Ndyanabo's contention that the error was technical which does not go to the root of the matter. On the contrary, we are of the settled view that this is a fundamental matter which goes to the root of the matter. Rule 57(1) is the foundation upon which application for reference to the Court is made. Once the application is based on wrong legal foundation, it is bound to collapse.

Mr. Ndyanabo sought to rely on the decision of this Court in *Sadik Abdallah Alawi* (4) to support his assertion that the application was not rendered incompetent for failure to cite the appropriate rule. In our view, this case is distinguishable. In *Sadik Abdallah Alawi* (4), the application for reference was brought by way of a Notice of Motion supported by affidavit which did not contain a statement of fact. Rule 57(1) was cited as the rule under which the

application was made. Preliminary objection was raised that the application was incompetent because the affidavit did not contain a statement of fact. The Court overruled the preliminary objection on the ground that even if the affidavit was ignored the letter of notification to the Registrar in which Rule 57(1) was cited was sufficient. In the instant case, not only was rule 57(1) not cited, but a wrong, inapplicable Rules 119(1), (2) and (3) was cited. The two cases are, in our considered opinion, widely different.

Finally, we wish to touch briefly on the point raised by Mr. Ndyanabo that the application for reference should not be rendered incompetent on account of citing a wrong provision of the rule because that would be contrary to the provisions of Article 107A(2)(e) of the Constitution of the United Republic of Tanzania 1977. The Article provides:

> 107A(2)(e): Katika kutoa uamuzi wa mashauri ya madai na jinai kwa kuzingatia sheria, mahakama zifuate kanuni zifuatazo, yaani:
>
> (e) Kutenda haki bila ya kufungwa kupita kiasi na masharti ya kiufundi yanayoweze kukwamisha haki kutendeka.

In essence, this translated to the effect that in dealing with criminal or civil cases, the Courts shall administer substantive justice without undue regard to technicalities. In this case, as already indicated the circumstances are such that we can hardly glean any element of technicalities involved. The role of rules of procedure in the administration of justice is fundamental. As stated by Collins M.R. in *Re Coles and Ravenshear* (9) rules of procedure are intended to be that of handmaids rather than mistresses. That is, their function is to facilitate the administration justice. Here, the omission in citing the proper provision of the rule relating to a reference and worse still the error in citing a wrong and inapplicable rule in support of the application is not in our view, a technicality failing within the scope and purview of Article 107A(2)(e) of the Constitution. It is a matter which goes to the very root of the matter as urged by Mr. Kamugisha. We reject his contention that the error was technical.

All in all therefore, for the foregoing reasons, the preliminary objection is sustained. Consequently, the application being incompetent is struck out with costs.

ISSA SAID KUMBUKENI *v.* REPUBLIC

COURT OF APPEAL OF TANZANI
AT DAR ES SALAAM

(Ramadhani, Lubuva and Mroso, JJA)

CRIMINAL APPEAL No. 147 OF 2002

(From the decision of the High Court of Tanzania at Dar es Salaam, Ihema, J., dated 16 April 1999, in Criminal Appeal number 24 of 1999)

Criminal Practice and Procedure – Appeals - Summary dismissal of an appeal – Appeal against a decision to summarily dismiss an appeal – Options open to the second appellate Court.

The appellant was charged with and convicted of the offence of rape by the Trial Court. He was sentenced to a term of 20 years imprisonment. His appeal to the High Court was summarily rejected. The learned High Court judge simply minuted to the District Registrar thus "The appeal is without substance and is accordingly summarily rejected". Aggrieved by the summary dismissal of his appeal the appellant further appealed to the Court of Appeal of Tanzania. The Court considered the propriety of the order of the first appellate Court and the options it had in such situations.

Held: (i) the learned judge of the first appellate Court erred in rejecting the appeal summarily because the Memorandum of Appeal to the High Court raised points that needed consideration.

(ii) where the first appellate Court improperly used the power of summary dismissal the options open to the second appellate Court are:

(a) to send the appeal back to the first appellate Court to be admitted to hearing;

(b) in some deserving cases, of glaring irregularity or miscarriage of justice, to step into the shoes of the first appellate Court and determine the appeal conclusively. The second appellate Court would step into the shoes of the first appellate Court by invoking its revisional powers;

(iii) since this is not a case of a glaring irregularity or miscarriage of justice in which the first appellate Court obviously ought to have allowed the appeal to it and discharge the appellant, this is a fit case for remitting to the High Court for the appeal to it to be admitted to hearing.

Order accordingly

Case referred to:

(1) *Idd Kondo v. The Republic*, Criminal Appeal number 46 of 1998 (unreported)

Statutory provisions referred to:

(1) The Court of Appeal Rules, Rule 65(2)

(2) The Criminal Procedure Act, 1985, sections 240(3), 364(1)(c)

(3) The Law of Evidence Act, 1967, section 127(2) and (5)

(4) The Appellate Jurisdiction Act, 1979 (as amended by Act number 17 of 1993), section 4(2)

Ms Maganga for the respondent

JUDGMENT

(Delivered 27 March 2006)

Mroso, JA: The appellant was convicted of rape contrary to section 130 of the Penal Code by the District Court of Kisarawe in February, 1999. He was sentenced to a term of 20 years imprisonment. His appeal to the High Court, Ihema, J., was summarily dismissed. He finally appealed to this Court.

The Memorandum of the Appeal to this Court was obviously drafted by a lay person, containing what appear to be arguments and puts it on the verge of contravening rule 65(2) of the Court Rules, 1979 which forbids inclusion of arguments or narrative in a Memorandum of Appeal. We have, however, taken a lenient view of that apparent transgression.

There are four grounds of appeal and at the hearing the appellant said he had additional grounds which, with leave of the Court, he gave from the dock. Those so called additional grounds of appeal were in reality a mere elaboration of the written grounds.

In the grounds of appeal the appellant criticized the first appellate Court for rejecting his appeal summarily. It is elaborated that it was incumbent on that Court to discuss, for example, whether it was proper for the Trial Court to admit into evidence a PF3 without the doctor who completed it being required to appear at the hearing to be cross-examined. Furthermore, that the Trial Court did not inform the appellant of his right under the law to require the presence of the doctor at the trial. In the second ground of appeal it is complained that the contents of the PF3 were not read over to the appellant. The criticism against the Trial Court and the first appellate Court in the third ground of appeal is that there was no sufficient reason why the alleged rape was reported to the police five days after the event. It is also alleged in the fourth ground of appeal that there was contradiction between the evidence of PW2 and that of PW3. He asked the Court to allow his appeal.

The evidence on which the Trial Court convicted the appellant was given by three witnesses, that is to say, the complainant – PW1 Mawazo Juma who was of the age of 12 years when she gave evidence; PW2 – Mwamvita Salum – who was the mother of the complainant and PW3 – Detective Corporal Halifa.

Mawazo – PW1 – gave unsworn evidence because she did not know the meaning of an oath. She told the Trial Court that the appellant who was her cousin forcibly took her to a bush and had sexual intercourse

with her. He promised to give her TZS. 200 but also gagged her to stop her from shouting for help. When she returned home she told her mother what had transpired and she experienced pain when urinating.

PW2, Mwamvita, told the Trial Court that Mawazo had gone out to play with her friends and relatives. She returned home at six o'clock but at 8 p.m she noticed that her daughter was unwell and was sitting down with difficulty. She also cried out when she went to urinate. On enquiring from her daughter what was wrong with her, she was told that the appellant had sexual intercourse with her. On examining her she found "she had a breakage her vagina" (*sic*). It is not exactly clear what that means but presumably there was penetration into the vagina. The husband was away and she merely cleaned the daughter for four days until the husband returned home on the fifth day. When the husband was informed of the rape he reported both to the ward executive officer and to the police.

PW3 – D/Cpl. Halifa issued a PF3 to PW1 who was taken to hospital for examination. The PF3 was tendered in Court as an Exhibit.

The appellant gave affirmed evidence denying to have raped PW1. He however admitted that PW1 was his relative, a sister (cousin). He said under cross-examination that there had been a land dispute between himself and PW1's relatives.

The trial magistrate was satisfied that the appellant was well known to PW1 as a relative. He considered that the evidence of PW2 as well as the PF3 had corroborated the evidence of PW1. The "medical evidence" from the PF3 suggested that the appellant was guilty, according to the trial magistrate who proceeded to convict him as charged. When the appellant appealed to the High Court complaining that the evidence of PW1 had been improperly received and that the trial magistrate had not properly evaluated the evidence and had misdirected himself on the law in relying on the evidence of PW1, PW2, PW3 and the PF3, the learned High Court Judge simply minuted to the District Registrar thus:

> The appeal is without substance and is accordingly summarily rejected.

The learned State Attorney, Ms. Maganga, for the respondent Republic, supported the conviction. She argued that the evidence of PW1, a child of tender years, had been properly received and that she was a reliable witness. The incident had occurred during day light and there could not have been mistaken identity. Although under section 240(3) of the Criminal Procedure Act, 1985 the appellant was entitled to be informed of his right to require the doctor who completed the PF3 to be summoned for cross-examination, the omission by the Trial Court to do so would have been prejudicial if there was a dispute that rape had been committed. The failure by PW2 to report the rape promptly to the police had a plausible explanation. She conceded, however, that it was inappropriate for the first appellate Court to reject the appellant's appeal summarily.

In discussing the appeal we will begin with the ground of appeal that the first appellate Court erred in rejecting the appeal summarily.

The appeal to the High Court was against conviction and sentence, so, although the learned High Court Judge did not say so, he appears to have acted under section 364(1)(c) of the Criminal Procedure Act, 1985 when he ordered that the appeal be rejected summarily for want of substance. That provision reads as under:

> 364(1) On receiving the petition and copy required by section 362, the High Court shall peruse the same and:
>
> (a) (not relevant)
>
> (b) (not relevant)
>
> (c) If the appeal is against conviction and the sentence and the Court considers that the evidence before the Lower Court leaves no reasonable doubt as to the accused's guilt and that the appeal is frivolous or is without substance and that there is no material in the judgment for which the sentence ought to be reduced, the Court may forthwith summarily reject the appeal by an order certifying that upon perusing the record, the Court is satisfied that the appeal has been lodged without any sufficient ground of complaint.

The order of summary rejection which was given by the learned High Court judge does not give assurance that he read the evidence which was given at the trial and consciously considered that such evidence left no reasonable doubt as to the appellant's guilt and hence lacked substance or that there was no material in the Trial Court judgment that would justify reduction of the sentence which was imposed on the appellant. Furthermore, there was no certification by the learned judge that he was satisfied the appeal had been lodged without any sufficient ground of complaint. We are saying, in other words, that it is quite possible the judge made the order of summary rejection of the appeal casually without giving the grounds of appeal or even the Trial Court record any serious consideration. We are saying so because, with respect, the Memorandum of Appeal to the High Court in fact raised points which needed consideration. For example, there was the question whether the necessary procedure for taking the evidence of a child of tender years was fully followed. Section 127(2) of the Law of Evidence Act, 1967 reads:

> 127(2) Where in any criminal cause or matter a child of tender age called as a witness does not, in the opinion of the Court, understand the nature of an oath his evidence may be received though not given upon oath or affirmation, if in the opinion of the Court, which opinion shall be recorded in the proceedings, he is possessed of sufficient intelligence to justify the reception of his evidence and understands the duty of speaking the truth.

Under the same section 127 the expression "child of tender age" is defined in subsection (5) as "a child whose apparent age is not more than fourteen years".

The Memorandum of the Appeal to the High Court also raised the question of the failure by the trial magistrate to inform the appellant of his right to require the medical officer who completed the PF3 to be summoned for cross examination. What was the effect of that failure in law on the facts of that case?

Finally, the trial magistrate found corroboration of the evidence of the complainant – PW1 – in the evidence of PW2 and the PF3. Was that finding correct in law?

With the above questions which were raised either directly or impliedly in the Memorandum of the Appeal to the High Court, could it properly be said that the appeal was lodged without any sufficient ground of complaint?

With respect, we think the learned judge of the first appellate Court erred in rejecting the appeal summarily. As it is, we do not know what views the judge would have had he considered the points which were raised or were apparent from the appellant's Memorandum of Appeal to the High Court. The position in which this Court is now placed is to have to place itself in the position of the High Court and act as a Court of first appeal from the decision of the District Court. But we are not in uncharted waters. We can gain inspiration from previous decisions of this Court and from persuasive decisions of other Courts out of our jurisdiction.

In a relatively recent decision of this Court (dated 24 November 2003) – *Idd Kondo v. The Republic* (1), the High Court had summarily dismissed an appeal to it from a decision of the District Court of Ilala. The appellant further appealed to this Court. The Court, like now, found that the High Court should not have dismissed the appeal summarily. So, this Court was faced with a similar question as is now before us. What should it now do?

The Court in the *Idd Kondo* case reviewed various decisions of the East African Court of Appeal and a case from India. It deduced from the decisions that it was a general rule to send the appeal back to the High Court to be admitted to hearing if this Court was satisfied that the power of summary dismissal was improperly used. But that was not the only option. In some deserving cases the Court could step into the shoes of the High Court and determine the appeal conclusively. An example of a deserving case was given as where there was a glaring irregularity or a miscarriage of justice and that the appellant clearly

ought to have been discharged. This Court would resort to stepping into the shoes of the High Court by invoking its revisional powers under section 4(2) of the Appellate Jurisdiction Act, 1979 (as amended by Act number 17 of 1993) which reads:

> (2) for all purposes of and incidental to the hearing and determination of any appeal in the exercise of the jurisdiction conferred upon it by this Act, the Court of Appeal shall, in addition to any other power, authority and jurisdiction conferred by this Act, have the power of revision and the power, authority and jurisdiction vested in the Court from which the appeal is brought.

The Court in *Idd Kondo* considered the grounds of appeal in the Memorandum of Appeal and said the High Court should not have dismissed the appeal summarily and proceeded to say:

> We are of the decided opinion that had the learned judge on the first appeal properly exercised her mind on the lines we have prescribed above, she would have discharged the appellant .... So, we allow the appeal.

In that appeal, the State Attorney who appeared for the respondent Republic had declined to support the conviction.

In the case now before us, the Republic supported the conviction although it conceded that the High Court should not have rejected the appeal to it summarily. This is not therefore a case of a glaring irregularity or miscarriage of justice and in which the High Court obviously ought to have allowed the appeal to it and discharge the appellant.

We think, therefore, that this is a fit case for remitting to the High Court for the appeal to it to be admitted to hearing. Consequently, we quash and set aside the order of summary rejection and order that the appeal should be heard on merits by another judge of the High Court. Considering that the case is already nine years in the Courts, the appeal should be given priority.

KALUNGA AND COMPANY, ADVOCATES *v.* NATIONAL BANK OF COMMERCE LIMITED

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Nsekela, JA)

CIVIL APPLICATION No. 124 OF 2005

(Application for leave to appeal from the decision of the High Court of Tanzania at Dar es Salaam, Mihayo, J., dated 10 December 2004, in Civil Reference number 5 of 2004)

Civil Practice and Procedure – Extension of time – Extension of time to appeal to the Court of Appeal – Grounds upon which time can be extended by the Court – Rule 8 of the Court of Appeal Rules 1979.

By a Notice of Motion the applicants applied for extension of time to file an application for leave to appeal to the Court of Appeal against a High Court decision striking out an application on the ground that the affidavit supporting it was defective; the *jurat* in the affidavit did not show the date or place where the affidavit had been taken.

Held: (i) Under Rule 8 of the Court of Appeal Rules 1979, the Court has a wide discretion to extend time where the time has already expired, but where there is inaction or delay on the part of the applicant, there ought to be some kind of explanation or material upon which the Court may exercise the discretion given;

(ii) Since the point at issue is one alleging illegality of the decision being challenged i.e. the validity of the High Court's decision in interpreting a statutory provision and the propriety of a judge raising an issue *suo motu* and making a decision without the parties concerned being heard upon it, sufficient reason has been shown for granting an extension of time to file an application for leave to appeal to the Court of Appeal.

Application granted

Cases referred to:

1. *Ratnam Cumarasamy* [1965] 1 WLR 8

2. *Savill v. Southern Health Authority* [1995] 1 WLR 1254

3. *Principal Secretary, Ministry of Defence and National Service v. Devram Valambhia* [1992] TLR 182.

Statutory Provisios referred to:

(1) Court of Appeal Rules, rules 8, 46(1) & (3)

Mr. Mwezi Mhango for the Applicant

RULING

(Dated 24 April 2006)

Nsekela, JA: By a Notice of Motion filed on the 26 August 2005, the applicant, Kalunga and Company, Advocates, seek under Rules 8, 43(b), 46(1) and 46(3) of the Court of Appeal Rules, the following orders, namely that the time within which to file an application for leave to appeal to this Court be extended and that the applicant be granted leave to appeal to this Court against the decision of Mihayo, J. dated 10 December 2004 in Civil Reference number 5 of 2005 between the same parties. The application is supported by an affidavit of Mwezi Mhango, learned advocate for the applicant.

In order to appreciate the essence of the application, I reproduce *in extenso* Mr. Mhango's affidavit in support. It reads:

> 2. In the taxation between client and advocate in Miscellaneous Civil Application 278 of 2002 Honourable Lila, the Taxing Officer, rejected certain items in both the bill of costs and the costs of taxation and being aggrieved by that decision the applicant preferred a reference to the High Court Judge, the same having been filed as Civil Reference number 5 of 2004.
>
> 3. The matter was argued by way of written submission on the merits of the application and on the day of delivering the ruling Mihayo, J. struck out the application on the ground that the *jurat* in the affidavit

> filed in support of the application was defective in that it did not show the date or the place where the affidavit had been taken...
>
> 4. The *jurat* which Mihayo, J. said was defective reads as follows:
>
> "Sworn by the said **Leopold Thomas Kalunga** before me.
>
> COMMISSIONER FOR OATHS
>
> At Dar es Salaam
>
> 14 April 2004"
>
> and shows that it was sworn before Advocate Chandoo.
>
> 5. The Honourable Judge had raised the issue of the *jurat suo motu* and decided it without inviting Counsel appearing for the parties to argue the point.
>
> 6. Being aggrieved by the decision of Mihayo, J. as advocate of the applicant I filed a Notice of Appeal and served it on the respondent within the prescribed period.
>
> 7. In addition to what is stated above I further filed an application for leave to appeal to the Court of Appeal which application was heard by Manento, J.K. who on the 26 July 2005 dismissed it....
>
> 8. Manento, J.K. gave as the ground for dismissing the application on the ground that the affidavit sworn by L.T.L. Kalunga in support of the application that should have first shown the place where it was sworn and this should have been followed by the date.
>
> 9. I believe that Manento, J.K.'s ruling amounts to the usurpation of the role of the Court of Appeal since it was not for him to decide whether Mihayo, J. had or had not correctly interpreted section 8 of the Notaries Public and Commissioner for Oaths Act (Chapter 12).
>
> 10. I further sincerely believe that if Mihayo, J. had asked Counsel representing the parties to argue the propriety or impropriety of the *jurat* instead of acting *suo motu* he would not have come to the conclusion he did since the oath was taken at Dar es Salaam on 14 April 2004.

11. I believe that the decision of Mihayo, J. that the affidavit of Leopold Thomas Kalunga filed in support of the application for reference was incurably defective in that it did not state in the *jurat* the date or place where it was taken, requires the intervention of the highest Court in the land since to decide whether the *jurat* was indeed defective, considering its contents as stated in paragraph 4 above, and also whether an affidavit is incurably defective unless it first shows the place where the oath was taken and followed by the date it was taken.

12. The point in issue is a serious legal problem which I believe only the Court of Appeal can solve so that the Lower Courts have a precedent which they must follow in respect of what a correct *jurat* should certain.

13. It is further intended to ask the Court of Appeal to look into the question of whether a judge is entitled to raise a legal issue *suo motu* and proceed to decide the issue without inviting the parties or their Counsel to address the Court on the said issue as I believe that deciding without doing so is denial of natural justice.

Let me commence with the application to extend time for leave to appeal to this Court. It is evident from paragraph 7 of Mr. Mhango's affidavit in support of the application, that the application for leave to appeal to this Court was dismissed by the High Court (Manento, J.K.) on the 26 July 2005. Under Rule 43(b) of the Court of Appeal Rules, another application should have been made to this Court within fourteen (14) days of that refusal. The application was however filed on the 26 August 2005, clearly out of time. Under Rule 8 of the Court of Appeal Rules, the Court has a wide discretion to extend the time even where (as here) the time limited for the filing of leave to appeal has already expired. This discretion, however wide it may be, is a discretion to be exercised judicially having regard to the particular circumstances of each case. The Privy Council in the case of *Ratnam Cumarasamy* (1) at page 12, stated as follows in an appeal from the Supreme Court of Malaya.

> The rules of the Court must *prima facie*, be obeyed, and, in order to justify a Court in extending the time during which some step in procedure requires to be taken, there must be some material on which the Court can exercise its discretion. If the law were otherwise, a party in breach would have an unqualified right to an extension of time which would defeat the purpose of the rules which is to provide a time-table for the conduct of litigation.

And in the case of *Savill v. Southend Health Authority* (2), Mann L.J. at page 1259, stated as follows:

> The Rules of the Supreme Court are the rules for the conduct of litigation. They are there for the benefit of plaintiffs and the protection of the defendants. Here the rule was not complied with. We are asked to exercise our discretion to waive the application of the rule. There is no material put before us on which we should grant a waiver. I do not see how one can exercise a discretion without material upon which to consider it.

I have deliberately reproduced Mr. Mhango's affidavit in order to find out reasons explaining the delay. Manento, J.K. dismissed the application for leave to appeal on the 26 July 2005. After this dismissal, the applicant had fourteen days to file another application in this Court by the 9 August 2005 at the latest. However it was filed on the 26 August 2005, seventeen (17) days later. There is no paragraph in Mr. Mhango's affidavit that seeks to explain the reasons, if any, accounting for the 17 days delay. The learned advocate concentrated on explaining the reasons as to why leave to appeal should be granted. Where there is inaction or delay on the part of the applicant, there ought to be some kind of explanation or material to enable the Court to exercise the discretion given by Rule 8 of the Court of Appeal Rules.

This Court has discretion to extend time but such extension, in the words of Rule 8 can only be done if "sufficient reason" has been given. The problem which often arises is what amounts to "sufficient reason". In this instance, the information as disclosed in the affidavit is to the effect that the learned advocate wants to challenge the validity of the High Courts decision in interpreting section 8 of Chapter 12

and secondly, the propriety of a judge raising an issue *suo motu*, and making a decision without the parties concerned being heard upon it. In the case of *Principal Secretary, Ministry of Defence and National Service v. Devram Valambhia* (3), this Court at page 189 stated as under:

> In our view, when the point at issue is one alleging illegality of the decision being challenged, the Court has a duty, even if it means extending the time for the purpose, to ascertain the point and, if the alleged illegality be established, to take appropriate measures to put the matter and the record straight.

I am satisfied that sufficient reason has been shown for the granting of an extension of time to file an application for leave to appeal to this Court. I have taken into account the length of the delay, (17 days) and that there are serious legal points that needs consideration by this Court.

In the result, I grant the extension and leave as prayed. The appeal should be lodged within fourteen days from the date of this ruling is delivered. Costs will be in the cause.

LEGAL AND HUMAN RIGHTS CENTRE AND TWO OTHERS *v.* ATTORNEY GENERAL

HIGH COURT OF TANZANIA
AT DAR ES SALAAM

(Kimaro, Massati and Mihayo, JJ)

MISCELLANEOUS CIVIL CAUSE No. 77 OF 2005

Civil Practice and Procedure – Locus standi – Legal action against infringement of basic rights under the Constitution – Whether complainants who are not natural persons may have locus standi to take legal action – Article 30(3) of the Constitution and section 4 of the Basic Rights and Duties Enforcement Act.

Civil Practice and Procedure – Cause of action – Failure to disclose a cause of action – Petition not disclosing a cause of action - Allegation by a person that a fundamental right or duty owed to him has been, or is likely to be violated – Whether that is sufficient to disclose a cause of action.

Constitutional Law – National Elections Act, number 4 of 2000 – "Takrima" provisions – Whether "Takrima" provisions violate the Constitution of the United Republic of Tanzania, 1977.

Constitutional Law – Impugned legislation – Saving of such legislation – Must meet the test of proportionality.

This petition was filed by charitable, voluntary and non-partisan human rights interested non-governmental organizations duly registered in terms of the provisions of the Companies Ordinance, Chapter 212, seeking to annul that part of the National Elections Act, number 4 of 2000 which amended section 98(2) of the Elections Act by deleting and replacing it by a new subsection and adding a new subsection 3. The replaced and new subsections, namely subsections (2) and (3) of section 119, were known as "*takrima*" provisions. The petitioners challenged the "*takrima*" provisions as violating Articles 13(1) and (2), 21(1) and (2) and 29(1) of the Constitution of the United Republic of Tanzania. The petitioners charged that the provisions encouraged corruption in elections and impinged on the right to equality before the law and the citizens' rights to vote and be voted in fair and free elections.

The respondent raised two preliminary points of objection namely that the petitioners had no *locus standi* and that the petition disclosed no cause of action. A bench of three High Court judges considered the preliminary points of objection and also the merits of the petition.

Held: (i) If a public spirited individual (and we add a corporation like the petitioners) spring up in search of the Court's intervention against legislation or actions that pervert the Constitution the Court as guardian and trustee of the Constitution, must grant him (her/it) a standing;

(ii) Since *locus standi* is vested in every person in the capacity of an individual by virtue of Articles 12 to 24 of the Constitution and in the capacity of a member of the community by virtue of Articles 25 to 28 of the Constitution, the petitioners being members of the community who have constituted themselves into bodies corporate for purposes of carrying out human rights activities for the benefit of the community have *locus standi* in the petition they have filed;

(iii) Under the Interpretation of Laws and General Clauses Act, Chapter 1 the petitioners as bodies corporate are "persons" for the purposes of Article 30(2) of the Constitution; and that they have sufficient interest in this public interest litigation;

(iv) This being a petition in which the validity of the "*takrima*" provisions is being questioned what this Court has to look at are the provisions themselves *vis-à-vis* the articles of the Constitution which are alleged to have been breached;

(v) Any allegation by any person that his fundamental right or duty owed to him has been, or is likely to be violated, is sufficient to disclose a cause of action in cases of this nature (per Massati, J.);

(vi) *"Takrima"* provisions are discriminatory because:

(a) they discriminate as between high-income earner candidate and low-income earner candidate so that the two cannot stand at the same position such that the economic status of the high-income earner candidate will place him at an advantageous position to win the elections at the detriment of the low-income candidate who has very little or nothing at all to offer,

(b) they legalize actions done between a selected category of persons that is political candidates and voters while if the same action is done by other categories of persons standing in a similar relation, those action become offensive;

(vii) So long as the law is framed in a way which can result in a differential treatment between the citizens, there cannot be equality before the law in respect of that law; under the *"takrima"* provisions those who have, will be in a position to offer *"takrima"*, those who have not, will not be able to offer *"takrima"*, with a resultant effect of differential treatment between the haves and the have nots;

(viii) Since the *"takrima"* provisions are discriminative in effect, the intention of the doer is irrelevant;

(ix) The *"takrima"* provisions were not necessary at all and no lawful object was intended to be achieved by the *"takrima"* provisions apart from legalizing corruption in election campaigns;

(x) The discriminative *"takrima"* provisions affect elections in two ways:

(c) the elections cannot be free and fair because the high income earner contestant is the one who is likely to win because of his economic status; he stands a better chance to influence voters;

(d) voters cannot freely exercise the right to vote for a proper candidate of their choice because their right to vote will be subjected to *"takrima;"*

(xi) *The "takrima"* provisions are not saved by the proportionality test because the mischief created is more serious than the object sought to be achieved (per Mihayo, J.);

(xii) While the Court would not question the wisdom of Parliament in enacting any law, the fact that Courts could have reached decisions without the aid of the new provisions is sufficient evidence that the new provisions are not necessary as Courts already had such powers; on that score alone the *"takrima"* provisions do not meet the proportionality test (per Massati, J.);

(xiii) Since the *"takrima"* provisions are violative of Articles 13(1), 13(2), 21(1) and 21(2) of the Constitution, the said provisions are null and void.

Order accordingly

Cases referred to:

(1) *Attorney General of Bendel State v. Attorney General of* Mzevia (1982) 3NCLR 188

(2) *Inland Revenue Commissioners v. National Federation of Self Employed and Small Business Ltd.* [1981] 2 All ER 93

(3) *Minister for Justice v. Borowski* (1981) 2 SCR 375

(4) *Adesanya v. President of Nigeria and another* (1981) NLR 1

(5) *Peoples Union for Democratic Rights v. Ministger of Home Affairs* AIR 1985 Delhi 268

(6) *Rev. Christopher Mtikila v. Attorney General* [1995] T.L.R. 31,

(7) *Julius Ishengoma Francis Ndyanabo v. Attorney General,* Civil Appeal number 64 of 2001

(8) *Prahad Jena v. State* AIR 1950 Orissa 157

(9) *John M. Byombalirwa v. Agency Maritime International (Tanzania) Ltd* [1983] T.L.R. 1

(10) *Mukisa Biscuit Manufacturing Co. Ltd. v. West End Distributor Ltd.* [1969] EA 696

(11) *R. v. Birmingham City Council, Exparte Opportunities Commission* [1989] 2 WLR 520

(12) *A.A. Sisya and 35 oOthers v. Principal Secretary Ministry of Finance and another* Civil Case number 5 of 1994

(13) *Lutter Nelson v. The Hon. Attorney General and Ibrahim Msabaha* Civil Appeal number 24 of 1999 (unreported)

(14) *Peter Msikalile v. Leonard Derefa* Civil Appeal number 32 of 1997 (unreported)

(15) *Gilliard Joseph Mlaseko and 2 Others v. Coroma Faida Busongo and another* Civil Appeal number 57 of 1996 (unreported)

(16) *Kukutia Ole Pumbun and another v. Attorney General and another* [1993] T.L.R. 159

(17) *Young and Webster UK* (1982) 4 ER 38

(18) *Director of Public Prosecution v. Daudi Pete* [1993] T.L.R. 22

(19) *Katikiro of Uganda v. Attorney General of Uganda* [1958] EA 765

(20) *Dyson v. Attorney General* [1911] KB 410

(21) *Leons Ngalai v. Alfred Salakana and another* (CAT) Case number 381 of 1996 (unreported)

(22) *Attorney General v. Momodon Jobe* [1984] AC 589

Statutory provisions referred to:

(1) The Constitution of the United Republic of Tanzania, Articles 9(f), 12 to 24, 25 to 28, 13(1),(2) and (5), 21(1) and (2), 26(2), 29(1), 30(2)and 3), 64(5),107 A (2) (e),

(2) The National Elections Act, 1985 as amended by the Electoral Law (Miscellaneous Amendments) Act, number 4 of 2000, sections 19(1)(a), 111(2) and (3) 115, 117, 118, 119(1),(2) and (3), 130(b) and(c)

(3) The Evidence Act, Chapter 6 R.E. 2002, sections 58(1)(a)

(4) The Civil Procedure Code, 1966, section 95, Orders XV R. 3(1), VII R. 11

(5) Basic Rights and Duties Enforcement Act, Chapter 3 R.E. 2002, sections 4 and 5

(6) Interpretation of Laws and General Clauses Act, Chapter 1 R.E. 2002

(7) The Prevention of Corruption Act

M/s. Mgongolwa, Kiwangoma and *Maige* for the Petitioners!

Mr. Mwaimu for the respondent

JUDGMENT OF THE COURT

(Delivered 24 April 2006)

Kimaro, J: This is a petition by Originating Summons filed under sections 4 and 5 of the Basic Rights and Duties Enforcement Act (Chapter 3 R.E. 2002), Article 64(5) of the Constitution of the United Republic of Tanzania, 1977 as well as section 95 of the Civil Procedure Code 1966.

The Legal and Human Rights Centre (LHRC), Lawyers' Environmental Action Team (LEAT) and the National Organization Legal Assistance (NOLA) filed the petition. All the petitioners are charitable, voluntary, and non-partisan human rights interested non-governmental organizations duly registered in terms of the provisions of the Companies Ordinance Chapter 212. The Originating Summons is supported by a joint affidavit sworn by Helen Kijo Bisimba, Julius Clement Mashamba and Antipath Lissu, the Executive Directors of the petitioners' organizations. Learned Advocates Mr. Alex Mgongolwa, Mr. Kiwangoma and Mr. Issa Maige represent the petitioners in their respective order.

The respondent is the Attorney General and Mr. Mwaimu, learned Principal State Attorney, represents him and Mr. Nikson Ntimbwa, learned State Attorney, assisted him.

The petition challenges the constitutionality of the provisions of section 98(2) and 98(3) of the Elections Act, 1985 as amended by the Electoral Law (Miscellaneous Amendments) Act, number 4 of 2000. The petitioners aver that the provisions are violative of Articles 13, 21 and 29 of the Constitution of the United Republic of Tanzania, 1977.

Before we proceed, we take judicial notice under section 58(1)(a) of the Law of Evidence Act (Chapter 6, R.E. 2002) that we now have a revised edition of Laws of Tanzania. The revised edition is for the year 2002 and it was prepared on the authority of the Laws Revision Act (Act number 7 of 1994), which was made operative retrospectively by Government Notice number 124 published on 6 May 2005. The Act provided for the preparation and publication of a revised edition of the Laws of Tanzania and for continuous revision and maintenance up to date. The Elections Act is now known as The National Elections Act, (Chapter 343 R.E. 2002). It incorporates all amendments up to 2001. In 2005, Act number 3 of 2005 amended it again.

This petition was filed in September, 2005 and it appears obvious that the petitioners were not aware of the existence of Government Notice number124 of 6 May 2005 because they would have quoted

the proper number of the provisions which appear in the revised edition of The National Elections Act, (Chapter 343 R.E. 2002). We do not consider the omission to be fatal and we would ignore it in line with Article 107A(2)(e) of the Constitution of the United Republic of Tanzania, 1977 which requires the Court to focus on substantial justice and do away with technicalities which defeat justice. We are aware that there are a lot of problems in printing the government notices. The date which appears on the Government Notice as a printing date may not reflect the reality. At times the government notices are printed months after the dates which appear as the printing dates and this Court cannot shut its eyes at real situations.

In terms of the revised edition of The National Elections Act, (Chapter 343 R.E. 2002) the provisions which are being challenged by the petitioners are now sections 119(2) and 119(3). It is this prevailing position of the law that will be referred to.

The grounds for filing this petition as pleaded by the petitioners are that:

The Constitution of the United Republic of Tanzania guarantees fundamental basic rights. Among them is equity before the law and the right to participate in governance by voting or being voted for in fair and free elections. Given these guaranteed rights, the Parliament is prohibited from enactment of acts which discriminate the citizens of Tanzania on grounds of age, gender, race and the status of the beneficiaries. The petitioners contend that these guaranteed rights are *in tandem* with various International Human Rights instruments to which Tanzania is a party.

Now the petitioners' grievances are based on the amendments which were made to the National Elections Act by Act number 4 of 2000. Through the amendments, section 98(2) (now 119(2) of the 2002 revised edition), was deleted and replaced, and a new subsection 3 was added, the petitioners aver that the amendments introduced provisions which legalized the offering, by a candidate in election campaigns of anything done in good faith as an act of hospitality to

the candidate's electorate or voters. The introduced amendments are popularly known as *"takrima"* and we will be referring to the provisions by their popular name (*"takrima"* provisions).

The petitioners aver further that the *"takrima"* provisions are silent on the amount and timing of the hospitality to be provided to the electorate. Candidates who contested in the said elections and the survey which was carried out showed that they first practiced them in the 2000 General Elections and the election campaigns were marred by corrupt loopholes in the said law to influence the electorate to vote in their favour.

It is their contention that the *"takrima"* provisions are offensive and encourage corruption in the electoral process because they violate the right against discrimination, the right to equality before the law and the right of the citizens of Tanzania to participate in fair and free elections. They say that these rights aim at promoting integrity, transparency, good governance and democracy.

The petitioners plead that the petition is specifically based on Part III of the Constitution. They allege that the enforcement of the *"takrima"* provisions breach Articles 13(1) which guarantee the right to equality, Articles 21(1) and (2) which guarantee the right of citizens to participate in governance of the United Republic of Tanzania, including equal participation in free and fair elections, and the right of citizens to participate in governance of public affairs as well as the right of citizens to enjoy fundamental rights under Article 29(1).

The petitioners have also given particulars of contravention of articles of the Constitution. They are Articles 13(1) which prohibits discrimination and Article 13(2) which prohibits enactment of any law that directly or by implication discriminates citizens of Tanzania. Others are Articles 21(1) and 21(2) which guarantee among others the right of enfranchisement to citizens of Tanzania.

The petition in general challenges the *"takrima"* provisions to the extent that they infringe the right of every citizen to vote and be voted for in fair and free elections as well as the right to equality

before the law. They are also being challenged in as much as they contravene the provisions of the Constitution that prohibit any law enacted by the Parliament to contain provisions that discriminate citizens of the country as guaranteed for under Article 29(1) of the Constitution of the United Republic of Tanzania 1977.

The petitioners pray for declaratory orders to the effect that the *"takrima"* provisions are unconstitutional, null and void. They also pray for costs of this petition.

The Attorney General does not deny the basic rights which the petitioners aver that they are guaranteed by the Constitution. What he denies is the allegations by the petitioners that the *"takrima"* provisions violate the Constitution. He asserts that the provisions are clear, self-explanatory and with no violation of the Constitution of the United Republic of Tanzania. He prays that the petition be dismissed with costs.

The Attorney General also gave a notice of preliminary objection raising two points. The first point of objection is that the petitioners have no *locus standi* to challenge the *"takrima"* provisions and the second one is that the petition does not disclose a cause of action.

From the nature of the petition itself, we did not consider it worthwhile calling witnesses. We were satisfied that the issue which is involved is one of law and could fairly be disposed of by written submissions from the parties under Order XV rule 3(1) of the Civil Procedure Code 1966. To save time and costs the hearing of both the preliminary objections and the petition proceeded by written submissions and simultaneously.

The arguments raised to support the first point of preliminary objection by the Attorney General is that Article 30(3) of the Constitution and section 4 of the Basic Rights and Duties Enforcement Act (Chapter 3 R.E. 2002) are the enabling provisions of the law for filing this petition. The said provisions give *locus standi* to natural persons only. The petitioners being registered institutions are legal persons. They are not the persons envisaged by the law to file a petition to

complain about infringement of human rights. The learned State Attorney argued strongly that the infringement of human rights could only be against natural persons and not legal persons. His view is that the petitioners have come up with a hypothetical case because human rights violation cannot be against a company or an institution.

The counter argument by the petitioners is that the argument by the learned State Attorney is not supported by any authority.

The petitioners concede that the Constitution does not give a definition of the term "person" but they argued that short of a definition in the Constitution, guidance must be sought from the definition given by the Interpretation of Laws and General Clauses Act, (Chapter 1 R.E. 2002) which defines the word person as:

> ... a public body, company or association of persons, corporate or incorporate.

The petitioners' firm view is that since the definition of a person given by the said law is not restricted to natural persons but extends to legal entities, the enabling provisions of the law to file this petition cover them.

The petitioners argued further that as Activists Human Rights Organizations, they are vested with a *duo* capacity; the capacity as an individual and the capacity as a member of the community and this is the scheme of Part III, Chapter one of the Constitution. The petitioners contend that as members of the community, they are vested with the capacity to seek and protect the communities' rights enshrined in the Constitution. They argued that this scheme reflects the modern trend in Constitutionalism which recognizes the pre-eminence of the community in the formulation of the Constitution. They submitted that the gate to access the Courts for Constitutional declaratory orders is wide enough to accommodate legal persons as well. The Court was referred to a Nigeria case of *Attorney General of Bendel State v. Attorney General of Mzevia* (1) where in interpreting an article in *pari materia* to our Article 30(3) the Court held that the article opened the gate to the Courts for persons who do not want to be governed by laws not enacted in accordance with the Constitution.

It was argued further by the petitioners that Article 30(3) of the Constitution caters for both personal and public interest litigations and so the argument by the learned State Attorney on who has *locus standi* is devoid of any merit. The petitioners said Article 26(2) is an additional source for *locus standi* for them. Their argument is that the provision falls under the sub-title; Duties to the Society and therefore the doctrine of public interest litigation is embodied in the Constitution and it is not something which has to be imported from other jurisdictions. The petitioners made reference to decisions from other jurisdictions which are *Inland Revenue Comrs v. National Federation of Self Employed and Small Business Ltd* (2), *Minister for Justice v. Borowski* (3), *Adesanya v. President of Nigeria and another* (4) *and Peoples Union for Democratic Rights v. Minister of Home Affairs* (5). They argued that in all the decisions the issue of *locus standi* was raised and the Court adopted a liberal interpretation arguing that the petitions were based on public interest and in public interest litigations all that the petitioner is required to show is *bona fide* claim for public interest.

The petitioners also supported their argument by the celebrated case of *Rev. Christopher Mtikila v. Attorney General* (6). They prayed that the objection on *locus standi* be dismissed for being devoid of any merit.

It was unfortunate that we could not get hold of some of the authorities cited by the advocates for the petitioners; particularly the *Nigerian* cases and copies were not supplied. After a thorough scrutiny of the submissions made by the learned State Attorney and the Advocates for the petitioners we agree with the learned advocates that the petitioners have *locus standi*. It is not true as submitted by the learned state attorney that natural persons only can bring violations against human rights to Court. There is nothing in Article 30 which confines the definitions of a person to natural persons. As correctly submitted by the learned advocates for the petitioners the definition of the term person in the Interpretation of Laws Act [Chapter I R.E. 2002] includes corporate bodies like the petitioners.

In the case of *Rev. Christopher Mtikila v. Attorney General* (1) the Honourable Justice Lugakingira (as he then was) discussed at length the principle of *locus standi* and how *locus standi* is vested under our Constitution. It is vested in every person in the capacity of an individual by virtue of Articles 12 to 24 of the Constitution and in the capacity of a member of the community by virtue of Articles 25 to 28 of the Constitution. The petitioners are members of the community who have constituted themselves to corporate bodies for purposes of carrying out human rights activities for the benefit of the community. It is the community which is the beneficiary of those activities. The nature of the activities for which the petitioners have constituted themselves is a determinant factor of their *locus standi* in the petition which they have filed. It is a public interest petition. We are therefore in all fours with Hon. Lugakingira J. (as he then was) who observed in *Rev. Christopher Mtikila v. Attorney General* (1) that if a public spirited individual (and we add a corporation like the petitioners) springs up in search of the Court's intervention against legislation or actions that pervert the Constitution, the Court as guardian and trustee of the Constitution, must grant him (her/it) a standing.

The same issue arose in the case of *Julius Ishengoma Francis Ndyanabo v. The Attorney General* (7). The Court of Appeal discussed the issue at length and it held that in an appropriate case a juristic person might complain before the High Court of a violation of the equality before the law. This is an appropriate case for the petitioners to complain of violation of human rights. We dismiss the first preliminary objection on the petitioners lacking standing for being devoid of any merit.

The second preliminary point of objection is cause of action. It was submitted for the Attorney General that the petitioners have not shown who is being discriminated by the *"takrima"* provisions and the nature of the discrimination. The learned state attorney argued that in order to challenge the constitutionality of any provision, a person must clearly specify an act which constitutes a breach of

violation of his right. The learned state attorney argued further that the *"takrima"* provisions have been made in accordance with Article 30(2) of the Constitution. He went on to give analysis of the provisions and arrived at a conclusion that the term good faith used in the *"takrima"* provisions was intended to differentiate those acts done and expenses incurred in providing food, drink and entertainment with provisions offered for the purpose of inducing or influencing any person to vote or refrain from voting a candidate in elections.

The response by the advocates for the petitioners is that the issue which is involved is the constitutionality of the *"takrima"* provisions. What the Court has to look at is the law and how it works. We were referred to the case of *Rev. Christopher Mtikila v. Attorney General* (6) which quoted with approval a passage from Chitaly & Rao, the **Constitution of India** (1970:686), citing *Prahad Jena v. State* (8) where it was held that:

> In order to determine whether a particular law is repugnant or inconsistent with the fundamental rights it is the provisions of the Act that must be looked at and not the manner in which the power under the provisions is actually exercised. Inconsistence or repugnance does not depend upon the exercise of the power by virtue of the provisions in the Act but on the nature of the provisions themselves.

The petitioners argued further that since it is the validity of the *"takrima"* provisions which is in dispute, on the face of it, the necessary cause of action is established and the question of proving the allegations comes at the stage of hearing. The petitioners also prayed for the dismissal of the preliminary objection.

It is easy for us to dispose of this point of preliminary objection. We need not detain ourselves on this matter. Firstly, in the case of *John M. Byombalirwa v. Agency Maritime Internationale (Tanzania) Ltd* (9) the Court of Appeal held that for purposes of deciding whether or not a plaint discloses cause of action, it is the plaint that must be looked at. Looking at what is pleaded in the petition, it discloses cause of action.

Secondly, this being a petition in which the validity of the *"takrima"* provisions is being questioned, what this Court has to look at are the provisions themselves *vis-à-vis* the articles of the Constitution which are alleged to have been breached. As correctly submitted by the advocates for the petitioners, the question of how those articles have been breached has to be dealt with in the course of the hearing of the petition itself. The case of *Mukisa Biscuit Manufacturing Co. Ltd v. West End Distributor Ltd* (10) sets out a criteria of matters which can be argued as preliminary objections. They must be points of law pleaded or that arise as a clear implication from the pleadings

For this objection the learned state attorney crossed the borders of the preliminary objection when he submitted that the petitioners have not shown acts of contravention. That is a matter of evidence.

The same issue arose in the case of *Rev. Christopher Mtikila v. Attorney General (*6) where Hon. Justice Lugakingira J. (as he then was) agreed with the decision of *Prahalal Jena v. State* (6), which is reproduced in Chitaley & Rao, the **Constitution of India**. This petition is similar to the case of *Rev. Mtikila (*6) in that the constitutionality of the provisions which bar independent candidate from standing for elections was in question. In this petition the constitutionality of the *"takrima"* provisions is in question.

We hold as in the first preliminary point of objection that the second point of preliminary objection has no merit and it is equally dismissed.

Our next stage is the petition itself. The grounds for filing this petition as contained in paragraphs 5, 6 and 7 are mainly two.

The first ground is that sections 119(2) and 119(3) of the National Elections Act (the "*takrima*" provisions) are inconsistent in substance with the provisions of Articles 13(1) and (2) of the Constitution of the United Republic of Tanzania which prohibits enactment of any law or commission of any act which is directly discriminatory or discriminatory in effect.

A brief background to the petition given by the Advocates for the petitioners is that although the offences of corrupt practices were removed and transferred into the Prevention of Corruption Act in 1990, they were re-introduced again into the Elections Act in 1995. The effect of the reintroduction of the offences was felt soon after the first multiparty elections in 1995 by the big number of election petitions which were filed in the High Court challenging the election results on the ground of corrupt practices by the victorious candidates in the election process. Their view is that this reason led to the 2000 amendments which legalized the offering by a candidate in election campaigns of anything done in good faith as an act of normal or traditional hospitality, *"takrima"* to the candidate's electorate or voters. They said, the provisions which were practiced for the first time in the 2000 General Elections showed their true discriminatory effect because the campaigns were marred by corrupt tendencies because the *"takrima"* provisions were used by the candidates to influence the electorate to vote in their favour. They submitted further that the trend repeated itself in the 2005 elections and there have been complaints all over the country that *"takrima"* is killing democracy and free elections.

The Advocates argued that by having the *"takrima"* provisions, an act which would have amounted to treating, bribery or illegal practice under sections 115, 117 and 118 would not be illegal if done in good faith. Their opinion is that the provisions justify the giving and receiving of something of normal or traditional hospitality or incurring what is called normal or ordinary expenses in election process in good faith.

They referred to the interpretation of the definition of the expression "discrimination" in Article 13(5) of the Constitution as given by the Court of Appeal in the case of *Julius Ndyanabo* (7) and argued that the provisions are discriminatory in two ways:

One, the high-income political candidate is capable of offering the so called *"takrima"* hospitality to the voters because of his/her

financial capability while a low-income political candidate may not have the financial capability to do so. The *"takrima"* provisions entail differential treatment of persons contesting the elections basing on their station of life. The wealth of the high-income political candidate will place him/her at an advantaged position of winning elections because of the popularity gained from offering *"takrima"* to the voters. This is a position which cannot be available to a low-income political candidate who has nothing to offer as *"takrima"*. Thus whereas the high-income political candidate stands at an advantageous position the low-income political candidate stands at a disadvantaged position. The Advocates said that this is the ultimate result of the *"takrima"* provisions despite of the fact that we have no law in Tanzania which provides for the candidate's level of wealth as a prerequisite condition or qualification to contest for any position in the election process.

Second, the advantage or the exception provided for in the *"takrima"* provision is only available as between political candidates and voters. It is not applicable in other instances like employer and an applicant for employment. In other words the *"takrima"* provisons have the effect of justifying some acts if done in the election campaigns while if they are done outside the election campaigns are offensive notwithstanding that the former might have the same or even more serious effect than the latter.

They said that what determines the discrimination of an act in case of indirect discrimination is not necessarily the intention of the doer but the effect of his/her acts. Reference was made to the case of *R. v. Birmingham City Council ex parte Equal Opportunities Commission* (11) at page 523-6 which was given recognition in Tanzania by this Court in *A.A. Sisya and 35 Others v. Principal Secretary Ministry of Finance and another* (12).

It is the argument of the learned Advocates that the *"takrima"* provisions are discriminatory in effect and this is a question of fact. This can be gathered from the framing of the provisions and its application in 2000 and 2005 General Elections. They said that common sense alone, without assistance of knowledge would suggest that as between

a political candidate who has offered gifts to voters and another who has not, the one who has offered gifts stands a better chance to be voted for and this is in consonance with the Swahili proverb that says *"Mkono mtupu haulambwi"*.

As for the counter affidavit sworn by Mr. Nixon Noege Ntimba wherein he denied that the *"takrima"* provisions are unconstitutional because the wording does not suggest nor indicate that the constitutional rights has, will or is about to be infringed, nor does it encourage any infringement or breach of the Constitution, the Advocates said it is not the wording which matters but the implication. The Advocates referred again to the decision of *A.A. Sisya and 35 Others v. Principal Secretary, Ministry of Finance* (12). The Court was invited to hold that in as far as the *"takrima"* to a voter before elections and a plaintiff, who offers *"takrima"* to a judge before decision, is discriminatory and therefore unconstitutional.

The learned State Attorney did not; in his reply deny what is provided by Articles 13 and 21 of the Constitution. He said the issue to be addressed by the Court is whether the *"takrima"* provisions infringe and abridge the constitutional rights cited by the petitioners.

His submission is that the concept of treating as a corrupt act and therefore an offence existed since the enactment of the National Elections Act 1985 section 19(1)(a) creates an offence against a person who gives, provides or pays expenses for food, drink or entertains another person with a view of corruptly influencing such other person to vote or refrain from voting at an election. Section 119(1)(b) deals with a receiver of those services. Section 119(1) prohibits the use of food, drinks and entertainment as an inducement to voters. It is not all acts of giving, providing or paying expenses for food, drinks or entertainment done during the elections period that amount to corrupt practices or treating. Section 119(1) covers those acts which in law are intended to influence voters - that is to do acts at the benefit of the giver, provider or payer. This influence is aimed at making the candidate win the elections.

The learned State Attorney conceded that section 119(2) and 119(3) were introduced after the big number of election petitions filed in Court seeking for the nullification of the election results. In his opinion, Parliament used its wisdom to curb the problem after taking into consideration the time consumed and the costs incurred. It was noted that during the election period candidates incur expenses for food, drinks and transport. Candidates are natural persons and they live with voters. Therefore they are part and parcel of the society. It is impossible for the election candidate to avoid voter's visits at their homes.

He paused a question whether in an African tradition it is possible to avoid hospitality to a person who visits an election(s) candidate's home as a neighbour or one who goes to discuss issues not related to the elections. He went on to pause another question whether it is possible for an election(s) candidate to campaign without a campaign team, dancing troupes or music bands and choir given the fact that a candidate needs to travel in the constituency in order to advocate policies or election manifesto of his/her party and convince the would be voters to vote for him or her. The learned State Attorney is firm in his mind that by necessary implication, there are expenses which cannot be avoided during the elections period. It was in the light of those circumstances that Parliament decided to introduce the *"takrima"* provisions as an exception to the general rule of treating.

The Court was referred to the cases of the Court of Appeal which held that facilitation of transport by an election candidate to a campaign team as well as provision of food and drinks to a campaign teams and *ngoma* dancers invited to perform at campaign rallies was lawful. These are the cases of *Lutter Nelson v. The Hon. Attorney General and Ibrahim Msabaha* (13), *Peter Msikalile v. Leonard Derefa* (14) and *Gilliard Joseph Mlaseko and 2 Others v. Coroma Faida Busongo and another* (15).

The learned state attorney went on to submit that the *"takrima"* provisions were enacted subsequent to the decisions of the Court

because Parliament found that there were genuine expenses for food, refreshment and entertainment incurred as genuine costs by an election candidate. The law was intended to justify those expenses and this was with the support of the decisions of the Court of Appeal. To that extent it cannot be claimed that the two subsections violate Article 13 of the Constitution. The normal or traditional hospitality and the normal or ordinary expenses spent are only those done in good faith and the good faith must be construed in line with the provisions of section 119(1) of the National Elections Act (Chapter 343 R.E. 2002). By necessary implication, if the expenses are incurred without good faith it means it is treating or a corrupt influence as provided for under section 119(1) and the candidate can be punished accordingly upon so finding by the Court to that extent.

Mr. Mwaimu disagreed with the construction of the principle of good faith which the Petitioners' Advocates said could be extended to sections 115, 117 and 119 of the Act. He said the interpretation is wrong because sections 117 and 118 do not deal with treating and so the aspect of good faith invoked in the *"takrima"* provisions does not apply. His view is that the *"takrima"* provisions are only an exception to the general rule laid down in section 119(1) of the National Elections Act and the exception reflects the finding of some of the decisions of the Court of Appeal cited. In his opinion the *"takrima"* provisions are meant to give Courts of law a guide when deciding whether the act is done is in good faith or otherwise. That the test which distinguishes between treating in section 119(1) and the exception in the proviso to sections 119(2) and (3) (the *"takrima"* provisions) is the *mens rea*. The process of decision making entails answering a lot of questions, such as what was the purpose of paying expenses or giving or providing food, drink, entertainment or provision? Was it intended to influence voters to vote for an election candidate? Was it intended to facilitate his/her campaign and other related questions?

The learned State Attorney denied that the *"takrima"* provisions are discriminatory. It was submitted that the *"takrima"* provisons

are meant to serve situations where election(s) candidate incur expenses and costs in furthering election campaigns but not in circumstances where they are meant to inducing or influencing voters. Whatever is done with the intention of inducing or influencing voters in this regard is treating under section 119(1).

Mr. Mwaimu said having no express law which caters for elections costs and expenses should not be a warrant to expunge the *"takrima"* provisions. It was further opinion of Mr. Mwaimu that the *"takrima"* provisions do not discriminate elections candidate on basis of station of life. His belief is that in the nomination of candidates to vie the elections, there cannot be a weak candidate because the political parties would not stage such a candidate. The law treats all election candidates from political parties with equal status.

Further submission by the learned State Attorney was that the Advocates for the petitioners misinterpreted the law when they associated the *"takrima"* provisons with gift. He said section 118(1)(c) of the National Elections Act, which is not related to treating covers gift. Mr. Mwaimu is also of an opinion that the case of *A.A. Sisya* (12) is distinguishable from this case because the subject matter in that suit was the Motor Vehicle Surtax Act number 3 of 1994. The Act singled out owners of saloon and or station wagon cars and left out persons who own other types of cars whereas the *"takrima"* provisions have not given a category of persons to be affected by it. The law is for all election candidates and therefore the case is not applicable in the circumstances of this case. The law was not meant to allow a certain class of people to use their class to influence people in order to win the elections. It was meant to justify genuine expenses and costs used in conducting elections campaigns.

The learned State Attorney also denied that the *"takrima"* provisions render it impossible to hold someone liable for the offence under section 119(1) because they are an exception to the general rule of treating.

His conclusion is that the *"takrima"* provisions were not aimed at embracing corruption, nor were they intended to form a disguised form of corruption. His firm view is that the petitioners are facing a problem of interpretation, just like many other persons who think that the *"takrima"* provisions have extended the normal or traditional hospitality to other corrupt practice provisions of the law. He said the approach is wrong and misleading. The *"takrima"* provisions relate to section 119(1) only. They are important because it is obvious that during the elections, candidates do expend and incur some running costs. Those genuinely incurred costs cannot be held as treating.

Mr. Mwaimu prayed for the dismissal of the petition with costs.

In reply the petitioners advocates denied that the "*takrima* provisions" are related only to section 119(1) of the National Elections Act. They said section 119(2) excludes from the offences of treating, bribery and illegal practices, what is called normal or ordinary expenses spent in good faith in elections campaigns or in the ordinary course of election process. Treating is found in section 119(1), bribery in section 117 and illegal practices in section 118(1). Section 115 defines the offence of corrupt practice to include treating (under section 119(1)), bribery (under section 118) and illegal practice (under section 117).

They conceded that normal expenses incurred for food in elections campaigns team, drinks for member for campaign teams, fuel for motor vehicles used for campaign and bicycles for the members of the campaign team are justified during the election process. They added that they were justified even before the inclusion of the *"takrima"* provisions in the elections Act. The problem is that the *"takrima"* provisions are broad enough to cover both justified and unjustified acts. Their view is that the expression "in the election campaign or in the ordinary course of election process" used in section 119(2) broaden the traditional hospitality and ordinary expenses to include food, drinks, transport, clothes which are offered to members of the public who attend the election campaign or who are residing in

the area where the campaign is being conducted. There is nothing in the provisions to exclude costs for offering food to audience attending the meeting or providing transport or transport allowances to people who attend an election campaign, from the exception. The problem is more entangled by the fact that the term traditional hospitality and normal or ordinary expenses have not been defined anywhere in the act. This leaves room for open interpretation and hence creates an opportunity for illegitimate practices which are forbidden under sections 117, 118 and 119(1) of the Act.

It was their further submission that in as long as the cases of *Luther Nelson v. A.G. and Ibrahim Msabaha* (13), *Peter Msekalile v. Leonard Derefa* (14) and *Gillard Joseph Mlaseko and 2 others v. Corona Faida Busongo and another* (15) only justified the serving of food, and expenses incurred for transport not to members of public but to members of the campaign team only, the cases are irrelevant and inapplicable in this case.

As regards the argument by the learned State Attorney that the *"takrima"* provisions were meant to assist the Court in determining whether the act was done in good faith or not, the learned advocates said this argument does not have any leg to stand on because bad motive was one of the ingredients for the offence of corrupt practice even at the pre amendment era. It was from the same provisions that the Court of Appeal was able to put a demarcation line between expenses incurred for members of campaign teams and excluded expenses offered to cover other groups. It is their opinion that the *"takrima"* provisions were not necessary. They also denied that the cases of the Court of Appeal cited by the learned State Attorney will assist in the construction of the *"takrima"* provisions because the cases were decided before the *"takrima"* provisions were introduced into the law.

The advocates said they are aware that it is one thing to give something in order to influence someone to vote for a candidate and it is another to give something to someone in good faith although

the obvious result of the giver is to influence that person to vote for the candidate. They reiterated their earlier position on Article 13(2) of the Constitution which deals with both direct and indirect discrimination. They repeated their prayers in the petition.

Since this is a petition filed in public interest, it was felt that it was important to reproduce the long arguments advanced by each party to this petition. We felt it would be unfair to deal with the petition in a summary form.

Article 13(1) of the Constitution provides for equality before the law, while Article 13(2) prohibits enactment of law which is discriminatory directly or discriminatory in effect.

The advocates for the petitioners submitted correctly that the expression "discrimination" is defined in Article 13(5) and the Court of Appeal translated it in the case of *Julius Ndyanabo* (7) as follows:

> (5) For the purpose of this article the expression "discriminate" means to satisfy the needs, rights or other requirements of the different persons on the basis of their nationality, tribe, place of origin, political opinion, colour, religion, station of life that certain categories of people are regarded as weak or inferior and being subjected to restrictions or conditions whereas persons of other categories are treated differently or are accorded opportunities or advantage outside the specified conditions or prescribed necessary condition, provided that the expression shall not be construed as to prevent the government from taking deliberate steps aimed at solving problems in society.

The advocates for the petitioners argued that the *"takrima"* provisions entail a differential treatment of the citizens basing on their station of life in two ways. Firstly, high-income political candidates are treated differently from the low income political candidates in the election process because the former are placed in a better position to offer traditional hospitality because of their economic status whereas the latter may fail to do so. In this regard the high income candidate stands at a better position to win the elections because of his/her advantageous position which is based on his/her economic status

while the latter is likely to lose because of standing in a different position because of incapacities to offer the same. We agree with this position and we think this is a question of common sense alone.

The second aspect of discrimination is that the *"takrima"* provisions only apply between voters and political candidates. It does not apply in another category of persons like an applicant of employment and the employer. The *"takrima"* provisions therefore have the effect of justifying some acts if done in elections campaigns while if done outside the election campaigns they are offensive.

The learned State Attorney stood firm and denied that this is the position.

With great respect to the learned state attorney we disagree with him that the *"takrima"* provisions are not discriminatory. They are discriminatory as between a high-income earner candidate and low-income earner candidate. The two cannot stand at the same position. The economic status of the high-income earner will place the candidate at an advantageous position to win the elections at the detriment of the low-income candidate who has very little or nothing at all to offer. This we have no doubt in our minds at all.

The *"takrima"* provisions are also discriminatory because they legalise actions done between a selected category of persons that is political candidates and voters while if the same actions are done by other categories of persons standing in similar relatins, those actions become offensive. This case is similar to the case of *Julius Ishengoma Francis Ndyanabo v. A.G.* (*7*). The Court of Appeal gave a thorough explanation on the discriminative nature of the provision of sections 111(2) and (3) of the National Elections Act 1985. Act number 4 of 2000 amended the same provisions.

So long as the law is framed in a way which can result in a differential treatment between the citizens, there cannot be equality before the law in respect of that law. This is what comes out of the *"takrima"* provisions. Those who have will be in a position to offer *"takrima"*,

those who have not, will not be able to offer *"takrima"*. The resultant effect is a differential treatment between the haves and the have nots.

The *"takrima"* provisions are discriminative in effect. The intention of the doer is therefore irrelevant. *In A.A. Sisya and 35 others v. The Principle Secretary Ministry of Finance,* (12) our brother-Mwalusanya J. (as he then was said).

> In the case at hand, it is irrelevant that the government is arguing that the impugned law did not intend to discriminate against the affected group. What is relevant is the fact that the impugned law is discriminatory in effect (indirect discrimination). It is my finding that the said law is discriminatory of the affected group on account of their status of life, as the Republic has failed to show that the discrimination is on account of any other than on account of the status of life of the affected group.

Having found that the *"takrima"* provisions are discriminatory, the next stage is to examine the restrictions in order to ascertain whether they were necessary. In other words we have to test the proportions of the restrictions *vis-à-vis* the objects intended to be achieved by the restriction, that is the proportionality test.

The advocates for the petitioners submitted that they are aware that fundamental rights can be curtailed because of societal interest under Article 13(5) and 30(2) of the Constitution. However, their view is that the restriction imposed by the *"takrima"* provision is not proportionate to the object sought to be achieved.

They said they are aware of the restrictions which the government can impose on fundamental rights in public interest under Article 30(2) of the Constitution. Their understanding of the law is that after establishing that a certain law is invalid for violating a basic right, the burden of proof as to the necessity of the limitation for public interest shifts to the Government.

The Court was referred to the case of *Julius Ndyanabo* (7) *Kukutia Ole Pumbun and Another v. Attorney General and another* (16),

Young and Webster UK (17) and *A.A. Sisya* (12) on the argument that so as to balance between the interests of the public and those of the individuals, various guiding legal mechanisms have been created both domestically and globally to guide the Courts in determining whether or not the restrictions of the basic rights are justifiably necessary. The advocates said that from the decisions cited, in order for the law tending to restrict the basic rights to be legally justifiable, the different treatment must have rationale or reasonable nexus to the object sought to be achieved and it should not be arbitrary.

An argument was advanced by the advocates that the restrictions have no rational or reasonable nexus to the object sought to be achieved because of two reasons. The first one is that mischief created by allowing some people to use their economic status to influence to win elections is more serious than the object sought to be achieved. The second one is that it was not necessary whatsoever to enact the new provisions of subsection (2) and (3) because the provisions of section 119(1) excludes from corrupt offences anything done in good faith as an act of normal hospitality.

Their reasoning is based on the fact that what was offensive in terms of section 119(1) before it was amended was the payment or provisions of the expense of giving or providing food or entertainment with corrupt intention. The giving or receiving of something in good faith did not amount to an offence under section 119(1) of the Act. Corrupt intention, which is bad faith, could not be easily proved by direct evidence; it could in most cases be proved by circumstantial evidence. The offering of gifts by political candidates to the expected voters before election sufficed to draw an inference that the giver thereof had in mind that the recipients of the gifts would vote for him.

Their further submission is that the addition of the new provisions renders it impossible to hold someone liable for the offence under section 119(1) because by expressly proving that subsection (1) will not catch a person who gives that which is prohibited therein, if the

giving is done in good faith, it was another language of saying that the offence cannot be proved by circumstantial evidence. They noted that before the amendment, the onus of proving that what was given by a candidate to the voters was a traditional hospitality given in good faith was on the candidate himself and not the Republic. The contrary is now the position because the amendments imposed the burden on the petitioner to prove that what was given by the candidate to the voters is not the normal or traditional hospitality to the Republic. Since the term traditional hospitality and the forms thereof are not defined by the Act, the *"takrima"* provisions become redundant. Thus the giving of something to the intended voters by a candidate is presumed to be traditional hospitality unless bad motive is proved.

The advocates said it is not in the public interest and it is irrational to justify the limitations of basic rights in the sweeping and controversial expression as traditional hospitalities. The restrictions are arbitrary because they only justify the giving of something in good faith during election campaigns without a definition of what amounts to traditional hospitality and the forms thereof. Their opinion is that the law is widely woven as to catch every giving and receiving, notwithstanding the influential effect of the same in the election process. Their understanding is that the arbitrariness is also felt by omission in the provision for a mechanism to protect or safeguard the affected. There is no line of demarcation between traditional hospitalities which have the direct effect of influencing the voters to vote for the giver and those that do not. Their conclusion on the first ground of the petition is that the *"takrima"* provisions do not meet the proportionality test as laid out in various judicial decisions which they cited. The limitation imposed by the *"takrima"* provisions was more than reasonably necessary to achieve the legitimate object.

Apparently the learned State Attorney did not like to address the issue of restrictions on fundamental rights.

The principle of proportionality is well explained by the Court of Appeal in the case of *Kukutia Ole Pumbun v. A.G. and another* (11)

and *Julius Ishengoma Francis Ndyanabo v. A.G.* (7) . In the case of *Kukutia Ole Punbun* the Court of Appeal held that:

> a law which seeks to limit or derogate from the basic right of individual on the ground of public interest, will be saved by Article 30(2) of the Constitution if it satisfied two requirements. Firstly, such law must be lawful in the sense that it is not arbitrary. It should make adequate safeguards against arbitrary decisions and provide effective controls against abuse of those in authority when using the law. Secondly, the limitation imposed must not be more than necessary to achieve the legitimate object. This is also known as the principle of proportionality.

In the case of *Julius Ndyanabo,* the Court of Appeal added that:

> Fundamental rights are not illimitable. To treat them as being absolute is to invite anarchy in society. Those rights can be limited, but the limitation must not be arbitrary, unreasonable and disproportionate to any claim of state interest.

Similarly, in *Director of Public Prosecution v. Daudi Pete* (18) the Court of Appeal held that a restriction on fundamental right must serve a legitimate purpose and has to be proportionate.

Our considered view is that the *"takrima"* provisions were not necessary at all and we entirely support the views expressed by the learned Advocates for the petitioners. The decisions of the Court of Appeal in the cases cited by the learned state attorney also support our view. We do not see any lawful object which was intended to be achieved by the *"takrima"* provisions apart from legalizing corruption in election campaigns. We do not consider this to be a societal interest. As illustrated, the *"takrima"* provisions discriminate between the high-income earner and low-income earner as well as between selected classes of persons with similar functions. We are highly convinced that the provisions of Articles 13(5) and 30(2) were intended to be exercised in the manner in which they were exercised in amending the National Elections Act. The learned Advocates for the petitioners submitted correctly that the restrictions have no rationale or reasonable nexus to the object sought to be achieved. Instead, it has created a

serious mischief by allowing high-income earner candidates to use their class to influence voters to win the elections. The *"takrima"* provisions do not meet the proportionality test.

The second ground of the petition is that sections 119(2) and (3) violate the provisions of Articles 21(1) and (2) of the Constitution which guarantee the right to vote and be voted in free and fair election.

It was submitted by the Advocates for the petitioners that the *"takrima"* provisions violate the provisions of Articles 21(1) and (2) of the Constitution which provide for the right to vote and be voted for in free and fair elections. The basis of their contention is that there cannot be a free and fair election with the *"takrima"* provisions which justify discrimination based on the candidate's station of life. They adopted their submission given in respect of the first ground. Their opinion is that there cannot be free and fair elections if some of the contestants are, because of their economic well being, afforded an opportunity to win in the election process to the detriment of poor contestants.

They observed that the right to vote and be voted for in free and fair elections is one of the foundations of participatory democracy. The Head of the Government and State as well as the Parliamentarians are elected through free and fair elections. It is dangerous to have the main law governing such a process to be framed in a way which creates a bush within it for corrupt political candidates to hide themselves. They said the trend in the Tanzania Judiciary just like in other common law countries has been to interprete the Constitution as a living instrument in the light of the present day conditions.

They feel that it was irrational for the Government to enact a law restricting the application of the provisions against corrupt practice in such a sweeping clause while corruption is one of the serious problems in Tanzania. In interpreting the *"takrima"* provisions in the light of Tanzanian environment it is impossible to avoid a conclusion that the *"takrima"* provisions legalise corruption in the election process.

Finally they said that although the rights conferred by Articles 13 and 21 of the Constitution are not absolute but are subjected to the provisions of Article 30 of the Constitution, there was no reasonable necessity on the part of the Parliament to invoke the limitations under Article 30(2) of the Constitution because the object could be achieved without necessarily enacting such a widely framed enactment which does not set demarcations on applicability.

The learned State Attorney was contented to mention only broadly that the *"takrima"* provisions are not violation of Article 21(1) of the Constitution. He did not prefer to give reasons.

The discriminative nature of the *"takrima"* provisions has been exhaustively covered when dealing with the first ground of the petition. It suffices for us to say that since the *"takrima"* provisions are discriminative they affect the elections in two ways. Firstly is among the contestants. The elections cannot be free and fair because the high income-earner contestant is the one who is likely to win because of his economic status. He/she stands a better chance to influence the voters. The low-income contestant stands to lose the elections because of his low income which does not allow him/her to influence the elections.

As for the voters their right to vote for a proper candidate of their choice cannot be freely exercised because they will lose that freedom because of being influenced by the *"takrima"*. Their right to vote will be subjected to *"takrima"*. This Court has to take judicial notice under section 58 of the Law of Evidence Act that the majority of the voters are poor. They are ignorant of their rights as well as their responsibilities. They can be easily manipulated by the so-called normal hospitality *("takrima")*.

As correctly submitted by the Advocates for the petitioners, the enactment of the *"takrima"* provisions is a very dangerous approach in the whole process of conducting elections. It amounts to building a culture, which if sustained, will lead this nation to a bad destination. People should get the opportunity to think freely and decide freely

and should not be subjected to influences of *"takrima"*. They should also be left to learn that it is their responsibility/duty to elect competent candidates and not those who are able to influence voting by offering *"takrima"*.

As for the invitation by the learned Advocates for the Court to consider public opinion on the *"takrima"* provisions, we are afraid to say that it is not an invitation which this Court can accept because the Court acts on evidence which is on record. The Court cannot rely on what the media says as a basis for its decision. Those who gave their opinion were exercising their freedom of expression but they were not giving evidence in Court.

As observed earlier, there was no lawful object which had to be achieved by introduction of the *"takrima"* provisions. Given the serious effects of the *"takrima"* provisions we cannot allow them to continue being in the statute books.

On the evidence and the submission presented in this Court, we are satisfied on the standard required that the *"takrima"* provisions are discriminative and they are violative of Articles 13(1) and 21(1) of the Constitution. They were quite unnecessary. The law as it was before the introduction of the *"takrima"* provisions was sufficient to enable the Court to distinguish expenses inevitable in the election process which did not amount to corrupt practices and those which *per se* amounted to corrupt practices. The cases cited by the learned State attorney support this view.

The Parliament contravened Article 13(2) of the Constitution by enacting such provisions into the National Elections Act.

Tanzania is a party to various International Human Rights Instruments. The Universal Declaration of Human Rights (UDHR), which is the core of International Human Rights law, is incorporated into Article 9(f) of our Constitution. Article 7 of the UDHR provides for equality before the Law and bars discrimination. Article 21 of UDHR provides for the right to participate in the government of ones country directly or through freely chosen representatives.

It is provided in Article 21(3) that the will of the people shall be the basis of the authority of the government; this shall be expressed in periodic and genuine elections which shall be by universal and equal suffrage and shall be held by secret vote or by equivalent free voting procedure.

Since the *"takrima"* provisions are violative of Articles 13(1), 13(2), 21(1) and 21(2) of the Constitution we declare the said provisions null and void and we order the same to be struck out of National Elections Act, (Chapter 343 R.E. 2002), forthwith. However, we have further seen that section 130(b) and (c) of the National Elections Act gives powers to the High Court to allow such acts done in good faith or traditional hospitality to be exception which would otherwise make the acts or omission corrupt or illegal practice. We think this provision may lead to absurdities in the face of what we have declared on sections 119(2) and (3). So in our view, although the petitioners have not specifically prayed for the nullification of this provision we think that it cannot be saved either. We exercise our powers under "any other relief" and proceed to declare that sections 130(b) and (c) are also unconstitutional and should be struck out of the statute. This being public interest litigation, there is no order for costs.

Mihayo, J: I have read the judgment of Kimaro, J. in draft and I am positive that I concur with her findings. I have also read the judgment of Massati, J. in draft, and likewise I concur. I agree that the two preliminary objections on points of law should be dismissed.

It makes sense to define the word "person" in accordance with the Interpretation of Laws Act [Chapter I R.E. 2002]. Article 13(3) of the Constitution has this to say:

> Haki za raia, wajibu na maslahi ya kila mtu na jumuia ya watu yatalindwa na kuamuliwa na mamlaka na vyombo vinginevyo vya Mamlaka ya Nchi vilivyowekwa na sheria au kwa mujibu wa sheria

The sub article enforces the view taken by Kimaro and Massati JJ. that the word "Person" cannot be confined to natural persons only.

The approach and decision adopted by this Court (Lugakingira, J. as he then was) in *Rev. Christopher Mtikila v. Attorney General* [1995] (16) in dealing with the principle of *locus standi* is sound and correct. The first ground of preliminary objection should therefore be dismissed.

The second point of preliminary objection, that the petition does not disclose a cause of action is, likewise not meritorious. The Court will look at the impugned law and how it may affect society. It will look at the nature of the provisions themselves and not the manner in which the power under the provision is exercised. I would therefore also dismiss this ground of preliminary objection.

The *"takrima"* provisions are discriminatory. They seek to legalise an action in relation to one group of the society which would be illegal if done by another group of the same society. African hospitality has been known for ages. It does not need codification. It is priceless, humble and timeless. It does not resurface with the advent of elections. If this happens, it ceases being African hospitality. It becomes business. In pure African hospitality, it is the host who intertains, mostly relatives and friends, not the guest. Part of section 130 of the National Elections Act (the Act) dealt adequately with situations which go out of tradition. The section says:

> 130. When it appears to High Court either on application or upon an election petition:
>
> (a) that an act or omission of a candidate at any election or of his agent or of another person, which but for this section, would be corrupt or illegal practice has been done or made in good faith through inadvertence accidental miscalculation or some other reasonable cause of that nature;
>
> (b) that an act of a candidate, his agent or another person was done in good faith as of normal or traditional hospitality;
>
> (c) that normal or ordinary expenses were spent in good faith by a candidate, his agent or another person in furthering the candidate's election campaign; and

(d) that upon taking into account all the relevant circumstances it would be just that the candidate or his agent or that other person, or any of them, should not be subject to any of the consequences under this Act for such act or omission,

(e) the High Court may make an order allowing the act or omission to be an exception from those provisions of this Act which would otherwise make the act or omission corrupt or illegal practice, and the candidate, agent or person shall not be subject to any of the consequences under this Act for the act or omission and the election of a candidate shall not by reason only of such act or omission be void.

As can be seen, sub-sections (b) and (c) are a repetition of the impugned provisions herein. These two provisions are, likewise undesirable. I would, likewise, order that they be struck out, under "any" other reliefs. The introduction of the *"takrima"* provisions was unnecessary and created classes on the playing field favouring the financially well to do. This is what is called discrimination within the meaning of Article 13(5) of the Constitution.

I also agree that the *"takrima"* provisions are not saved by the proportionality test because as said by advocates for applicants, the mischief created is more serious than the object sought to be achieved. Moreover, as stated above, the provisions were unnecessary in view of part of section 130 of the Act. The provisions are also too widely woven as to render useless the spirit of the Act *vis-a-vis* the serious offence of treating.

Finally, I agree that the *"takrima"* provisions are violative of Articles 13(1) 13(2) and 21(1) and (2) of the Constitution and are therefore null and void. They should accordingly be struck out of the National Elections Act. I also agree that each party should bear their own costs. It is so ordered.

Massati, J:

I have read the judgment of Kimaro J in draft. I entirely agree with her opinion and conclusion. I would however, like to add the following.

As Kimaro, J., has sufficiently summarized the facts and the submissions of the learned Counsel, I do not feel the need to repeat them here.

This petition seeks to annul that part of Act number 4 of 2000 which amended section 98(2) of the Elections Act by deleting and replacing it by a new subsection and adding a new sub section 3. According to the Petitioners the impugned provisions are violative of Articles 13(1), 13(2), 21(1)(2) and 29(1) of the Constitution of the United Republic of Tanzania; on the ground that they encourage corruption in elections, impinge on the right to equality before the law, and the citizens rights to vote and be voted in fair and free elections. The provisions also infringe several international human rights instruments to which Tanzania is a party.

On the other hand, the respondent, the Honourable Attorney General has resisted the petition both in substance and on two preliminary objections. The respondent thinks that the Petitioners have no *locus standi* as they are not persons contemplated by Article 30 of the Constitution and secondly that there is no cause of action.

Let me first begin with the preliminary objections. On the first objection I entirely agre with Kimaro J, that under the Interpretation of Laws and General Clauses Act, (Chapter 1) the petitioners, as body corporates, are *"persons"* for the purposes of Article 30(2) of the Constitution; and that they have sufficient interest in this public interest litigation. On the second objection, I would begin by borrowing the definition of the term *"cause of action"* which the Court of Appeal in *John M. Byombalirwa v. Agency Maritime International (Tanzania) Ltd* (9) put as:

> essentially facts which it is necessary for the Plaintiff to prove before he can succeed in the suit.

In the present case, the Petitioners have pleaded that the provisions of section 98(2) and (3) of the Electoral Law (Miscellaneous Amendments) Act, 2000 infringe and abridge their Constitutional rights as citizens guaranteed by Articles 13(1), 13(2), 21(1) and 2 of the Constitution of the United Republic of Tanzania, 1977. Article 30(3) of the Constitution provides:

> (3) Any person alleging that any provision in this part of this Chapter or in any law concerning his rights or duty owed to him, has been, is being, or is likely to be violated by any person anywhere in the United Republic may institute proceedings for redress in the High Court.

So, in my view, any allegation by any person that his fundamental right or duty owed to him has been, or is likely to be violated, is sufficient to disclose a cause of action in cases of this nature. These are allegations, necessary for the petitioners to prove before they can succeed in their petition. And that the petitioners have done.

Besides, the petition raises a serious and important point of law to be determined. For that I would borrow the dictum in the Ugandan case of *Katikiro of Uganda v. Attorney General of Uganda* (19) that a plaint should not be rejected where a serious and important point of law is to be determined. There, Sheridan J was considering Order VII rule 11 of the Uganda Civil Procedure Rules, which is in *pari materia* with the Tanzanian Civil Procedure Code 1966 (Order VII rule 11) and quoted with approval the observation of *Maulton J. in Dyson v. Attorney General* (20) that:

> It is not in accordance with the practice of the Court, nor is it desirable; to refuse to allow cases raising points which involve serious arguments to go to trial so that the parties may have them decided in the ordinary way at the trial and may enjoy the right of appeal following from their being so decided

So, I quite agree that the second preliminary objection raised by the respondent has no merit and should be dismissed.

On the merits of the petition, I would first start by restating some of the principles of constitutional interpretation. And the first is that there is a presumption that every legislation is constitutional unless proved otherwise (see *Leons Ngalai v. Alfred Salakana and another* (21). It is the burden of the petitioner to show that legislation is unconstitutional. Once the petitioner alleges and proves, either by evidence or arguments as in this case, the burden then shifts to the respondent to show that the impugned legislation is saved under Article 30 (3) of the Constitution. According to case law, cited by both counsel for the Petitioners and the respondent, in order to be saved, a legislation must be shown to have met the proportionality test; which is that, it is reasonable, not arbitrary, and necessary for societal good. In the present case the Petitioners have, I think, successfully shown that the *"takrima"* provisions are unnecessary, unreasonable, and discriminatory. The respondent on the other hand has argued that the *"takrima"* provisions were necessary as an exception to the general rule fo treating. Ironically to me, the learned principal state attorney, has referred this Court to several decisions of the Court of Appeal such as *Lutter Nelson v. The Hon Attorney General And Ibrahim Msabaha* (13), *Peter Msekalile v. Leonard Derefa (14), Gilliard Joseph Mlaseko and 2 Others v. Corona Faida Busonga and Another (15)* as justification for the enactment of the *"takrima"* provisions. With respect, while the Court would not question the wisdom of Parliament in enacting any law, it is my considered view that the fact that Court could have reached such decisions without the aid of the new provisions is sufficient evidence that the new provisions are not necessary, as Courts already had such powers. On that score alone the *"takrima"* provisions do not meet the proportionality test. But, further according to the learned State Attorney the said sections were enacted so as to serve situations where election candidates would incur expenses and costs in furthering election campaigns but not where they are meant for inducing or influencing voters, which is treating. The problem with the respondent's reasoning is that, attractive as it may sound, there is no similar provision for checking in the field which of the offering of a candidate are for

elections "expenses" and "costs" and which inducing or "influencing voters" Courts have been able to sort out the mess only after elections and with evidence. This means to my mind, that the *"takrima"* provisions are arbitrary and unpredictable, leaving it only to the minds of the candidate and the voters as to the true intention of the offerings. Such law is arbitrary and cannot meet the proportionality test.

Another principle of constitutional interpretation is that in interpreting a legislation *vis-a-vis* the constitution, both the purpose and effect of the legislation must be given effect (See *Attorney General v. Momodon Jobe* (22)). The petitioners have argued that the *"takrima"* provisions infringe Article 13(2) and also Article 21(1) and (2) of the Constitution which guarantee, the right to equality before the law, and the rights of the citizens to participate in the governance of their country by fair and free elections. The respondents, on the other hand, submit that the *"takrima"* provisions treated election candidates from political parties with equal status and to that extent are not discriminatory. They insist that those provisions were only meant to cater for genuine expenses. Although the respondent does not dispute that Article 21(1) of the Constitution guarantees the right of the citizens to participate in public affairs, I can find nothing in his submission, on the effect of the *"takrima"* provisions on Article 21(1). Whereas the Petitioners have contended that since the *"takrima"* is offered to the electorate before voting they are likely to influence the voters one way or the other, and therefore in such a situation there cannot be free and fair elections.

Taking Articles 13(1) and (2) and 21(1) of the Constitution together I could not agree with the petitioners more. The purpose of Article 21 as a whole, is to ensure that the citizens enjoy their universal enfranchisement in full measure. The effect of the *"takrima"* provisions would certainly be to effectively curtail that right and thus deny the electorate the full benefit of the guarantee by being influenced by *"takrima"* rather than quality in voting in candidates.

So for the above reasons I would allow this petition. The petitioners are entitled to a declaration that the provisions of sections 119(b) and (c) of the National Elections Act [1985] formerly sections 98(2) and (3) of the Elections Act, 1985 as amended by Act 4 of 2000 are unconstitutional as they contravene Articles 13(1)(2) and 21(1) and (2) of the Constitution of the United Republic of Tanzania. As this is a public interest litigation the parties shall bear their own costs. The petition is therefore allowed, and I would agree with the order proposed by my learned sister, Kimaro, J.

CHRISTOPHER MTIKILA v. ATTORNEY GENERAL

HIGH COURT OF TANZANIA
(Dar es Salaam Main Registry)
AT DAR ES SALAAM

(Manento, JK., Massati and Mihayo, JJ)

MISCELLANEOUS CIVIL CAUSE No. 10 OF 2005

Constitutional law – Amendment to the Constitution – Amendment requiring contestants for positions of President and Member of Parliament to be members of political parties – Whether discriminatory – Whether constitutional.

Constitutional law – Amendment to the Constitution – Amendment restricting contestants for positions of President and Member of Parliament to members of political parties only – Whether the amendments meet the proportionality test.

Constitutional law – Amendment to the Constitution – Amendment requiring contestants for positions of President and Member of Parliament to be members of political parties – Whether the amendments contravene International Instruments on Human Rights to which the United Republic is a party.

Civil Practice and Procedure – Petitions – Filing of petitions under the Basic Rights and Duties Enforcement Act (Chapter 3) – Filing must be by originating summons – Petition touches on fundamental rights under the constitution - Effect of failure to file petition by Originating Summons – Approach the Court should take.

Constitutional law – Constitutional interpretation – Principles of constitutional interpretation.

In 1993 the Petitioner, Rev. Christopher Mtikila, filed a petition in the High Court at Dodoma seeking among other reliefs a declaration that the citizens of Tanzania have a right to contest for the posts of President, member of parliament and local government councillor without being forced to join any political party. The High Court decided in his favour in this aspect. The Government filed an appeal against that finding but later withdrew the appeal and sent a Bill in Parliament to legislate in anticipation against that decision of the Court. Consequently, Parliament made constitutional amendments that were contained in Act number 34 of 1994. The effect of the amendments was to bar private candidacy for contestants of positions of president, member of parliament and local government councillor and hence rendering the ruling of the High Court ineffective.

In 2005, the Petitioner filed a petition without Originating Summons, challenging the constitutionality of constitutional amendments contained in Act number 34 of 1994 on four grounds. First, that the said constitutional amendments violate the Basic Human Rights as proclaimed in Article 21(1) of the Constitution; secondly that the said constitutional amendments violate Articles 9(a) and (f) of the Constitution; thirdly that the said amendments violate Article 20(4) of the Constitution and fourthly that the said constitutional amendments violate International Covenants on Human Rights to which the United Republic is a party. The respondent argued that the complained against constitutional amendments are valid and legally done in a general way for a specific public good and not in violation of basic human rights.

Held:(i) A Court should take liberal approach to rules of practice and procedure where basic rights and freedoms are involved so as to give to the complaint a full measure of his rights. The rationale is that since the rights guaranteed by the Constitution are effectively enforced and that to decline to examine the merits of a petition on the basis of a procedural technicality would be an abrogation of that duty;

(ii) Although Parliament has powers to enact legislation, such powers are not limitless;

(iii) The right to join or not to join political parties is as fundamental as the right to religious belief which cannot be made a basis for contesting an elective post; so, the provisions of Articles 21(1), 39(1)(c) and 67(1)(b) as they read now are violative of Articles 20 and 21 of the Constitution;

(iv) A law which seeks to limit or derogate from the basic right of the individual on grounds of public interest will be declared unconstitutional unless it satisfied two requirements, namely, that it is not arbitrary and that the limitation imposed by law is no more than is reasonably necessary to achieve the legitimate objection;

(v) Act number 34 of 1994 which amended Article 21(1) so as to cross-refer it to Articles 5, 39 and 67 which introduced into the Constitution restrictions on participation of public affairs and the running of the government to party members only, was an infringement on the fundamental right and that the restriction was unnecessary and unreasonable, and so did not meet the test of proportionality, and therefore the said amendments to Articles 21(1), 39(1)(c) and 67(1)(b) are declared unconstitutional;

(vi) Amendments to Articles 2(1), 39(1)(c) and 67(1)(b) of the Constitution contravene the International Conventions.

Order accordingly

Cases referred to:

(1) *Rev. Christopher Mtikila v. Attorney General* [1995] T.L.R. 31

(2) *Saphir Ahmed v. State of Utrah Pradesh* [1954] AIR SC 729

(3) *Deana v. Union* [1984] 1 SCR 1

(4) *Kukutia Ole Pumbun and another v. Attorney General and another* [1993] T.L.R. 159

(5) *DPP v. Daudi Pete* [1993] T.L.R. 22

(6) *South Africa v. Makwanyane* [1995] (3) SA 391

(7) *S.A. v. Bhulwana* [1996] (1) SA 388 (CC)

(8) *President of Republic of South Africa v. Hugo* [1997] (4) SA 1 (CC)

(9) *Peter Ng'omango v. Kiwanga and another* [1993] T.L.R. 77

(10) *Mbushuu v. Republic* [1995] T.L.R. 97

(11) *Julius Ishengoma Francis Ndyanabo v. Attorney General*, Civil Appeal number 64 of 2001 [2004] T.L.R. 1

(12) *The Judge in-charge High Court Arusha and Attorney General v. N.I.N. Munuo,* Civil Appeal number 45 of 1998 [2004] T.L.R. 39

(13) *Saghir Ahmed and Another v. Staff of V.P.*, AIR 1954 SC 728

(14) *Deena alias Deen Dayal etc. v. Union of India and Others* [1984] 1 SCR 1

Statutory provisions referred to:

(1) Constitution of the United Republic of Tanzania, Articles 9, 10, 13, 20, 21, 26, 27, 30, 31 39, 67, 77, 98

(2) Constitution of Tanganyika, Article 4, 18, 19, 24,

(3) Interim Constitution, Articles 3, 4, 27

(4) Universal Declaration of Human Rights, Article 29

(5) Basic Rights and Duties Enforcement Act, section 5

Mr. Rweyongeza and *Mr. Mpoki* for the Petitioner

Mr. Mwaimu and *Ms. Ndunguru* for the respondent

JUDGMENT

(Dated 5 May 2006)

Massati, J: The Petitioner, Rev. Christopher Mtikila, is a very determined man. In 1993 he filed a petition in the High Court at Dodoma, to seek among other reliefs, a declaration that the citizens of this country have a right to contest for the post of President, member of parliament and local government councilor without being forced to join any political party. The High Court decided in his favour on this aspect. The Government filed an appeal against that finding, but later withdrew

the appeal and sent a Bill in Parliament to legislate in anticipation against that decision of the Court. As we shall shortly see below that law is the subject matter of the present proceedings.

It could have been assumed that the petitioner had a motive for doing so in 1993, because by then he was still fighting to register his political party, the Democratic Party, as illustrated by his earlier petition.

Having secured the registration of his party, the petitioner who describes himself as the chairman of the Democratic Party has come again to this Court for the following orders:

(a) A Declaration that the Constitutional amendment to Articles 39 and 67 of the Constitution of the United Republic of Tanzania as introduced by amendments contained in Act number 34 of 1994 is unconstitutional.

(b) A Declaration that the petitioner has a constitutional right under Article 2(1) of the Constitution of the United Republic of Tanzania to contest for the post of the president of the United Republic of Tanzania and/or the seat of a member of parliament of the United Republic of Tanzania as a private candidate.

(c) Costs of this petition be borne by the respondent.

(d) Any other remedy and/or relief the honorable Court will deem equitable to grant.

The gravamen of the Petitioner's complaints are couched in paragraphs 7, 8 and 9 of his petition which is to say: first, that the said constitutional amendments are violative of the Basic Human Rights as proclaimed in Article 21(1) of the Constitution, two, that the said constitutional amendments are violative of Articles 9(a) and (f) of the Constitution, three, that the said amendments are violative of Article 20(4) of the Constitution, and fourthly, the said constitutional amendments are a violation of International Covenants on Human Rights to which the United Republic is a party. According to the petition, the effect of all these amendments is that an ordinary Tanzanian is forced to join a political party in order to participate in government affairs in

order to be elected to any of the posts of president or member of parliament.

The respondent, the Attorney General resists the petition. The kernel of his objection is contained in paragraph 4 of his answer to the amended petition. It is to this effect:

> ... the enactment of Act number 34 of 1994 which was coupled with Constitutional amendments of the said Article is valid, legally done in a general way, for a specific public good and not in violation of any basic human rights. Further to that the respondent states that the said constitutional amendments were not discriminatory at all as the law is applicable to all people and all candidates who wish to contest in elections.

In short, the bone of contention between the parties in this petition is whether the amendment to the Constitution introduced by Act number 34 of 1994 is constitutional.

Although the Court did not formulate the issues to be tried, the petitioner has framed and both parties have fully argued on the following issues:

(i) Whether the sections, namely Articles 39(1)(c) and 39(2) and Article 67(b) and 67(2)(e) are unconstitutional.

(ii) Whether the said sections meet the proportionality test?

(iii) Whether the said amendment introduced by Act number 34 of 1994 contravene the International Instruments signed ratified and deposited by the Government of the United Republic of Tanzania?

We believe that no injustice will be done if we decide the petition on the basis of those issues even if we did not frame them at the beginning of the hearing of this petition, which was effectively in the form of written submissions. Counsel were also accorded opportunity to elaborate on their written submissions orally.

Mr. Rweyongeza and Mr. Mpoki, learned Counsel appeared for the petitioner. Mr. Mwaimu and Ms. Ndunguru appeared for the respondent.

It was the petitioner's submission that the amendments to Articles 39 and 67 introduced by Act 34 of 1994 restricting the right to contest in elections for president and member of parliament to political party candidates only are violative of the Basic Rights contained in Article 21(1) of the Constitution, which gives a citizen, the right of association, and also violative of Article 20(4) of the Constitution which prohibits the enactment of laws forcing people to join any society or corporation. Mr. Rweyongeza and Mr. Mpoki, submitted that the said provisions are a limitation for citizens who desire to contest for those political posts. They submit that such provision is discriminatory because it tends to discriminate citizens who are members of political parties against those who are not members in contesting for political posts. The learned Counsel quoted several principles laid down by Lugakingira J. (as he then was in *Rev. Mtikila v. Attorney General* (1)

The learned Counsel further submitted that since *Rev. Mtikila v. Attorney General* (1) upheld the fundamental rights contained in the Constitution, the legislation of Act 34 of 1994 was void, on the score of repugnancy. They cited from Sylvia Snowsis' book **Judicial Review and the Law of the Constitution** (Universal Law Publishing Co. Prot Ltd, second Reprint 1996, wherein the cases of *Lessee v. Dorrance* and *Kamper v. Hewkins* were referred to.

Submitting on the second issue which is whether the said provisions meet the proportionality test, Mr. Rweyongeza and Mr. Mpoki, submitted, first, that it was incumbent upon the respondents to prove that the challenged legislation is within the purview of the exception. For that principle the learned Counsel relied on two Indian cases namely *Saphir Ahmed v. State of Utrah Pradesh* (2) and *Deana v. Union* (3).

Coming closer at home, the learned Counsel cited the Tanzania Court of Appeal decision in *Kukutia Ole Pumbun & Another v. Attorney General and Another* (4), where it was held that for legislation to pass the proportionality test, it must be shown that it is not arbitrary, and that the limitation is reasonably necessary to achieve a legitimate

objective. They concluded on this issue that the impugned law does not meet the proportionality test.

Lastly, Mr. Rweyongeza and Mr. Mpoki, submitted that the Act violated the Universal Declaration of Human Rights and the African Charter on Human and Peoples' Rights. The said International Conventions must be taken into account in interpreting the Bills of Rights and Duties. For that statement, the learned Counsel relied on the Court of Appeal decision in *DPP v. Daudi Pete* (5).

In concluding their submission on the third issue, the learned Counsel for the petitioner said that in all its activities, the Constitution enjoins the Government to adhere to the directives, principles of state policy, and this includes, in their duty to make laws. The learned Counsel therefore penned off by praying that the petition be allowed with costs.

Mr. Mwaimu, the learned Principal State Attorney and Ms. Ndunguru, learned state attorney submitted on the first issue that the amendments to the Constitution were done within the powers of the legislature and that did not breach any provision of the constitution. For this, the learned state Counsel sought to rely on Article 98(1) and 2 of the Constitution. They stated further that this position was also supported by Lugakingira J. (as he then was) in *Rev. Mtikila v. Attorney General* (1).

On the issue whether the amendments violated Article 21(1) of the Constitution, the learned Counsel submitted that the amendments were done for a specific public good. They state in their submission:

> The prohibition to individual contestants in general and local government elections is one way to achieve representative democracy. The Constitution primarily aims at establishing and safeguarding a representative democracy which is the policy our country follows, it is a policy, which intends to safeguard peace, order security and tranquility.

And further down, the learned State Attorneys submit:

> The principle requiring an individual who is vying for leadership to contest through a political party is intended to ensure that whoever is made a candidate is well known to the people he wants to lead.

These, the learned Counsel informed the Court, are the reasons why the Parliament decided to prohibit private candidacy.

It was submitted for the respondent that the question whether the restriction is reasonable must be decided on a case by case basis, citing decisions by the constitutional Court of South Africa *(South Africa v. Makwanyane* (6) and another of *S. v. Bhulwana* (7)). They submitted that those views are persuasive to our Courts. On the basis of those decisions Mr. Mwaimu and Ms. Ndunguru submitted that the amendment was not only good for representative democracy but also for balancing the interests of the public at large.

Responding to the question of discrimination, the learned state attorneys submitted that the amendment was meant for all those who aspire for leadership for the principle of equality does not require every one to be treated the same, but simply that people in the same position should be treated the same. Citing another South Africa case of *President of Republic of South Africa v. Hugo* (8) cited in a book **Bill of Rights Handbook**, the learned Counsel submitted in the alternative that sometimes it is possible to justify discrimination as an exception if the purpose is to meet the ends of affirmative action. This is called the principle of *"fair discrimination"*.

The learned state attorneys submitted further that Articles 21(1), 39(1)(2), 67 (1)(b)2, and Article 20(4) if read together, it will be noted that Article 21(1) does not create any procedure. They submitted that the procedure for enfranchisement are found in the Elections Act and its Regulations. Therefore, it was not correct that there is no procedure for enfranchisement. They went on to submit that the fear that the provision could lead to abuse and confine the right to govern to a few and to render illusory the emergence of a truly democratic society, was unfounded and could not justify the declaration that the provision was unconstitutional. They submitted that on the contrary

private candidates are uncertain, and unreliable and could easily abuse powers as they would not originate from the people.

The learned Counsel then went on to distinguish the cases cited by the petitioner on the question of the proportionality test as all the cases cited dealt with the provisions in the statutes, whereas the present case deals with the Constitution itself which is a result of the will of the people.

On the last issue, the learned state attorneys submitted that while it is not disputed that Tanzania was a signatory to the Universal Declaration of Human Rights and ratified the African Charter for Human and Peoples Rights, these instruments have their limitations. They cited the example of Article 29(2) of the Universal Declaration of Human Rights, which provides to the effect that the exercise of those rights shall be subject to such limitations as may be imposed by law for the purpose of securing and recognition of the rights and freedoms of others. On that premise, the learned Counsel submitted that since the Constitution advocates representative democracy, the amendments were necessary in order to maintain the requirements of morality, public order and general welfare of the people. And so the amendments were within the letter and spirit of the international instruments for Human Rights. At the end of the day the learned state attorneys prayed that the petition be dismissed with costs.

In their rejoinder, Mr. Rweyongeza and Mr. Mpoki, learned Counsel have submitted that although the Parliament is given wide powers to amend constitutional provisions, those powers are subject to the limits imposed by Article 30(2) and 31 of the Constitution. For that proposition they relied on the reasoning of Lugakingira J. (as he then was) in *Rev. Mtikila v. Attorney General* (1). Relying on the case of *Peter Ng'omango v. Kiwanga and another* (9), *DPP v. Daudi Pete* (5), and *Mbushuu v. Republic* (10), the learned counsel submitted that the amendments sought to be impugned do not meet the proportionality test. They submitted that private candidacy was not inconsistent with representative democracy. Therefore private candidacy

would not erode the principle of representative democracy. They submitted further that there were no adequate safeguards and control against abuse by those in authority in the exclusive political party system, and so it does not fall within one limb of the proportionally test. Referring to the South African case of *Makwanyane* (1), cited by the respondent's Counsel, Mr. Rweyongeza and Mr Mpoki, submitted that persuasive as that decision is, it is also authority for the need to widen the horizon of the principle of proportionality test, so that, it was desirable that the effect of a provision should not negate the content of the right in question, and that, the learned Counsel went on, was the essence of the decision in *Rev. Mtikila v. Attorney General* (1), in that the decision was made in order, not to negate the essential content of the right of an independent candidate. So, if anything, the South African case is a persuasive authority for widening the scope of the proportionality test.

On the question whether or not there was any procedure set by statute, the learned counsel reminded the Court that the issue was settled by Lugakingira J. (as he then was) in *Mtikila v. Attorney General* (1) in that by using the harmonization principle where the balancing act does not succeed, Courts should incline towards the realization of the fundamental rights even at the cost of disregarding the clear words of a provision, if their application would result in gross injustice.

On the authority and influence of international covenants, the learned Counsel for the petitioner reiterated their conviction on the weight to be attached to such instruments as illustrated in the *Daudi Pete* case (5). The learned Counsel concluded their submission by praying that the petition be allowed.

It is now our turn to examine and analyse the rival arguments of the legal Counsel. But before we embark on this, we think it is opportune for us to recapitulate the principles which will guide us in this task. These are those that govern the interpretation of the constitution and resolution of constitutional disputes.

These principles have mostly been developed by case law, and they are numerous, but in the present case we intend to adopt only those which we consider to be relevant in the circumstances of the case.

In *Julius Ishengoma Francis Ndyanabo v. The Attorney General* (11) the Court of Appeal of Tanzania (Samatta CJ) at pages 17-18 laid down five principles.

> The Constitution of the United Republic is a living instrument, having a soul and consciousness of its own. Courts must therefore endeavor to avoid crippling its ?? by construing it technically or in a narrow spirit. It must be construed in tune with the lofty purpose for which its makers framed it.
>
> The provisions touching fundamental rights have to be interpreted in a broad and liberal manner, thereby jealously protecting and developing the dimensions of those rights and ensuring that our people enjoy their rights, our young democracy not only functions, but grows and the will and dominant aspirations of the people prevail. Restrictions on fundamental rights must therefore be strictly construed. So Courts have a duty to interpret the Constitution so as to further fundamental Objectives and Directives of State policy.
>
> Until the contrary is proved, legislation is presumed to be constitutional. If possible, legislation should receive such a construction that will make it operative and not inoperative.
>
> Since there is a presumption of constitutionality of legislation save where there is a clawback or exclusion clause relied upon as a basis for constitutionality the onus is upon those who challenge the constitutionality of the legislation, they have to rebut that presumption.
>
> Where those supporting a restriction on a fundamental right rely on a clawback or exclusion clause in doing so, the onus is on them to justify the restriction.

Although not expressly included in the fifth principle, it was the Court's view also, adopting its own decision in *Kukutia Ole Pumbun*

and Another v. Attorney General and another (4); as a rejoinder to that principle, that:

> Whoever relies on a clawback or exclusion clause has to prove that the restrictions are not arbitrary, unreasonable and disproportionate to any claim of state interest.

The other principles of constitutional interpretation include:

> Courts are not concerned with the legislative wisdom of Parliament. They are concerned only with its legislative competence.
>
> While Parliament cannot directly override a decision of a Court of law declaring a statute unconstitutional and pronounce it to have been valid, it can make a fresh law, free from unconstitutionality.
>
> Courts do accept that civilization owes quite as much to those who limit freedom as to those who expand it.
>
> A Constitution must not be construed in isolation, but in its context which includes the history and background to the adoption of the Constitution itself. It must also be construed in a way which secures for individuals the full measure of its provisions.

Beginning with the immediately forgoing principle of constitutional interpretation, let us briefly attempt to give a historical glimpse to the provisions relating to representative democracy in the genesis of the history of post independent Tanzania.

The Constitutional history of Tanzania begins with the Tanganyika (Constitution) Order in Council, 1961 published as Government Notice number 415 of 1 December 1961. The Second Schedule thereof was The Constitution of Tanganyika. Section 20 of the Constitution declared universal adult suffrage to every citizen of Tanganyika who had attained the age of 21 years, unless disqualified by an Act of Parliament. Sections 18 and 19 of the Constitution governed the qualifications and disqualifications for elections at the National Assembly. Section 18 provided:

18 Subject to the provisions of section 19 of this Constitution, any person who:

(a) is a citizen of Tanganyika

(b) has attained the age of twenty one years, and is able to speak, and unless incapacitated by blindness or other physical cause to read the English language with a degree of proficiency sufficient to enable him to take an active part in the proceedings of the National Assembly.

shall be qualified for election as a member of the National Assembly, and no other person shall be so qualified.

The next Constitution was C.A. Act number 1 of 1962. (The Republican Constitution of Tanganyika) section 24 of the Republican Constitution retained the same qualification for being elected to the National Assembly. But section 4(3) also listed down the qualifications for election of President. It reads:

4(3) Any citizen of Tanganyika who:

(a) is qualified to be registered as a voter for the purposes of elections to the National Assembly.

(b) has attained the age of thirty years and,

(c) in the case of elections held on a dissolution of Parliament, is nominated by not less than one thousand persons registered as voters for the purposes of elections to the National Assembly shall be qualified for elections as President.

It may be noted in passing here that in these constitutions there was no political party membership qualifications, although there were several active political parties.

Next, was the Interim Constitution which followed the Union of Tanganyika and Zanzibar, notably, Article 3(1) declared Tanzania as a one political party state...

3(3) All political activity in Tanzania other than that of the organs of State of the United Republic.... Shall be conducted by or under the auspices of the party.

Article 4(4) forbade:

No Act of Parliament shall provide for the disqualification of any citizen of Tanganyika from registration as a voter for the purposes of elections by the people or for the disqualification of any such registered voter from voting at such elections except on the grounds of his allegiance to another state, infirmity of mind, criminality, absence or failure to produce evidence of age, citizenship or registration.

So while political activity was confined to be conducted under the party, all the citizenry had the universal franchise to vote. But this Constitution did not expressly provide for the qualifications of a presidential candidate, like section 4(3) of the 1962 Republican Constitution. Instead, the 1965 Constitution left it to the Electoral Conference to nominate a presidential candidate. This was the Electoral Conference of TANU as defined in Part E of the party's Constitution which was annexed as a schedule to the 1965 Interim Constitution.

Unlike the 1961 and 1962 Constitutions, Article 27 of the 1965 Interim Constitution introduced for the first time, party membership qualification for candidates of constituency members. It provided:

27(1) Any citizen of Tanzania who has attained the age of twenty one years and is a member of the Party shall, unless he is disqualified under the following provisions of this section or an Act of Parliament to which this section refers be qualified for election as a constituency member, and no other person shall be so qualified.

So, party membership, as a qualification for an elective post, was introduced in the country with the advent of a one party state. It is an undeniable historical fact.

We must hasten to add that although there were other political parties up to 1965, the previous constitutions did not provide for party membership qualification. In 1977 Tanzania enacted its first permanent

constitution, with Chama Cha Mapinduzi entrenched as the only political party in the country. Article 4(2) retained the universal suffrage as in the previous constitutions. No express qualifications were spelt out for a presidential candidate who was to be nominated by the party's General Meeting. But for candidates of Constituency Assembly, Article 26 of the 1977 Constitution provides:

> 26(1) Ili mtu aweze kuchaguliwa kuwa Mbunge wa kuwakilisha wilaya ya uchaguzi ni, lazima awe na sifa zifuatazo:
>
> (a) ....
>
> (b) awe mwanachama wa chama anayetimiza masharti ya uwanachama kama yalivyoelezwa katika katiba ya chama na pia awe na sifa za kiongozi zifuatazo etc...

This Constitution was amended in 1985 to introduce the Bill of Rights. Article 3(3) entrenched the one party state:

> 3(3) Chama Cha Mapinduzi, kwa kifupi CCM ndicho chama cha siasa pekee katika Jamhuri ya Muungano.

Universal franchise was retained in Article 10 which provides:

> 10(1) Shughuli zote za kisiasa nchini na zinazohusu Jamhuri ya Muungano zitaendeshwa na chama chenyewe au chini ya uongozi, usimamizi wa chama.

This edition of the Constitution introduced Articles 20 and 21, which we find relevant in the present petition. Article 20(1) provides:

> 2(1) Kila mtu anastahili kuwa huru, bila ya kuathiri sheria za nchi kukutana na watu wengine kwa hiari yake na kwa amani, kuchanganyika na kushirikiana na watu wengine, kutoa mawazo hadharani, na hasa zaidi kuanzisha au kujiunga na vyama au mashirika yaliyoanzishwa kwa madhumuni ya kuhifadhi au kuendeleza imani au maslahi yake au maslahi mengineyo.
>
> (2) Bila ya kuathiri sheria za nchi zinazohusika ni marufuku kwa mtu yeyote kulazimishwa kujiunga na chama chochote.

Article 21(1) provides;

> 21(1) Kila raia wa Jamhuri wa Muungano anayo haki ya kushiriki katika shughuli za utawala wa nchi, ama moja kwa moja, au kwa kupitia wawakilishi waliochaguliwa na wananchi kwa hiari yao kwa kuzingatia utaratibu uliowekwa na sheria au kwa mujibu wa sheria.
>
> (2) Kila raia anayo haki na uhuru wa kushiriki kikamilifu katika kufikia uamuzi juu ya mambo yanayomhusu yeye, maisha yake au yanayolihusu taifa.

Let us now go to the provisions governing the qualifications for presidential and constituency members' qualifications, the subject matter of the present dispute.

With the 1985 amendments, Article 39 of the Constitution read:

> 39. Mtu hatastahili kuchaguliwa kushiriki kiti cha Rais wa Jamhuri ya Muungano isipokuwa tu kama:
>
> (a) ametimiza umri wa miaka arobaini na
>
> (b) anazo sifa za kumwezesha kuchaguliwa au kuteuliwa kuwa Mbunge au Mjumbe wa Baraza la Wawakilishi.

The qualifications for a member of parliament are spelt out in Article 67(1) of the Constitution:

> 67(1) Bila ya kuathiri masharti yaliyomo katika ibara hii, mtu yeyote atakuwa na sifa za kustahili kuchaguliwa au kuteuliwa kuwa Mbunge endapo:
>
> ....
>
> Ni mwanachama wa chama anayetimiza mashart yote ya uachamama yaliyoelezwa katika katiba ya chama...

And *"Chama"* is defined in Article 151 to mean:

> ...Chama cha Mapinduzi kilichotajwa katika ibara ya 3(3) na ya (10) ya Katiba hii.

The dominance of *Chama cha Mapinduzi* was abolished by an amendment to Article 10 introduced by Act number 4 of 1992, with the advent

of multiparty politics in Tanzania while Articles 20 and 21 remained intact.

Section 13 of Act number 4 of 1992 amended Article 39 but retained paragraph (c) of the qualifications for a presidential candidate.

(c) ni mwanachama na mgombea aliyependekezwa na chama cha siasa.

What the law did here is to transfer that qualification, which was initially only by implication, to an express one. On the other hand, Article 67(1)(b) remained the same except that for one to be elected as a parliamentarian, he must now be:

Mwanachama na ni mgombea aliyependekezwa na chama cha siasa.

The eigth Amendment (Act 4 of 1992) also amended Article 77(3) of the Constitution by providing that

(3) Wagombea uchaguzi katika jimbo la uchaguzi watatakiwa watimize yafuatayo:

(a) wawe wamependekezwa mmoja mmoja na chama cha siasa kinachoshiriki uchaguzi katika jimbo hilo.

Before that, Article 77(1)(2) required a nominated parliamentary candidate to be approved by the party's National Executive Committee, a position since the promulgation of the 1965 Interim Constitution (Article (28)(b)) and the 1977 Constitution (Article 27(2)(b)).

It is those provisions which this petitioner challenged in his Misc. Civil cause number 5 of 1993. After due considerations and visiting numerous authorities, the learned Justice Lugakingira in that case (reported as) *Rev. Christopher Mtikila v. Attorney General* (1) at page 68 concluded.

For everything I have endeavoured to state and notwithstanding the exclusionary elements to that effect in Articles 39, 67 and 77 of the Constitution as well as section 39 of the Local Authorities (Elections) Act 1979, I declare and direct that it shall be lawful for independent candidates along with candidates sponsored by political parties, to contest presidential, parliamentary and local Council elections. This will not apply to the Council elections due in a few days.

Aggrieved by this declaration, the respondent filed an appeal to the Court of Appeal while the Petitioner also cross appealed against certain decisions made adverse to him. This was Civil Appeal number 3 of 1995. It cannot also be disputed that while the appeal was pending, the respondent processed a bill and proceeded to enact a law which had the effect of rendering the ruling of the High Court ineffective and/or a nullity.

On the ground the respondent applied to withdraw the appeal. The Court of Appeal of course had to grant the application for withdrawal but speaking through Kisanga Ag CJ, the Court of Appeal lamented at page 3 of the typed judgment:

....We are constrained to have to point out some aspects in the handling of this matter by the appellant which cause great concern. While the ruling was being awaited, the Government on 16/10/94 presented a Bill in Parliament seeking to amend the Constitution so as to deny the existence of that right, thus pre-emptying the Court Ruling, should it go against the Government. This is where things started going wrong. The Government was now adopting parallel causes of action towards the same end by asking Parliament to deal with the matter simultaneously with the High Court. That was totally wrong for reasons which will be apparent presently.

Thus the Government consciously and deliberately drew the Judiciary into a direct clash with Parliament by asking the two organs to deal with the same matter simultaneously. Such a state of affairs was both regrettable and most undesirable. It was wholly incompatible with the smooth administration of justice in the country and every effort ought to be made to discourage it.

The Court then went on to observe in conclusion:

In the instant case, had the amendment been initiated and passed after the Court process had come to a finality that in law would have been alright procedurally, the soundness of the amendment itself, of course,

being entirely a different matter. Then the clash would have been avoided. Indeed that would be in keeping with good governance which today constitutes one of the attributes of a democratic society.

The amendments referred to in the judgment of the Court of Appeal are those made by Act number 34 of 1994 which as observed, was passed by the Parliament on 16 October 1994 while the Ruling of Lugakingira J. (as he then was) was handed down on 24 October 1994, as it was still pending when the Parliament enacted the law. As a matter of procedure, we must, at once condemn this act of the respondent as being contrary to the dictates of good governance, and for which we can do no more than quote the above cited passage from the judgment of the Court of Appeal. We shall leave it at that and now go to the substance of the petition which is before us.

Act number 34 of 1993, amended Articles 21, 39, and 67 of the Constitution by cross referring Article 21 to Articles 5, 39 and 67. Article 5 entrenches the universal franchise subject to the other provisions of the Constitution and other laws that may be enacted. To appreciate the impact of the amendments both the former and the new relevant Articles must be quoted in full.

Before the amendment, Article 21(1) provided;

> 21(1) Kila raia wa Jamhuri ya Muungano anayo haki ya kushiriki katika shughuli za utawala wa nchi, ama moja kwa moja au kwa kupitia wawakilishi waliochaguliwa na wananchi kwa hiari yao, kwa kuzingatia utaratibu uliowekwa na sheria au kwa mujibu wa sheria.

The new Article 21(1) now reads (2005 edition):

> 21(1) Bila ya kuathiri masharti ya Ibara ya 39, 47 na ya 67 ya Katiba hii na ya sheria za nchi kuhusiana na masharti ya kuchagua na kuchaguliwa, au kuteua na kuteuliwa kushiriki katika shughuli za Utawala wa nchi raia wa Jamhuri ya Muungano, anayo haki ya kushiriki katika shughuli za utawala wa nchi, ama moja kwa mojia au kwa kupitia wawakilishi waliochaguliwa na wananchi kwa hiari yao, kwa kuzingatia utaratibu uliowekwa na sheria au kwa mujibu wa sheria.

The underlined words were introduced by the amendment through the 11th Amendment. Article 39(1) which refers to the qualifications of a presidential candidate and those of Article 67(1) of the Constitution as amended articulate the necessity of being a member of a political party as a qualification for presidential and parliamentary candidates.

The petitioner contends that these provisions violate Articles 9(a) and (f), of the Constitution. On the other hand the respondent contends that the amendments were valid, legally done, for a specific public good and not in violation of any basic human rights. It is from these rival contentions that the first issue was framed to wit:

> Whether Articles 39(1)(c), 39(2), 67(b) and 67(2)(e) are unconstitutional?

It may of course sound odd to the ordinary mind to imagine that the provisions of a Constitution may be challenged for being unconstitutional. The Petition was filed under section 4 of the Basic Rights and Duties Enforcement Act (Chapter 3) which enables persons aggrieved by the violations of their basic rights under sections 12 to 29 of the Constitution to seek redress from this Court. According to the amended petition, the Petitioner seeks redress under, among others, Articles 13(2), 20(4) and 21(1) and partly under Article 9(a) and (f). Since section 4 of the Basic Rights and Duties Enforcement Act does not cover Article 9 we too, shall not consider the petitioner's complaint under that Article, as it is outside the scope of our mandate. Here we shall only confine ourselves to examining the alleged violation of Articles 13(2) and 21 of the Constitution.

The jurisdiction of this Court to adjudicate on violations of such article is further derived from Article 30(3) of the Constitution, which reads:

> 30(3) Mtu yeyote anayedai kuwa sharti lolote katika sehemu hii ya sura hii au katika sheria yeyote inayohusu haki yake au wajibu wake imevunjwa, linavunjwa au inaelekea litavunjwa na mtu yeyote popote katika Jamhuri ya Muungano, anaweza kufungua shauri katika Mahakama Kuu.

The official English version of that Article is:

> 30(3) Any person alleging that any provision in this part of this chapter or in any law concerning his right or duty owed to him has been, is being or is likely to be violated by any person anywhere in the United Republic may institute proceedings for redress in the High Court.

Our Constitution consists of 10 Chapters, and some chapters have several parts. Chapter One has three parts. Part Three of Chapter One has 32 Articles. So Article 30(3) of the Constitution is only applicable to the enforcement of Part III of Chapter One of the Constitution. So this Court may indeed declare some provisions of the Constitution, unconstitutional.

But before we proceed, we feel impelled to touch on one thing which none of the parties has raised. And this relates to the procedure of instituting petitions under the Basic Rights and Duties Enforcement Act (Cap 3). Section 5 of that Act stipulates:

> 5. An application to the High Court in pursuance of section 4 shall be made by petition to be filed in the appropriate registry of the High Court by originating summons.

In the present case the petition was filed without an Originating Summons. This appears to offend the mandatory section 5 of the Act. Ordinarily, this would have the effect of the petition being struck out as incompetent. But this is a matter that touches on fundamental rights under the Constitution. In *The Judge in-charge High Court Arusha, and Attorney General v. N.I.N. Munuo Ng'uni* (12) the Court of Appeal of Tanzania, adopted with approval the following passage paraphrased by the Trial Court:

> ... that a Court should take liberal approach to rules of practice, and procedure where basic rights and freedoms are involved so as to give to the complainant a full measure of his rights. The rationale is that since the rights guaranteed by the Constitution are effectively enforced, and that to decline to examine the merits of a petition on the basis of a procedural technicality would be an abrogation of that duty.

In that case, the Court was also sitting on appeal from a decision of the High Court sitting under the Basic Rights and Duties Enforcement Act, just as we are. There of course, the issue was on how to plead specific damages which was a matter of procedure. Here, the question is want of originating summons which, we think, is also a matter of procedural technicality. On the basis of the above authority, we do not think the lack of an originating summons should abrogate us from doing that duty.

Mr. Rweyongeza and Mr. Mpoki learned Counsel for the petitioner, have submitted that, while Article 21(1) of the Constitution guarantees the right of any person to elect or be elected or nominated to take part in matters pertaining to the Government of the country, that right is violated by Act 34 of 1994 amending Articles 21(1), 39 and 67 which require that such person can only so participate if he is nominated by a political party for the posts of the president and/or member of parliament. They submitted that the said amendments are further violative of Article 20(4) which prohibits persons from being compelled to join any association or organization. The learned Counsel proceed to argue that by this provision, it means that only members of registered political parties may be permitted to be elected president or members of parliament. These, they conclude is unconstitutional.

Mr. Mwaimu, learned Principal State Attorney submitted, that the said amendments were legally promulgated by the Parliament in terms of Article 98(1) of the Constitution. Then reverting to Article 21(1) the learned State Attorney first submitted on the reasons for the prohibition of private candidacy. He said it was one way of achieving representative democracy, and intended to safeguard peace, order, security and tranquility. To support his argument on the proportionality test, the learned Principal State Attorney quoted several decisions from South Africa, to which we shall revert soon below.

In reply, Mr. Rweyongeza and Mr. Mpoki, learned counsel submitted that although Parliament has powers to amend Constitutional provisions,

those powers are not limitless, hence the proportionality test. Here, the learned counsel cited several decisions of this Court and the Court of Appeal. They argued that representative democracy was not inconsistent with that of private candidacy. They disagreed with the respondent's contentions that political parties enabled the candidates to formulate and propagate their philosophies, because that mechanism had no adequate safeguards and effective controls against abuse by those in authority.

Although the learned state attorney addressed the Court generally on the constitutionality of the impugned Articles, in this ruling we intend to examine and decide on each of the issues as agreed by the parties.

The respondent contends that the amendments were constitutional because they were duly enacted by the Parliament who have such powers under Article 98(1) of the Constitution. We think that is not the issue here. We accept the proposition that although the Parliament has powers to enact legislation, such powers are not limitless. As Professor Issa Shivji in his article **"Constitutional Limits of Parliamentary Powers"** published in special edition of **The Tanzania Lawyer** October, 2003 put it on page 39:

> ... the power to amend the Constitution is also limited. While it is true that Parliament acting in Constituent capacity... can amend any provision of the Constitution, it cannot do so in a manner that would alter the basic structure or essential features of the Constitution.

The issue therefore is whether the amendments to Articles 21(1) and Articles 39 and 67 of the Constitution is constitutional. We have tried to trace above the history of representative democracy. We have shown that soon after independence, the two Constitutions 1961 and 1962 had no restriction on the qualifications for elective posts of the President and Members of Parliament. We noted also that this restriction to party members to be nominated for the said elective posts first appeared in the 1965 Interim Constitution and carried over in the 1977 Constitution, when the country was under

one party system. But until the enactment of the Bill of Rights in the 1984 Constitutional Amendments, there were no provisions similar to Articles 20 and 21, hence the legitimacy of Articles 39 and 67 which remained restrictive to party membership. We have seen above what the two provisions provide. To us the combined effect of Articles 20 and 21 is to expand the arena of representative democracy. To appreciate it one must compare Article 20(2) as it appeared immediately after the insertion of the Bill of Rights and reflected in the 1985 version of the Constitution and Article 20(4) as it appears in the 2005 edition of the Constitution which reads:

> 20(4) Itakuwa ni marufuku kwa mtu yeyote kulazimishwa kujiunga na chama chochote au shirika lolote au kwa chama chochote cha siasa kukakataliwa kusajiliwa kwa sababu tu ya itikadi au falsafa ya chama hicho.

It appears to us therefore that, while Articles 20 and 21 of the Constitution are intended to expand the arena of democracy and the right to participate in the Government of the state, Articles 39(1)(c) and 67(1)(b) of the Constitution as amended seem to erode and restrict the right to contest for the elective posts to members of political parties only. We think that those provisions cannot be reconciled.

In our considered view the right to join or not to join political parties is as fundamental as the right to religious belief which cannot be made a basis for contesting for an elective political post. And so we proceed to hold that the provisions of Articles 21(1), 39(1)(c) and 67(1)(b) are violative of Articles 20 and 21 of the Constitution. But the contraventions alone are not sufficient to declare the Articles unconstitutional. This then takes us to the second issue which is whether the impugned Articles meet the proportionality test?

To bring the provisions within the proportionality test it must be shown that the Articles are saved by Articles 30 and 31 of the Constitution, but Article 30(1) is in our view, more pertinent. It provides:

> 30(1) Haki na uhuru wa binadamu ambavyo misingi yake imeorodheshwa katika katiba hii havitatumiwa na mtu mmoja kwa maana ambayo

itasababisha kuingiliwa kati au kukatizwa kwa haki na uhuru wa watu wengine au maslahi ya umma.

As we have seen above, once the petitioner has shown that his fundamental rights have been violated the burden shifts to the respondent to prove that the impugned provision is in the public interest. As the Court of Appeal has put it in *Kukutia Ole Pumbun* (4) .

> A law which seeks to limit or derogate from the basic right of the individual on grounds of public interest will be declared unconstitutional unless it satisfied two requirements:
>
> (a) that it is not arbitrary, and
>
> (b) that the limitation imposed by law is no more than is reasonably necessary to achieve the legitimate objection.

The requirement to subject the impugned legislation to this test is not disputed by the parties. It is also not in dispute that the burden now is on the respondent to justify the legislation.

Elaborating on this aspect, the learned counsel for the petitioner, submitted that to pass the proportionality test it must be shown that the legislation was directed towards a legitimate societal and community interest, and that the restriction was necessary to achieve the said goal. They submitted that the impugned Articles as amended do not pass the proportionality test.

Mr. Mwaimu, learned Principal State Attorney paraphrased his argument by a long discourse on the reasons why Parliament had to pass such legislation. To quote him:

> ... the amendments were done for a specific public good...The prohibition to individual contestants in general and local governments elections is one way to achieve representative democracy... it is a policy which intends to safeguard peace order security and tranquility.

The learned Principal State Attorney also anchors his arguments on Article 3(1) of the Constitution, and ends up by emphasizing the importance of a potential leader to be weighed through a political

party. This is where Mr. Mwaimu, brought in the South African cases of *South Africa v. Makwanyane* (6) and *S.A. v. Bhulwana* (7).

Undaunted, Mr. Rweyongeza and Mr. Mpoki, learned Counsel for the petitioner submitted in rebuttal that the proportionality test was not met. They rallied the support of the decision of this Court in *Peter Ng'omango v. Kiwanga and another* (9) and the Court of Appeal decisions in *DPP v. Daudi Pete* (5) and *Mbushuu v. Republic* (10). They even went on to quote the same South African cases of *Makwanyane* (6) and *Bhulwana* (7), to support their arguments by stating that while widening the horizon of the principle of proportionality test, such limitation would only be justified if it is-

> (i) reasonable,
>
> (ii) justifiable in an open and democratic society based on freedom and equality and
>
> (iii) shall not negate the essential content of the right in question.

They thus submitted that the decision of Lugakingira J. (as he then was) was in line not to negate the essential content of the right for a person to contest as a private candidate or through his chosen party.

We are not of course, entitled to question the wisdom of the Parliament for enacting the Constitutional amendments in question but if we were to assume that the respondent was attempting to discharge his burden of proof, we are not satisfied that in this case, the respondent has succeeded. The arguments may be attractive to the ear, but they are not supported by any empirical evidence. There is no evidence at all to suggest that the existence of the right of private candidate is inimical to the spirit of representative democracy. In fact as we have shown above there was no such restriction immediately after the country became a Republic. There is no suggestion that the lack of the party affiliated qualification had brought any harm to the society by then.

We have also had the advantage of reading the South African cases cited by Mr. Mwaimu. In *S.A. v. Bhulwana* (7), the respondent was

found in possession of 856 9 gms of cannabis. He was convicted on the statutory provision raising a presumption of guilt under section 21(1)(a) of the Drugs and Drugs Trafficking Act. The provision's constitutionality was challenged on the ground of infringing the fundamental right of presumption of innocence. Then, section 33(1) of the Constitution of South Africa was considered and the Constitutional Court through O' Regan J., held at page 395 of the Report:

> ....In sum therefore, the Court places the purposes, effects and importance of the infringing legislation on one side of the scales and the nature and effect of the infringement caused by the legislation on the other. The more substantial the inroad in to fundamental right, the more persuasive the grounds of justification must be.

S.A. v. Makwanyane and Another (6) was another criminal case in which section 277(1)(a)(c) of the Criminal Procedure Act 51 of 1977 sanctioning capital punishment was challenged as being unconstitutional. Chaskason P. of the Constitutional Court made the following observation on page 403 GH that:

> ... I need say no more in this judgment than that section 11(2) of the Constitution must not be construed in isolation, but in its context, which includes the history and background to the adoption of the Constitution itself, and in particular, the provisions of Chapter 3 of which it is part. It must also be construed in a way which secures for individuals the full measure of its provisions.

We have also had the advantage of perusing the decision in *Saghir Ahmed and Another v. Staff of V.P.* (13). The appellant there had challenged the constitutionality of a legislation restricting the right to use a highway. We agree with Mr. Mwaimu that the facts there were different; as there what was being challenged was a statute and not the provisions of the Constitution itself. However, that decision is also authority that:

> There is undoubtedly a presumption in favour of the constitutionality of a legislation. But when the enactment on the face of it is found to violate a fundamental right guaranteed under Article 19(1)(g) of the Constitution, it must be held to be invalid unless those who support the legislation can bring it within the purview of the exception laid down in clause 6 of the Article.

And that:

> The question whether the restriction imposed by a particular legislation on the exercise of fundamental rights under Article 15(1)(g) are reasonable or not would depend on the nature of the trade and the conditions prevalent in it.

We think that these statements of Constitutional interpretation are of universal application whether the impugned legislation is an Article of the Constitution itself or another statute.

In *Deena alias Deen Dayal ETC v. Union of India and others* (14), the sentence of death was being challenged for being unconstitutional. There the Supreme Court of India held among others:

> In the cases arising under Article 21 of the Constitution, if it appears that a person is being deprived of his life or has been deprived of his liberty, the burden rests on the state to establish the constitutional validity of impugned law.

This principle is equally applicable in a case where as in this case, a person alleges that his fundamental right to participate in the running of the government of his country is being restricted by another provision of the Constitution.

What we gather from the persuasive authorities cited by the learned counsel can be put in a nutshell as follows:

(i) Where a person alleges an infringement of his fundamental right the burden shifts to the state to justify the impugned law.

(ii) Whether or not the infringement or restriction imposed is reasonable or not would depend on the nature of the restriction/infringement.

(iii) In determining whether the impugned law/provision is reasonable or not, the Constitution must be construed in the light of its history and background, so as to ensure that the individual realizes the full

> measure of his fundamental rights; so that the essential contents of the rights are not negated.

We have attempted above to show that historically, Articles 20 and 21 of the Constitution were introduced to broaden the arena of representative democracy and participation in public affairs. In the scheme of the Constitution, this is one of the basic rights of the citizens of Tanzania. We have also seen that party qualification to contest for elective posts was unknown before the 1965 Interim Constitution and the entrenchment of the one party state. So it emerged and continued to dominate all the subsequent Constitutions as a legacy of one party policy. So, it cannot be gainsaid that during the one party state, the right to participate in being voted to power was restricted to party members. With the insertion of the Bill of Rights in 1985 and later multipartysim in 1992, party membership qualification was hardly or of little relevance, except as a legacy of the one party structure because not only party monopoly was abolished by Article 3 of the Constitution but also it was expressly forbidden under Article 20(4) to force any person to join any association or party. It is in the light of these developments that we take the firm position that Articles 20(4) and 21(1) entrench fundamental rights, and Articles 39(1)(c) and 67(1)(b) must be construed so as to achieve the full measure of those fundamental rights. On a full and deep consideration, we are of the settled view that Article 39(1)(c) and 67(1)(b) make a substantial in road into those rights guaranteed under Articles 20(4) and 21(1) of the Constitution. We are also satisfied that the respondent has failed to discharge his burden to justify the said restriction, because, first, it is historical, secondly they have not produced any evidence to substantiate their fears on private candidates. It is true that Article 3 introduces a multiparty political system but we do not think that this is inconsistent with private candidacy. Private candidacy could well exist alongside multipartism as was indeed the case before the 1965 Interim Constitution.

We have also carefully weighed the balance of the scale of the purposes, effect and importance of the impugned Articles, against

the nature and effect of the infringement caused by the said Articles, we are satisfied that the infringement is a substantial and unjustified inroad into the fundamental rights and we think such trends must be nipped in the bud, if our Constitution has to remain a respectable fountain of basic rights. As Mwalimu Julius K. Nyerere, put it in his book **Our Leadership and the Destiny of Tanzania**, Harare African Publishing Group 1995, page 9, quoted by Prof. Issa Shivji in his Article "Constitutional Limits on Parliamentary Powers" (*supra*).

> This is very dangerous. Where can we stop? If one section of the Bill of Rights can be amended, what is to stop the whole Bill of Rights being made meaningless by qualifications of and amendments, to all its provisions?

We have prefaced our ruling by stating that one of the principles of Constitutional interpretation, is that the Constitution must be construed as a living organism. With whatever little knowledge we might have, we know as a basic principle of nature that living organisms do grow in size with time, but, unless it is dead, it does not grow smaller. By analogy our Constitutional provisions on representative democracy, having emerged from the cocoon of a one party system should be interpreted so as to expand the arena of representative democracy and not shrink back to that era as demonstrated in the attempt by Act 34 of 1994. This is evenmore so now in view of the fragile opposition political parties existing along with the ruling CCM party as demonstrated in the just ended general elections.

So in conclusion on the above two issues, we wish to make it very plain that in our view Act 34 of 1994 which amended Article 21(1) so as to cross refer it to Articles 5, 39, and 67 which introduced into the Constitution, restrictions on participation of public affairs and the running of the Government to party members only was an infringement on the fundamental right and that the restriction was unnecessary and unreasonable, and so did not meet the test of proportionality. We thus proceed to declare that the said amendments to Articles 21(1), 39(1)(c) and 67(10)(b) are unconstitutional. We shall dispose of the third issue briefly, although we do not really consider it necessary to do so in view of our findings on the first

two issues. The issue is whether the impugned Articles also contravene the International Covenants to which Tanzania is a party?

Mr. Rweyongeza and Mpoki learned counsel, have submitted that these Articles contravene the Universal Declaration of Human Rights, and the African Charter on Human and Peoples Rights. They cited Articles 20(1) and (2) and 21(1) of the Declaration and Articles 10(2), (3) and 29 of the African Charter on Human Rights to illustrate their arguments, and *DPP v. Daudi Pete* (5) to show the effect of these conventions in the interpretation of our Constitution.

On the other hand, Mr. Mwaimu the learned Principal State Attorney does not seriously contest the existence and effect of the International Covenants but said these should be construed within their own limitations. He cited Article 29(2) of the Universal Declaration of Human Rights to illustrate his point. He submitted that in the light of those limitations the impugned Articles of the Constitution were made in order to maintain morality, public order and general welfare of the people. So, the learned state counsel submitted, this Court should find that even as against these international conventions, those amendments were just and reasonable. He therefore prayed that the petition be dismissed with costs.

As the Court of Appeal of Tanzania observed in *Daudi Pete(5)*, we have no doubt that international conventions must be taken into account in interpreting, not only our Constitution but also other laws, because Tanzania does not exist in isolation, it is part of a comity of nations. In fact, the whole of the Bill of Rights was adopted from those promulgated in the Universal Declaration of Human Rights. To come nearer to the case at hand, Articles (drafted before the Amendments) of the Constitution are replica of Articles 20(1) and (2) and 21 of the Declaration. The Covenant of Civil and Political Rights which followed the declaration and ratified by Tanzania in June 1976 provides in its Article 25 thus:

> Every citizen shall have the right and the opportunity without any of the distinctions in article 2 and without unreasonable restrictions:

> (a) To take part in the conduct of public affairs directly or through freely chosen representatives.
>
> (b) To vote and to be elected at genuine periodic elections which shall be by universal and equal suffrage and shall be held by secret ballot guaranteeing the free expression of the will of the electorates.

Article 2 of the convention, enshrines the right of an individual without any distinction of any kind such as political or other opinion.

Article 29(2) of the Universal Declaration of Human Rights, relied upon by Mr. Mwaimu has the same effect as Article 30(1) of the Constitution of the United Republic of Tanzania. As seen above, case law has subjected any justification for restricting fundamental rights under Article 30(1) to the proportionality test. We have, we hope, amply demonstrated above that the amendments introduced by Act 34 of 1994 into Articles 21(1), 37(1)(c) and 69(1)(b) of the Constitution, do not meet that test as they seek to make a substantial inroad into a fundamental right of the citizens to participate in the affairs of their government. We are of the unshakeable view that political party membership as a qualification to being nominated for an elective post is too unnecessary a restriction, for the purposes of achieving and maintaining morality, public order and general welfare of the people. There are, certainly alternative and better ways of achieving that goal. And so, in our opinion, the impugned provisions are not saved even under Article 29(2) of the Universal Declaration of Human Rights. In the event, we agree with the learned Counsel for the petitioner, that amendments to Articles 21(1), 39(1)(c) and 67(1)(b) of the Constitution also contravene the International Conventions. So we answer the third issue also in the affirmative.

For all the above reasons we now come to the inevitable conclusion that this petition must succeed. We are of the settled view that the amendments to Articles 21(1) Article 39(1)(c) and Article 67(1)(b) introduced by Act number 34 of 1994 or popularly known as the 11th Amendment are unnecessary and unreasonable restrictions to the fundamental right of the citizens of Tanzania to run for the relevant

elective posts either as party members or as private candidates. We thus proceed to declare the alleged amendments unconstitutional and contrary to the International Covenants to which Tanzania is a party. In *Rev. Mtikila v. Attorney General* (1), at p.68 this Court through Lugakingira J. (as he then was) declared and directed that:

> ... It shall be lawful for independent candidates along with candidates sponsored by political parties to contest, presidential, parliament and local council elections.

We shall also declare in the present case that in principle it shall be lawful for private candidates to contest for the posts of President and Member of Parliament along with candidates nominated by political parties. However unlike the learned late judge we will not just leave it at that. Exercising our powers under any other relief as prayed in the petition and cognizant of the fact that a vacuum might give birth to chaos and political pandemonium we shall proceed to order that the respondent in the true spirit of the original Article 21(1) and guided by the Fundamental Objectives and Principles of State Policy contained in Part II of the Constitution between now and the next general elections, put in place, a legislative mechanism that will regulate the activities of private candidates, so as to let the will of the people prevail as to whether or not such candidates are suitable. As this is a public interest litigation the parties shall bear their own costs. It is so ordered.

AHAMADI CHALI *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT MWANZA

(Makame, Kisanga and Lugakingira, JJA)

CRIMINAL APPEAL No. 56 OF 1995

(From the decision of the High Court of Tanzania at Tabora, Katiti, J.,dated 23 June 1995, in Criminal Sessions Case number 119 of 1992)

Evidence – Circumstantial evidence – Whether circumstantial evidence alone may form the basis of a conviction for murder.

Murder – Conviction for murder – Whether a conviction for murder may be based on circumstantial evidence.

The appellant and the deceased spent a night at the appellant's young brother's house upon their arrival at Kaliua Village. The appellant had asked PW2, who had been housewarming the house, and PW2's friend, Philbert, to go and find another shelter for the night as the appellant and the deceased would sleep in the house with some women. On the next day, when PW2 went back to the house to collect his bed he found the door locked and it was until the third day that he saw the appellant. When he went to the house the bed was soiled with blood. The decomposed body of a person, who later on was identified to be of the deceased, was retrieved from a pit latrine. The appellant was arrested and charged with murder and convicted; he lodged this appeal against the conviction.

Held: The Trial Court judge convicted the accused on evidence which was purely circumstantial; however, the learned trial judge meticulously considered such evidence and he was fully entitled to hold the same view as that of his assessors that the appellant's guilt had been established.

Appeal dismissed

Case Refered to:

(1) *Kipeumi arap Koske and Another v. R* (1949) 16 EACA 135

Statutory Provisions referred to:

(1) Criminal Procedure Act 1985, section265

Mr. Muna for the appellant

Mr. Mlipano for the Republic

JUDGMENT OF THE COURT

(Dated 8 June 2006)

Makame, JA: The appellant, Ahamadi Chali, was condemned to death by the High Court sitting at Tabora (Katiti, J.) and he is now appealing. At the trial the learned Judge agreed with the lady assessor and the two gentlemen assessors who sat with him, all of whom were of the opinion that it was the appellant who killed the deceased, Meshak Daniel, a companion with whom he had gone to Kaliua in Urambo District where the appellant's mother and younger brother were living and where the appellant had gone to sell some salt. The appellant agreed that he was in the deceased's company as alleged but he denied having had anything to do with the Deceased's death.

In the appeal before us Mr. Muna, learned advocate, appeared for the appellant while Mr. Mlipano, learned State Attorney, represented the Republic.

It was common ground that the appellant and the deceased spent the night at the appellant's younger brother's house upon their arrival at Kaliua village. The evidence accepted by the Trial Court was that the two, the appellant and the deceased, did this alone, and the appellant's assertion that they were in the company of PW2, Paulo Hedes, who had been 'housewarming' the house; and another person, was rejected. The appellant had asked PW2 and PW2's friend, Philbert, to go and find another shelter for the night as he, the appellant, and the deceased, would sleep with some women.

In his testimony PW2 further alleged that when he went back to the house on the morrow to collect his bed he found the door locked and it was not until the third day that he was able to locate the appellant, and when they went to the house and the appellant opened the door, alas, the bed was soiled with blood and there was also a lot of blood splattered on the walls and floor. The appellant said that the blood was that of a ten year old girl whose hymen he had broken. PW2 would not buy that story nor would his father, PW8 Ealias Marko, when he saw the bed.

The decomposed body of a person retrieved from a pit latrine some thirty five paces from the house was found to be that of the deceased, whose name according to a disinterested witness, PW7 Dr. Massam, the doctor who conducted a post mortem examination., was given as Meshak by the appellant; the same person the appellant said had gone away from the village PW7's testimony was that the deceased's head was covered over with a 'draft' shirt and the neck tied with a rope. The head was bashed and pieces of bone had pierced and damaged the brain. The cause of death was given as brain injury.

The appellant told the Court of trial that in the house that night they were four. He and his friend who later left for Urambo, Paul Hedes and Paul's friends. The assertion is therefore that he was not alone with the deceased that night. He also said he did not identify the body and that he told the hymen story at the Police Station so as to save himself from further assault.

Mr. Muna had two grounds in support of the appeal by his client. He submitted that the evidence against the appellant was merely circumstantial and that it was of a quality that would not reasonably lead to the conviction of the appellant, and that the learned Judge erred in accepting as credible the evidence of PW2, PW3 and PW8 who had interests of their own to serve. The three witnesses were son, mother and father.

On behalf of the Republic Mr. Mlipano declined to support the High Court decision. He said he had "great difficulty" to decide

whether or not to support the conviction. Learned Counsel submitted that the learned trial judge misdirected himself during the course of his summing-up in that he made his own views known on certain matters and, to that extent, the trial was not a trial with the aid of assessors, in terms of section 265 of the Criminal Procedure Act.

We are grateful to both learned counsel for their useful assistance to the Court. Mr. Muna is quite right that the evidence relied on was purely circumstantial. We are, however, of the considered view that the learned trial judge meticulously considered such evidence and that, based on the accepted supporting facts; he was fully entitled to hold the same view as that of his assessors that the appellant's guilt had been established. He also correctly warned himself, in his own colourful language, that although he was satisfied that the appellant had told lies, and that lies can be told for a variety of reasons, in this particular case it was because the appellant was trying to hide his guilt. The learned judge ably demonstrated his awareness of the case law on circumstantial evidence and cited a variety of authorities including *Kiperumi arap Koske and another* (1). He took into account, quite properly in our view, the fact that the appellant was last seen alone with the deceased; the hymen story, which was an unblushing lie; and which he could not have told so as to save himself from further assault, as the appellant said, because he had first furnished the story to the youth, PW2, on the latter discovering the blood in the house, much earlier on, when there could have been no fear of people assaulting him, or assaulting him further. There was also his falsely saying that the deceased had traveled from the village; and his later conceding that the body fished out from the latrine was that of his guest. There was further a futile attempt by the appellant to implicate PW8, PW2's father as being his companion-in crime.

With respect to the learned advocate for the appellant, we are not persuaded to agree that counsel had "almost covered ground 2". The truth of the matter is that he did not really argue that ground, but we are satisfied in any event that it is devoid of merit. Counsel merely remarked in passing that PW8 was also arrested, but we know

the circumstances in which this happened, and we do not think that this in anyway detracts from the soundness of the appellant's conviction. Lastly, with respect, we are of the view that Mr. Muna must have misread a portion of Dr. Massam's evidence to be able to assert so boldly that, at page 17 Line 12, "Doctor says there was no violence in the room". At the said Line 12 the Doctor testified that "I estimated that six days had gone by because of change of the organs and the place the body was". We are completely at a loss to understand how this could support learned counsel's contention. For the sake of argument, even if counsel's reference to line 12 was merely *lapsus linguae* and that he actually wanted to refer to line 20, that one goes thus: "At the scene there was no evidence of violence as to cause the impact demonstrated by the Deceased" (*sic*). This is neither here no there really. In Line 4 the doctor is loud and clear that "I never entered the Accused's house at all", so that it is beyond peradventure that the doctor was not in a position to say that "there was no violence in the room", for what it would be worth.

We must confess to our being rather surprised by Mr. Mlipano's failure to support the conviction. As aforesaid, he submitted that the trial was held without the aid of assessors. In telling the assessors that "All the same, you will have no problem in concluding that the deceased was wearing a draft shirt and a black trouser" the learned trial judge was indeed rather indiscreetly sticking out his neck. However, we can fathom nothing in the assessors' opinions that would reasonably lead us to conclude, or fear, that this misdirection was crucial to their finding, and it does not appear to have infuenced them. We wish to add that the colour of the garment the deceased's body was in, might go some way to establishing the identity of the wearer, about which there is in the instant case ample other evidence to establish the deceased's identity. In answer to the Court, Mr. Mlipano conceded two matters: one, that the above was the only misdirection in the summing-up; and two, that PW2 (the prosecution star witness) is realiable. We are satisfied that the appellant's conviction was sound and so his appeal is here-by dismissed.

We wish to add two matters, the first one quite briefly; and the second one is, we think, of great importance.

The first one is, having expressed our surprise at the learned State Attorney's failure to support the conviction we wish to say that we were making the remark only with particular reference to this appeal, the way we were viewing it. For the avoidance of doubt, we should not be taken to intend to say that State Counsel should always resist appeals against the Republic, no matter the merit or lack of it. If after serious consideration and in keeping with professional ethics which are a trademarks in our calling, State Attorney is of the view that he is not in a position to support a conviction, or for that matter any decision, "in favour" of the Republic, he should feel free, and indeed feel obliged, to inform the Court, bearing in mind that he is an officer of the Court.

We wish to predicate the second matter with a little exposition, for the benefit of some people, including those who should know better, who may not be familiar with the process of the Court of Appeal in reaching a decision in a matter heard by three or more Justices of Appeal.

After hearing a matter there is normally a 'Conference' in Chambers where the Justices exchange views freely, respectfully, but seriously, leaned argument, and hammering out for consensus, take place. No bull-dozing, no arm-twisting. If there is dissent it is respected, not resented. If there is all – round consensus it is obtained that way. If there is no consensus there will prevail the majority view, and the written decision will so indicate. At such of a Conference the Chairman of the panel is merely *'primus inter pares'*, and the only additional power he has is to assign a justice, himself include, who will compose the decision, for the consideration of others. That decision, after approval by the others in that 'camp' is the decision of all those in that camp, owned by them and they are all responsible for it. Regarding such a decision it is therefore the height of blissful ignorance to label the composing Justice as 'liberal' or 'progressive' or 'conservative'

etc. For all there is, such a Justice might have started the Conference holding a diametrically opposite view and only been converted during the course of the Conference.

We thought it necessary to say the foregoing because of what we are now going to say. This appeal was heard by the usual panel of three Justices, including the late Lugakingira J.A., R.I.P., the third among equal in the panel. Following the inevitable Conference there emerged complete consensus that the appeal had no merit and should be dismissed. This was after complete ventilation and the identification of reasons. After that, very unhappily, our learned brother, Lugakingira, J.A. died before the composition and signing of the Judgement. This was new terrain for us, unchartered and unfamiliar. We however argue thus: because all the three of us had agreed on the destination of the appeal, and on the reasoning steps to get there, the two of us felt that we could deliver the unanimous Judgement of the Court, which naturally cannot now be signed by our late learned brother. We feel that we are on firm ground. Further, we feel well-buttressed by this additional consideration: Even if Lugakingira, J.A. had dissented and was still alive, or, as is now the case he is dead, the two of us would still be the majority and so we would therefore carry the day. As it is, as we have said, the three of us had unanimously agreed to dismiss the appeal.

We searched for a precedent in Tanzania but our effort went unrewarded. The present situation is of course different from a part-heard matter, or a matter heard but eventually not discussed, which would call for a different treatment.

We did not confine our search to Tanzania. We spread out wider. One of us discussed the matter with eminent judges in some Commonwealth jurisdiction but was invariably informed that there was no recollected precedent. All those consulted held a view like the one we have canvassed. We have also visited a number of websites in the United Kingdom, including the House of Lords, and, for interest, also in the United States, including the Supreme Court of the United

States, and some State Supreme Courts, but our concerted effort was barren of fruit. We wish to recommend further research by our Court of Appeal and High Court Registries.

JUMA ALI *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT TANGA

(Makame, Munuo and Kaji, JJA)

CRIMINAL APPEAL No. 75 OF 2005

(From the conviction and sentence of the High Court of Tanzania, at Tanga, Mkwawa, J., dated 12 May 2003, in Criminal Appeal number 75 of 2002)

Evidence – Caution statement – Statement recorded by a policeman under the rank of a corporal – Whether statement admissible – Who is a police officer— section 3 of the Evidence Act, 1967.

The appellant was sentenced to a jail term of fifteen years by the District Court after he was convicted of the offence of robbery with violence. He was also ordered to pay TZS. 4 000 as compensation to the complainant. Dissatisfied with this decision the appellant appealed to the High Court of Tanzania at Tanga where he lost, hence, the appeal to this Court. One of the grounds of appeal is that the Caution Statement produced in Court was inadmissible, for the reason that it was recorded by a person with powers of arrest.

Held: (i) It is clear to us that the Caution Statement should not have been received in evidence;

(ii) Under section 27 of the Evidence Act, 1967 a voluntary confession made to a police officer may be proved against its maker, but then PC Justine was not a "police officer" in terms of section 3 of the said Evidence Act, which provides that a

"police officer" is any member of the Police "of or above the rank of Corporal," which PC Justine was not;

(iii) We are satisfied that there still remained sufficient evidence to warrant the appellant's conviction.

Appeal dismissed

Statutory provisions referred to:

(1) Evidence Act 1967, section 3

Ms. Maganga, for the Republic

JUDGMENT OF THE COURT

(Dated 5 July 2006)

Makame, JA: The appellant, Juma Ali, was sentenced to a jail term of fiteen years by the District Court of Handeni, consequent upon his conviction for the offence of robbery with violence. He was also ordered to pay a sum of TZS. 4 000 as compensation to PW1 Sophia Mwinyiheri, a woman he relieved of some maize flour and a piece of khanga during the course of the robbery. The appellant was dissatisfied with the Trial Court's decision so he appealed to the High Court, Tanga but his effort there was unrewarded. Mkwawa, J. dismissed his appeal entirely and the appellant has now come to this Court, on second appeal. He appeared on his own, while Ms. Maganga, learned State Attorney, resisted the appeal on behalf of the respondent Republic.

PW1 told the Court of trial that as she was walking home in the evening in the company of her daughter PW2 Pili Salehe, and carrying some maize flour, they came across the appellant who snatched away the maize flour she was carrying on her head and a piece of khanga; and managed to go away with them after he had knocked PW1 to the ground, despite the joint resistence of herself and PW2. PW1 told the Trial Court that she knew the appellant well, as he was a co-

villager. PW2 told basically the same story. Both witnesses said the night was moon light. The appellant was eventually traced and arrested at Mkalamo, from where he was taken to Handeni Police Station.

In his brief evidence the appellant said he was arrested "without cause" and flatly denied the allegation against him. To this Court he continued to protest his innocence, in his Memorandum of Appeal, in which he complained that the evidence adduced was not sufficient to base his conviction, and that the Caution Statement produced in Court was inadmissible, for the reason that it was recorded by a person with powers of arrest. For good measure he added that the burden of proof had been shifted and placed on him.

Ms. Maganga, learned State Attorney, submitted that there was no shifting of burden: the Prosecution had proved the appellant's guilt. She added that the identification of the appellant by the two prosecution witnesses, PW1 and her daughter, was reliable. The appellant was familiar to them, his village mates, and that the moon light facilitated the hence reliable identification.

Both the Trial Court and the first appellate Court were satisfied that there could have been no possibility of mistaken identity in the circumstances of this case, and we respectfully agree with Ms. Maganga's submission on this score. The first appellate Court found no reason to differ from the Trial Court's assessment of PW1's and PW2's credibility and we are satisfied, on the evidence, that we are unable to fault that view. The evidence against the appellant was 'obvious', as the trial District Magistrate remarked, in our considered view.

Ms. Maganga, learned State Attorney, made some effort to justify the receipt and use of the appellant's Caution Statement which the appellant challenged. The Caution Statement was recorded by one PC Justine, a policeman under the rank of a Corporal, and even when the Court brought this to the learned State Attorney's attention she bravely sought to convince the Court that although the Caution Statement was admittedly inadmissible, its contents could still be used. However, she eventually conceded that if the contents of the Statement were

lifted out of the Statement there would remain a mere husk, with no Caution Statement to speak of. It is clear to us that the Caution Statement should not have been received in evidence. Under section 27 of the Evidence Act, 1967 a voluntary confession made to a Police Officer may be proved against its maker, but then PC Justine was not a 'Police Officer', in terms of section 3 of the said Evidence Act, which provides that a Police Officer is any member of the Police "of or above the rank of corporal", which PC Justine was not. Having said the foregoing, we are satisfied that there still remained sufficient evidence to warrant the appellant's conviction. We therefore dismiss the appeal against the conviction, and, as the sentence imposed is the statutory minimum, we cannot disturb that. We also have no reason to interfere with the order for compensation.

We wish to add, for the record, that incidentally, the sentence imposed on the appellant for escaping from lawful custody was six months, and not two years as the learned High Court Judge erroneously remarked in his judgement.

MUSTAFA RAMADHANI KIHIYO v. REPUBLIC

COURT OF APPEAL OF TANZANIA
AT TANGA

(Makame, Munuo and Kaji, JJA)

CRIMINAL APPEAL No. 25 OF 2005

(From the conviction and sentence of the High Court of Tanzania at Tanga, Longway, J., dated 11 June 2002, in Criminal Appeal number 7 of 2000)

Evidence – Evidence of a child of tender age – Need to conduct a proper voire dire examination.

Evidence – Evidence of relatives – Whether evidence of relatives should be discredited.

The appellant was charged with and convicted of the offence of defilement by a District Court. His appeal to the High Court having been unsuccessful, he appealed to the Court of Appeal challenging the decisions of the Lower Court on two grounds. First that, no *voire dire* examination was conducted before taking the evidence of the complainant, a child of tender age. Secondly that evidence of relatives was accepted and became the basis of his conviction.

Held: (1) Under the provisions of section 127(2) of the Evidence Act, 1967, *voire dire* examination should be conducted to test the ability to testify on oath, the child's ability to speak the truth and whether she has sufficient intelligence to justify the reception of such evidence;

(2) In this case the trial magistrate indicated that he recorded the evidence of the complaint, a child of tender years, in accordance with the provisions of section 127(2) of the Evidence Act, 1967

(3) The evidence of the related witnesses is credible and there is no rule of practice or law which requires the evidence of relatives to be discredited, unless of course, there is ground for doing so; in this case we find no reason for discounting the evidence of the said related witnesses.

Appeal dismissed

Cases referred to:

(1) *R. v. Lulakombe s/o Mikwalo and Kubugu s/o Kibage* (1936) 3 EACA 43

Statutory provisions referred to:

(1) Penal Code, Chapter 16, sections 136(1) and (4)

(2) Evidence Act, Chapter 6, section 127(2)(5)

Mr. Tanngoh for the respondent

JUDGMENT OF THE COURT

(Dated 6 July 2006)

Munuo, JA: In Lushoto District Court Criminal Case number 214 of 1997, the present appellant, Mustafa Ramadhani Kihiyo, was convicted of defilement contrary to sections 136(1) and (4) of the Penal Code, Chapter 16 for having carnal knowledge of a girl below the age of 14 years, on the 16 August 1997 at about 16:00 hours at Magilla Village in Lushoto District within Tanga Region. The Trial Court sentenced the appellant to 20 years imprisonment and 8 strokes of the cane. Aggrieved, the appellant lodged Criminal Appeal number 7 of 2000 in the High Court of Tanzania at Tanga. The said appeal was unsuccessful. The appellant then instituted this second appeal to challenge the conviction and sentence.

On the material evening, the complainant, PW2 Saumu Alli, then aged 11 years, was up on a tree picking wild fruits known as *sambia*. At that time, the appellant appeared and demanded from the complainant, TZS. 30 he had lent to her for buying buns. PW2 said that she did not have the TZS. 30. The appellant threatened to take PW2's piece of khanga. When PW2 alighted from the tree, the appellant held onto her *khanga* and as she was going home, pulled her into a bush, undressed her and himself and proceeded to rape her. After accomplishing his criminal mission, the appellant told PW 2 the debt of TZS. 30 was paid up. The complainant painfully walked home. She reported the sexual assault by the appellant on her to PW1 Fatuma Alli, her grandmother, and also to PW3 Waziri Hemedi, her father's brother. PW2 was staying at her grandmother's home. Her grandfather summoned the appellant and questioned him about the rape incident. The appellant denied raping the complainant, his paternal cousin. The next day PW1 took the complainant to Soni Police where she got a PF.3 for treatment at Lushoto Hospital. The PF.3, Exhibit A, states that vaginal examination showed that her hymen was not intact. Spermatozoa were seen in her private parts. Subsequently, the appellant was arrested and charged

with the offence of defilement contrary to sections 136(1) and (4) of the Penal Code, Chapter 16.

The appellant gave a sworn defence denying the charged offence. He stated in cross-examination that the complainant is his "half sister", the daughter of his father's brother. He stated that he had never quarreled with the complainant and he also had no grudge against her. The appellant called his younger brother, DW2. Juma Ramadhani, to say that on the material afternoon, he had been farming. The latter stated that the appellant was arrested on the following day, whereafter he was taken to PW1 Fatuma Alli and then to the police station at Soni where he was charged with the offence of raping the complainant.

In this second appeal, the appellant filed five grounds of appeal denying the offence. He challenged the age of the complainant saying that she was an adult just as himself, and not below 14 years as alleged in the charge. Furthermore, the appellant complained that the prosecution witnesses, PW1, PW2 and PW3 are related so they testified in favour of the complainant. He further alleged that burden of proof was shifted to the defence instead of being discharged by the prosecution which had to prove their case beyond all reasonable doubt. The appellant also faulted the trial magistrate for failing to conduct a proper *voire dire* examination as stipulated under the provisions of section 127 of the Evidence Act, Chapter 6 of the Revised Laws, 2002.

Mr. Tangoh, learned State Attorney supported the conviction and sentence and urged the Court to do the same. He stressed that the raped victim, PW2, was a Madrasa pupil whose age was about 11 years. The age of the complainant was confirmed by PW4 Alli Hemed, her natural father. He stated at page 7 of the record, that the appellant was born in May, 1986 so she was below the age of 14 as reflected in the charge sheet. As for the burden of proof, the learned State Attorney contended that three prosecution witnesses, to wit, PW.1, PW2, PW3 testified and established beyond all reasonable doubt that the appellant raped the complainant on the material afternoon. The rape was evidenced by PW2's PF.3, Exhibit A, the learned State Attoney asserted. In that regard, the burden of proof rested on the

prosecution and did not shift to the defence, he contended. All in all, the learned State Attorney contended, the prosecution proved the guilt of the appellant beyond all reasonable doubt. The appeal, he further argued, lacks merit and ought to be dismissed.

The issue is whether the appellant defiled the complainant, Saumu Alli. We note that the trial magistrate recorded at page 5 of the record of appeal:

> Order: The evidence is taken contrary to section 127(2) of the Evidence Act ..

And then proceeded to record the evidence of the complainant, not on oath. We wish to emphasize that under the provisions of section 127(2) of the Evidence Act 1967, *voire dire* examination should be conducted to test the ability to testify on oath, the child's ability to speak the truth, whether the child understands the duty to speak the truth and whether she has sufficient intelligence to justify the reception of such evidence.

In the present case, the trial magistrate recorded the unsworn evidence of the complainant under the provisions of section 127(2) of the Evidence Act, 1967 which state *inter-alia*:

> 127(1) ...
>
> (2) Where in any criminal cause or matter a child of tender age called as a witness does not, in the opinion of the Court, understand the nature of an oath, his evidence may be received, though not given upon oath or affirmation, if in the opinion of the Court, to be recorded in the proceedings, he is possessed of sufficient intelligence to justify the reception of his evidence, and understand the duty of speaking the truth.

A child of tender years is defined in section 127(5) which states that:

> 127(5) For the purposes of subsections (2), (3) and (4), the expression "child of tender years" means a child of or below the apparent age of fourteen years.

In this case the trial magistrate indicated at page 5 of the Record of Appeal that she recorded the evidence of complainant, a child of tender years, in accordance with the provisions of section 127(2) of the Evidence Act, 1967. He recorded the evidence of PW2 Saumu Alli not on oath which means that the said complainant did not know the meaning of an oath but had sufficient intelligence to give unsworn evidence, after which the appellant cross-examined her. We are satisfied that the complainant was eleven years old when the appellant raped her. Her natural father, PW4 Alli Hemed, stated that she was born in May, 1986. She was, therefore, below 14 years of age.

The rape was committed in a bush in broad daylight at 4:00pm. The assailant appellant and the complainant are related in that they are first degree paternal cousins, the victim being a cousin of the appellant. There was, therefore, no possibility of mistaken identity. The appellant stated that he had no ill will or grudge against the victim. In that respect, the appellant's complaint that he was victimized by PW1, PW2, PW3 and PW4 is baseless. The evidence of these related witnesses is credible and there is no rule of practice or law which requires the evidence of relatives to be discredited, unless of course, there is ground for doing so. In this case, we find no reason for discounting the evidence of the said related witnesses. In the case of *R. v. Lulakombe s/o Mikwalo and Another* (1) at page 44, Sir Sidney Abraham, C.J. held that:

> There is no rule of law or practice which permits the evidence of near relatives to be discounted because of their relationship to an accused person.

Here the appellant and the complainant are close relatives so PW1, PW3 and PW4 are also related to the appellant so it is neither here nor there.

The offence was committed in August 1997, before the enactment of the Sexual Offences Special Provisions Act number 4 of 1998 which removed the need for corroboration in Sexual Offences cases. With regard to corroboration, we are satisfied that the PF.3, Exhibit A,

and the fact that the complainant immediately reported the rape to her grandparents and uncle who summoned and questioned the appellant shortly after, fully corroborated the testimony of the complainant. Upon being so questioned, the appellant denied the offence so the next day, the matter was reported to the police who then arrested and charged the appellant.

Under the circumstances the appeal is lacking in merit. We accordingly dismiss the appeal in terms of conviction and sentence. We uphold the decision of the High Court.

MWANZA DIRECTOR M/S NEW REFRIGERATION CO. LTD. *v.* MWANZA REGIONAL MANAGER OF TANESCO LTD AND ANOTHER

HIGH COURT OF TANZANIA
AT MWANZA

(Rweyemamu, J)

CIVIL CASE No. 10 OF 2005

Civil Practice and Procedure – Ex-parte proceedings due to non-appearance by defendant – Whether the Court is mandated to proceed ex-parte in every instance of non appearance by defendant – Order IX, rules 6 and 7 of the Civil Procedure Code.

Civil Practice and Procedure – Ex-parte proceedings – Order to proceed ex-parte due to non –appearance by defendant – Defendant appears on the day fixed for ex-parte hearing and applies to set aside the order for ex-parte proof – How the Court should determine what is good cause for non-appearance – Order IX, rules 6 and 7 of the Civil Procedure Code.

On the day the suit was called for hearing the defendant failed to appear and the High Court ordered that the case shall proceed *ex-parte*. On the day set for the *ex-parte* hearing the defendant appeared and applied to the High Court to set aside the order allowing the plaintiff to prove the case ex-parte. The reason given for the previous non-appearance was that the officer on whom the summons was served and the officer who was responsible for litigation, were, at the material time, either dead or seriously indisposed. Resisting the application, the plaintiff submitted that the defendant failed to show good cause for that non-appearance.

Held: (i) Order IX, rules 6 and 7 does not mandate the Court to proceed *ex-parte* in every instance where the defendant who is duly served fails to appear;

(ii) What amounts to a good cause for non-appearance depends on the peculiar circumstances of each case.

Application granted

Cases referred to:

(1) *Ally Hussein Masunga v. Msigwa Abdallah Kibuzi*, HC-TBR-Civil Appeal number 12 of 1988 (unreported)

(2) *Amratlal Damodar v. B. Jariwalla* [1980] TLR 31

(3) *Petro Bujiji v Daljeet Singh Diloo t/a Dodoma Auto Panel Works*, HC-DOM-Civil Case number 14 of 1982 (unreported)

Statutory Provisions referred to:

(1) Civil Procedure Code 1966, Order IX, rules 6 and 7, sections 68 and 95

Mr. Rugarabamu for the Plaintiff

Mr. Galati for the defendants

RULING

(Delivered 11 July 2006)

Rweyemamu, J: The first defendant via their counsel Mr. Galati made an oral application under sections 68 and 95 of the Civil Procedure Code (CPC), praying that; this Court set aside its order of 16 May 2006; allow them to enter appearance and defend the case out of time. The plaintiff via their counsel Mr. Rugaimukamu opposed it.

Following is the background to the application: on 21 March 2006 the plaintiff successfully prayed for an order to proceed *ex-parte* against the defendants. The case was then fixed for such hearing on 16 May 2006, a day when the second defendant entered appearance; made an oral application and was allowed to file their defence. The plaintiff's other prayer to prove the case *ex-parte* against the first defendant was refused. It was instead ordered that the case will be proved *ex-parte* in respect of the first defendant on the day when the case against the second defendant is set for hearing. The case was then set for mention on 4 July 2006 with a view to fixing a hearing date; if pleadings had been completed.

On that date i.e. 4 July 2006, the first defendants, turned up via their counsel Mr. Galati and made the present prayer. They submitted that they were unaware of the case until an officer of their company noted the case listed in the Court cause list. They admitted their records indicated that summons was served on them; that it was served to their officer who is since dead, but explained that as the person in charge of their Legal Department in their headquarter office in Dar es Salaam is also seriously sick and unconscious, it was possible the deceased officer had informed him of the case but the officer was in no condition to take action. They submitted further that, as the claim involved a colossal sum, it would be in the interest of justice that it be heard and determined on merit *inter partes;* and therefore that the Court should exercise its powers under the cited legal provisons to allow the 1st defendant enter appearance and defend the suit.

Mr. Rugaimukamu opposing the application submitted on the main that the defendant had failed to show sufficient cause for non appearance and for making the application out of time. He stressed the importance of Courts to observe procedure and its own orders.

I have considered both Counsel's submissions in light of the stated legal provisions and Order 9 rules (6) and (7) of the CPC, and find this a fit case for the Court to exercise its discretion in favour of the first defendant. Why?

It was obvious from counsels' submissions that they were addressing the same issue using different avenues. Mr. Galati's major argument was that the Court should use its discretion to grant the application because ends of justice demand so. He had in support of his arguments, the provisions of sections 68 and 95 of the CPC. The two sections are quoted below for ease of reference:

> 95. Nothing in this Code shall be deemed to limit or otherwise affect the inherent *power of the Court* to make such orders as may be necessary *for the ends of justice or to prevent* abuse of the process of the Court. [emphasis mine]
>
> 68 *In order to prevent the ends of justice from being defeated* the Court may, subject to any rules in that behalf- (e) make such other interlocutory orders as may appear to the Court to be just and convenient. [emphasis mine]

Mr. Rugaimukamu's submission was that the application should be refused because the applicant had not shown sufficient cause for delay, relying on Order 9 rule (7) of the Civil Procedure Code, which provides that:

> Where the Court has adjourned the hearing of the suit *ex parte* and the defendant, at or before such hearing, *appears and assigns good cause for his previous non-appearance*, he may.... be heard in answer to the suit as if he had appeared on the day fixed for his appearance. [Emphasis mine]

I should first point out that the law (Order 9 Rule (6) and (7) does not mandate the Court to proceed *ex-parte* in every instance the defendant though duly served fails to appear, as in my opinion rightly observed by B. D. Chipeta, J., in his Treatise, **Civil Procedure in Tanzania: A Student's Manual,** on the subject of "Consequences

of non appearance of the defendant," at page 127. He notes that even where the defendant duly served fails to appear, "*the Court may refuse to proceed ex-parte and may adjourn the hearing to another date to be fixed by it if, in the Court's opinion, it would be in the interest of justice to so.*" That is in fact what I had in mind on 16 May 2006 when I refused the plaintiff's prayer to proceed *ex-parte* against the first defendant. On 4 July 2006 when the applicant/first defendant turned up, the case was fixed for mention not hearing; admittedly with the order for *ex-parte* proof against the applicant still standing – a situation I believe envisaged under Order 9 rule 7.

Turning to the issue for decision in light of what is stated above; it can be summed up as follows: Whether the application should be granted or refused for reasons submitted by Mr. Galati or those submitted by Mr. Rugaimukamu? I shall begin with the latter part of the issue, namely whether the defendants have shown 'good cause'.

In my considered opinion, there are no hard and fast rules as to what amounts to good cause, the answer depends on peculiar circumstances of each case. In the present case, the defendant is a non legal person, it acts through its officers. The responsible officer died either before taking action (it is not reasonable to believe nor reasons to suggest that the defendant would lie on this fact), or he took action but with his superior officer now unconscious, it is difficult to ascertain the true state of affairs. But the defendant showed diligence – taking prompt action after becoming aware of the case from the Court cause list; and taking prompt action to engage counsel.

That background and the diligent steps taken by the defendant's officers, particularly being officers of a public firm (with the cavalier attitude of some of its functionaries as we have come to know them); have to be considered when deciding the issue of what amounts to 'good cause'. Such facts can not be ignored in the name of observance of Court orders and procedures. After all as remarked times without number by this Court and the TCA – the highest Court of the land; such procedures are "handmaidens of justice". They are there to serve

ends of justice and not defeat them. All that considered I have no hesitation in findings that reasons advanced by *Mr. Galati* amount to good cause. I would therefore even on this ground alone, grant the application.

I will still however, consider Mr. Galati's submission. What end do the demands of justice in this case dictate? I am aware that Courts have for long now scored on inordinate delay of cases caused by:

> ....Careless acts of parties or their counsel. No party...will ever be allowed to ignore the command of this Court.... Once a matter is set for a certain day and time, then it should be heard... Any other approach would render the Court process into ridicule....

As observed by Mfalila, J., as he then was, in *Ally Hussein Masunga v. Msingwa Abdallah Kibuzi* (1), cited with approval by Masanche, J., in (PC) Civil Appeal 1/2000 (also High Court, Tabora Registry – unreported), and the Tanzania Court of Appeal on the same subject in a judgment by the late Mwakasendo, JA. in *Amratlal Damodar v. B. Jariwalla* (2):

> (i) *a Court of trial has a duty* not only to follow the rules of procedure but also to exercise some firm control over the proceedings before it and, if need be, **to** *impose and enforce a timetable for litigation* [emphasis mine].

That Court also observed further that:

> Litigation is the resolution of civil contention by methods preferable to violence. But... the rule of law is not to be equated with a reign of litigiousness.... Moreover dilatory procedure may defeat the very purpose of the judicial process, namely to vouchsafe justice, since if litigation is prolonged, not only is there waste of time and money and moral energy, but circumstances may change in such a way that what would have been at the outset a just conclusion is in the end no longer so. Finally, delay will make it more difficult for the legal procedures themselves to vouchsafe a just conclusion – evidence may have disappeared and recollection become increasingly unreliable... *speedy rough justice will, therefore, generally be better justice that justice worn smooth and fragile with the passage of years.* Citing Lord Simon in *Central Asbestos Co. Ltd v Dodd* [1972] 2 All ER at page 1153 [emphasis mine].

That is only a part of the story of the Courts endevour in pursuit of justice. That other part is ably stated by Chipeta, J., in *Petro Bujiji v. Daljeeet Singh Diloo t/a Dodoma Auto Panel Works* (3), when considering a more serious case involving application by a defendant to set aside a judgment entered *ex-parte*. He observed that:

> It has been held on more occasions than one that it is preferable that suits must be determined on the merits in the absence of any evidence that a party is trying to obstruct or delay the course of justice or is indigiligent or otherwise acting *mala fide.* To deny a subject the right to a hearing should be the last resort of a Court.

In the present application, there was no evidence to suggest that the defendant was behaving in any manner described above; on the contrary, the defendant acted promptly indicating a desire to see that justice prevails by having the matter determined *inter partes*. The plaintiff will suffer no harm which can not be adequately compensated if the application is granted and both parties will have an equal chance to be heard on the claim. It is precisely for these kinds of situations that the Court is given inherent powers for ends of justice under the sections cited above. In view of that, I have no hesitation in agreeing with Mr. Galati that, it is in the interest of justice that the defendant's application be granted.

In other words, for yet that reason, I grant the first defendant's application; permit them to enter appearance and proceed in the matter according to law. I make no order as to costs.

DR. GABRIEL MICHAEL MUHAGAMA *v.* SALUM ABASS SALUM AND TWO OTHERS

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Mroso, Nsekela and Msoffe, JJA)

CIVIL APPEAL No. 86 OF 2006

(From the Judgment and Decree of the High Court of Zanzibar at Vuga, Mbarouk, J., dated 1 March 2006, in Civil Appeal number 36 of 2005)

Civil Practice and Procedure – Decrees – Decree accompanying appeal to the High Court – Decree not signed by the magistrate who passed it – Whether there was a proper appeal before the High Court.

Civil Practice and Procedure – Decrees – Signing a decree – Who may sign decree – Whether the definition of judge for purposes of signing a decree includes a Regional Magistrate – Order XXIII Rule 7 of the Civil Procedure Decree.

Civil Practice and Procedure – Appeals – Appeal to the High Court accompanied by an invalid decree – Whether the Court of Appeal may entertain an appeal from the decision of the High Court on an appeal that was accompanied by an invalid decree.

Statute – Interpretation of statutes – Meaning of judge – Whether meaning of judge includes a Regional Magistrate – Order XXIII Rule 7 of the Civil Procedure Decree.

The respondent filed an appeal to the High Court against the decision of a Regional magistrates Court. The decree, the subject of the appeal was passed by a Regional magistrate, Mr. Kazi, but was not signed by him. The High Court allowed the appeal. The appellant appealed to the Court of Appeal, which then considered whether or not there was a proper appeal before the High Court, whether a magistrate is a judge within the meaning of the Civil Procedure Decree, and whether or not it could entertain the appeal before it.

Held: (1) The appeal to the High Court was incompetent for want of a valid decree;

(2) Since under section 2 of the Civil Procedure Decree a Subordinate Court is a Civil Court, the "judge" mentioned under Rule 7 of Order XXIII of the Decree includes or covers a Regional magistrate sitting as a presiding officer of the Civil Court in question, Mr. Kazi was in this sense a "judge" for purposes of the said Rule 7;

(3) Under the said Rule 7 the "judge", in this case Mr. Kazi, was required to sign the decree because he was the one who passed it;

(4) Since the appeal to the High Court was based on an invalid decree and hence incompetent, this appeal is also incompetent because it has no leg to stand on;

(5) This appeal is thus a nullity and it is struck out along with proceedings in the High Court.

Order accordingly

Cases referred to:

(1) *Rashid Abdullah Rashid El Sinani and Another v. Mussa Haji Kombo and Another,* Civil Appeal number 103 of 1998 (unreported)

(2) *Robert John Mugo (Administrator of the Estate of the Late John Mugo Maina) v. Adam Mollel,* Civil Appeal number 2 of 1990 (unreported)

(3) *Dr. Masumbuko R.M. Lamwai v. Venance Francis Ngula and another,* Civil Appeal number 56 of 1997 (unreported)

(4) *Dr. Fortunatus Lwanyantika Masha v. Dr. William Shija and another,* Civil Appeal number 43 of 1996 (unreported)

Statutory provisions referred to:

(1) Civil Procedure Decree, Chapter 8, section 2, Order XXIII Rule 7, Order 46 Rule 35(4)

(2) The Constitution of Zanzibar, Article 134(1)

(3) The Magistrates' Courts Act, 1985

(4) The Interpretation Decree, Chapter 1, section 2(1)

(5) The Civil Procedure Code, 1966, Order XXXIX Rule 35(4)

Mr. Mbwezeleni and *Mr. Mnkonje*, for the appellant

JUDGMENT OF THE COURT

(Dated 17 November 2006)

Msoffe, JA: This is an appeal from the judgment and decree of the High Court of Zanzibar (Mbarouk, J.) dated the 1 March 2006 in Civil Appeal number 36 of 2005 allowing the first respondent's appeal thereto.

Briefly, in the District Court of Zanzibar at Mwanakwerekwe the appellant sued the third respondent for demolition of a building structure (hereinafter the structure) which, he claimed, the third respondent built on his piece of land. After a trial a decision was given in favour of the appellant on 20 July 2004. The third respondent did not appeal against the decision. Thereafter, the appellant proceeded to execute the decree and the structure was accordingly demolished on 10 December 2004 or thereabout. At the same time the first respondent who was not a party to the proceedings in the District Court claimed that he built the structure on a piece of land belonging to him. However, he did not file objection proceedings in the said Court. Instead, he filed a suit in the regional magistrate's Court at Vuga, Zanzibar, against the appellant, the second and third respondents, claiming a sum of TZS. 12 000 000 being loss incurred for the demolition of the structure. In a judgment delivered on 29 June 2005 the Court (Kazi, RM) dismissed the suit thereby holding that the land on which the structure was built belonged to the appellant. A decree was accordingly extracted, dated 29 June 2005, and signed by Mrs. Rabia Hussein Mohamed, a regional magistrate. Dissatisfied, the first respondent preferred an appeal to the High Court of Zanzibar. The High Court allowed the appeal holding that the first respondent built the structure on a piece of land belonging to him. The appellant is dissatisfied, hence this appeal. Mr. Mbwezeleni and Mr. Mnkonje from Zanzibar Law Chambers advocated for him. The respondents appeared in person(s).

As already observed, the decree the subject of the appeal to the High Court was not signed by the regional magistrate who passed it. Hence, at the hearing of the appeal the following issue was raised. Whether or not in the absence of a signature in the decree by the regional magistrate who passed it there was a proper appeal to the High Court. Mr. Mnkonje was of the firm view that under Order XXIII Rule 7 of the Civil Procedure Decree, Chapter 8 of the Laws of Zanzibar, it was mandatory that the decree in question be signed by the magistrate who passed it. In the absence of such signature there was no proper appeal to the High Court, he urged citing this Court's decision in *Rashid Abdullah Rashid El Sinani* and *another v. Mussa Haji Kombo and another* (1).

On the other hand, the respondents did not say much on the point. At best, their submission was that, as laymen, there wasn't much they could say on the point. They were of the view that the Court could decide the issue on the basis of the law available on the point.

We think it is pertinent to begin by quoting the provisions of Order XXIII Rule 7 of the Civil Procedure Decree. The Rule reads as follows:

> 7. The decree shall bear the date on which the judgment was pronounced, and, when the *Judge, or, in the High Court,* a Registrar has satisfied himself that the decree has been drawn up in accordance with the judgment, he *shall* sign the decree [emphasis added].

The question we ask ourselves here is whether the judge envisaged under the above provision covers a Regional magistrate.

Article 134(1) of the Constitution of Zanzibar, 1984 provides a definition of a judge. It reads:

> "Jaji" maana yake ni Jaji wa Mahakama Kuu na linajumuisha Kaimu Jaji.

The High Court Act number 2 of 1985 does not define a judge or a Magistrate.

Section 18(1) of the Magistrates' Court Act number 6 of 1985 establishes a Regional magistrates' Court in every Region of Zanzibar. Under section 2 of this Act a Magistrate is defined as follows:

> "Magistrate" includes a Primary Court Magistrate, District Court Magistrate, resident magistrate, a civil magistrate and a honorary magistrate.

It seems to us here that a resident magistrate and a regional magistrate in the context of the Act refer to one and the same person.

The Interpretation Decree, Chapter 1 of the Laws of Zanzibar, also defines a magistrate. The definition under section 2(1) thereto reads:

> "Magistrate" means a person or persons duly appointed to hold a Subordinate Court.

We wish to point here that we have no doubt in our minds that the Regional magistrates' Court at Vuga is a Subordinate Court.

It follows that in the light of the Constitution of Zanzibar, 1984, The Magistrates' Court Act 1985 and the Interpretation Decree there are clear and distinct definitions of a judge and a magistrate. In our view, to put it very simply, the import of the above definitions underscores the fact that a judge sits in the High Court while a magistrate sits in a Subordinate Court. If so, the question we pose here is this: Would it then be fair to say that the word "judge" under Order XXIII Rule 7 of the Civil Procedure Decree covers a Regional magistrate?

In our considered opinion, the answer to the above question is to be found in the Decree itself. Section 2 of the Decree gives, *inter alia,* the following definitions:

> "Court", *"Civil Court"*, the "Courts" and Court of justice" mean the High Court *and any Subordinate Court thereto* other than a District Court established under the provisions of the Courts Decree or the British Subordinate Courts Order. [emphasis supplied]
>
> "Judge" means *the presiding officer of a Civil Court.* [emphasis supplied]

In the light of the above definitions it seems to us therefore, that since a Subordinate Court is a Civil Court the "judge" mentioned under Rule 7 above includes or covers a Regional magistrate sitting as a presiding officer of the Civil Court in question. In this sense Mr. Kazi, was a "judge" for purposes of Rule 7.

Our view above is further fortified by the scheme of other provisions of the Decree. For example, Rule 4 of Order XXIII reads in part as follows:

> In any case *before a Subordinate Court the judge* may... [emphasis supplied]

In the same vein, Rule 5 of the same order also provides:

> In any case *before a Subordinate Court the judge* may pronounce... [emphasis supplied]

Having said so, the question is whether it was proper for a magistrate other than Mr. Kazi to sign the decree in Civil Case number 2 of 2005 which was the subject of the appeal to the High Court. Our answer to the question poses no difficulty. The decree was, no doubt, passed by the Regional magistrate's Court of Vuga in exercise of its original jurisdiction. Therefore, under Rule 7 above the "judge" (Mr. Kazi, RM) was required to sign the decree because he was the one who passed it. After all, the above Rule is couched in mandatory terms! We may add here that there was no room either, for invoking the provisions of Rule 8 of Order XXIII because there is no evidence that Mr. Kazi had vacated office at the time the invalid decree was signed by Mrs. Rabia Hussein Mohamed.

For the above reason, it follows that the appeal to the High Court was incompetent for want of a valid decree. The question is what happens to an incompetent appeal?

In *Robert John Mugo* (*Administrator of the Estate of the Late John Mugo Maina*) *v. Adam Mollel* (2) a decree in appeal was signed by a District registrar instead of the judge who passed it, as required under Order 39 Rule (4) of the Civil Procedure Code, 1966 (which

is *in pari materia* with Order 46 Rule 35(4) of the Civil Procedure Decree). The Court stated:

> We agree ... that a decree in appeal which is not signed by a judge as required by Order 39 Rule 35(4) invalidates a decree ....
>
> Therefore, for the reasons stated above, we are bound to sustain the preliminary objection made by counsel for the respondent .... With that end in view, we hereby direct that the appeal be struck out from the register under Rule 82 with costs. ...

In the case of *Rashid Abdullah Rashid El Sinani* (1) this Court, citing the cases of *Robert John Mugo, Dr. Masumbuko R.M. Lamwai v. Venance Francis Ngula and another* (3) and *Dr. Fortunatus Lwanyantika Masha v. Dr. William Shija and another* (4) held that there is no difference between extracting an invalid decree, as was the case in the appeal to the High Court in this matter, and failure to extract a valid decree. In all such cases the appeal is incompetent and is struck out.

So what happens to this appeal and the appeal to the High Court, the subject of this appeal? In fairness to the appellant, under normal circumstances this would otherwise be a competent appeal because it is based on a properly extracted decree of the High Court.

However, since the appeal to the High Court was based on an invalid decree and hence incompetent, it will follow that this appeal is also incompetent because it has no leg to stand on. Therefore, there is no room for us to determine the appeal on merit. Thus, we declare it a nullity and strike out the proceedings before the High Court. In similar vein, we strike out the appeal to this Court. We make no order as to costs.

If the first respondent wishes, he is still free to pursue an appeal to the High Court by filing an application for enlargement of time to file a Notice of Appeal. He can do so after obtaining a valid decree of the Regional magistrate's Court at Vuga.

JAPAN INTERNATIONAL COOPERATION AGENCY (JICA) *v.* KHAKI COMPLEX LIMITED

COURT OF APPEAL OF TANZANIA AT DAR ES SALAAM

(Mroso, Nsekela and Kaji, JJA)

CIVIL APPEAL No. 107 OF 2004

(From the Judgment and Decree of the High Court of Tanzania, Commercial Division, at Dar es Salaam, Dr. Bwana, J., dated 31 March 2004, in Commercial Case number 45 of 2003)

Civil Practice and Procedure – Documents not admitted in evidence – Documentary exhibits admitted in evidence but not forming part of the record of the suit – Whether reliance on the said evidence occasioned miscarriage of justice – Order XIII Rule 7 of the Civil Procedure Code, 1966.

The appellant was a tenant of the respondent; the last such tenancy relationship expired on the 31 March 2001. The appellant contended that after the expiry of this period, the parties did not enter into an agreement under which the respondent was to construct a building for leasing to the appellant, the subject matter of this appeal. The Trial Court found that there was such an agreement and the appellant was in breach of the terms and conditions thereof. In making this finding, the Trial Court relied on exhibits which were admitted in evidence but without being so recorded. The Trial Court condemned the appellant to pay to the respondent damages for breach of contract. On appeal.

Held: (i) It is evident from Rule 7(1) of the Civil Procedure Code that a document which has been admitted in evidence shall form part of the record of the suit;

(ii) There is no denying that except for Exhibits P1 and P2, the remaining documents which were "baptized" as exhibits were not part of the record of the suit;

(iii) This Court cannot relax the application of Order XIII Rule 7(1) that a document which is not admitted in evidence cannot be treated as forming part of the record although it is found amongst the papers on record;

(iv) The inevitable conclusion is that the evidence properly before the Trial Court did not justify the learned judge's affirmative answers to the first and second issues before him.

Appeal allowed

Cases referred to:

(1) *Courtney and Fairbairn Ltd v. Tolaini Bros (Hotels) Ltd.* (1975) 1 All ER 716

(2) *Cooper Motor Corporation Ltd v. Moshi/Arusha Occupational Service* [1990] T.L.R. 96

(3) *Dinkerrai Ramkrishnani Pandya v. R* [1957] EA 336

(4) *Peters v. Sunday Post Limited* [1958] EA 424

(5) *Watt v. Thomas* [1947] AC 484

(6) *S.M. James and Another v. Dr. Abdul Khair,* AIR 1961 P. 242

Statutory provisions referred to:

(1) Civil Procedure Code, 1966 Order XIII rules 4(1) and 7(1) and (2)

Mr. Mujulizi for the appellant

Dr. Lamwai for the respondent

JUDGMENT OF THE COURT

(Dated 17 July 2006)

Nsekela, JA: The appellant, Japan International Co-operation Agency, was a tenant of the Khaki Complex Limited, the respondent, the last such tenancy relationship expired on the 31 March 2001. The appellant contended that after the expiry of this period, the parties did not enter into an agreement under which the respondent was to construct a building for leasing to the appellant, the subject matter of this appeal. The Trial Court found that there was such an agreement and the appellant was in breach of the terms and conditions thereof and

so condemned the appellant to pay to the respondent USD 300 000-00 being damages for breach of contract. Aggrieved by the decision, the appellant has now lodged this appeal challenging the decision of the Court below.

The appellant, through its learned advocates, filed a ten-point Memorandum of Appeal, namely:

1. The learned trial judge erred in law and fact in holding that there was a construction and lease agreement between the appellant and the respondent.
2. Having found that there was a construction and lease agreement between the appellant and the respondent, the learned trial judge erred in law and fact in holding that the appellant was in breach of such agreement.
3. The trial judge erred in law and fact in having found that there were delays on part of the respondent in the completion of the building subject of the contract in holding that the appellant was in breach of the said contract when it revoked/cancelled the intention to lease the building.
4. The learned trial judge erred in law and fact in holding that the respondent's delays in completing of the premises were partly caused by the appellant.
5. The trial judge misconstrued the facts in holding that the appellant had granted extension of time to the respondent to complete the construction of the building in March 2003.
6. The learned trial judge erred in law in holding that the appellant was estopped from denying the grant of further extension to the respondent.
7. The trial judge erred in law and fact in holding that the appellant did not give a reasonable notice when it cancelled the intention to lease the building. The learned trial judge erred in fact in holding that the building was built on the specification and designs of the appellant

and that the respondent's failure to get other tenants was due to such specification.

8. The learned trial judge erred in law in relying solely with oral evidence of the plaintiff in holding that the appellant's alleged demands for change contributed to the delays.

9. The learned trial judge erred in fact and law in assessing the quantum of damages leading to excessive damages.

10. The evidence on the record does not support the findings of the learned judge.

At the hearing of the appeal, Mr. Mujulizi, learned advocate, represented the appellant and Dr. Lamwai, learned advocate, represented the respondent.

Mr. Mujulizi submitted that the central issue for determination was whether the agreement to enter into a future tenancy agreement was enforceable in law. It was an agreement to negotiate a future agreement contingent upon the availability of premises satisfactory to the appellant. He added that the terms and conditions of the proposed agreement were uncertain and that a contract to negotiate is unknown in law, citing *Courtney and Fairbairn Ltd. v. Tolaini Bros (Hotels) Ltd* (1). Furthermore, the learned advocate submitted that the appellant was not in breach of the purported agreement. The parties had agreed that the premises would be ready for occupation on a specific day which had passed without the handing over of the premises to the appellant. The appellants were not responsible for the delays in the completion of the building and that from the appellant's standpoint, time was of the essence since the appellants were urgently in need of the premises. Under the circumstances, the appellants were justified to terminate the purported agreement. The notice to terminate was reasonable under the circumstances.

The learned advocate disputed the evidence of PW1 and PW2 to the effect that the appellant's officials constantly made changes to exhibit P1 which was itself of doubtful authenticity. He submitted that there was no evidence as to what were the original specifications

of the building. In addition DW1, DW2 and DW3 disputed the evidence on the delays but the learned judge did not explain why he disagreed with the evidence of these witnesses. As regards the assessment of damages, Mr. Mujulizi submitted that the trial judge erred in the assessment of damages. The damages were based on rent on a lease agreement which was non-existent. He questioned the propriety of the quantum of damages awarded and cited the case of *Cooper Motor Corporation Ltd. v. Moshi/Arusha Occupational Services* (2) at page 100 G.

Dr. Lwamwai, learned advocate for the respondent submitted that there was a lawful agreement between the appellant and the respondent. This agreement was partly oral, partly by conduct and partly in writing. The cornerstone of his contention was Exhibit P2, which the learned advocate called an offer from the appellant to the respondent to construct a building. The terms and conditions of the said agreement were allegedly elaborated in paragraphs 7(b); (c); and (e) of the appellant's written statement of defence. He added that the respondent accepted the offer as indicated in Exhibit 8 to the written statement of defence. Soon thereafter, he continued, the construction of the bulding commenced and the appellant did not deny that construction of the building was progressing. The appellant's complaint was to the effect that the agreed specifications, standards and deadlines were not met.

As regards the exhibits, Dr. Lamwai submitted that they were admitted in evidence without being so recorded. However he was of the opinion that the oral evidence adduced during the trial was enough to show that there was an offer and acceptance by conduct. He added that there was no law forbidding reliance on oral evidence. What was important was the credibility of the evidence and in the absence of documentary evidence, oral evidence was just as good. He submitted that in view of the oral evidence on the record, the appellant was estopped from denying its truthfulness.

The thrust of all the grounds of appeal is whether or not there was evidence on the record to warrant the Trial Court's findings that

there was an agreement between the appellant and the respondent regarding the construction of the Khaki Building Complex for leasing to the appellant. This being a first appeal, the appellant is entitled to have this Court's own consideration and views of the evidence as a whole and its decision thereon. (See: *Dinkerrai Ramkrishnani Pandya v. R* (3). In the case of *Peters v. Sunday Post Limited* (4) Sir Kenneth O'Connor, P. of the then Court of Appeal for Eastern Africa after considering *Watt v. Thomas* (5) stated as follows at page 429:

> It is a strong thing for an appellate Court to differ from the finding on a question of fact, of the judge who tried the case, and who has had the advantage of seeing and hearing the witnesses. An appellate Court has indeed, jurisdiction to review the evidence in order to determine whether the conclusion originally reached upon that evidence should stand. But this is a jurisdiction which should be exercised with caution: it is not enough that the appellate Court itself have come to a different conclusion.

Mr. Mujulizi attacked the learned judge's conclusions on a number of fronts. As we see it however, the core argument revolves around the learned judge's treatment of the documentary evidence without such exhibits being admitted in evidence so as to form part of the record of the suit. As regards the first issue during the trial, the learned judge stated as follows:

> My considered view is that there was a lawful agreement freely entered into by the parties and capable of being enforced. This is so because, first, in the discussions held between the parties and the agreement reached to construct a new block. That is uncontroverted. Second is Exh. D7, which confirmed the discussions and the kind of building to be constructed i.e. "with floors and facilities approved by us", the time frame and the future rent. Third is the evidence that construction work started after Exh. D7 was received, the delays and subsequent correspondence notwithstanding. Fourth is the "supervision" and follow ups by DW3 with suggestions for improvements of certain things as shown in Exhibit P.3 All the foregoing cannot be said that there was no agreement even though not written.

The reasons advanced by the learned judge in answering the first issue framed in the affirmative, could not be arrived at without a thorough analysis of the documents he referred to. Such questions as the meaning to be attributed to Exhibit P2, that is whether or not it was an offer from the appellant or an invitation to treat; the question of delays and extensions thereof in the construction and completion of the building, could not be answered without the documents purportedly before the Trial Court. The conclusions reached by the learned judge, right or wrong, depended largely, if not wholly, on the contents of documents which were not produced and admitted in evidence. We find the same problem when the learned judge examined the second issue. He stated as follows:

> I have carefully considered the issues of delay, quality and rent in relation to whether either party breached the agreement. Truly there were delays in completion of the work. Various reasons are given for or against. What is of essence is that each time a deadline was not met there was communication *inter partes* and then one sees a subsequent complaint against the same issue. Impliedly it means that by each of the five or so deadlines, the parties reached a fresh agreement. Therefore, the defendant is deemed to have agreed to the extension of time by conduct.

We are constrained to repeat that the answer to the second issue framed also depended on documents which were not produced and admitted in evidence. The question is, was the learned judge right in relying on such documents as he did? This takes us to Order XIII Rules 4(1) and 7(1) and (2) which is in the following terms.

> 4(1) Subject to the provisions of the next sub-rule, there shall be endorsed on every document which has been admitted in evidence in the suit the following particulars, namely:
>
> (a) the number and title of the suit;
>
> (b) the name of the person producing the document;
>
> (c) the date on which it was produced;
>
> (d) a statement of its having been so admitted;

and the endorsement shall be signed or initialed by the judge or magistrate.

7(1) *Every document which has been admitted in evidence,* or a copy thereof where a copy has been substituted for the original under Rule 5, *shall form part of the record of the suit* [emphasis added].

(2) Documents not admitted in evidence shall not form part of the record and shall be returned to the persons respectively producing them.

It is evident from Rule 7(1) that a document which has been admitted in evidence shall form part of the record of the suit. The record shows that only Exhibits P1 and P2 were admitted in evidence. The rest of the exhibits referred to in the evidence and in the judgment were not so admitted. What then are the consequences? In India, the Patna High Court in the case of *S.M. James and Another v. Dr. Abdul Khair* (6) had occasion to construe Order 13 Rule 7 of the Civil Procedure Code, which is in *pari materia* with our Order XIII Rule 7(1) and (2) and stated as follows:

> From Rule 7 above quoted, it is plain that documents admitted in evidence are the only documents that can legally be on the record; and, other documents cannot be on record of the suit. The language of Rule 7 shows that the document must be either placed on the record or returned to the person producing it. There is no alternative. Rule 7(2) is explicit, and therefore, a document not having been admitted in evidence, cannot be treated as forming part of "the record of the suit" even though, in fact, it is found amongst the papers of the record.

There is no denying that except for Exhibits P1 and P2, the remaining documents which were "baptized" as exhibits were not part of the record of the suit. This Court cannot relax the application of Order XIII Rule 7(1) that a document which is not admitted in evidence cannot be treated as forming part of the record although it is found amongst the papers on record. The document must be either placed on the record or returned to the person producing it. Dr. Lamwai, with deep conviction submitted that even though the documents are

not considered by the Court, yet there is sufficient oral evidence to entitle this Court to affirm the decision. With the greatest respect to the learned advocate, the documents are essential to the case and without them the trial judge could not have arrived at the decision he did. The inevitable conclusion is that the evidence properly before the Trial Court did not justify the learned judge's affirmative answers to the first and second issues before him.

We have seriously considered what course of action we should take under the circumstances. This is not a case of improper admission or rejection of evidence. The documents in question somehow were not admitted in evidence. This was a substantial error during the trial which amounted to a miscarriage of justice.

In the result, we allow the appeal and order a re-trial before another judge. Each party to bear its own costs as in this Court and the Court below.

MUSANGA NG'ANDWA v. CHIEF JAPHET WANZAGI AND EIGHT OTHERS

HIGH COURT OF TANZANIA
AT MWANZA
(Rweyemamu, J)

CIVIL CASE No. 9 OF 2005

Civil Practice and Procedure – Pleadings – Disclosure of cause of action – Whether pleadings show a cause of action.

Civil Practice and Procedure – Cause of action – Meaning and content of "cause of action" – Cause of action defined.

Civil Practice and Procedure – Preliminary objection – Matters that may be disposed of by preliminary objection – Issue based on unascertained facts that need evidence to prove them – Whether it may be disposed of by preliminary objection.

The plaintiff presented a claim based in tort, alleging that the defendants had arranged a meeting of the District Security Committee for the purpose of defaming him and at which he was defamed as a witch. The District Commissioner was Chairman of the meeting. Apart from denying liability in their defences, all the defendants, save the seventh and eighth defendants, raised preliminary objections to the effect that the plaint disclosed no cause of action, and the third and fourth defendants added that the Notice to Sue the Government was not in accordance with the provisions of the Government Proceedings Act. Some of the objections were about *locus standi* of the defendants where they appeared to have had double capacities.

Held: (i) The expression preliminary objection has been used in our jurisdiction to refer to objection to the jurisdiction of the Court, a plea of limitation and the like; it contains a point of law which, if argued as a preliminary point, may dispose of the suit; a preliminary objection cannot be raised if any fact has to be ascertained, that is, it cannot be based on unascertained factual matters;

(ii) A cause of action means every fact which would be necessary for the plaintiff to prove in order to support his title to a decree; in other words, a cause of action is the sum total of those allegations upon which the right to relief claimed is founded;

(iii) In determining a cause of action, only the plaint together with anything attached should be looked at. The plaintiff is under no obligation to anticipate any special defence which might be available to the defendant.

(iv) The plaint in paragraphs 12 and 13 alleges that the first, second, fourth and fifth defendants convened a meeting to defame him and those facts are sufficient to found a case of tort of defamation; whether the allegations are sufficient to prove the claim or not is not the issue now and can only be known at the trial;

(v) As the preliminary objections were based on unascertained factual matters, they were not sustainable;

(vi) Whether the Notice under the provisions of the Government Proceedings Act was defective or not was an arguable issue; and so it was not one to be disposed of by way of preliminary objection.

Preliminary objections overruled

Cases referred to:

(1) *Mukisa Biscuit Manufacturing Co. Ltd. v. West End Distributors Ltd.* [1969] EA 696.

(2) *COTWU (T) OTTU Union and Another v. Hon. Iddi Simba, Minister of Industries and Trade and Seven Others,* [2002] T.L.R.

(3) *Mukubaganyi Mulumeo v. Tanzania Railways Corporation and Others*, Dar es Salaam High Court Civil Case number 300 of 1995, (unreported).

(4) *Hosea Mushumbusi and 49 Others v. The Chairman cum Secretary Kanyigo Secondary School D. Board,* High Court – Bukoba – Misc. Cause number 7 of 2005, (unreported).

(5) *Auto Garage and Others v. Motokov (number 3)* [1971] EA 514.

(6) *Jeraj Shariff & Co. v. Chotai Fancy Store,* [1960] EA 374

(7) *Byombalirwa v. Agency Maritime International (T) Ltd.*, [1983] T.L.R. 1

(8) *Read v. Brown,* (1989) 22 QBD 131

(9) *Cook v. Gill*, Law REP.8 C.P 107

Statutory provisions referred to:

(1) Civil Procedure Code Act, 1966.

(2) Government Proceedings Act, 1967 – as amended.

Mr. Outa for Plaintiff

Professor Mwaikusa for first and second defendants

Mr. Kakolaki and *Mr. Robert,* State Attorneys for third and fourth defendants

RULING

(Delivered 20 July 2006)

Rweyemamu, J: The plaintiff presented a claim against the 9 above named defendants, who have each resisted the claim in their filed Written Statement of Defense (WSD). In their defense, some have raised Preliminary Objections (PO) subject matter of this ruling. The PO (s) are as per content and order hereunder:

First and Second Defendants

(a) The plaintiff has no cause of action, and the plaint discloses no cause of action, against the first and second defendants; and

(b) The case is an abuse of the Court process as the relief prayed for therein is not sought for any acts and/or omissions in respect of which the plaint alleges anything against the first and second defendants.

Third and Fourth Defendants

(a) The suit is improperly before the Court for non compliance with section 6 of the Government Proceedings Act number 16 of 1967 as amended by Miscellaneous Amendment Act number 30 of 1994.

(b) That, the suit is bad in law for non disclosure of cause of action against the third and fourth defendants.

Fifth Defendant:

(a) That the suit is bad in law for non compliance with the provisions of the Government Proceedings Act, number 16 of 1967.

(b) That, the plaintiff has no cause of action against the fifth defendant.

Sixth and Ninth Defendants

(a) The plaint does not disclose any cause of action against then ninth defendant hence to make the sixth defendant vicarious liable for the ninth defendant's acts.

(b) The plaintiff failed to identify against whom he should enforce a claim of right. He does not know his alleged defendants; he is just gumbling.

(c) The plaint is incurably defective for violating the mandatory provisions of order VII of the Civil Procedure Code Act number 49 of 1966, as it is vague and contains extraneous and ambiguous matters thus embarrassing to the honourable Court and the defendants.

(d) The suit is bad in law for non compliance with the provisions of the Government Proceedings Act number 16 of 1867.

The seventh and eighth defendants have no preliminary objection.

The above preliminary objections in substance can be grouped under two categories; Category one covers the issue of non disclosure of cause of action under Order VII of the Civil Procedure Code (CPC). These include preliminary objection 1(a) and, by implication, 1(b), 3(b), 4(a) and by implication 4(b) and 4(c). The second category raises the issue of non compliance with the requirements of the Government Proceedings Acts, number 16 of 1967 as amended. These cover preliminary objection 2(a), 3(a) and 4(d). I will proceed to examine the preliminary objections in that order.

The plaintiff's counsel resisted the preliminary objections and raised counter preliminary objections in his submission. I will not deal with the plaintiff's counter preliminary objections because as rightly submitted by counsel for the 1st and second defendant, the same was raised for the first time in his submission, taking the opposite side by surprise.

To gain a better appreciation of parties' arguments for and against in respect of each issue, I find it expedient to begin by examining the meaning and use of term preliminary objection in civil procedure – to answer the question of what issues qualify to be raised as preliminary objections?

The term preliminary objection in our jurisdiction has been used as per rule established in *Mukisa Biscuit Manufacturing Co. Ltd v.*

West End Distributors Ltd. (6). In that case, Law, J.A., of the defunct Court of Appeal for East Africa giving examples of preliminary objection pointed to objection to Court, a plea of limitation and the like, He went on to observe that:

> a preliminary objection contains a point of law...and which if argued as a preliminary point may dispose of the suit.

And Newbold J.A. in the same continued that:

> .... a preliminary objection can not be raised if any fact has to be ascertained.

A "preliminary objection cannot be based on unascertained factual matters", said Kisanga, JA, in *COTWU (T) OTTU Union and another v. Hon. Iddi Simba, Minister of Industries and Trade and 7 Others* (2). Both authorities are cited by my brother Shangwa J. in *Mukubaganyi Mulumeo v. TRC and 2 others,* (3) which case I cited with approval in *Hosea Mushumbusi and 49 others v. The Chairman cum Secretary Kanyigo Secondary School D. Board* (4)

With that understanding of the term in mind, I turn to consider the issues raised and parties arguments thereto. I shall begin with the first category, the issue of cause of action. Again, that issue is best tackled by first answering the question; what constitutes a cause of action?

The term is not directly defined under the CPC but the answer is ably provided by parties' counsel who have referred me to useful sources-from legal treatise and decided cases. At the risk of making this ruling overly long I shall reproduce the major parts of their submissions, for each category beginning with the defendant's submissions followed by the plaintiff's response as per defendants grouping above.

On the issue of cause of action:

Professor Mwaikusa Counsel for first and second defendant submits *inter-alia* that:

> As to what exactly may constitute a cause of action, some commentaries on the Indian Code of Civil Procedure, whose relevant provisions are in *pari materia* with our CPC, may be referred to. According to P.C. Mogha, **The Law of Pleadings in India** (Eastern Law House, Calcutta 1989.
>
> The cause of action means every fact which will be necessary for the plaintiff to prove, if traversed, in order to support his right to the judgment .... Every such fact or circumstance which entitle the plaintiff to the relief claimed is a part of the 'cause of action.'

In the same work, at page 267, it is further stated:

> cause of action means every fact which would be necessary for the plaintiff to prove in order to support his title to a decree, in other words, it is a bundle of essential facts which it is necessary for the plaintiff to prove before he can succeed in the suit.

And in another work, N.S. Bindra's **Pleadings and Practice** (8 ed), Allahabad 1997), at page 221 it is stated:

> A cause of action is the sum total of all those allegations upon which the right to the relief claimed is founded. A plaintiff's cause of action is therefore, not only the right which he asserts but the infringement of it by the defendant.

Further commentaries are contained in Mulla: **The Code of Civil Procedure**, (16 ed) by Solil Paul and A. Srivastava (Butterworths), in which it is stated, Volume 1 at page 412:

> A cause of action is a bundle of facts which, taken with the law applicable gives the plaintiff a right to relief against the defendant. It put up such defence not because the plaint contains no such allegations against the two defendants. Instead, it alleges things that even if proved will not entitle the plaintiff to the decree he seeks.

Mr. Outa advocate for the plaintiff disagrees. According to him the preliminary objection does not meet the test in *Mukisa*, looking at the plaint as whole – "we submit that the plaint and its annextures disclose a cause of action against the 1st and the second defendants." In *Auto Garage and others v. Motokov* (5) at page 519 stated that:

> ...if a plaint shows that the plaintiff enjoyed a right, that the right has been violated and that the defendant is liable, then in my opinion, a cause

of action has been disclosed and *any omission or defect may be put right by amendment.*[emphasis mine]

As it was stated in *Jeraj Shariff and Co. v. Chotai Fancy Stores* (6) in determining a cause of action, plaint should be looked at together with anything attached to it, from our annexture 'B' to the plaint, that is at page 3 of Majira News Paper dated, 1 May 2004 reference is made to the first and second defendants as main spokesman in that meeting where the plaintiff was referred to as a witch. The learned counsel for the first and second defendants said nothing on annextures, therefore, we can say, ignored part of the pleadings. Had he taken the annextures into consideration, then he would have not said that the plaint does not disclose a cause of action. Part of *annexture B that shows that both the first and second defendants referred to the plaintiff as a witch in that meeting* [emphasis mine].

> ... the Court of Appeal of Tanzania in *John Byombalirwa v. Agency Maritime International (T) Ltd.* (7) held that the plaintiff is under no obligation to anticipate any special defence which might be available to the defendant. In the present case the first and second defendants are trying to raise a defence by construction and by leaving some words out, we say that the step has been taken prematurely... as the have said before the second ground of preliminary objection by the first and second defendants depends on the strength of ground number one then our submission on attack for ground number 1 applies. Further that ground number 2 depends on the facts of the case, therefore, not a preliminary objection. It should also be dismissed with cost.

Mr. Kakolaki and Mr Robert state attorneys for third and fourth dependants submit that:

> As it is, the Civil Procedure Code, Chapter 33 of R.E. 2002 does not define what is or what constitutes a cause of action. But generally it is understood that, a cause of action is the basis upon which the plaintiff's complaint arises. A cause of action arises when a right of the Plaintiff is breached or infringed upon as result or on account of some act or omission of the defendant.

An effort to define the term cause of action has been pursued by some authors as well as case laws. **Osborn in A Concise Law Dictionary,** (5 ed). London, Sweet and Maxwell, 1964 at page 63 defines cause of action to mean "the fact or combination of facts which give rise to a right of action."

Similarly, in the case of *Read v. Brown* (8) when quoting with approval the case of *Cook v. Gill* (9) cause of action was defined as follows:

> Every fact which would be necessary for the plaintiff to prove, if traversed, in order to support his right to the judgment of Court. It does not comprise every piece of evidence which is necessary to prove each fact, but *every fact which is necessary to be proved.* [emphasis supplied]

The learned state attorney admits that the liability of the fourth defendant arises vicariously from that of the third defendant, but goes on to argue that the acts complained of against the third defendant in paragraph 21 and 22 of the plaint, were done in his capacity as the Chairman of the Defence and Security Committee, (CDSC) not as the District Commissioner (DC), as such the plaint discloses no cause of action against the 3rd defendant as the DC. Consequently neither he nor the fourth defendant is liable.

Mr. Outa responds that:

> ...., as we stated earlier in this submission that a cause of action signifies that the plaintiff had a right and that right is violated by the defendant, we further humbly state that the plaint discloses a cause of action against the third and fourth defendants, Paragraph 11, 24 and 25 when read together disclose cause of action against thirddefendant for third defendant's failure to control the planned unlawful acts which he was aware of. The learned state attorney has tried to argue that the Chairman of Security and Defence Committe would have been the proper defendant but it will be borne out that to be a Chairman of the District Security and Defence Committee, one needs to be a District Commissioner first, *The post of District Security and Defence Committee chairman are just part of the duties of the District Commissioner therefore the two are inseparable.* [emphasis mine]

The fifth defendant submitted that as it is admitted in the plaint that when he attended the meeting on 30 April 2004 where the alleged acts/words were uttered, he was not acting on individual capacity but as Chairman of the CDSC, no cause of action is disclosed against him as an individual.

Mr. Outa responds that:

> ... the second ground of objection by the fifth defendant is also misconceived. He alleges that the plaint discloses no cause of action against him individually.
>
> ... paragraph *20 of the plaint refers to the fifth defendant in both his official capacity as a Musoma District Commissioner and in his own name.* Under paragraph 22 of the plaint, it is stated that the act of arguing/inciting Butiama villagers to unlawfully warn the plaintiff is the cause of suing him in this personal capacity. *Inciting or encouraging people to do unlawful acts are not the duties of the Office of the District Commissioner, therefore, if he does them, he is taken to task in his* personal capacity as it is the case here. The issue whether those acts complained of are part of his office duties can only be examined by tendering evidence, therefore the issue is raised prematurely... [emphasis added]

The sixth and ninth defendants though represented by counsel, who were present when the date for filing written submissions was set for 27 Apri 2006, did not file any.

The issue for decision simply stated is; in light of the definition of the term preliminary objection as given earlier on above; and our understanding of the term **cause of action** based on cited authorities; whether the plaint discloses a cause of action in respect of the defendants or not? In my opinion, the question one has to answer is whether or not the preliminary objection is based on unascertained factual matters.

In respect of the first and second defendants, I find without hesitation that the decision depends on unascertained factual matters. The plaint in paragraphs 12 and 13 alleges that the first and second defendants are sued for **'convening meetings of villagers with intent to defame the plaintiff.'** The plaintiff claims those facts are sufficient to found

a case in tort of defamation. The defendants claim they constitute cause of action for a different tort. Whether they are sufficient to prove the claim or not is not the issue. What is; is that either way, more facts are needed to prove or disprove the claim, as can only be rightly adduced at trial. The same reasoning applies for the third, fourth and fifth defendants. The debatable issue is whether facts **adduced** in the plaint, in respect of each based on their participation in the village meeting (a fact none of the defendants denies), are sufficient to found a case in defamation. The plaintiff's assertion is that *"The post of District Security and Defence Committee Chairman are just part of the duties of the District Commissioner therefore the two are inseparable."*

As regards the fifth defendant another fact need ascertaining; namely whether or not the CDSC and DC is one and the same thing/ person and whether, he was at the meeting acting in his personal or official capacity; whether the post of DC and Chairman of CDSC are inseparable; whether facts adduced establish liability in either capacity; whether acts complained of are part of official duties; and whether publication of 'defamatory' words, spoken at the meeting which they attended is sufficient to establish a claim of defamation. In other words, I am deluding to the fact that the preliminary objection is based on unascertained factual matters, for that reason I find it unsustainable.

Issue Two – The Notice to Sue

The defendants' arguments in brief are that the notice was invalid-directed to the wrong party i.e. directed to the Attorney General instead of third defendant, (third and fourth defendant) and to the wrong party (copy given to fifthdefendant instead of the AG)-fifthdefendant – therefore it was invalid.

Mr. Outa responds that:

> .... Since there is a notice which was issued and the same was appended to the plaint as an annexture JLC 'D' valuation of the same at this juncture by the defendants amounts to a defence and discarding the evidence of

the plaintiff prematurely. Appropriateness of the notice amounts to weight to be put to it and it is a matter of evidence; therefore, in terms of *Mukisa's* case (1), it is not a preliminary objection on point of law.

The object of the Notice contemplated by section 80 of Civil Procedure Code is to give the concerned Government and Public Officer opportunity to consider the legal position and make amends or settle the claim if so advised without litigation. The Legislative intention behind that section is that public money and time should not be wasted on unnecessary litigation and the Government and the public officers should be given a reasonable opportunity to examine the claim made against them lest they should be drawn into avoidable litigation. The purpose of the law is advancement of justice. The provisions in sec. 80 are not intended to be used as booby traps against ignorant and illiterate persons. [emphasis added]

Again in the same book at page 911 it is stated:

Section 80 is not doubt imperative. Failure to serve notice complying with the requirements of the statute will entaill dismissal of the suit. But the notice must be reasonably construed. Any unimportant error or defect cannot be permitted to be treated as an excuse for defeating a just claim in considering whether the provisions of statute are complied with, the Court must take account the following matters in each case (1) whether the name, description and residence of the plaintiff are given so as to enable the authorities to identify the person serving the notice. (2) Whether the cause of action and the relief which the plaintiff claims are set out with sufficient particularity (3) whether a notice in writing has been delivered to or left at the office of the appropriate authority mentioned in the section, and (4) whether the suit is instituted after the expiration of two months next after the notice has been served, and the plaint contains a statement that the notice has been so delivered or left.

Mr. Outa concludes that; whether or not notice is defective, goes to appropriateness of notice and is therefore a matter of evidence, thus not a matter which can be appropriately raised as a preliminary objection.

I agree with counsel for the plaintiff. On the facts of this case; where notice was given and acted on; as per letter annexure JUC.D to the plaint; whether defect in form made the notice null and void, as to be basis of disposing of the suit is an arguable issue. It is not an issue to be disposed of by way of preliminary objection. I accordingly also dismiss the second preliminary objection. In the result, the preliminary objections of all the defendants are dismissed with costs.

GOODLUCK KYANDO *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT MBEYA

(Mroso, Nsekela and Msoffe, JJA)

CRIMINAL APPEAL No. 118 OF 2003

(From the Judgment of the High Court of Tanzania at Songea, Manento, J., dated 4 March 2003, in Criminal Sessions Case number 5 of 2001)

Criminal Law – Attempted rape – Sentence for attempted rape – Appropriate sentence to be imposed where the accused aged 16 years – sections 131(2)(a) and 132(1) of the Penal Code, Chapter16.

Statute – Interpretation of Statutes – Use of the word "shall" in a statutory provision – Whether the use of the word "shall" always means that the provision is mandatory – section 3(5) of the Children and Young Persons Act, Chapter 13.

Criminal Practice and Procedure – Trial – Juvenile trial – Juvenile trial not held in camera – Whether the trial is a nullity – section 3(5) of the Children and Young Persons Act, Chapter 13.

The appellant, aged sixteen years, was convicted of attempted rape and sentenced to 30 years imprisonment by the District Court. On appeal to the High Court against conviction and sentence, the sentence was reduced to 15 years imprisonment. In his second appeal to the Court of Appeal he appealed against sentence, and also challenged

the conviction on the basis that his trial was not held in camera in terms of section 3(5) of the Children and Young Persons Act.

Held: (i) Since section 131(2) of the Penal Code as amended by Act number 4 of 1998 introduced a distinction between boys and men, the same concept should be reflected in section 132 of the Penal Code by adopting a "purposive" approach in interpreting a statutory provision, whereby the accused being a first offender should be liable to corporal punishment only;

(ii) The use of the word "shall" does not necessarily mean that the provision in question is mandatory;

(iii) (*obiter*) Since the coming into force of the Interpretation of Laws Act, Chapter 1, on 1 September 2004, the Law on this point may change in view of section 53(2) of the Act.

Order accordingly

Cases referred to:

(1) *Director of Public Prosecutions v. Jaffari Mfaume Kawawa* [1981] T.L.R. 149

(2) *Woolmington v. Director of Public Prosecutions* [1935] AC 162

(3) *Fortunatus Masha v. William Shija and another* [1997] T.L.R. 41

(4) *Joseph Warioba v. Stephen Wassira and another* [1997] T.L.R. 272

(5) *Nothman v. London Borough of Barnest* [1978] I All ER 1243.

Statutory provisions referred to,

1. Penal Code, Chapter 16 sections 131 and 132.
2. Sexual Offences (Special Provisions) Act, number 4 of 1998.
3. Children and Young Persons Act, Chapter 13 section 3(5)
4. Criminal Procedure Act, Chapter 20 section 388(1)
5. Interpretation of Laws Act, Chapter 1 section 53(2)
6. Court of Appeal Rules 1979 Rule 76(3)

Mr. Boniface for the Republic

JUDGEMENT OF THE COURT

(Dated 21 August 2006)

Nsekela, JA: The appellant Goodluck Kyando, aged sixteen years, was convicted by the District Court of Songea of attempted rape contrary to sections 132(1) and 2(a) of the Penal Code as amended by the Sexual Offences Special Provision Act number 4 of 1998 and was sentenced to thirty (30) years imprisonment. On appeal to the High Court against conviction and sentence, the sentence was reduced to fifteen (15) years imprisonment. The appellant has now come before us on a second appeal and that being the position, only matters of law fall for Court consideration.

The appellant preferred four grounds of appeal. The first ground is that the sentence meted out to him was manifestly excessive; the second ground challenged the procedure adopted during the trial of not holding the trial in camera in terms of section 3(5) of the Children and Young Persons Act as amended by Act number 4 of 1998 thus rendering the trial null and void; in the third and fourth grounds, the appellant complained that the prosecution had failed to prove its case beyond all reasonable doubt.

At the hearing of the appeal, the appellant appeared in person unrepresented. He adopted the contents of the Memorandum of Appeal and had nothing useful to add. The respondent Republic had the services of Mr. Boniface, learned Senior State Attorney.

We propose to deal first with the third and fourth grounds of appeal. The evidence adduced in the Trial Court by PW1 showed that the appellant threatened the complainant PW1 for sexual purposes. The nature of the threats can be gleaned from this extract of her evidence. She stated:

> But when I went away about 3 paces from him only to find him has jumped on me and he held me on the neck. He then pulled me away from the road

> .... He then threw me down and one hand he held me on the neck in order that I could not shout for help. He prevented me from shouting out ....
>
> When the accused dropped me he made me face upward. He sat on my thighs while looking to see if any would be a passer-by ....

The appellant instead of challenging this devastating piece of evidence against him, opted not to cross-examine PW1.

Peter Murphy, the learned editor of **Blackstone's Criminal Practice** (1992) in the treatise at page 1870 stated that the object of cross-examination is:

> (i) to elicit from the witness evidence supporting the cross examining party's version of the facts in issue;
>
> (ii) to weaken or cast doubt upon the accuracy of the evidence given by the witness in chief;
>
> (iii) in appropriate circumstances, to impeach the witness credibility.

Without the benefit of cross-examination by the appellant, the testimony of the complainant PW1 stood unchallenged. At the close of the prosecution case, the Trial Court addressed the appellant in terms of section 231 of the Criminal Procedure Act, 1985 and his response was:

> I leave the matter in the hands of Court.

As stated before, this is a second appeal which originated from the District Court, Songea. Under such circumstances, this Court rarely interferes with concurrent findings of fact by Courts below. In the case of *Director of Public Prosecutions v. Jaffari Mfaume Kawawa* (1) at page 153, this Court stated as under:

> The next important point for consideration and decision in this case is whether it is proper for this Court to evaluate the evidence afresh and come to its own conclusions on matters of facts. This is a second appeal brought under the provisions of section 5(7) of the Appellate Jurisdiction Act, 1979. The appeal therefore lies to this Court only on a point or points of law. Obviously this position applies only where there are no misdirections or non-directions on the evidence by the first appellate Court. In cases where there are misdrections or non-directions on the evidence, a Court is entitled to look the relevant evidence and make its own findings of fact.

The trial District Court accepted the evidence of PW1 and PW2, a finding which was upheld by the High Court on first appeal. In order to reject the findings of fact by the Trial Court there must be strong and compelling reasons to do so particularly so when the High Court on first appeal, accepted such findings.

The appellant also complained that the police officer who conducted the investigation was not summoned to give evidence. That may well be so. This being a criminal case, the burden lies on the prosecution to establish the guilt of the appellant beyond all reasonable doubt. (See: *Woolmington v Director of Public Prosecutions* (2). This, in our view, is not dependent upon the number of witnesses called upon to testify. (See: section 143, Evidence Act, 1967). It is trite law that every witness is entitled to credence and must be believed and his testimony accepted unless there are good and cogent reasons for not believing a witness. The prosecution called three witnesses, PW1, PW2, and PW3 to prove its case. Their testimony was not challenged. What is important is the credibility and reliability of the evidence and not the number of witness called on to testify.

We now come to the second ground of appeal. The complaint was to the effect that the trial of the appellant was not conducted in terms of subsection 5 of section 3 of the Children and Young Persons Act. Under this provision of the law, the trial was to be conducted in camera but instead it was held in open Court. This non-compliance of the applicable procedure, vitiated the entire proceedings. Mr, Boniface, learned Senior State Attorney, readily conceded that the prescribed procedure was not complied with but submitted that such non-compliance did not occasion any injustice to the appellant and was curable under section 388(1) of the Criminal Procedure Act, 1985. Indeed sub-

section 5 of section 3 of the Children and Young Persons Act as amended by Act number 4 of 1998 provides as follows:

> (5) where a child of less than eighteen years of age is a witness, a victims (*sic*) an accused or co-accused in a case involving a sexual offence, the child shall be *tried* in *camera* and separately from the adult co-accused, or the evidence of the child shall be adduced in Proceedings conducted *in camera* [emphasis added].

It is not in dispute that the appellant who was then a child under the Children and Young Persons Act, should have had his trial conducted in camera as prescribed under the said Act. The preamble to the Sexual Offences Special provisions Act, 1998 is in the following terms:

> An Act to amend several written law, making special provisions in this laws with regard to sexual and other offences to further safeguard the personal integrity, dignity, liberty and security of women and children.

Thus the enactment of Act number 4 of 1998 was against this general consideration. The provisions of the Act were designed to safeguard the personal integrity, dignity, liberty and security of women and children. It is therefore not surprising that in sexual offences, under section 3(5) of the Children and Young Persons Act, such trials are to be conducted in camera so that children as defined under the Act are not, for instance, exposed to publicity which may inhibit a fair trial, subject them to fear stigma and the like. We do understand and appreciate these considerations and others that we have not mentioned. The problem still remains, in case section 3(5) of the Children and Young Persons Act has been contravened, should the trial be declared a nullity? Admittedly PW1, Theresia Kapinga, the victim of attempted rape, was covered by section 3(5) of the Children and Young Persons Act, and therefore the trial should have been conducted in camera. However she gave evidence in open Court. In what way was the appellant prejudiced? It is true that the word "shall" as has been used in section 3(5) referred to above, means that it is mandatory to comply with the said provision. This Court in the case of *Fortunatus Masha v. William Shija and another* (3) had occasion to construe the word

"shall" as used in Rule 76(3) of the Court of Appeal Rules, 1979 and stated as follows at page 43D;

> We think that the use of 'shall' does not in every case make the provision mandatory. Whether the use of that word has such effect will depend on the circumstances of each case.

This Court was of the view that the use of the word "shall" does not necessarily mean that the provision in question is mandatory. We are in respectful agreement with Mr. Boniface, learned senior State Attorney that the omission to conduct the trial in camera did not occasion a failure of justice to the appellant. The defect is curable under section 388(1) of the Criminal Procedure Act, 1985. We would like to point out however, that since the coming into force of the Interpretation of Laws Act, Chapter 1 on the 1 September 2004 vide Proclamation number 312 of 2004, the law on this point may change in view of section 53(2) which provides;

> (2) Where in any written law the word "shall" is used in conferring a function, such word shall be interpreted to mean that the function so conferred must be performed.

Lastly, we now come to first ground of appeal. We must admit that it has caused us considerable anxiety. The appellant challenged the sentence imposed upon him as being manifestly excessive. The District Court had sentenced the appellant to thirty (30) years imprisonment. On first appeal to the High Court (Manento, J.) as he then was, reduced the sentence to fifteen (15) years imprisonment. Sections 132(1), (2) and (3) of the Penal Code as replaced by Act number 4 of 1998 provides as under:

> (1) Any person who attempts to commit rape commits the offence of attempted rape, and except for the cases specified in subsection (3) is liable upon conviction to imprisonment for life, and in any case shall be liable to imprisonment for not less than thirty years with or without corporal punishment.

A person attempts to commit rape if, with intent to procure prohibited sexual intercourse with any girl or woman, he manifests his intention by:

(a) threatening the girl or woman for sexual purposes:

(b) being a person of authority or influence in relation to the girl or woman, applying any act of intimidation over her for sexual purposes;

(c) making any false representations to her for the purposes of obtaining her consent;

(d) representing himself as a husband of the girl or woman, and the girl or woman is put in a position where, but for the occurrence of anything independent of that person's will, she would be involuntarily carnally known.

(3) Where a person commits the offence of attempted rape by virtue of manifesting his intention in the manner specified in paragraph (c) or (d), he shall be liable to imprisonment for life and in any case for imprisonment of not less than ten years.

The appellant was convicted under section 132(1) and 2(a) of the Penal Code as replaced by Act number 4 of 1998. The High Court reduced the sentence of thirty (30) years imposed by the District Court to fifteen (15) years imprisonment. The appellant did not manifest his intention either under section 132(2)(c) or (d) which would have attracted a minimum sentence of ten years. Since the appellant was convicted under sections 132(1) and 2(a) of the Penal Code, the sentence imposed by the District Court was the correct one namely, (thirty years imprisonment.)

This is not the end of the matter. Section 131(1) and (2) of the Penal Code as replaced by Act number 4 of 1998 provides as follows

(1) Any person who commits rape is, except in the cases provided for in the renumbered subsection (2), liable to be punished with imprisonment for life, and in any case for imprisonment of not less than thirty

years with corporal punishment, and with fine, and shall in addition be ordered to pay compensation of an amount determined by the Court, to the person in respect of whom the offence was committed for the injuries caused to such person.

(2) Notwithstanding the provision of any law, *where the offence is committed by a boy who is of the age of eighteen years or less, he shall.* [emphasis added]

(a) *if a first offender, be sentenced to corporal punishment only;*

(b) if a second time offender, be sentenced to imprisonment for a term of twelve months with corporal punishment;

(c) if a third time and recidivist offender, he shall be sentenced to life imprisonment pursuant to subsection (1).

It is evident that from the number 4 of 1998, the punishment for both rape and attempted rape is a minimum sentence of thirty years imprisonment with or without corporal punishment. Under section 131(2)(a), in the case of rape committed by a boy who is eighteen years or less, if a first offender, the sentence will be corporal punishment only. There is no similar provision under section 132 which deals with attempted rape. The appellant herein was sixteen years old when he committed a lesser offence of attempted rape, yet the sentence is a minimum of thirty years imprisonment. A question we ask ourselves, is, was the omission of a comparable provision in section 132, deliberate on the part of the legislature? Its omission certainly leads to an absurd situation! A boy who commits rape under section 131(1) but is under the age of eighteen years is given a sentence of corporal punishment only. A counterpart who attempts to commit rape under sections 132(1) and (2)(a), like the present appellant, is condemned to a custodial minimum sentence of thirty years with or without corporal punishment. This is the anomally which prompted us to pose the question as to whether this was really the intention of the legislature. The language used by the legislature in enacting sections 132(1)

and (2) of the Penal Code as amended by Act number 4 of 1998 admits no ambiguity. In fact there is no comparable provision to section 131(2). Prior to the enactment of Act number 4 of 1998 sections 131 and 132 of the Penal Code were in the following terms:

> 131. Any person who commits the offence of rape is liable to be punished with imprisonment for life with or without corporal punishment.
>
> 132. Any person who attempted to commit rape is guilty of a felony, and is liable to imprisonment for life with or without corporal punishment.

The punishment for both rape and attempted rape was the same for all, men and boys under the age of eighteen years. Since section 131(2) of the Penal Code as amended by Act number 4 of 1998 introduced a distinction between boys and men, it is our considered view that the same concept should be reflected in section 132 of the Penal Code. With respect this we can do by adopting a "purposive" approach in interpreting a stututory provision. This Court endorsed such an approach while construing section 114 of the Elections Act in the case of *Joseph Warioba v. Stephen Wassira and Another* (4). The Court quoted with approval what Lord Denning, M.R. stated in the case of *Nothman v. London Borough of Barnest* (5) at page 1246g as follows:

> The literal method is now completely out of date. It has been replaced by the approach which Lord Diplock described as the 'purposive' approach. He said so in *Kammins Ballrooms Co. Ltd. v. Zenith Investments (Torguay) Ltd* and it was recommended by Sir David Renton and his colleagues in their valuable report entitled 'The Preparation of Legislation'.
>
> In all cases now in the interpretation of statutes we adopt such a construction as will 'promote the general legislative purpose underlying the provision.' It is no longer necessary for the judges to wring their hands and say: 'There is nothing we can do about it.' Whenever the strict interpretation of a statute gives rise to an absurd and unjust situation, the judges can and should use their good sense to remedy it – by reading words in if necessary – so as to do what Parliament would have done had they had the situation in mind.

In the result, we have decided to adopt a purposive approach in interpreting section 132(1) so as to remove the anomally referred to earlier. To achieve this result, the provisions of sections 131(2)(a); (b) and (c) should be inserted immediately below section 132(1) so that they are equally applicable to boys of the age of eighteen years or less who attempt to commit rape. In view of the glaringly unjust situation and many such boys may be suffering from this inadvertent lacuna in the law, we think this is the only way to promptly arrest the situation while awaiting Parliament to amend Act number 4 of 1998 as appropriate.

In the event, the appeal partly succeeds. We uphold the conviction, but quash and set aside the sentence of thirty years imprisonment imposed by the District Court. Under the purposive approach we have taken, the appellant should have been sentenced to suffer corporal punishment only. However, we have taken into account the fact that the appellant was convicted on the 12 June 2000 and we feel that the term of imprisonment which the appellant has served so far is more than the corporal punishment which would have been imposed on him. We substitute therefore a sentence that would result in the appellant's immediate release from custody unless otherwise lawfully held.

LUCAS KAPINGA AND TWO OTHERS *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT MBEYA

(Mroso, Nsekela and Msoffe, JJA)

CRIMINAL APPEAL No. 106 OF 2005

(From the Judgment of the High Court of Tanzania at Mbinga, Manento, J., dated 3 November 2003 in Criminal Sessions Case number 3 of 2002)

Evidence – Veracity of evidence – Prosecution key witness making contradictions in his evidence – Whether a Court may enter conviction for murder on the basis of such witness's evidence.

The first and second appellants and deceased were on 11 April 2001 at a funeral, at the home of Alanus Hyera, in Nakatai Lukarasi Village in Mbinga District. The third appellant was a resident of Mitamba who, on the material date, was in Nakatai Lukarasi attending the funeral. At a round 20:00hrs the deceased left the funeral place and set out to go to his home. Later the appellants also left and went in the same direction, and found the deceased lying on the way, fatally wounded. Meanwhile the prosecution witness, the only eye witness, walked from the opposite direction towards the scene of the crime and he saw the appellants lifting an old man, the deceased, up and down. During the trial the prosecution witness made contradicting statements in his evidence and he did not state whether he saw any weapons at the scene of the crime, while the post mortem report showed that the deceased suffered severe injuries on his body.

Held: (i) A prosecution witness who changes his story on an important aspect of the case is not a credible and truthful witness;

(ii) The conduct of the appellants as shown on record during and after the incident was not consistent with that of murderers.

Appeal allowed

Mr. Mbise for the appellants

Messrs. Manyanda and *Rwabuhanga* for the Republic

JUDGMENT OF THE COURT

(Dated 21 August 2006)

Msoffe, JA: The appellants were sentenced to death consequent upon their conviction of the murder of Galus Msekera Kapinga on 11 April 2001 at Nakatai Lukarasi village within Mbinga District in Ruvuma Region. Aggrieved, they preferred this appeal.

Mr. Mbise, learned advocate filed and argued two grounds of appeal on behalf of the appellants. In the first ground the complaint is that the trial judge erred in attaching undue weight to the testimony of PW1 Daniel District Komba, the key prosecution witness. In elaboration Mr. Mbise submitted that PW1 did not state categorically that he saw the appellants beating the deceased. Rather, the gist of the evidence of PW1, was that he saw the appellants lift the deceased up and down twice. In other words, according to Mr. Mbise, PW1 hesitated to say exactly that he saw the appellants beating the deceased to death. Mr. Mbise went on to urge that there were a number of contradictions in the evidence of PW1, notably that at one point he said he saw the 1st and 3rd appellants at the scene and only to change the version later and say that he did not see them.

As for the second ground of appeal, the main criticism is that the trial judge did not analyze the evidence as whole, Mr. Mbise contended that if the judge had considered the evidence as a whole, and particularly that of the defence, he would have come to the inevitable conclusion that the appellants' conduct during and after the incident was not consistent with that of murderers. He went on to submit that the appellants were all out to help the deceased on that fateful night as evidenced by the fact that they tried to use his own shirt in preventing him from further bleeding; and that they even sent one of their group i.e. the second appellant, to inform the deceased's relatives about the incident.

Messrs. Manyanda and Rwabuhanga learned State Attorneys appeared on behalf of the respondent Republic. Mr Rwabuhanga submitted in support of the appeal. In the process he made a submission in support of Mr. Mbise. In addition, he drew our attention to a number of other contradictions and shortcomings in the prosecution case which we do not have to mention or repeat here. It will suffice to say briefly that he did so in a further attempt at showing that the prosecution case was not established beyond reasonable doubt.

Before we discuss the points raised in the Memorandum of Appeal and the respective submissions made by learned counsel we think it is instructive to give a brief account of the case which was before the trial High Court.

The first and second appellants and the deceased were residents of Nakatai Lukarasi village in Mbinga District. The third appellant was a resident of Mitamba village also within Mbinga District who, prior to the incident, used to visit his brother Tido Hyera at Nakatai Lukarasi village. On 11 April 2001 there was a funeral at the home of one Alanus Hyera. The appellants, the deceased and other villagers attended the funeral. Members of the bereaved family prepared some local brew for consumption by the people who attended the funeral. The deceased was among the people who drank the brew. At around 20:00 hours the deceased left the funeral house (hereinafter to be referred to as the house) on his way home Later the appellants also left and followed behind towards the same direction. In the meantime, and just about the same time, PW1 was walking in the opposite direction towards the house. A short distance away he saw three people lifting an old man up and down. On arrival at the scene he saw the first and third appellants. Upon inquiry, these appellants told him that they saw the old man (the deceased) lying on the ground and that they had sent the second appellant to notify the deceased's relatives and the people keeping vigil at house.

On 12 April 2991 the deceased's body was examined. In the post mortem examination report, which was produced and admitted in

evidence, the doctor observed that the death was due to fracture of the skull, cut wound on the right leg, lacerated wound on the left side on the head (temporal region) and star fracture of the temporal bone.

At the trial there was no dispute that Galus Msekera Kapinga was dead and that he died on 11 April 2001. Also, it was not disputed that the cause of death was as per post mortem examination report. The crucial question was, and indeed still is, this one:- Whether or not the appellants were responsible for the death of the deceased. The trial judge considered the issue and in the end he opined and held that the death was caused by the appellants.

Admittedly, the case for the prosecution was built or premised on the testimony of PW1. This was the only eye witness to the incident, so to speak. The issue is whether PW1 was all that of a truthful and credible witness.

Without hesitation, we agree with Messrs. Mbise and Rwabuhanga that it was unsafe to ground the conviction on the basis of the evidence of PW1. As already pointed out by learned counsel, and we have no reasons for disagreeing with them, his evidence was full of contradictions. The contradictions were not minor or ones which could easily be ignored by the Trial Court. For example, it is inconceivable that PW1 could at one stage say that he saw the appellants at the scene and at a later stage say that he did not see them! Surely, if PW1 could change his story on such an important aspect of the case then he was not all that of a credible and truthful witness, after all.

Also, as correctly submitted by learned counsel, the judge did not consider the defence case and give it the weight it deserved. The appellants were consistent that they saw the deceased already lying down on the ground, wounded. They tried to assist him by lifting him up twice. They also tried to control the blood that was oozing from his body. On realizing that he was already dead they did not abandon him and run away. Instead, they remained at the scene, and at the same time the 1st and 3rd appellants sent the second appellant

to report the incident to the deceased's relatives and to the people assembled at the house. With respect, we agree with learned counsel that the appellants' conduct as shown above during and after the incident was not consistent with that of murderers. Rather, we are of the view that by their conduct the appellants were all out to help or assist the deceased on that fateful night.

There were other features in the case which are worth mentioning here. We start with the post mortem examination report *vis-a-vis* the evidence of PW1. PW1 testified and stated that he did not see any weapon at the scene. Yet, a look at the report will show that the extent of injuries was so grave that a weapon must have been used in inflicting the injuries which led to the death of the deceased. If the evidence of PW1 was anything to go by, surely the lifting up and down of the deceased could not have caused the above injuries.

Secondly, no evidence was forthcoming to show the circumstances surrounding the deceased's departure from the house the time and place of his death. For example, it was not shown whether the appellants left and followed behind him immediately after he left or whether it took a few minutes before they did so. It was also not indicated whether in the course of walking they were very close to him! Or whether they were walking beside him! Furthermore, the possibility of some other people with criminal motive walking along the road at the material time was not eliminated. In the absence of clear evidence on the above aspects we are inclined to the view that it was quite possible that the deceased could have met his death at the hands of other people and not necessarily the appellants. After all, the incident took place at night on a scene which was only about eight to ten paces away from the nearest house and along the road where the possibility of there being other passers-by was not ruled out.

In the light of the evidence on record we are of the considered view that the case against the appellants was not proved beyond reasonable doubt. The appellants ought to have been given the benefit of doubt and thereby earn an acquittal.

We accordingly allow the appeal quash the conviction and set aside the sentence. The appellants are to be released from prison unless they are lawfully held therein.

SELEMANI MAKUMBA *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT MBEYA

(Mroso, Nsekela and Msoffe, JJA)

CRIMINAL APPEAL No. 94 OF 1999

(From the judgment of the High Court of Tanzania as Songea, Mwipopo, J.,dated 13 April 1999, in Criminal Appeal number 23 of 1980)

Criminal Practice and Procedure – Sentencing – Offence committed before the enactment of the Sexual Offences (Special Provisions) Act 1998 – Whether the provisions of the Act were applicable in sentencing the appellant.

Criminal Practice and Procedure – Sentencing – Variation of sentence by appellate Court –Circumstances under which an appellate Court may interfere with the sentence of the Trial Court.

The appellant was convicted of rape by the District Court and sentenced to imprisonment for five years in April, 1997, before the enactment of the Sexual Offences (Special Provisions) Act, 1998. Aggrieved, he appealed to the High Court against both conviction and sentence. The High Court dismissed the appeal, enhanced the sentence to one of ten years imprisonment and six strokes of corporal punishment, and also ordered the appellant to pay TZS. 15 000 as compensation to the victim. Aggrieved again, he appealed to the Court of Appeal, criticizing the High Court for upholding his conviction and enhancing the sentence, and faulting the Trial Court for failing to call any witness or the doctor who examined the victim to ascertain that rape had been committed. In the alternative he asked the case to be heard *de novo*

because the offence was committed at night. The Republic countered that no circumstances existed that would have compelled the Court to call the doctor for cross examination and that there was cogent uncontradicted evidence to support the conviction. On the question of sentence the Republic agreed with the appellant that the High Court was not justified to enhance the sentence.

Held: (i) There was cogent and uncontradicted evidence on record from two witnesses who knew the appellant which established the guilt of the appellant;

(ii) The High Court has power to interfere with the sentence of the Trial Court where the sentence is manifestly excessive or inadequate, or where the Trial Court acted on a wrong principle or took into account irrelevant matters;

(iii) Since the offence was committed before the enactment of the Sexual Offences and Special Provisions Act, 1998 that Act did not apply in sentencing of the appellant;

(iv) The Principal District Magistrate had properly exercised his power as he was entitled by law to pass the sentence of up to five years imprisonment subject to confirmation by the High Court since it exceeded twelve months imprisonment;

(v) There was ample evidence that the offence was committed at a place well lit by electric light, and there were no circumstances which would necessitate an order for trial *de novo;*

(iv) The order for compensation to the victim was properly made by the High Court.

Appeal against conviction dismissed, sentence of ten years and six strokes of corporal punishment set aside and sentence of five years imprisonment restored.

Cases referred to:

(1) *Musa Ally Yusuf v. R,* CAT-Criminal Appeal number 72 of 2006 (unreported)

(2) *George Mdalichi and Two others v. R,* CAT-Criminal Appeal number 186 of 2004 (unreported).

(3) *Elias Mangwela v. R,* CAT-Criminal Appeal number 136 of 2003 (unreported)

Statutory provisions referred to:

(1) Penal Code, Chapter 16, section 130

(2) Sexual Offences Special Provisions Act, 1998

Mr. Boniface for the respondent

JUDGMENT OF THE COURT

(Dated 21 August 2006)

Mroso, JA: The appellant was convicted of rape contrary to section 130 of the Penal Code by the District Court of Tunduru and was sentenced to a prison sentence of five years. That was in April, 1997 before the enactment of the Sexual Offences Special Provisions Act, 1998. He was aggrieved by the conviction and sentence and appealed to the High Court. The High Court dismissed the appeal and enhanced the sentence to one of ten years imprisonment. It also imposed six strokes of corporal punishment and ordered payment of TZS. 15 000 as compensation to the victim of the rape. Still aggrieved, he appealed to this Court, filing two grounds of appeal, the second ground being alternative to the first. At the hearing of the appeal the respondent Republic was represented by Mr. Boniface, learned Senior State Attorney, and appellant chose not to appear.

In his first ground of appeal the appellant made three points. He criticized the first appellate Court for upholding the conviction by the Trial Court. He further criticized the High Court for enhancing the sentence. Thirdly, he complained that the Trial Court did not call any witness or the doctor who examined the victim to ascertain that rape had been committed. On the second ground of appeal which, as already mentioned, was alternative to the first ground of appeal, he argued that the High Court should have ordered a trial *de novo* because the offence was committed at night.

In supporting the conviction Mr. Boniface responded to all the three points which were raised in the first ground of appeal. It was his submission that the Trial Court was not obliged to call the doctor as a witness at the trial. The circumstances, under section 240(3)

of the Criminal Procedure Act, 1985 which would have compelled the Trial Court to summon a doctor for cross-examination did not exist in this case. As regards the soundness of the conviction Mr. Boniface argued that there was cogent evidence which was not contradicted by the appellant. He, however, agreed with the appellant that the High Court was not justified to enhance the sentence. The Trial Court had acted within its discretion to impose the sentence of five years imprisonment and there was no need to interfere with that discretion. He submitted that the powers of the High Court under section 366(1)(ii) of the Criminal Procedure Act, 1985 are exercised within certain limitations. The High Court on appeal would interfere with sentence where it is manifestly excessive or inadequate or where the Trial Court acted on a wrong principle or where the Trial Court took into account irrelevant matters. Mr Boniface also impugned the corporal sentence which the High Court imposed on the appellant. He submitted that imposition of corporal punishment for that conviction was a matter within the discretion of the Trial Court which had decided not to impose such sentence. The High Court did not give reasons for interfering with the discretion of the Trial Court. This Court should quash and set aside both the enhanced sentence and the corporal punishment. However, the learned Senior State Attorney supported the order of compensation arguing that the Trial Court may have overlooked the need for ordering compensation of the victim and that the High Court properly acted under section 31 of the Penal Code to step into the shoes of the Trial Court to make the order of compensation.

The Senior State Attorney submitted that the second ground of appeal had no merit and that the Court should dismiss it. There were no valid grounds for the High Court to order a trial *de novo*.

In the record of appeal there are proceedings which were before Manento, J., as he then was. The learned judge purported to preside over proceedings which were supposed to be before the Court of Appeal and he gave a ruling dismissing what he considered was an application for enlargement of time to file a notice of appeal. Mr

Boniface invited the Court to invoke its revisional powers to nullify those proceedings and ruling.

Before we discuss the points raised in the Memorandum of Appeal we would like to give a brief account of the case which was before the Trial Court.

An adult woman, Ayes Adam, who was the first prosecution witness at the trial, claimed she was raped by the appellant at a place behind a building known as Tudeco Guest House at Tunduru during the early night of 20 December 1996. The woman was engaged in the business of preparing food for sale, what used to be popularly known as "Mama Ntilie." Before she was raped the appellant was said to have taken the woman's pot of rice and ran away with it to the back of the Tudeco building. Apparently in an attempt to retrieve the pot of rice, Ayes followed the appellant. The appellant is said to have torn her dress and underwear and raped her. Bibie Adam, the second prosecution witness a Standard VII girl who was also selling food with Ayes, witnessed the rape. Although both Ayes and Bibie shouted for help no one responded, apparently because it was then raining and the shouting could not be heard. Both witnesses said they knew the appellant because he used to buy rice from their neighbours. Ayes sustained bruises on her body when the appellant dropped her down. She reported to the police and apparently also went to a medical facility where she was examined. It is not, however, clear if a PF3 had been issued to her or what the medical report if any said about her condition. The appellant did not give any defence at the trial and when questioned by the Trial Court he is recorded as saying:

I elect to keep quiet. I have no witnesses to call.

The Trial Court believed the evidence of Ayes and Bibie and since it was said that the place where the rape took place was lit by electricity, the appellant was convicted as charged and was sentenced to a term of five years imprisonment. When the appellant appealed against conviction and sentence the High Court, Mwipopo, J., dismissed the appeal as already mentioned earlier in this judgment.

It is, of course, for the prosecution to prove the guilt of an accused person beyond a reasonable doubt and an accused person does not assume any burden to prove his innocence. It means, therefore, that failure by an accused person to say anything at the trial in his own defence does not imply admission of guilt. The question in this appeal is whether notwithstanding that the appellant did not give or adduce evidence in his own defence the evidence against him had proved the offence of rape beyond reasonable doubt.

Both the Trial Court and the first appellate Court reached a concurrent finding that the appellant had sexual intercourse with Ayes without her consent. The two Courts below reached that finding after believing the evidence of Ayes which was materially corroborated by Bibie. The record is silent on how or when the appellant was arrested and no police officer gave evidence at the trial. Also although, according to Bibie, a medical examination was done on Ayes, no medical report was tendered as evidence and no medial doctor was called as a witness. Was the Trial Court entitled to find that Ayes was raped and that the offence was committed by the appellant?

We are of the firm view that once the two witnesses were believed and the question of mistaken identify eliminated and there were no circumstances or evidence which could give rise to doubt in the mind of the Trial Court, we can find no justification for interfering with the concurrent findings of the two Lower Courts that Ayes was raped and that the person who raped her was the appellant. We can find no merit in the complaint by the appellant that the prosecution had failed to prove the offence beyond a reasonable doubt. A medical report or the evidence of a doctor may help to show that there was sexual intercourse but it does not prove that there was rape, that is unconsented sex, even if bruises are observed in the female sexual organ. True evidence of rape has to come from the victim, if an adult, that there was penetration and no consent, and in case of any other woman where consent is irrelevant, that there was penetration. In the case under consideration the victim, Ayes, said the appellant inserted his male organ into her female organ. That was penetration and since

she had not consented to the act, that was rape notwithstanding that no doctor gave evidence and no PF3 was put in evidence. The appeal against conviction, therefore, fails.

Was the High Court, Mwipopo, J., entitled to enhance the imprisonment sentence? We deliberately mentioned earlier in this judgment that the offence was committed and the conviction and sentence given before the Sexual Offences Special Provisions Act, 1998 was enacted. The law then was, under section 131 of the Penal Code, that a person who committed rape was liable to imprisonment for life. There was no minimum sentence for the offence. A Subordinate Court was therefore entitled to sentence a person convicted of rape in accordance with powers conferred on it under section 170(1)(a) and (2)(a)(ii) of the Criminal Procedure Act, 1985. Under the provisions just cited, the trial Principal District Magistrate was free to impose a sentence of up to 5 years imprisonment but subject to confirmation by a Judge, since it exceeded 12 months imprisonment.

With respect, we agree with Mr. Boniface that although the High Court in an appeal is empowered under section 366(1)(a)(ii) and (b) to alter the sentence by enhancing it, it does not normally interfere with the discretion of the Trial Court unless the sentence was illegal or was manifestly inadequate or excessive or the Trial Court acted on a wrong principle or took into account irrelevant matters. See recent decisions of this Court in *Musa Ally Yusuf v. R.* (1) *George Mdalichi and two others v. R.* (2) and *Elias Mangwela v. R.* (3).

In the case under appeal none of the above circumstances obtained and, therefore, there was no need for the High Court to interfere with the sentence which was passed by the Trial Court. The High Court judge had merely substituted his own view of what a proper sentence should be for the view of the Trial Court. We quash the enhanced sentence by the High Court and restore the sentence of five years imprisonment which was handed down by the Trial Court. We also, for the same reasons, quash and set aside the sentence of corporal punishment but sustain the order of compensation.

As for the alternative second ground of appeal we do not have to discuss it at any length because the first ground adequately disposed of the appellant's appeal. Suffice it here to say there was no reason whatever for the High Court to order a fresh trial. A fresh trial is ordered where the original trial was fundamentally defective and had caused a miscarriage of justice, which was not the case with the appellant's trial. The appellant chose not to make any defence and if that worked against him, he had only himself to blame.

Finally, we are grateful to Mr. Boniface for bringing to our attention the wholly unnecessary proceedings which Manento, J. (as he then was) entertained. The appellant had filed a chamber application titled:

> In the Court of Appeal of Tanzania in The High Court of Tanzania Songea, Criminal Appeal number 22 of 1998 – Selemani Makumba – appellant *v.* The Republic – respondent

This so called Chamber Application speaks of an "Appeal from the judgment of the High Court of (T) Songea before Mwipopo – Judge dated 1 (*sic*) April 1999 in Criminal Appeal number 22 of 1998 ...."

It is not clear what the purpose of the Chamber Application was but it gives the impression that it was meant to be a Notice of Appeal and is dated 26 July 2000. On reflection, it could neither be a Notice of Appeal nor an application for extension of time to lodge a Notice of Appeal against the decision of the High Court – Mwipopo, J. because a proper and timely Notice of Appeal had been duly filed on 16 April 1999.

Manento, J. heard the Chamber Application in the absence of the appellant (he did not wish to be present) and in his ruling dismissed it for want of merit because, according to the judge, there were no reasons why the appellant could not file a Notice of Appeal in time and that the intended appeal did not raise any point of law for consideration by the Court of Appeal.

As already indicated, whatever the intended nature of the application, it was meant for the Court of Appeal and so Manento, J. had no jurisdiction

to hear a matter intended for the Court of Appeal. We invoke the revisional powers of this Court under section 4(2) of the Appellate Jurisdiction Act, 1979 as amended by Act number 17 of 1993 to nullify the whole of those proceedings for want of jursdicion. We so order.

To summarize, the appeal against conviction is dismissed but the appeal against sentence is partially allowed.

MUSSA MWAIKUNDA *v.* REPUBLIC

COURT OF APPEAL OF TANZANIA AT MBEYA

(Mroso, Nsekela and Msoffe, JJA)

CRIMINAL APPEAL No. 174 OF 2006

(From the decision of the High Court of Tanzania at Mbeya, Mmilla, J., dated 2 December 2003, in Criminal Appeal number 65 of 2001)

Criminal Law – Attempted rape – Essential elements of the offence of attempted rape.

Criminal Practice and Procedure – Charges – Charge of attempted rape – Particulars of the charge not disclosing an essential element of the offence charged – Charge incurably defective.

Criminal Practice and Procedure – Appeals – Second appeal to the Court of Appeal – Whether the Court on a second appeal may interfere with concurrent findings of fact by the Courts below.

Criminal Practice and Procedure – Trials – Fair trial – Minimum standards to ensure a fair trial.

Evidence – Credibility of evidence – Attempted rape – Complainant's evidence in Court contradicting her account given to another prosecution witness at the scene of crime – Whether her evidence is credible – section 27(7) of the Evidence Act.

The appellant was convicted of the offence of attempted rape by a District Court contrary to section 132(1) of the Penal Code as amended by the Sexual Offences (Special Provisions) Act 1998, and sentenced to 30 years imprisonment. He unsuccessfully appealed to the High Court. The particulars in the charge stated that on the given date the appellant attempted to rape the complainant who was 15 years old. PW 1 told the Trial Court that the appellant attempted to rape her, but at the scene she had told PW 2 that the appellant had raped her. The appellant gave a defence of *alibi*.

Held: (i) On a second appeal, the Court rarely interferes with concurrent findings of fact by the Courts below, because an appeal lies to the Court on a point or points of law; however, in cases in which there are misdirections or non-directions on the evidence, the Court is entitled to look at the relevant evidence and make its own findings of fact;

(ii) It is always required that an accused person must know the nature of the case facing him and this can be achieved if the charge discloses the essential elements of the offence charged;

(iii) The charge in this case ought to have disclosed the aspect of threatening which is an essential element of the offence of attempted rape under section 132(2)(a) of the Penal Code and, in the absence of such disclosure, the nature of the case that the appellant faced was not adequately disclosed to him; the charge was, therefore, defective;

(iv) The minimum standards which must be complied with for an accused person to undergo a fair trial are: he must understand the nature of the charge, he must plead to the charge and exercise the right to challenge it, he must understand the nature of the proceedings to be an inquiry into whether or not he committed the alleged offence, he must follow the course of the proceedings, he must understand the substantial effect of any evidence that may be given against him, and he must make a defence or answer to the charge;

(v) The defect of the charge in this case was not curable under section 388(1) of the Criminal Procedure Act 1985 because threatening, an essential element of the offence of attempted rape was omitted from the particulars of the charge and the complainant did not say anywhere in her evidence that she was threatened by the appellant, and there was as such no room for saying that the appellant knew the nature of the case that was facing him; a charge that does not disclose any offence in the particulars of the offence is manifestly wrong and incurable;

(vi) In view of the contradiction between the complainant's evidence in Court and what she told PW2 at the scene, the complainant's evidence was not credible and so could not be acted upon to ground a conviction under section 27(7) of the Evidence Act.

Appeal allowed accordingly

Cases referred to:

(1) *DPP v. Jaffari Mfaume Kawawa* [1981] T.L.R. 149

(2) *Regina v. Henley* (2005) NSWC CA 126

(3) *R. v. Prosser* (1958) VR 45

(4) *Uganda v. Haji Jamal* [1964] EA 294

Statutory provisions referred to:

(1) The Penal Code of section 132(1) and (2)

(2) The Appellate Jurisdiction Act, 1979 of section 5(5) and (7)

(3) The Evidence Act, 1967 of section 27(7)

Mr Rwabuhanga for the Republic

JUDGMENT OF THE COURT

(Dated 31 August 2006)

Msoffe, JA: The District Court of Rungwe sitting at Tukuyu found the appellant guilty of committing an offence of attempted rape contrary to section 132(1) of the Penal Code Chapter 16 Volume I of the

Laws as amended by the Sexual Offences Special Provisions Act number 4 of 1998. It sentenced him to a thirty years term of imprisonment. Aggrieved, he appealed to the High Court at Mbeya. He lost the appeal, hence this second appeal. He filed a Memorandum of Appeal containing six grounds of complaint. He appeared in person while Mr. Rwabuhanga, learned State Attorney, appeared for the respondent Republic at the hearing of the appeal.

The six grounds of appeal are centred on two major complaints, one, that the appellant was not identified on the date of the alleged incident. Two, that it was wrong for the Courts below to attach much weight to the testimony of PW1 Happy Odeni, the complainant and the only key witness for the procecution.

On his part Mr. Rwabuhanga declined to support the conviction. In supporting the appeal he urged that there were a number of contradictions in the prosecution case based on two main areas which are, the time when the offence was alleged to have been committed and whether the offence committed was rape or attempted rape. In elaboration, Mr. Rwabuhanga submitted that whereas PW1 said that the incident took place at about 19:05 hours PW2 Gabriel Mwasyeba said it was at about 20:45 hours. Also, while PW1 said that the appellant attempted to rape her PW2 testified and stated that PW1 told him that the appellant raped her.

At this juncture we think it is helpful to give a brief account of the case of the trial which led to the appellant being convicted as charged.

The appellant was at the material time a resident of Lufumbi Village within Rungwe District in Mbeya Region. The complainant lived at Bulongwe Village within the same District. According to the prosecution on 22 May 2000 at about 19:05 hours the complainant was going back home when she suddenly met the appellant at Mwalisi river within Bulongwe village. Without uttering any word, the appellant held the complainant and fell her down. He started to remove the complaintant's clothes including her underpants. The complainant

raised an alarm. PW2 together with one Will responded to the alarm. On arrival at the scene PW2 did not see the appellant as he had already left. PW2 saw PW1 in a rather horrible situation in that she was wet and muddy all over her body and her clothes were torn. PW1 told PW2 that the appellant had raped her. The incident was reported to the relevant authorities and the appellant was eventually arrested and charged in Court.

In defence the appellant denied committing the alleged offence. In fact, his defence was that of an *alibi* contending that on the date and time of the alleged incident he was with his father in law in Malamba village.

As already stated, this is a second appeal which originated from the District Court of Rungwe sitting at Tukuyu. Being a second appeal, the Court rarely interferes with concurrent findings of fact by the Courts below. In the case of *Director of Public Prosecutions v. Jaffari Mfaume Kawawa* (1) at page 153 the Court stated:

> The next important point for consideration and decision in this case is whether it is proper for this Court to evaluate the evidence afresh and come to its own conclusions on matters of facts. This is a second appeal brought under the provisions of section 5(7) of the Appellate Jurisdiction Act, 1979. The appeal therefore lies to this Court only on a point or points of law. Obviously this position applies only where there are no misdirection or non-directions on the evidence by the first appellate Court. In cases where there are misdrections or non-directions on the evidence a Court is entitled to look at the relevant evidence and make its own findings of fact.

The crucial issue in this appeal is whether there are strong and compelling reasons to interfere with the concurrent and respective findings of fact by the Courts below. Without hesitation, we are of the considered view that this a fit case for interfering with the findings and conclusions of the Courts below.

We start with the charge sheet dated 26 May 2000. The statement of offence in the said charge sheet reads as follows:

That Mussa s/o Mwaikunda charged on 22 May 2000 at about 19.05 hours at Bulongwe village within Rungwe District Mbeya Region did attempt to rape Happy d/o Owden a girl of fifteen years old.

The above was the charge which the appellant was required to answer. The question we ask ourselves here is whether the charge sheet disclosed an offence against the appellant. Before we answer the question we have to look at the definition of attempted rape. Section 132(2) of the Penal Code as amended by section 8 of the Sexual Offences Special Provisions Act number 4 of 1998 states:

> (2) A person attempts to commit rape if, with intent to procure prohibited sexual intercourse with a girl or woman, he manifests his intention by:
>
> (a) Threatening the girl or woman for sexual purposes;
>
> (b) Being a person of authority or influence in relation to the girl or woman, applying any act of intimidation over her for sexual purposes;
>
> (c) Making any false representations to her for the purposes of obtaining her consent;
>
> (d) Representing himself as a husband of the girl or woman, and the girl or woman is put in a position where, but for the occurrence or anything independent of that person' will, she would be involuntarily carnally known [emphasis supplied]).

For purposes of this case, paragraphs (b), (c) and (d) of the above sub-section would not apply. Paragraph (a) would be the appropriate provision in the matter before us. It is interesting to note here that in the above charge sheet the particulars of Statement of Offence did not allege anything on threatening which is the catchword in the paragraph.

The principle has always been that an accused person must know the nature of the case facing him. This can be achieved if a charge discloses the essential elements of an offence. Bearing this in mind,

the charge in the instant case ought to have disclosed the aspect of threatening which is an essential element under paragraph (a) above. In the absence of disclosure it occurs to us that the nature of the case facing the appellant was not adequately disclosed to him. The charge was, therefore, defective, in our view.

Perhaps it is useful to digress a bit and state here that there must be minimum standards which have to be complied with if an accused person is to undergo a fair trial. As stated in *Regina v. Henley* (2) (a case from New South Wales Court of Criminal Appeal) quoting Smith J. in *R. v. Prosser* (3) at page 48 the standards are:

> (a) To understand the nature of a charge;
>
> (b) To plead to the charge and to exercise the right of challenge;
>
> (c) To understand the nature of the proceedings, namely, that it is an inquiry as to whether the accused committed the offence charged;
>
> (d) To follow the course of the proceedings;
>
> (e) To understand the substantial effect of any evidence that may be given in support of the prosecution; and
>
> (f) To make a defence or to answer the charge.

Having said so, the issue is whether the charge facing the appellant was curable under section 388(1) of the Criminal Procedure Act, 1985. With respect, we do not think that it was curable. We say so for two main reasons. One, since threatening was not alleged in the particulars of offence the effect was that an essential element of the offence of attempted rape missed in the case against the appellant. Two, at any rate, as already stated, the complainant did not say anywhere in her evidence that she was threatened by the appellant. If she had alleged any threat may be there could have been room for saying that the appellant knew the nature of the case that was facing him.

While we are on the above point we wish to observe here that in the Ugandan case of *Uganda v. Hadi Jamal* (4) it was held that a charge which did not disclose any offence in the particulars of offence

was manifestly wrong and could not be cured under section 341 of the Criminal Procedure Code (the equivalent of section 388 of our Criminal Procedure Act, 1985). It would follow that on the above point alone we could determine or dispose of the appeal and accordingly allow it. However, we think there is another point which we should make hereunder in this judgment. We are aware of the provisions of section127(7) of the Evidence Act, 1967 as amended by section 27 of the Sexual Offences Special Provisions Act number 4 of 1998. The sub-section reads:

> (7) Notwithstanding the preceding provisions of this section, where in criminal proceedings involving sexual offence the only independent evidence is that of a child of tender years or of a victim of he sexual offence, the Court shall receive the evidence, and may, after assessing the credibility of the evidence of the child of tender years or as the case may be the victim of sexual offence on its own merits, notwithstanding that such evidence is not corroborated, proceed to convict, if for reasons to be recorded in the proceedings, the Court is satisfied that the child of tender years or the victim of the sexual offence is telling nothing but the truth.

PW1 was 15 years old when she testified on 10 august 2000. She was not, therefore, a child of tender age under section 127(5) above. Having said so, the question here is this: Assuming the appellant had been faced with a proper charge was PW1 credible enough for her evidence to form a basis for a conviction under the above sub-section (7). With respect, we are of the view that she was not a credible witness. We say so mainly on account of the submission made by Mr. Rwabuhanga. If the said PW1 could say that the appellant attempted to rape her and only to change the version later and tell PW2 that the appellant raped her, we too think that she was not all that of a credible witness, after all.

In conclusion, we are of the considered opinion that if the above aspects of the case had been brought to the attention of the judge on first appeal he would not have upheld the conviction and sentence.

Consequently, for the above reasons, we allow the appeal quash the conviction and set aside the sentence. The appellant is to be released from prison unless he is lawfully held therein.

NATHANIEL ALPHONCE MAPUNDA AND BENJAMINI ALPHONCE MAPUNDA v. REPUBLIC

COURT OF APPEAL OF TANZANIA AT MBEYA

(Mroso, Nsekela and Msoffe, JJA)

CRIMINAL APPEAL No. 251 OF 2005

(From the judgment of the High Court of Tanzania at Songea, Manento, J., dated 28 October 2003, in Criminal Sessions Case number 40 of 2001)

Criminal Practice and Procedure – Burden of Proof – Appellants convicted of murder and manslaughter – No prosecution witness testified to have seen the appellants kill the deceased – Witnesses only saw appellants with the deceased body – Whether prosecution case was proved beyond reasonable doubt.

Criminal Practice and Procedure – Circumstantial evidence – Appellants seen with the dead body – Whether this was enough evidence to ground a conviction.

Criminal Practice and Procedure – Appellants present at the scene of the killing – Appellants were the last persons to be seen with the deceased – Whether sustainable grounds to link appellants with the killing of the deceased.

Criminal Practice and Procedure – Sentensing –Appellants had a common intention of assaulting the deceased but sentenced differently – Whether sentencing was proper.

The appellants, who were brothers, were charged with murder contrary to section 196 of the Penal Code. After a full trial the judge convicted the first appellant of murder and the second appellant of manslaughter. At the trial no prosecution witness testified to have seen the appellants kill the deceased. They only stated that on arrival at the scene they saw the appellants with the deceased's body. On appeal to this Court;

Held: (i) As is well known, in a criminal trial the burden of proof always lies on the prosecution. Indeed, in the case of *Mohamed Said Matula v. R* (2) this Court reiterated the principle by stating that in a murder charge the burden of proof is always on the prosecution. And the proof has to be beyond reasonable doubt;

(ii) Where circumstantial evidence is relied on the principle has always been that facts from which an inference of guilt is drawn must be proved beyond reasonable doubt;

(iii) Much as we are aware that this is a sound and cherished principle of law (that the appellants were the last persons to be seen with the deceased) our view is that the principle presupposes that an accused person was last seen with a deceased person while still alive.

(iv) In a criminal charge suspicion alone, however grave it may be, is not enough to sustain a conviction, all the more so, in a serious charge of murder;

(v) The principle has always been that where a person is killed in the course of prosecuting a common unlawful purpose each party to the killing is guilty of murder.

Appeal allowed

Cases referred to:

(1) *Efraim Lutambi v. Republic* (CAT) Criminal Appeal number 30 of 1996 (unreported)

(2) *Mohamed Sadi Matula v. R* [1995] T.L.R. 3

(3) *Ally Bakari and another v. R* [1992] T.L.R. 10

(4) *Jackson Mwakatoka and twoothers v. R* [1990] T.L.R. 17

(5) *Juma Zuberi v. R* [1984] T.L.R. 249

(6) *Katabe Kachochoba v. R* [1986] T.L.R. 170

(7) *Haruna Mohamed and Mathew Lwali v. R* (CAT) Criminal Appeal number 30 of 2001 (unreported)

(8) *Tabulayenka s/o Kirya and others v. Republic* (1943) 10 E.A.C.A. 51

Statutory provisions referred to:

(1) Penal Code, Chapter 16 sections 196 and 195

(2) Criminal Procedure Act 1985, section 192(3)

Mr. Mbise for the appellants

Messrs. Manyanda and Boniface for the Republic

JUDGMENT OF THE COURT

(Dated 31 August 2006)

Msoffe, JA: The appellants, who are brothers, were charged with murder contrary to section 196 of the Penal Code. It was alleged that on 16 October 2000, at about 00:30 hours at Liwili village within Mbinga District they murdered one Egreta Ndimbo. After a full trial the High Court (Manento, J.) sitting at Mbinga convicted the first appellant of murder and the second appellant was convicted of manslaughter contrary to section 195 of the Penal Code. Consequently, the first appellant was sentenced to death and the second appellant was sentenced to a term of imprisonment for twenty one years. In grounding the convictions the learned trial judge observed and reasoned partly as follows:

> On my observation to the demeanour of the second accused person, the way he was giving his evidence, answering questions put to him, I am of the opinion that he was persuing (*sic*) a just and lawful cause, that of arresting a suspect. But he was negligent in not rescuing the deceased. I have a feeling that he was telling the truth when he said that he urgued his brother, the first accused not to assault the deceased after her arrest

but the firstaccused, persisted in the assaulting of the deceased, causing the rapture of the forehead of the deceased. The whole proceedings showed how the first accused, was in command of the situation. Sending other people to go and report to the authority first the order given to PW2 Geofrey Kayombo who refused and later on to the second accused. All those circumstances leads me to conclude that there was *no mens rea* by the second accused. That was only by the first accused, who had alleged that the deceased was stealing his maize. What the second accused did was to assault the deceased. But his being in action leads to a commission of lesser offence. As to malice aforethought, I would say that it has been proved against the first accused person perforating the deceased's forehead, causing it to rapture and damaging the brain, was an act intended to cause the death of the deceased. That the deceased, was a weakly health woman was fatally beaten on her head which at the end, caused her death. The first accused's malice aforethought could also be inferred from his belief that the deceased was a reputed thief, a habit born, on her mother's family.

The appellants are dissatisfied, hence this appeal against the respective convictions and sentences.

At the hearing of the appeal Mr. Mbise learned counsel advocated for the appellants. Mr. Manyanda learned state attorney assisted by Mr. Boniface learned senior state attorney appeared on behalf of the respondent Republic. We wish to state from the outset that the learned state attorneys did not support the convictions and sentences.

Mr. Mbise filed a Memorandum of Appeal with four grounds of complaint. The grounds read as follows:

1. The learned honourable trial judge erred on concluding that the deceased did not meet her death at the hands of members of a Mob.
2. The learned honourable trial judge erred in not taking into account the Cautioned and Extra Judicial Statements admitted and marked Exhibits P.2 (a) and (b) and P.3 (a) and (b) in his Judgment.
3. The learned honourable trial judge took a wrong approach to the testimony of the second appellant as against the first appellant.

4. The sentence of twenty one (21) years imprisonment imposed on the second appellant is manifestly excessive in the circumstances of this case.

In arguing the appeal Mr. Mbise submitted generally on he above grounds. In the process, he contended that it was wrong for the trial High Court not to believe the defence evidence that the death of the deceased was caused by a mob of people. No prosecution witness testified and stated that he/she saw the appellants assaulting the deceased to death. In this regard, the prosecution case either succeeded or failed on the basis of the defence case. The appellants' version of the circumstances surrounding the deceased's death was not contradicted by the prosecution side. If the judge had appreciated the above facts he would not have convicted the appellants, Mr. Mbise concluded on the point.

As for the different convictions and sentences, Mr. Mbise faulted the judge for treating the appellants differently. Once the judge had found that the appellants had a common intention of assaulting the deceased he ought not to have convicted and sentenced them differently. At any rate, Mr. Mbise went on to say, the sentence of 21 years imprisonment meted out to the second appellant was too severe for an offence of manslaughter.

In supporting the appeal Mr. Manyanda essentially repeated the submission made above by Mr. Mbise. He too was convinced that the judge was in error for the reasons stated by Mr. Mbise. He emphasized that anything that was material to the case came from the appellants themselves. It was therefore wrong to ground the conviction on the basis of the defence case, he urged. In conclusion on the above point, Mr. Manyanda was of the view that the appellants' convictions were based on suspicion only. Like Mr. Mbise, Mr. Manyanda also felt that once the judge had found that the appellants had a common intention of assaulting the deceased it was wrong to convict and sentence them differently.

In his brief submission Mr. Boniface was of the view that there were a lot of doubts in the prosecution case. The doubts ought to have been resolved in favour of the appellants, he submitted. Like Messrs. Mbise and Manyanda, Mr. Bonifance was also of the view that the judge ought not to have treated the appellants differently in handing down the convictions and sentences.

Mr. Boniface added another point which was not canvassed by Messrs. Mbise and Manyanda in their respective submissions. The point relates to the cautioned and extra judicial statements which were produced and admitted in evidence at the preliminary hearing. The complaint here is that the statements were not read over to the appellants. With respect, we agree with Mr. Boniface in the following sense. A look at the record of the preliminary hearing conducted on 26 August 2002 will show that cautioned statements as well as extra judicial statements were produced and admitted in evidence as Exhibits P2 and P3 respectively. Thereafter, a Memorandum of Matters that were not in dispute was drawn up and signed by the parties. However, the record of the case does not show that the contents of the Memorandum were read over and explained to the appellants as required by sub-section (3) of section 192 of the Criminal Procedure Act, 1985. The sub-section reads:

> (3) At the conclusion of a preliminary hearing held under this section, the Court shall prepare a memorandum of the matters agreed *and the memorandum shall be read over and explained to the accused in a language that he understands,* signed by the accused and his advocate and by the public prosecutor and then filed [emphasis supplied].

In the case of *Efraim Lutambi v. Republic* (1) this Court stated:

> .... Any exhibits, including cautioned and extra judicial statements, which are not in dispute should have them referred to and given exhibit numbers in the memorandum of undisputed matters. The contents of the memorandum including the exhibited statements, if any, should be read over and explained to the accused (in a language he understands), and the fact that that has been done should be reflected on the record.

For purposes of our decision in this matter we note that the judge did not attach any weight to the above statements in his judgment. He decided the case on the basis of other evidence. In the light of this fact, we do not have to go further and discuss the evidential value of the statements in relation to the case and what orders could be made in the circumstances. It will suffice to say briefly that we hope in future the provisions of section 192(3) of the above Act, as emphasized in *Lutambi,* will be complied with fully by judges and Magistrates when conducting preliminary hearings. After all, the provision is couched in mandatory terms. At this juncture we think it is pertinent and instructive to state the case that was before the trial High Court.

As earlier stated, the appellants are brothers. At the material time they lived at Liwili village in Mbinga District, Ruvuma Region. The first appellant owned a *shamba* where he had planted maize. At the time of the incident the maize was ripe and ready for harvesting. On 16 October 2000 at about 1230 hours the fist appellant was going back home. As he passed through his *shamba* he saw a person harvesting his maize. He quietly went to the home of the second appellant which was nearby and informed him of the person he had seen at his *shamba.* The two went to the *shamba* where they saw the person who happened to be the deceased in this case. They raised an alarm, popularly known in the area as "*mlete.*" Those who answered the alarm were PW1 Charles Mwingira, PW2 Geofrey Kayombo and PW3 Odo Kayombo. These witnesses stated that on arrival at the scene they saw the appellants with the deceased's body. Upon inquirly the appellants told them that the deceased was assaulted to death by a mob of people who had already dispersed at the time. In their respective defences the appellants repeated the same story, that the deceased was killed by a mob of people.

There was no dispute at the trial that Egreta Ndimbo was dead and that she died on 16 October 2000 at about 0030 hours. According to the post mortem examination report the death was due to fracture of the frontal bone with brain damage. It was due to fracture of the frontal bone with brain damage. It was also undisputed that no prosecution witness testified to have seen the appellants kill the deceased. The crucial issue

was whether the appellants were responsible for the death of the deceased. The judge considered the issue and answered it in the affirmative. He held that the appellants assaulted the deceased to death. He also opined and held that the reasonable inference was that the appellants raised the "*mlete*" as a camouflage "so that it could be believed that they did not kill the deceased."

As is well known, in a criminal trial the burden of proof always lies on the prosecution. Indeed, in the case of *Mohamed Said Matula v. R.* (2) this Court reiterated the principle by stating that in a murder charge the burden of proof is always on the prosecution. And the proof has to be beyond reasonable doubt. In the instant case, the appellants did not admit the killing. So, it was the duty of the prosecution to prove the case against them beyond reasonable doubt if a conviction was to lie in the matter. Without hesitation, we are in agreement with learned counsel from both sides that this burden was not discharged. As is evident from the evidence, apart from the dead body being seen or found in the first appellant's *shamba*, and the fact that the appellants were also seen there, there was no other evidence to implicate them with the killing. We agree with learned counsel that the above evidence was not enough to sustain a conviction. There ought to have been more credible evidence linking the appellants with the killing. Apparently no such positive evidence was forthcoming. In fact, in the absence of evidence to the contrary the appellants' version of the incident might as well have been true.

We also wish to add here that although the judge did not say so in so many words he appeared to have been working on the idea that there was circumstantial evidence linking the appellants with the killing on account of the undisputed fact that they were seen with the dead body. With respect, this fact alone was not enough to ground a conviction. The principle has always been that facts from which an inference of guilt is drawn must be proved beyond reasonable doubt – *Ally Bakari and Another v. R.* (3). In the instant case no such proof was forthcoming, as already stated above.

We are aware that it could perhaps be suggested that the appellants were responsible for the death because they were present at the scene

of the killing. As far as this point is concerned we wish to associate ourselves with this Court's decision in the case of *Jackson Meakatoka and 2 Others v. R.* (4) where at page 21 the Court quoted a statement from a decision of the Eastern Africa Court of Appeal in the case of *R. v. Komen* that:

Mere presence of the accused at a killing, he not having raised any objection thereto is not enough to justify his conviction for murder.

Again we are also aware that it could perhaps be argued that the appellants were responsible for the death because they were the last persons to be seen with the deceased. Much as we are aware that this is a sound and cherised principle of law our view is that the principle presupposes that an accused person was last seen with a deceased person while still alive. Indeed, in the cases of *Juma Zuberi v. R.* (5) and *Katabe Kachochoba v. R.* (6) the respective accused pesons were said to have been seen with the deceased pesons while still alive. In the instant case the situation is different. The prosecution witnesses saw the appellants with the deceased after she had died. So, the principle would not apply.

As observed by Mr. Manyanda, the case against the appellants may well be highly suspicious. However, in a criminal charge suspicion alone, however grave it may be, is not enough to sustain a conviction, all the more so, in a serious charge of murder – See *Haruna Mohamed and Mathew Lwali v. R.* (7).

As for the different convictions and sentences we also agree with learned counsel that the judge was in error in treating the appellants differently once he had found that they had a common intention of assaulting the deceased. While we are on this point we wish to point out that the principle has always been that where a person is killed in the course of prosecuting a common unlawful purpose each party to the killing is guilty of murder. In *Tabulayenka s/o Kirya and Others v. Republic* (8) the Court of Appeal for Eastern Africa stated at page 52 as follows:

....To constitute such common intention it is not necessary that there should have been any concerted agreement between the accused prior to the

attack on the so called thief. Their common intention may be inferred from *their presence, their actions* and the omission of any of them to dissociate himself from the attack... [emphasis supplied].

Furthermore, we also think that the sentence of 21 years imprisonment meted out to the second appellant was too severe particularly in the light of the mitigating factors that were presented to the Court.

In the event, we allow the appeal, quash the convictions and set aside the sentence. The appellants are to be relased from prison unless they are lawfully held therein.

ELIZABETH STEPHEN AND ANOTHER *v.* ATTORNEY GENERAL

HIGH COURT OF TANZANIA
AT DAR ES SALAAM
(Massati, Shangwa and Mihayo, JJ)

MISCELLANEOUS CIVIL CAUSE No. 82 OF 2005

Constitutional Law – Interpretation of constitutional provisions – Context of the constitution is essential in interpreting constitutional provisions.

Constitutional Law – Basic Rights – Enforcement of basic rights – Whether it is appropriate to seek enforcement of every basic right infringed by petitioning the High Court.

The two petitioners were widows. Their uncontroverted depositions showed that by operation of the provisions of certain paragraphs of the Second Schedule to the Local Customary Law (Declaration) (number 4) Order, Chapter 358 RE 2002, their basic rights were infringed, in that they were denied to benefit from the estates of their late husbands and to participate in the administration of those estates. They petitioned the High Court praying for a declaration that those paragraphs are unconstitutional and

thus null and void, and for an order striking out the paragraphs. Counsel for the respondent conceded that the impugned paragraphs give preferential treatment to men as opposed to women but counsel contended, however, that other adequate means of redress for the contraventions alleged were available to the petitioners, and should have been exhausted first instead of petitioning the High Court.

Held: (i) The impugned paragraphs are discriminatory in ways more than one, and are unconstitutional;

(ii) Other adequate means of redress for the alleged contraventions were available to the petitioners and should have been pursued;

(iii) A judicial process is not the appropriate medium for tackling the problem of bias against women posed by the impugned provisions;

(iv) A constitution must not be construed in isolation, but in its context which includes the history and background to its adoption.

Orders accordingly

Cases referred to:

(1) *China Heman International Cooperation Group v. Slavand K.A. Rwegasira,* [2006] T.L.R. 193

(2) *Aloyce Msella v. Consolidated Holding Corporation,* CAT - Civil Appeal number11 of 2002 (unreported)

(3) *Habiba Industries Limited and Two others v. Tanzania Investment Bank and Another,* CAT - Civil Applicaton number 159 of 2004 (unreported)

(4) *Director of Public Prosecutions v. Daudi Pete,* [1993] T.L.R. 22

(5) *Kukutia Ole Pumbun and Another v. Attorney General and another,* [1993] T.L.R. 159

(6) *Julius Ishengoma Francis Ndyanabo v. Attorney General,* [2004] T.L.R. 13

(7) *Ephraim v. Holaria Pastory and Another,* HC-MZA-(PC) Civil Appeal number 70 of 1989 (unreported)

(8) *D.P.P. v. Ally Haji Ahmed and Ten others,* CAT - Criminal Appeals number 44 and 45 of 1985 (unreported)

(9) *Maseba Gandi v. Union of India,* (1978) 2 SCR 621

(10) *Leorance Mutalindwa v. Mariadimu Edward,* [1985] T.L.R. 120.

(11) *Kabuye s/o Essore v. Mturi Nyegeri,* [1989] T.L.R. 172

(12) *Kagembo s/o Nilalita v Daudila s/o Bigura,* [1967] HCD, n.1

(13) *Scholastica Benedict v. Martin Benedict,* [1993] T.L.R. 1

(14) *Christopher Mtikila v. Attorney General,* [2006] T.L.R. 246

(15) *Attorney General v. W. K. Butambala,* [1993] T.L.R. 46

Statutory provisions referred to:

(1) The Notaries Public and Commissioners for Oath Act, Chapter 12 RE 2002, section 8

(2) The Constitution of the United Republic, Articles 12(1) and (2), 13(1), (2) and (5), 29(1) and (2), 30 (3)

(3) The Basic Rights and Duties Enforcement Act 1994, Chapter 3, RE 2002, sections 4, 8(1) and (2)

(4) The Local Customary Law (Declaration) (number 4) Order, Chapter 358 RE 2002, paragraphs, 1-3, 5, 19-23, 25, 27 – 38, 41, 42, 44, 47-51

(5) The Judicature and Application of Laws Act, Chapter 358 RE 2002, section 12

Ms Genevieve Kato and twelve others, for the Petitioners

JUDGEMENT OF THE COURT

(Dated 8 September 2006)

Mihayo, J: The two petitioners, Elizabeth Stephen and Salome Charles are both widows. They have filed this petition under the provisions of Article 30(3) of the Constitution of the United Republic of Tanzania

(the Constitution) sections 4,5 and 6 of the Basic Rights and Duties Enforcement Act, 1994 (the Act) *"together with any other enabling provisions of the law."* They are praying to this Court to declare unconstitutional paragraphs 1, 2, 3, 5, 19, 20, 21, 22, 23, 25, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 41, 42, 44, 47, 48, 49, 50 and 51 (the paragraphs) of the Second schedule to the Local Customary Law (Declaration) (No. 4) Order, 1963, G.N. 436 OF 1963 for violating their bask rights as guaranteed under Articles 12(1) and (2), 13 (I), (2) (4) and (5) and 24 (I) of the Constitution and various international Articles and conventions that Tanzania is a party. They are also praying to this Court to consequently strike out the said paragraphs. They are also praying for costs and any other reliefs.

The petitioners are being advocated for by a team of thirteen advocates namely, Ms Genevieve Kato, Ms Nakazael Lukio Tenga, Mr. Julius Ndyanabo, Mr. Eugene Mniwasa, Mr. Bahame Nyanduga, Mr. Alphonce Katemi, Mr. Mohamed Tibanyendera, Ms Athanasia Soka, Mr. Alex Mgongolwa, Ms Magdalena Rwebangira, Ms Jessie Mnguto, Ms. Maria Kashonda and Dr. R.W. Tenga. The respondent is the Attorney General.

Before going further, we would like to put a few matters in their proper perspective. The Basic Rights and Duties Enforcement Act, 1994 is now [cap 3 R.E. 2002]. The Local Cutomary Law (Declaration) No. 4) Order is [Cap 358 R.E. 2002] (Subsidiary Legislation). The phrase "and any other enabling provisions of the laws" is now a useless embellishment. The law has now been settled that in all applications, if one does not cite the enabling provisions of the law which give the power to the Court to do what it is requested, or if one cites the wrong provisions, the Court is not properly moved and the application would be struck out. (See (C.A) *China Heman International Cooperation Group v. Salvant K.A. Rwegasira* (1), *Aloyce Msella v. The Consolidated Holding Corporation* (2), and *M/s Habiba Industries Ltd. and& 2 others v. Tanzania Investment Bank & another* (3). The phrase may have been useful once upon a time, but surely not now.

The petition is supported by two affidavits one deponed by each applicant. For purposes of this petition the central paragraphs in the affidavit of Elizabeth Stephen are saying the following:

> 4. That I contracted a customary marriage with one Masesa Malge, now deceased, which took place in 1989 at Tambukareli Shinyanga and my husband died in 1999 and was buried at Mshikamano area in Shinyanga.
>
> 1. That during the lifetime of our marriage, my husband and I, through our joint efforts acquired several properties which later formed part of the estate of my deceased husband and one of such properties is a house situated at Tembukareli within Shinyanga township.
>
> 2. That immediately my husband died my brother in law ordered me to vacate the said house and after I had vacated he rented the same and is collecting and spending and rent collected for his personal use.
>
> 3. That my resistance to vacate the house failed because I was told that according to customary law of the Sukuma a widow and/or daughter cannot inherit the estate of her deceased husband and/or father.

On her part, Salome Charles made oath and stated the following, *inter alia*:

> 4. That on the 1 January 1999 I contracted a customary marriage with one Richard Machalo which took place at Ngokolo within Shinyanga Township and continued to live peacefully until the 28 August 2000, when my husband died.
>
> 5. That when we married, my deceased husband had already built a house at Ngokolo area within Shinyinga township and that house was the matrimonial house for lives (*sic*) in the said house together with our child.
>
> That through our joint efforts we also acquired a motor vehicle salon car (*sic*).

> That when the husband died my brother-in-law and mother-in-law ordered me to vacate the matrimonial house on the ground that I never contributed on the said house and the other properties forming the estate of the deceased therefore I had to leave and went to live in rented house.
>
> That currently the motor vehicle has been sold and the house is being rented and nothing has been allocated to both me and my child because my brother in law has taken over the whole estate for his personal use.
>
> That I lost my rights over my husbands estate because the customary laws of inheritance of the Sukuma do not allow the widowed and/or daughters to inherit estates of their beloved deceased husband/father.

The Attorney General was represented by one Alice Chingwile who deponed a counter affidavit in that behalf. We are however not sure in what capacity Alice Chingwile "swore" that counter affidavit. And, as if that is not bad enough, the counter affidavit is incurably defective for offending the provisions of section 8 of the Notaries Public and Commisioners for Oaths Act [Chapter 12 R.E. 2002] which has this to say:

> 8 Every Notary Public and Commissioner for Oaths before whom any oath or affidavit is taken or made under this Act shall state truly in the jurat of attestation at what place and on what date the oath or affidavit is taken or made.

The counter affidavit in question does not show the place and the date, it was made nor taken. This document therefore is a nothing and we so hold.

The hearing of this petition was conducted by way of written submissions. Learned counsel for he petitioners argued in effect, that by operation of the impugned provisions of the Local Customary Law (Declaration) (number 4), Order, 1963, (the Order) the petitioners have been denied to benefit from their late husbands' estates and to participate in the administration of the estates.

Learned counsel for the petitioners opened their arguments by referring the Court to the general principles governing constitutional interpretations as held in the cases of *Director of Public Prosecution v. Daudi Pete* (4); *Kukutia Ole Pumburn and Another v. Attorney General and Another* (5) and *Julius Ishengoma Francis Ndyanabo v. Attorney General* (6). They concluded by saying that the provisions touching on fundamental rights should be interpreted in a broad and liberal manner so as to ensure the peoples' enjoyment of these rights.

First, learned counsel submitted that the impugned provisions are unconstitutional because they discriminate women on the basis of gender. They violate human rights principles against discrimination, equality and equal protection as guaranteed under Articles 12(i), (2) 13(i) and 29(i) and (2) of the Constitution, because the impugned provisions are discriminative as defined in Article 13(5) of the Constitution.

The advocates for the Petitioners carried us through the impugned provisions. On paragraph i, which reads:

Urithi kufuata upande wa ukoo wa kiume

Learned counsel said the paragraph discriminates against women and has the effect of giving an impression that family property is entirely owned by men. Further, they said that this provision binds people into a clan without considering that wives do not belong to that clan.

Secondly counsel attacked the provisions under paragraphs 27, 47, 48 and 49 the totality of which deny women equitable share of inheritance because:

> widows are not allowed to inherit from the estate of their husbands (27) mothers are not allowed to inherit from their sons (47) uncles are given preference (48) and male relatives are given preference over females and discrimination of widows *vis-a-vis* the female members of the deceased husband's clan (49).

Thirdly counsel for the petitioners complained about paragraphs 20, 31 and 51. Learned counsel said these limit women to conduct their ways of life. Under paragraphs 20 and 31 women are not allowed to dispose clan land, they are forced to be perpetual dependants of their children and male relatives while men are not. Moreover widows are practically forced to marry a clan member to enable her to reside in the matrimonial house, otherwise, marrying a male outside that clan will most likely result into her being kicked our of the home.

Fourthly they complained about paragraphs 19, 22, 23, 25, 30, 32, 33, 34 and 35. These, learned counsel submitted, are discriminatory as they propagate the beliefs about the inferior state of women. The law places heirs in classes, the women in the last class their age notwithstanding. And as per paragraphs 2, 3, 5 and 29, the men are given the duty to administer the estate of the deceased.

Learned counsel referred the Court to the next set of paragraphs as 38, 41, 42 and 44 where men are given the right to legitimise children and experience has shown that male children are legitimized more than girls. However, learned counsel said, women are not allowed to legitimize heir illegitimate children. And finally, that there is no equality of inheritance among the children irrespective of gender and age which operates in favour of older male children.

All these paragraphs fall within the ambit of discrimination as defined in Article 13(5) of the Constitution, learned counsel went on to submit and sought to move the Court under Article 30(3) of the Constitution to adjudicate on the matter before it.

The advocates for the petitioners also referred the Court to a litany of International Treaties (Treaties) that Tanzania has ratified which provide, among others, for the elimination of discrimination against women. They invited the Court to find that these Treaties are an additional obligation to Tanzania to enforce the fundamental rights as outlined in the Constitution as their ratification was not a mere formality. Learned counsel further told the Court that as a reason of Tanzania recognizing the right to equal protection of the

laws (*sic*) as fundamental and because Article 29(i) of the Constitution states that all citizens of the country have the right to enjoy fundamental human rights, Tanzania is bound, under Article 29(i) of the Constitution to ensure that women enjoy the rights (*sic*) to equality and equal protection or (*sic*) the laws.

Among the highlighted international treaties the Court was referred to are (1) The Convention on Elimination of All Forms of Discrimination Against Women (CEDAW) which calls upon states to remove all affronts to women (ii) The African Charter on Human and People's Rights where Article 18(3) thereof states:

> The state shall ensure the elimination of every discrimination against women and also ensure the protection of the rights of the woman and the child as stipulated in international declaration and conventions.

(iii) The convention on the Rights of the Child, which provides for the protection of children and (iv) the International Convenant on Economic Social and Culture Rights.

The advocates for the petitioners invited us to use these international treaties to interpret our laws as was done in *Ephraim v. Holaria Pastory and Another* (7) and *DPP v. Ally Haji Ahmed and 10 others* (8) where the Court of Appeal held:

> in interpreting the constitution the Courts have to take into account the provisions of the Universal Declaration of Human Rights of 1948 and other treaties which Tanzania has ratified

Learned counsel also referred the Court to other decisions from this region, Africa and India where the case of *Maseba Gandhi v. Union of India* (9) as used with approval in *Daudi Pete* (4) was referred. They concluded by saying that the Bangulore Principles of 1988 encouraged the domestic application of International Human Rights norms and invited us to act the same Finally, learned counsel prayed for the following:

(a) A declaration that the said paragraphs are null and void and are unconstitutional.

(b) That the said paragraphs be struck out.

(c) That the respondent be given specific time to amend the law accordingly.

In reply, the Attorney General started by saying that probate administrators are not beneficiaries of the estate of a deceased but rather, overseers thereof. The beneficiaries are allowed to sue administrators who misuse the estate of the deceased. The Attorney General went further and said that in the present matter, letters of administration were granted to the male family members of the deceased, but their wives never went to Court to contest such grant as they should have done.

The Attorney General took the view that had the petitioners gone to Court, they could certainly have succeeded because *"Courts have always been sympathetic"* to member of the deceased's family who have been denied their rights. He referred the Court to the case of *Leorance Mutalindwa v. Mariadimu Edward* (10). The Attorney General submitted further that the petitioners did not exhaust all available remedies before filing this petition.

The respondent concedes to the principles of human rights on non discrimination. The Attorney General went on to argue:

> In recognition of the fact that, certain groups of persons such as women and girl children are particularly vulnerable to discrimination, it has adopted corrective measures in order to safeguard their rights. One of those rights is the inclusion of the provisions in the Constitution which prohibits discrimination the basis (*sic*) of gender of other types of discrimination.

He went on to quote Articles 13(1) and 13(2) of the Constitution and concluded that as Attorney General, he is not responsible for what happened to the petitioners, because they failed to pursue their rights through the legal machinery under the civil law. It was the conclusion of the respondent that this petition be dismissed and petitioners be directed to pursue their rights through civil action.

Advocates for the petitioners countered in rejoinder that it is not the requirement of the law to exhaust every available avenue for an aggrieved person before filing a constitutional case in Court. Learned

counsel referred the Court to section 4 of the Basic Rights and Duties Enforcement Act, 1994 and argued that the section does not place any restriction that a person shall only come to this Court in a constitutional matter when he/she has exhausted all available remedies.

On the submission that Courts have always been sympathetic to women as was shown in the *Mutalindwa* case (10) learned counsel submitted that that was judicial activism which depended on the presiding judge. For example they said, in the case of *Kabuya s/o Essore v. Mturi Nyegeri* (11) the Court upheld the impugned customary law to be applicable. The Court was further referred to the case of *Kagombo s/o Nitalita v. Daudila d/o Bigura* (12) and a Court of Appel decision in the case of *Scholastica Benedict v. Martin Benedict* (13) where the Court was not sympathetic and applied rule 27 literally. Learned counsel for the petitioners repeated their prayers as stated above.

We would wish to state it from the outset that we acknowledge the serious work and research put in by learned counsel for the petitioners. They assisted us a great deal.

This is a constitutional dispute and like in all disputes of this nature, certain principles have to be applied. These principles have evolved through case law and are now fully embedded in our jurisprudence. Therefore constitutional interpretation principles as stated in *Daudi Pete (*4), *Kukutia Ole Pumbun* (5) *and Julius Francis Ndyanabo* (6) are now settled and need no repetition. For purposes of this petition, we wish also to add a few others. These were stated in a recent decision of this Court in *Christopher Mtikila v. The Attorney General Misc.* (14) as:

> (i) A Constitution must not be construed in isolation, but in its context which includes the history and background to the adoption of the Constitution itself.
>
> (ii) Courts do accept that civilization owes quite as much to those who limit freedom as to those who expand it.

> (iii) Until the contrary is proved, legislation is presumed to be constitutional. If possible a legislation should receive such construction should receive such construction as will make it operative and not inoperative.

But we should always bear in mind that not every infringement of basis rights should be declared unconstitutional. The Court of Appeal in *Attorney General v. W.K. Butambala* (15) said at page 51 (Makame, J.A).

> We need hardly say that our Constitution is a serious and solemn document. We think that invoking it and knocking down laws or portions of them should be reserved for appropriate and really momentous occasions. Things which can easily be taken up by administration initiative are best pursued in that manner.

Nine years latter the Basic Rights and Duties Enforcement Act (the Act) [Chapter 3, R.E. 2002] was enacted. Section 8(2) of the Act has this to say:

> 8(1) ....
>
> (2) The High Court shall not exercise its powers under this section if it is satisfied that adequate means or redress for the contravention alleged are or have been available to the person concerned under any other law, or that the application is merely frivolous or vexatious.

The powers stated in section 8 are provided in paragraph (a) of sub section (1) of that section which says:

> 8(1) The High Court shall have and may exercise original jurisdiction:
>
> (a) To hear and determine any Application made by any person in pursuance of section 4.

It may be proper at this stage to revisit section 4 of the Act which was a subject of interpretation in the arguments filed. This section says:

> 4. If any person alleges that any of the provisions of sections 12 to 29 of the Constitution has been, is being or is likely to be contravened

> in relation to him, he may, without prejudice to any other action with respect to this same matter that is lawfully available apply to the High Court for redress.

It appears to us that whereas under section 4, an aggrieved person may take two avenues for redress, this is qualified under section 8(2). If the Court is satisfied that other avenues for redress are or have been available those avenues had better be exhausted first before one comes to Court. We are satisfied that this is good for two main reasons. First, to preserve the sacrosanct nature of the Constitution and to bring to Court only matters of great importance and leave the rest to be dealt with by other authorities.

Luckily, the issues in this petition are common ground. That the impugned provisions under the Order are discriminatory is not contested. That the impugned paragraphs under the Order place women as inferior to men is also not very much contested. It is also common ground that those paragraphs give preferential protection of men than women under the law. For example, under paragraphs 20, 31 and 51, the options of women to conduct their way of life are limited.

The Attorney General argued that our Courts have always been sympathetic to members of the deceased family who have been denied their rights to the estates of their husbands or fathers, referring to the *Mutalindwa* case (10). We have gone through that judgment. The part of the judgment that impressed the Attorney General is where this Court (Katiti, J.) was deciding the issue as to whether a female has legal competence to dispose of clan-*shamba*. This Court said, *inter alia*:

> But I would like to add, may be in passing, that at any one time, we may have bad as well as good law, and I venture to say, without qualms, that this piece of customary law is bad, it discriminates against women, encourages expansionist greed on the part of males against female relative, and deprives female important resources for self assistance....

We would wish to agree with learned counsel for petitioners that the decision in *Mutalindwa* was not out of sympathy but rather, the learned judge took what he thought was a fair and just position.

If we may pose and state this, Courts will very rarely, and in unique situation act on sympathy, usually in matters where the Court is required to use its direction in arriving at a decision. Courts will always administer the law, even if heavens fall. In administering the law, sometimes, Courts use the principles of equity, which is defined in the **Black's Dictionary**, (7 ed) at page 560 as follows:

> The recource to principles of justice to correct or supplement the law as applied to particular circumstances – the judge decided the case by equity because the statute did not fully address the issue.

It is therefore not correct to say that the Court in *Mutalindwa* acted with sympathy. And in any case, the petitioners' learned counsel came up with a barrage of authorities showing that Courts have always stuck to the letters of the law.

After agreeing that the impugned paragraphs are discriminatory in more ways than one we have thought whether it will be in the best interest to give the orders prayed for. In reaching our decision, we are guided by a number of factors. We are aware that what the Order did was to declare and recognize some of the customs of the people which were there for many years before. These customs evolve and change with time, a process that does not end, nor can it be ended.

In some matrilineal societies today, uncles are running away from schooling their sister's children in favour of the children's biological fathers. In the Wasukuma tribe fifteen years ago the daughter of your aunt was called aunt number two. Now, she is called a cousin like in other tribes. There are tribes where at one time, cousins could marry, a custom now dead and buried. The wave of inter-marriages between tribes and races has dealt a serious blow to some and in fact, many, of our customs. A good number of these are dead and others are dying.

What we are saying is this. It is impossible to effect customary change by judicial pronouncements. A legal decision must be able to take immediate effect, unless overturned by a higher Court. For customs and customary law, it would be dangerous and may create chaos if Courts were to make judicial pronouncements on their Constitutionality. This will be opening the pandora's box, with all seemingly discriminative customs from our 120 tribes plus following the same path.

The legislature saw this danger and in its wisdom, came up with section 12 of the Judicature and Application of Laws Act [Chapter 358 R.E. 2002] which has this to say:

> 12(1) A district council may, and where the Minister so requires shall, record in writing a declaration of what in the opinion of the Council is the local customary law relating to any subject either as applying throughout the area of the council or in any specific part thereof, and submit such declaration to the Minister.
>
> A district council may, if in the opinion of the council it is expedient for the good government and welfare of the area, submit for the consideration of the Minister a recommendation for the modification of any customary law, whether or not a declaration has been recorded.
>
> If the Minister is satisfied that a declaration recorded under sub section (1) accurately records the local customary law with respect to the subject to which it relates, or that a modification recommended under subsection (2) is expedient and that such local customary law or modification is not incompatible in its terms or by necessary implication with any written law, he may by order direct such declaration or such modification to be the local customary law in respect of the subject and within the area to which it relates and shall cause such declaration or modication to be published in such manner as he may deem expedient.
>
> Notwithstanding the foregoing provisions of this section, no declaration or modication shall include any provision purporting to declare any act or omission criminal, and the Minister may amend any declaration deemed to have been made under this section in order to remove any such provision.
>
> ..... [not relevant]

We are of the considered opinion that the provisions of the foregoing section would provide the best avenue to remedy the situation now complained of. The advantage of this avenue is that it will start from the grass roots where any custom is felt and a decision will be acceptable and implementable by the majority.

On the foregoing and the reasons we have given, we decline to grant the order prayed for and advise that for now, as regards the petitioners, the normal legal process of administration of deceased's estates be followed. We make no order as to costs.

ABDUL – KARIM HAJI *v.* RAYMOND NCHIMBI ALOIS AND JOSEPH SITA JOSEPH

COURT OF APPEAL OF TANZANIA
AT ZANZIBAR

(Mroso, Nsekela and Msoffe, JJA)

CIVIL APPEAL No. 99 OF 2004

(From the judgment and decree of the High Court of Zanzibar at Vuga, Kihio, J. dated 25 March 2004 in Civil Case number 33 of 2003)

Civil Practice and Procedure – Burden of Proof – Malicious Prosecution – Respondents failed to marshal strong and reliable evidence in the Trial Court to prove that appellant had maliciously prosecuted them – Whether Trial Court was entitled to find in favour of the respondents.

The appellant owned a shop in Mlandege, Zanzibar. The shop was broken into and TZS. 3 600 000 cash was stolen from therein. He reported the theft to the police. Subsequently, the police arrested the respondents. The police requested the appellant to take the respondents in his motor vehicle to the police station. The respondents were then taken to Court where they were charged with shop-breaking and theft. After several adjournments for the reason that investigations were incomplete, the police finally withdrew the charges under section 81(a) of the Criminal Procedure Decree, Chapter 14. The Trial Court set free the respondents because witnesses were not cooperating with the police. After being set free the respondents filed a case of malicious prosecution against the appellant in the High Court. Key witnesses for the respondents were not summoned to testify. The Trial Court held in favour of the respondents. On appeal;

Held: (i) The respondents having failed to adduce threshold evidence in their case in the High Court it is difficult for us to understand how the High Court could reach the conclusions it did, that the respondents had established their case against the appellant.

(ii) It is an elementary principle that he who alleges is the one responsible to prove his allegations.

Appeal allowed

Statutory provisions referred to:

(1) Criminal Procedure Decree, Chapter 14 section 81(a)

Zanzibar M.M. Chambers Advocates for the appellant

JUDGMENT OF THE COURT

(Dated 17 November 2006)

Mroso, JA: This is an appeal in a case of malicious prosecution which had been filed in the High Court of Zanzibar. The respondents were the plaintiffs at the trial and the appellant, the defendant. The trial High Court gave judgment in favour of the respondents. The appellant was dissatisfied and has appealed to this Court.

At the hearing of this appeal the appellant was represented by the Zanzibar M. M. Chambers, Advocates and the second respondent appeared in person. The first respondent who could not be traced for normal service had to be served by a substituted procedure in which, by order of this Court, a notice of hearing had to be published both in newspapers and on the radio. Brief facts of the case which led to this appeal may be helpful.

The appellant owned a shop in Mlandege area of Zanzibar. Among other things he stocked bicycles and bicycle parts. During the night of 14 August 2002 the shop was broken into and shillings 3 600 000 cash was stolen from therein. He reported the theft to the police. Subsequently the police arrested the respondents. The police requested the appellant to take the respondents in his motor vehicle to the police station. The respondents were then taken to Court where they were charged with shop-breaking and theft.

After several adjournments for the reason that investigations were incomplete, the police finally informed the Court that investigations were "incompleted, (*sic*) yet witnesses are not cooperative. We pray for withdrawal u/section 81(a) Chapter 14". The Court recorded as follows:

Court: (1) Prayal (*sic*) (s) granted.

(2) Withdrawn u/section 81(a) Chapter 14.

(3) Accuseds (3) befell (*sic*) a tribert foithruth

Sgd: H. Sh. Pandu, DM

4 February 2003

The Trial Court set free the respondents because witnesses were not cooperating with the police.

After being set free the respondents filed a case of malicious prosecution against the appellant in the High Court. They claimed a total of shillings 15 000 000 as damages. Paragraphs 4 and 5 of the plaint which was in Kiswahili read as follows:

4. Kwamba, mnano tarehe 14 August 2002, Mdaiwa ambaye anaishi jirani na Wadai alipeleka katika Kituo cha Polisi Madema taarifa zisizo sahihi za kuwa Wadai wamevunja duka lake lililopo hapo Mlandege na kumuibia fedha taslim TZS. Milioni tatu laki sita (TZS. 3 600 000) jambo ambalo halikuwa na ukweli wowote.

5. Kwamba, Mdaiwa bila kufanya utafiti wowote ambapo moja kwa moja aliwatuhumu Wadai, hivyo kwa kutumia gari lake akiwa amefuatana na askari polisi aliwachukua wadai hadi kituo cha Polisi Madema ambapo waliwekwa huko na baada ya wiki moja walifikishwa Mahakamani Mwanakwerekwe na kushitakiwa katika Mahakama ya Wilaya na kesi ya jinai number 1599/2002 kwa kosa la kuvunja duka na kuiba, na baadae kupelekwa Rumande....

It was further alleged that because the appellant did not have evidence against the respondents and had failed to cooperate with the police the charge was withdrawn. The appellant in his written statement of defence denied all those allegations. At the trial two of the framed issues are pertinent. Issue number1 as framed read:

1. Whether the defendant was the one who reported at the police station Madema that the plaintiffs did break into his (defendant's) shop situated at Mlandege and steal TZS. 3 600 000.

Issues number 3 read:

3. Whether the charge against the plaintiffs was withdrawn at Mwanakwerekwe District Court on grounds that the defendant has no evidence which connected the plaintiffs with the alleged criminalities and further that he has no cooperation with the police.

In dealing with those issues the learned trial judge said of the first issue:

> The evidence of the defendant (DW1) to the effect that he did not report at the police station that the plaintiffs were the ones who broke into the shop and stole his money is not corroborated by any evidence from independent witness. In view of the evidence of PW1, PW2 and PW3, I am of the opinion that the evidence of the plaintiffs side is stronger than the evidence on the defendants side in the issue. It is also important to mention that even in the defendant's defence the defendant admitted that he was the one who reported at the police station Madema that the plaintiffs did break into his shop situated at Mlandege and stole TZS. 3 600 000 and so this issue was framed by oversight (*sic*).

The High Court then proceeded to find that on a balance of probabilities of the defendant (now appellant) reported to the police at Madema that it was the respondents who broke into the shop and stole TZS. 3 600 000.

Regarding the third issue the Trial Court said:

> .... in the absence of any evidence challenging the evidence of PW1 and PW2 I find no reason for disbelieving PW1 and PW2 to the effect that the prosecution withdrew the Criminal Case ... because the defendant was not cooperating with the police to ensure that investigation was complete. In my considered views, the defendant did not cooperate with the police to ensure that investigation was completed and the case finally determined because the defendant had no evidence which connected the plaintiffs with the alleged criminality.

The third issue, therefore, was answered in the affirmative. The appellant has filed five grounds of appeal and since they are not very lengthy, we have taken the liberty to quote them in full. They read as follows:

1. That the learned Judge erred in law in entering judgment in favour of the respondents without the required evidence in support thereof.
2. That the learned Judge erred in law in treating English criminal case procedure as analogous to our own.
3. That the learned Judge erred in law in not holding that the prosecution here is controlled by the Director of Public Prosecution or through his juniors and the appellant is not one of them.
4. That the learned Judge erred in law in shifting the burden of proof by requiring the appellant to disprove the suit.
5. Generally the judgment and decree is against the weight of the evidence.

The very first question to consider is whether the appellant initiated the prosecution of the respondents and we think we will not need to go further than that in deciding this appeal. That is to say, we will essentially dispose of this appeal on the facts. The learned trial judge either misconstrued the facts or allowed his imagination to take the better of him.

There was absolutely no credible evidence that the appellant reported to the police that the appellants broke into his shop and stole money from it. There was also no credible evidence that the criminal case in the District Court was withdrawn under section 81(a) of Chapter 14 because the appellant failed or refused to cooperate with the police who were investigating the offence. Therefore, the findings of fact by the Judge on issues (1) and (3) as indicated above were unfounded.

Five witnesses gave evidence for the respondents. The first respondent gave evidence as PW1. He said in his evidence that he was arrested by the police 12 days after the day the appellant's shop was broken into. He was taken to the police station in a car belonging to the appellant and which was being driven by the appellant. The appellant was then talking to a cellphone. Two days later the police recorded his statement. He alleged that the police informed him that the appellant had reported to the police that he (the first respondent) and others stole the money from the shop. He also said in his evidence that on a later date, after he had been charged in Court, the prosecution withdrew the case because it had dragged on for a long time and that the appellant was not cooperating with the police to ensure that investigations were completed.

The second respondent as PW2 at the trial was arrested by the police who had been talking with the appellant at 8:00am on the same day of the theft. The police told him that he (second respondent) had stolen money at appellant's shop.

PW3 – Martha Kayanda merely testified that the police who were accompanied by the appellant came to where she lived and inquired

about the first respondent. But as the first respondent was not present the police came for him on two other occasions and finally met him and arrested him. They took him away in appellant's motor vehicle and that the appellant was talking to a cell phone. We are being made to believe that each time either of the respondents was being arrested, the appellant would be found talking to a cellphone!

PW4 – Mohamed Suleiman simply told the Trial Court that he knew the first respondent. Thomas Bakari was the fifth witness for the respondents. He testified that he saw the police arresting the second respondent and they took him away in a black car. He did not say that the car belonged to the appellant although he knew him, or that the appellant was present at the scene.

That was all the substantive evidence which was given with a view to proving the case for the respondents and against the appellant.

For his part the appellant said in his evidence that after he found out that money had been stolen from his shop he reported to the police and took his watchman to the police station. The police also recorded his statement and he did not tell the police he suspected the respondents. On another day the police asked him for transport as they had arrested suspects. He handed his motor vehicle to his driver who drove away with the policemen. After the suspects had been arrested he went to the police station to make a follow-up and the police told him they would call him when they needed him. They never called him thereafter and he did not even know that the police had charged the respondents in Court. He did not help the police in their investigation of the case against the respondents. He did not know the person who gave the names of the respondents to the police and he was not present when the police arrested the respondents nor was he talking to a cell phone at the time of their arrest.

It will be noted that no policeman was called as a witness by either party to tell the Trial Court how they got to know that the respondents were suspects in the theft case and the appellant's statement to the police was not put in evidence in order to establish if he had

named the appellants as suspects or had named any person at all as a suspect.

The District Court record we quoted earlier in this judgments regarding the withdrawal of the charge against the respondents did not show that it was the appellant who had caused the delay in the finalization of the investigations in the criminal case. The prosecutor who made the application to withdraw the charge was not called by the respondents to elaborate on his application, whether the appellant had been requested by the investigating officers to assist in furthering the police investigations but refused to cooperate. The policemen who allegedly told the first respondent that it was the appellant who gave to the police the names of the respondents as suspects was not called to confirm the allegations of the first respondent.

It will be seen from the discussion of the evidence which was given at the trial and in the High Court that there is not a scintilla of truth in the claims that the appellant caused the prosecution of the respondents even by giving their names to the police as possible suspects in the breaking and stealing from his shop. What can be deduced is that the police, in the course of their investigations, arrested the respondents as suspects. Possible witnesses did not help the police to marshall relevant evidence and they gave up the attempt to prosecute the respondents.

The respondents having failed to adduce threshold evidence in their case in the High Court it is difficult for us to understand how the High Court could reach the conclusion it did, that the respondents had established their case against the appellant. It is an elementary principle that he who alleges is the one responsible to prove his allegations.

What we have said so far is enough for us to end this judgment and it is a waste of time, energy and paper to discuss the other grounds of appeal. We quash the High Court judgment and allow the appeal with costs.

DIRECTOR OF PUBLIC PROSECUTIONS *v.* SHIRAZI MOHAMED SHARIF

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Mroso, Nsekela and Msoffe, JJA)

CRIMINAL APPEAL No. 184 OF 2005

(From the Judgment of the High Court of Zanzibar at Vuga, Mbarouk, J., dated 12 May 2005, in Criminal Appeal number 19 of 2004)

Evidence – Exhibits – Mishandling of exhibits – Exhibits alleged to be dangerous drugs held and not accounted for by the prosecution for five days – Whether charge of possession of dangerous drugs proved beyond reasonable doubt.

The respondent was charged with and convicted of possession of dangerous drugs and sentenced to 20 years imprisonment. He successfully appealed to the High Court on the ground that the prosecution had not proved its case beyond reasonable doubt. The appellant (DPP), aggrieved by the High Court decision, appealed to the Court of Appeal. Amongst other issues raised, the Court considered the manner in which the exhibits were mishandled, and could not be fully accounted for all the time.

Held: The fact that the seized drugs were, for about five days, not accounted for and no explanation was given by the prosecution witness is not a minor irregularity and, therefore, the case was not proved beyond reasonable doubt.

Appeal dismissed

Cases referred to:

(1) *Yohannis Msigwa v. R.* [1990] T.L.R. 148

(2) *Tuwamoi v. Uganda* [1961] EA 84

(3) *Magendo Paul and Another v. R.* [1993] T.L.R. 219

(4) *Moses Muhagama Laurence v. Government of Zanzibar,* Court of Appeal, Criminal Appeal number 17 of 2002 (unreported)

Mr. Shaaban Ramadhani Abdalla and *Miss Raya Mselem* for the appellant

JUDGMENT OF THE COURT

(Dated 17 November 2006)

Nsekela, JA: In the Court of the Regional magistrate at Vuga, Zanzibar, the respondent Shiraz Mohamed Sharif alias Jamal Masoud Ali, was charged with the offence of possession of dangerous drugs contrary to sections 25 and 32 (1) of the Dangerous Drugs Act 1986, Act number 6 of 1986 as amended by Act number 6 of 1991. He was convicted and sentenced to twenty (20) years imprisonment. He successfully appealed to the High Court, Zanzibar (Mbarouk, J.) on the ground that the prosecution had not proved its case beyond all reasonable doubt. The appellant, the Director of Public Prosecutions was aggrieved by this decision, hence this appeal to the Court.

At the hearing of the appeal, the appellant was represented by Mr. Shaaban Ramadhani Abdallah assisted by Miss Raya Mselem, learned stated attorneys. The respondent was absent but the hearing of the appeal proceeded in terms of Rule 73(6) of the Court of Appeal Rules, 1979, since the respondent was served with notice of the hearing date by substituted service by publication in Nipashe Newspaper as ordered by the Court on the 2 December 2002. The appellant Director of Public Prosecutions preferred four grounds of appeal:

1. That the Honourable Judge erred in law on acquitting the appellant (*sic*) and disregarding the evidence of the eye witnesses;
2. That the Honourable Judge erred in law on acquitted the appellant (*sic*) basing his decision on the number of witnesses instead of the strength of their evidence and their credibility;
3. That the Hon.ourableJudge erred in law on acquitting the appellant (*sic*) without giving any consideration to the voluntary statement of the accused (*sic*);

4. That the Honourable Judge erred by deciding that the prosecution failed to prove the case against the accused (*sic*) beyond any reasonable doubt and so acquitting.

Mr. Shaaban Ramadhani Abdallah argued the first two grounds of appeal together while the third and fourth grounds were each argued separately.

In the first two grounds of appeal, the appellant's complaint mainly revolved around the testimony of PW4 Z. 1842 D/Sgt. Mbarouk; PW5 C. 8573 Cpl. Khamis and PW6 D. Cpl. Hamza Haji. The complaint by the learned State Attorney was to the effect that the learned judge on first appeal did not evaluate their evidence and assess their credibility. He strenuously submitted that these were credible eye witnesses whose evidence should have been acted upon by the High Court. They witnessed at different times the respondent excrete the dangerous drugs from his bowels. To bolster up his case, the learned State Attorney cited section 134 of the Evidence Decree, Cap5 to the effect that what matters is not the number of witnesses but the quality of their testimony. He also referred to the case of *Yohannis Msigwa v. R.* (1). In a nutshell, he submitted that the testimony of PW4; PW5 and PW6 was strong and convincing and the learned judge on first appeal should not have entertained any doubts on their evidence as he did. The learned State Attorney also stated that there was an independent witness, one Mr. Amour.

The third ground of appeal related to the voluntary confession of the respondent. He submitted that the High Court did not advance any reasons for not considering and acting upon that evidence. In support of his submission, he cited the case of *Tuwamoi v. Uganda* (2) at page 90 C-D. As regards the last ground of appeal, the learned State Attorney faulted the learned judge in doubting the prosecution evidence. Again he submitted that the doubts were not strong enough, as he put it, to warrant the acquittal of the respondent. The learned state attorney submitted that there was strong evidence on the record and the case was proved beyond all reasonable doubt, citing the case of *Magendo Paul and another v. R.* (3).

We propose to start with the first, second and fourth grounds of appeal. Essentially, they cover the same ground of complaint. The learned State Attorney has challenged the learned judge's evaluation of the evidence that led to casting doubts on the cogency of the prosecution evidence. The learned judge lamented the absence of independent witnesses, and in particular one Mr. Amour, to testify befor the Trial Court. He also questioned why witnesses were not summoned to testify on how police exhibits are recorded and kept for safe custody. This led the learned judge to entertain some doubts on the possibility of tampering with the tablets/capsules recovered from the respondent.

The sequence of events from the time the respondent was in the hands of PW4; PW5 and PW6 to the time PW7 was given a packet containing the tablets/capsules of allegedly dangerous drugs need close scrutiny. PW4 testified that he witnessed the respondent at various times during the night of 7 May 2002 excrete thirty (30) tablets/capsules. On the morning of 8 May 2002, he handed over the respondent who was under his custody, including the excereted tablets/capsules to PW5. On this day the respondent excreted more tablets/capsules in the presence of PW5, who in turn handed over the respondent including a total of eighty five (85) tables/capsules to PW6. On the 13 May 2002, on orders from an undisclosed "boss" the tablets/capsules were counted, sealed and then put in a yellow plastic bag in the presence of the respondent and one Mr. Amour and then handed over to PW7. If we pause here for a moment, it is not known to whom PW6 handed the tablets/capsules on the 8 May 2002. What emerges from the evidence however is that on the 13 May 2002 the said tablets/capsules were counted in the presence of PW6, the respondent and Mr. Amour on instructions from the "boss" who was no disclosed by name. They were given to PW7 D. 5023 Sgt. Juma Amir who was then detailed to investigate the case. Thus from the 8 May 2002 to13 May 2002, it is not known who had the custody of these eighty five (85) allegedly dangerous drugs. The prosecution failed to account for this period. The learned state Attorney

did not explain the whereabouts of these tablets during this period. As was aptly observed by this Court in *Moses Muhagama Laurence v. The Government of Zanzibar* (4).

> There is need therefore to follow carefully the handling of what was seized from the appellant up to the time of analysis by the Government Chemist of what was believed to have been found on the appellant.

How did the trial magistrate deal with this issue. With respect, we can do no better than quote part of his judgment. He stated as follows:

> On the question of mishandling the exhibit, that is not in accordance to PGO 228 and 283, the Court is of the view that as the prosecution witnesses told the Court that they do not know the notebook or that the procedure was not followed or not, but let assume that the procedure was not followed of recording, the handling of the exhibit still it is the view of this Court that it is the question of believing PW4 and PW5 that what they found from the accused is what they gave to Pw6, *I cannot rule out completely the possibility of mixing up the exhibits*, but in the absence of clear evidence, the Court cannot merely rely on that omission to record, as also it is the view of this Court that this is a minor irregularity of which in the absence of clear evidence, the Court cannot rely on it, that therefore they have been tampering with the exhibit by the police witnesses. [Emphasis added]

It would appear that the learned trial magistrate was looking for what he called "clear evidence" of tampering with the tablets/capsules. The trial magistrate on the evidence as he saw it, entertained doubts that there was a possibility of tampering with the tablets/capsules. There was no evidence that police procedures in their internal regulations were followed. This is a serious matter. The trial magistrate did not discuss the fact that these same witnesses did not account for the whereabouts of the tablets/capsules from the 8 May 2002 to the 13 May 2002 when they were handed over to PW7. These are not by any stretch of imagination "minor irregularities". Compliance with internal police procedures was essential to ensure that the movement of the tablets was monitored to exclude the possibility of tampering

of the evidence to the detriment of the respondent. We would like to stress the fact that we do not question the credibility of the witnesses up to the time they witnessed the respondent excreting the tablets/capsules from his bowels. What we are saying is that the whereabouts of the tablets/capsules was not accounted for about five days and no explanation has been forthcoming from the prosecution witnesses. This is certainly not a minor irregularity as the learned trial magistrate would make us believe. With respect, like the learned judge on first appeal, for the reasons explained above, we entertain doubts that the prosecution proved its case to the required standard in criminal cases. The benefit of doubt must go to the respondent.

Lastly, the third ground of appeal attacked the learned judge for not taking into account the respondent's confession to the commission of the offence. This issue was not before the High Court as a ground of appeal and was correctly not discussed by the High Court. More importantly however, in view of the conclusion we have reached, the issue of confession becomes irrelevant.

In the result and for the above reasons, we dismiss the appeal in its entirety. It is accordingly ordered.

RAZIA JAFFER ALI v. AHMED MOHAMEDALI SEWJI AND FIVE OTHERS

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Mroso, Nsekela and Msoffe, JJA)

CIVIL APPEAL No. 63 OF 2005

(From the judgment and decree of the High Court of Zanzibar at Vuga, Mshibe Ali Bakari, J., dated 29 June 2004 in Civil Case number 49 of 2003)

Family Law – Divorce – Divorce according to Shia Moslems – Procedure of pronouncing talak – Effect of failure to follow Shia procedure.

Family Law – Damages – Damages for harassment – Proper Court to assess the damages – Guiding principles in assessing damages.

The appellant, an Indian citizen, was married to the first respondent in India in 1998 according to Islamic rites and moved to Zanzibar where the first respondent was domiciled. In 2003 the husband suffered severe stroke and paralysis. He was taken to Dar es Salaam where the appellant stayed with him until he was taken back to Zanzibar. He did not return to the matrimonial home but was taken to a home of his children. The appellant was denied access to her husband and also denied free use of the matrimonial home except one room to which she was confined, the rest being locked up. She complained of having been assaulted by some of the children on several occasions. She was denied maintenance and told that she had been divorced by her husband. She denied that her husband had ever pronounced divorce in her presence. Her jewellery and passport had also been taken away. She filed a case in the High Court of Zanzibar against her husband and five of his children claiming USD 55 000 general damages for assault and harassment, incidental costs of USD 5 000 return of her jewellery and passport, and interest on the decretal amount. The first respondent who was said to have divorced the appellant did not give evidence. The High Court decided that she had been validly divorced whether or not the Shia procedure was followed was immaterial. The suit was dismissed but costs were not ordered. She appealed to the Court of Appeal arguing, *inter alia*, that the alleged

divorce did not follow the Shia procedure in that the husband had not pronounced divorce in the presence of his wife, the appellant.

Held: (i) The procedure to be followed among Shia Moslem is important and not immaterial as the trial judge held;

(ii) For Shia divorce to be valid the husband must repudiate the marriage in the presence of his wife and in the presence of two adult witnesses; since the Shia procedure was not followed in this case there was no valid divorce;

(iii) Since there was no divorce the appellant was not entitled to payment of USD 55 000 or to an order for division of matrimonial property;

(iv) The appellant is entitled to general damages for the deprivation of conjugal rights, the denial of free use of the matrimonial house, the unwarranted dispossession of her passport and threats of deportation from Zanzibar.

Appeal partly allowed; case remitted to the High Court to assess quantum of maintenance.

Cases referred to:

(1) *Livingstone v. Rawyards Cool Co.* (1880) 5 App. Cas. 25, 39

(2) *Victoria Laundry v. Newman* [1947] 2 KB 528, 539

(3) *Davis v. Powell Duffryn Associate Colliers Ltd* [1935] 1 KB 354, 360

Mr. Mbwezeleni and *Mr. Mnkonje* for the appellant.

Mr. Mushumba for the first, second, fourth and fifth respondents.

JUDGMENT OF THE COURT

(Dated 17 November 2006)

Mroso, JA: The appellant who is an Indian citizen was married to the first respondent in India in 1998 according to Islamic rites. Both moved to Zanzibar where the first respondent was domiciled. She did not get any issues with the husband but the latter had five grown up children, some of whom are the rest of the respondents in this appeal.

While the couple were living together in Zanzibar the husband became ill in 2003. According to the appellant, the husband suffered from severe stroke and paralysis." He was taken to Dar es Salaam for treatment and the appellant stayed with him until subsequently he was taken back to Zanzibar. He did not return to the matrimonial home but was taken to a home of his children. The appellant claimed that the children denied her access to her husband. They also denied her free use of the matrimonial home. The rooms in the matrimonial house were locked up except for one room where she was confined. She claimed that some of the children assaulted her on several occasions, denied her maintenance and constantly harassed her, telling her that she had been divorced by her husband. Her jewellery was also taken away from her. Following from all this she decided to file a suit in the High Court of Zanzibar against her husband and five children of the husband. She wanted the High Court to order the husband and his children to pay her USD 55 000-00; general damages for assault and harassment; incidental costs of USD 5 000-00, return of her passport and interest on the decretal amount. The High Court, Mshibe Ali Bakari, J. decided that she had been validly divorced and should return to India. Otherwise her suit was dismissed but costs were not ordered. Aggrieved by the dismissal of her case, she has appealed to this Court.

At the hearing of the appeal the appellant who had already returned to India was represented by Mr. Mbwezeleni and Mr. Mnkonje, learned advocates. The first, second, fourth and fifth respondents were represented by Mr. Mushumba, learned advocate. The third and sixth respondents had not been served and were unrepresented. The advocates for the appellant decided to drop them from the appeal.

Six substantive grounds of appeal were filed and all except grounds four and five were argued seriatim. Grounds four and five were argued together. On the first ground it was complained that the trial judge should have found that the case had been proved against the first and fifth respondents and the second ground, that the Trial Court should have found the appellant had been assaulted and harassed and

that she had reported those incidents to the police, the Sheha and the Indian Consulate Officials. On the third ground of appeal it was claimed that the Trial Court should not have found the second respondent Amina Mohamedali Sewji, the first witness for the defence, a credible witness. On the fourth ground the appellant sought to fault the trial judge for not having found that the first respondent had not divorced the appellant in accordance with the Shia Ithnaasheri law on marriage and divorce. On the fifth ground the appellant criticized the trial judge for not rejecting a divorce certificate which was produced at the trial because it did not apply to the Shia Ithnaasheri Muslim sect. The trial judge was criticized on the sixth ground for not ordering distribution of matrimonial assets as a logical consequence of his finding that there was a valid divorce. The appellant then prayed that if the Court allowed the appeal it should "enter the Trial Court shoes and award reliefs prayed for in the plaint." Alternatively, if this Court also found that there was indeed a valid divorce, then order the division of matrimonial properties. Finally, she asked for costs both in this Court and in the Trial Court.

We have found it curious that since the appellant was disputing the claim by respondents that she had been divorced, she did not ask the Trial Court the grant a declaratory decree that her marriage to the first respondent was still intact and from such a declaration would follow such reliefs like the right to maintenance from and to cohabitation with the first respondent. Be it as it may, we now wish to consider the most crucial question whether there had been a valid divorce from the first respondent.

It is noted that the first respondent who was said to have divorced the appellant did not give evidence at the trial. Assuming he was bedridden, there could have been a request to the Trial Court to move to his bed to take his evidence unless he was too ill at the time to communicate by speech or even by gesture.

Of the respondents only the second respondent Amina Mohamedali Sewji gave evidence at the trial. The only other witness for the defence

was one Himid Omar Khamis, a Sheha. According to Amina, the appellant was divorced on 16 September 2003 but that seemed to be hearsay because she was then in Dar es Salaam. She claimed her father told her so, suggesting that the father could speak. A divorce certificate number 94 of 16 September 2003 had been obtained and was tendered in evidence at the trial. Amina further claimed that since the appellant had insisted that she should hear the talak from her husband, arrangements were made so that in the presence of an Immigration Officer, a Sheha, a Sheikh and the appellant, the husband pronounced talak three times. Later a Kadhi informed the appellant that she had been validly divorced but she insisted that she should be given a Shia divorce.

Himid Omar Khamis, the Sheha, said he was present as a witness when the husband pronounced the talak. A Maalim Suleiman Khelef was also present. The husband signed a divorce statement.

A Kadhi at Kariakoo issued a divorce certificate. During all this, there is no mention of the appellant being present. But two weeks later, according to the Sheha, the divorce was disputed apparently by a Sheikh Abbas – "Sheikh Abbas was aggrieved with that talak that it didn't follow the Shia procedure." The appellant was also aggrieved, according to the witness. On the instructions of an Immigration Officer another Immigration Officer accompanied the Sheha to the husband to ascertain if he had in fact given a talak. The husband then confirmed that he had divorced his wife.

It is pertinent that the appellant had all along disputed the divorce, insisting that it was not in accordance with the Shia sect procedure. The Trial Court said in this respect:

> Since there was evidence that the firstdefendant (the husband) pronounced the divorce before the witnesses more than three times, the said divorce is valid ....Whether the procedure was followed is immaterial. According to Islamic law as soon as the divorce is pronounced, it is a valid one although each sect has got its own procedure of confirming the said talak.

It was not disputed that the couple were members of the Shia Ithnaasheri sect of the Islamic religion. It is also apparent that the divorce procedure

which was followed was of the Sunni sect. Was it correct, as the Hight Court Judge said, that the procedure did not matter? That Islamic law provided that all that was needed was that divorce should merely be pronounced thrice?

According to the **Holy Quran** (containing the Arabic Text with English translation and Commentary) by Maulvi Muhammed Alli, Second Edition, it is provided in section 29, verse 299 as follows:

> 229 Divorce may be (pronounced) twice.....

The book – **The Islamic Law of Personal Status** by Jamal J. Nasir, Second Edition (Arab and Islamic Law Series) the Sharia law allows a marriage to be dissolved during the life-time of the parties in three forms:

> (i) by the act of the husband or wife (talal);
>
> (ii) by mutual agreement (khula or mubaarat);or
>
> (iii) by a judicial order of separation in a suit by the husband or the wife

The author says that there are three more forms which are described by the Classical Jurists, but have little practical relevance in modern days.

Mulla's Principles of Mohamedan Law, (18 ed) by M. Hidayaatullat, former Chief Justice of India, says that according to Shia Law, a divorce must be pronounced orally in the presence of competent witnesses and a talak communicated in writing is not valid unless a husband is incapable of pronouncing it orally. The book **The Five Schools of Islamic Law** Edited by Muhammad Jawad Maghniyyah, published by Anssariyan Publication says at page 385 that according to the mamiyyah (The Shia), divorce requires the pronouncement of a specific formula without which it does not take place. In addition, divorce does not take place through writing or by gesticulation, unless the divorcer is dumb. The book further says:

> ...the Imamiyaah have restricted the scope of divorce to its extreme limits and impose severe conditions regarding the divorce, the divorcee, the formula of divorce, and the witnesses to divorce. All this is because marriage is a bond of love and mercy, a covenant with God.

Regarding witnesses, al Shaykh Abu Zuhrah had observed that:

> The twelve Imami Shii legists and the Ismailiyah state: A divorce does not materialize if not witnessed by two just (adil) witnesses, in accordance with the Divine utterance regarding the rules of divorce and its pronouncement

A little earlier it is said in the Book "It is necessary that the divorce be recited in Arabic when possible." Then citing the author of al-Jawahir, himself citing a statement from al-kafi, said:

> There can be no divorce except (in the form) as narrated by Bukaya ibn A'yan, and it is this: The husband says to his wife (while she is free from menses and has not been copulated with during that period of purity). Your are divorced, and (his pronouncement) is witnessed by two just (adil) witnesses. Every other form except this one is void.

There are here the significant words "... says to his wife" which clearly indicate that the formula words have to be pronounced to his wife who would be present.

The two defence witnesses, Amina and Himid Omar Khamis conflict on this aspect in their respective evidence. While Amina said that after the first pronouncement of divorce (when she was away in Dar es Salaam) later, in the presence of witnesses (including the Sheha), the husband again pronounced the talak three times in the presence of the wife, the appellant. But no where in the evidence of the Sheha, was it said that the wife was present when the husband pronounced the divorce. The appellant categorically denied that her husband pronounced divorce in her presence. She said there was no talak at all and that she never saw the divorce certificate before seeing it in Court. According to Amina, the first respondent could speak yet, and surprisingly, he never testified at the trial, even while in bed. We accept, in view of the conflicting evidence between Amina and the Sheha, that the denial by the appellant that her husband, the first respondent, repudiated their marriage in her presence and in the presence of two adil witnesses

as correct. Consequently, we find that the High Court had no basis for finding that there was a valid divorce. The procedure to be followed among the members of the Shia Moslems is important and not immaterial as the learned High Court Judge believed. The fourth ground of appeal therefore succeeds.

Was the appellant assaulted and harassed? Apart from the appellant's word as againt Amina's, the former who had the onus to prove her claims, did not call for available evidence from the police or the Sheha to whom she claimed she reported the assaults. We think the High Court justifiably rejected the claim that Amina and others assaulted her one several occasions.

We think however that there was credible evidence of harassment. It was not seriously disputed that she was denied free access to her husband and thus depriving her the right to cohabit with and enjoy the companionship of her husband, for no valid reasons, especially because this Court found that there had not been a valid divorce. She was also deprived the full use of the matrimonial house and was confined into only one room.

It was undisputed, and the letter produced as an exhibit from the Indian Consulate General, that her jewellery would be returned to her, was proof that indeed the respondents took away her jewellery and passport for no lawful reasons. We accept that the appellant would be entitled to both special damages in respect of the jewellery and general damages for the other forms of harassment.

The claim for USD 55 000-00 was contingent on the appellant accepting that she had been divorced. But this Court has found that she had not been validly divorced, therefore, she is not entitled to that payment on the basis for which she claimed it.

The claim that her passport be restored to her must have been overtaken by events because when she traveled back to India she must have had possession of it.

The question of division of matrimonial assets on the basis that she had been divorced now no long needs an answer. But following from the decision in this appeal, since the appellant has remained a lawful wife of the first respondent, she will be entitled to maintenance from the time of the husband's separation from her by living away from the matrimonial home.

The appellant will have her jewellery restored to her if that has not yet been done already. In the event the jewellery is no longer traceable, she should get the monetary value thereof. According to her evidence, it was worth USD 500-00

On the issue of an award of general damages for the harassment she endured it is surely to be presumed to be "the direct, natural or probable consequence" of the deprivation of conjugal rights, the denial of free use of the matrimonial house, the unwarranted dispossession of her passport and the threats of deportation from Zanzibar. She averred in the plaint to the High Court that she had suffered damage and that she should be paid general damages.

Assessment of general damages is by no means easy. The High Court did not make any assessment because it found that there was neither assault nor harassment of the appellant.

In *Livingstone v. Rawyards Cool Co.* (1). Lord Blackburn said of damages to be:

> [T]hat sum of money which will put the party who has been injured, or who has suffered, in the same position as he would have been in if he had not sustained the wrong for which he is now getting his compensation or reparation.

Elaborating on that principle Asquith, L.J. in *Victoria Laundry v. Newman* (2) said that the purpose of damages is to put the plaintiff "... in the same position, so far as money can do so, as if his rights had been observed."

A Trial Court which has seen and heard the parties is certainly in a far better position to assess damages than an appellate Court can do. *Lord Wright in Davies v. Powell Duffryn Associated Colliers Ltd.* (3) referring to a decision by Greer, said:

> In effect the Court, before it interferes with an award of damages should be satisfied that the judge has acted on a wrong principle of law, or has misapprehended the facts, or has for these reasons or other reasons made a wholly erroneous estimate of the damage suffered. It is not enough that there is a balances of opinion or preference.

In the appeal before the Court we are not considering the propriety of an award of damages by the Trial Court but this excerpt quoted above merely helps to remind us that we must not misapprehend the fact and must be careful of the estimate we make of the damages. Thus, considering all the circumstances of the case we think that an award of tzs. fifteen million as general damages will meet the justice of the case.

On the maintenance, we do not have enough fact before us to enable us to decide on the quantum of maintenance. The parties may wish to go back to the High Court to be heard on this issue or file a fresh suit for it.

The appeal has been allowed to the extent indicated. The appellant will get seventy five of the taxed cost both in this Court and in the High Court.

ECO-TEC (ZANZIBAR) LTD *v.* PRINCIPAL SECRETARY, MINISTRY OF FINANCE AND ECONOMIC AFFAIRS

COURT OF APPEAL OF TANZANIA AT ZANZIBAR

(Mroso, Nsekela and Msoffe, JJA)

CIVIL APPEAL No. 85 OF 2006

(From the Ruling and Order of the High Court of Zanzibar at Vuga, Mbarouk, J., dated 9 May 2006 in Miscellaneous Civil Application number 15 of 2005)

Arbitration – Submission to arbitration – Whether a clause for submission to arbitration may be revoked – Who may revoke such a clause – section 3 of the Arbitration Decree, Chapter 25.

Arbitration – Submission to arbitration – Leave to revoke a clause to submit to arbitration – Circumstances under which Court may exercise its judicial discretion and grant leave to revoke - section 3 of the Arbitration Decree, Chapter 25.

Arbitration – Submission to arbitration – Grounds for seeking leave to revoke a submission to arbitration – Whether difficulties in raising funds to deposit with the Arbitral Tribunal is a good ground.

The appellant and respondent entered into two agreements each of which contained, in case of a dispute, a submission clause in terms of the London Court of International Arbitration Rules. Disputes having arisen in connection with the Agreements, the Arbitrators directed the parties to deposit sums of money on account of the costs of the arbitration. Having made the initial deposit the appellant failed to comply with a further direction to deposit additional funds which resulted in the Arbitrators making an "Interim Final Award" under which the appellant's claims were treated as withdrawn. The Interim Final Award prompted the appellant to apply to the High Court of Zanzibar for an order to revoke the submission clauses in the Agreements, on the ground of difficulty in raising additional funds, and to commence legal proceedings

in the ordinary Courts of law. The High Court dismissed the application, hence this appeal. The Court of Appeal considered whether or not a Court of law has power to revoke a submission clause in an agreement and the grounds under which a submission clause may be revoked.

Held: (1) Since the submission clauses were agreed upon by the parties in terms of section 3 of the Arbitration Decree, Chapter 25, a party to such an agreement can apply to the Court for leave to revoke the submission; the Court has no power to revoke a submission under section 3, it can only grant leave to a party to revoke the submission;

(2) Where the arbitration process has already been set in motion and an Interim Final Award made the appellant must make a strong case to persuade the Court to grant leave to revoke the submission to arbitration;

(3) There being a binding submission to arbitration between the parties, and although under section 3 of the Arbitration Decree, Chapter 25, the Court may, in a proper case, give leave to a party to revoke a submission to arbitration, in this case the appellant has not shown a good cause because it was fully aware of the financial implications of submitting to a foreign forum for arbitration.

Appeal dismissed

Cases referred to:

(1) *Bhuwalka Bros Ltd. v. Fatechand Mutlidhair* AIR 1952 Cal 294 at page 296

(2) *Burn Standard Co. Ltd. v. Macdormett International Inco.* AIR 1997 Cal 45 at page 1018

Statutory provisions referred to:

(1) The Arbitration Decree, Chapter 25, sections 2, 3, 14

(2) The Arbitration Act, 1940 (India), section 5

Mr. Mbwambo for the appellant

Ms Fatma Karume for the respondent

JUDGMENT OF THE COURT

(Dated 4 December 2006)

Nsekela, JA: On the 31 December 2003, the appellant, Eco-Tec (Zanzibar) Ltd, and the respondent, Principal Secretary, Ministry of Finance and Economic Affairs, entered into two agreements, (1) Consolidated Fuel Supply Agreement and (2) Strategic Fuel Storage Facility Agreement (the Agreements). In both Agreements there was an identical arbitration clause under which Arbitrators were appointed in terms of the London Court of International Arbitration Rules. Disputes having arisen in connection with the Agreements, the Arbitrators directed the parties to deposit sums of money on account of the costs of the arbitrations. The appellant made an initial deposit but failed to comply with a further direction to deposit additional funds by the 8 May 2005. As a result of such failure, on the 4 July 2005 the Arbitrators made an "Interim Final Award" under which the appellant's claims were treated as withdrawn.

Apparently, this Interim Final Award prompted the appellant to file in the High Court for Zanzibar, Misc. Application number 15 of 2005 under section 3 of the Arbitration Decree Chapter 25 and Rule 16 of the Proceedings in Arbitration Rules, GN. number 225 of 1942 and section 129 of the Civil Procedure Decree seeking from the High Court an order to revoke the submission clauses in the Agreements and allow the appellant to commence legal proceedings in the ordinary Courts of law. The High Court (Mbarouk, J.) dismissed the application with costs, and dissatisfied with the decision, the appellant now appeals to this Court.

At the hearing of the appeal, Mr. Mbwambo, learned advocate, represented the appellant and Ms. Fatma Karume, learned advocate, and appeared for the respondent. The appellant preferred four grounds of appeal:

1. That the High Court erred at law in dismissing the application for leave to revoke a submission agreement under section 3 of the Arbitration Decree on the ground that such section can only be used to revoke an award after the Court has satisfied itself that the condition to set aside an award under section 14 have been established;

2. That the High Court erred at law in refusing to allow the application for leave to revoke an arbitration agreement by holding that it has no powers in view of the authority in P.C. Mackanda's book at page 1010;

3. The High Court erred at law in not holding that failure by a party to a submission clause to meet arbitration costs constitutes sufficient cause to revoke an arbitration clause; and

4. The High Court also erred in law by not holding that marking a claim before the arbitral tribunal as withdrawn does not finally determine the matter referred to it and or extinguish the rights of the parties.

The essence of Mr. Mbwambo's application before the High Court was to revoke clauses 9(2) and 10(2) of the Consolidated Fuel Supply Agreement and the Strategic Fuel Storage Facility Agreement respectively. These provisions provided that in case of any dispute arising out of or in connection with the said Agreements, the dispute would be settled by arbitration in London under the Rules of the London Court of International Arbitration and the modalities for the appointment of arbitrators. In other words, the appellant wanted to revoke the 'submission' as defined in section 2 of the Arbitration Decree, Chapter 25. The learned judge in the Court below dealt with this matter in the following terms:

> On the other hand we have to consider that section 14 of the Arbitration Decree, Chapter 25 has given out the conditions to set aside the award as things to do with the misconduct of the arbitration or that an award has been improperly procured. For that reason, I concur with Ms. Fatma Karume, the advocate for the respondent on the point that section 3 of the Arbitration Decree, Chapter 25 can only be used to revoke an award after the Court has satisfied itself that the conditions set by section 14 of the Arbitration Decree, Chapter 25 have been established. But neither the condition of the misconduct of the arbitrators nor the condition that an award has been improperly procured has been established by the applicant in this application. The only ground which the applicant has advanced is that of his failure to provide promptly and in full the requisite deposit to the London Court of International Arbitration, which is not among the condition to set aside an award.

With great respect to the learned judge the issue before him was the revocation of a submission in terms of section 3 of the Arbitration Decree, Chapter 25. The High Court was not called upon to set aside an award at all. The appellant sought the following order:

> That this Honourable Court be pleased *to revoke the Submission Agreement* in the Strategic Fuel Storage Facility in Zanzibar Agreement and Consolidated Fuel Supply Agreement between the Applicant and First Respondent both dated 31 March 2000 and allow the Applicant to commence legal proceedings in the ordinary Courts of law. [emphasis added]

The issue before the Court below was simply the revocation of the submission under section 3 of the Arbitration Decree and not setting aside an Award under section 14 of the Arbitration Decree, Chapter 25. We have no hesitation in allowing the first ground of appeal. It was erroneous for the Court below to dismiss the application under section 14, as it did.

In terms of section 2 of the Arbitration Decree, a submission means a written agreement to submit present or future differences to arbitration. In the context of this appeal, the submission comprised clauses 9(2) and 10(2) of the Agreements. These are the clauses that the appellant wanted to be revoked, but these clauses were agreed upon by the appellant and the respondent. In terms of section 3 of the Arbitration Decree, Chapter 25 a party to such an agreement can apply to the Court seeking leave to revoke the submission. The Court has no power to revoke a submission under section 3, it can only grant leave to a party to revoke the submission. The application

before the Court below was to enable the appellant to be granted leave to revoke the submission. The parties to the Agreements had agreed on the modalities of the appointment of arbitrators. Hence, in the application before the High Court, the appellant in effect wanted to be granted leave to revoke the appointment of the arbitrators as well. The answer to the second ground of appeal depends on how the third ground is answered.

We now come to the third ground of appeal. The appellant sought leave to revoke the submission essentially on the grounds contained in the affidavit of one Soud H. Soud, a principal officer of the appellant. Since the outcome of this appeal will depend largely on its contents, we propose to quote its operative part in extensor. It reads as follows:

> 3. Pursuant to the provisions of clauses 10 and 9 of the two respective agreements the parties agreed to refer any dispute arising out of or in connection with the said agreements to arbitration in London under the Rules of the London Court of International Arbitration "LCIA".
>
> 4. Sometimes in 2003 disputes arose between the parties and the applicant referred the same to the LCIA Court as Arbitrations numbers 3498 and 3525.
>
> 5. Pursuant to the LCIA Rules the LCIA Court is entitled to direct the parties to arbitration proceedings to make one or several interim or final payments/deposits on account of the costs of the arbitration. Further that the Arbitration Tribunal shall not proceed with the arbitration without ascertaining at all times that the LCIA is in requisite funds. Failure by a party to provide funds promptly and in full the requisite deposit entitles the LCIA Court and the Arbitration Tribunal to treat that party's claims and counterclaims as withdrawn.
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> 6. During the course of the arbitration proceedings the LCIA Court directed the applicant and respondent to provide funds on account of the deposit on several occasions. The applicant made payments on account of such requests promptly and in full.

> 7. On 20 January 2005, the LCIA Court directed the parties to make a further advance on the account of the deposit in the sum of GBP 150 000 (i.e. a total sum of GBP 300 000).
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> 8. The funds requested by the LCIA on 20 January 2005 were beyond what the parties and the applicant in particular, foresaw when they entered into these submission agreements.
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> 9. In view of the amount requested, the applicant made an application for stay of the Arbitration Proceedings in order to enable the applicant to collect funds on account of its share of the deposit. By a procedural Order dated 9 February 2005, the Arbitration Tribunal stayed the Arbitration Proceedings and gave the applicant until 8 May 2005 to provide funds in respect of its share of the deposit.
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> 10. Despite the additional period of time granted to the applicant to collect funds on account of the deposit the applicant was unable to collect the full amount requested by the Tribunal by 8 May 2005. As a result the LCIA Court and the Arbitration Tribunal declare the applicant's claims and counterclaims are marked withdrawn.
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> 11. Because of such an unfortunate event the applicants' rights are yet to be determined by a competent tribunal and or Court of law.
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> 12. Since the applicant is incapable of meeting the higher costs of arbitration, I am advised by my lawyers m/s Law Associates, Advocates that the only remedy available is ask for leave of this Honourable Court to revoke the submission in the two agreements".

In elaboration, Mr. Mbwambo submitted that in terms of the Arbitration Rules, the parties were enjoined to deposit funds with the Arbitration Court in order to meet arbitration costs. The appellant failed to comply with these Rules resulting in the Arbitrators making a Final Interim Award to the effect that the appellant's claim was treated as withdrawn. The core reason was insufficiency of funds to meet arbitration costs. Ms. Fatma Karume, learned advocate for the respondent, submitted that the appellant did not disclose the grounds for the application in the Chamber Summons. The learned advocate added that the appellant

was not impecunious, but was seeking more time to collect funds. However, the appellant knew the cost implications of making a reference to arbitration. Therefore insufficiency of funds was not an acceptable reason for granting leave to revoke a submission to arbitration and start afresh in the domestic Courts.

Under what circumstances can a Court exercise its judicial discretion and grant leave to revoke under section 3 of the Arbitration Decree, Chapter 25? Unfortunately, section 3 does not give grounds on which such leave should be granted. The sole ground on which the submission was sought to be revoked was that the appellant was facing difficulties in raising funds to deposit with the London Court of International Arbitration. The appellant entered into the Agreements with full notice and knowledge of its terms and conditions. In terms of Rule 24(1) of the London Court of International Arbitration, the parties were enjoined to deposit sums on account of the costs of the arbitration. If the Court were to accede to such a prayer, this would be tantamount to the appellant depriving the respondent of his contractual right under the submission, that is, insisting on his contractual rights to have the dispute resolved through arbitration. The arbitration process has already been set in motion and an Interim Final Award made. Under such circumstances, the appellant must make a strong case to persuade the Court to grant leave to revoke the submission to arbitration. In a case from India, *Bhuwalka Bros Ltd. v. Fatechand Mutlidhair* (1), the High Court in the course of its discussion of section 5 of the Arbitration Act, 1940 (which is in substance section 3 of the Arbitration Decree, Chapter 25) made the following observations at page 296:

> It is difficult and undesirable to attempt to define the circumstances in which the Court should exercise its discretion. To do so would be to crystallize into a rigid definition that judicial power and discretion which the Legislature has for the best of reasons, left undetermined and unfettered. No hard and fast rule can be laid down. The discretion is to be exercised after appreciation and consolidation of all the facts which are material for the purpose of enabling a Judge to exercise discretion and after application of the right principles, remembering that the parties have for better or worse agreed to make the arbitrator the final judge in their dispute.

His Lordship continued:

> I venture to put two limits within which discretion is to be exercised: one, the Court should not lightly release the parties from their bargain; that follows from the sanctity the Court attaches to contracts; the other, that the Court should be satisfied that a substantial miscarriage of justice will take place in the event of its refusal to grant leave (see also: *M/S Armachand Lalit Kumar v. Shree Ambit Jute Mills Ltd.,* AIR 1966 SC 1036).

We need not overemphasize the fact that there is a binding submission to arbitration between the parties. Admittedly, under section 3 of the Arbitration Decree, Chapter 25, the Court, in a proper case, can give leave to a party to revoke a submission to arbitration.

But in this case the appellant was fully aware of the financial implications of submitting to a foreign forum for arbitration. The learned author, P.C. Markanda, in his book **Law Relating to Arbitration and Conciliation** (4 ed), 2001) citing the case of *Burn Standard Co. Ltd. v. Macdormett International Inco.* (2) stated at page 1018:

> The arbitration clause provided for arbitration in accordance with the Rules of International Chamber of Commerce which contained a stipulation for deposit of advance fees for Arbitrators. The plaintiff sought revocation of the authority of the arbitrator on the ground that fees was excessive. The Calcutta High Court negatived the arguments of the plaintiff on the ground that the agreement had been entered with full notice and knowledge of its terms.

The decisions referred to show the Court's reluctance to exercise its judicial discretion and grant leave to a party to revoke a submission to arbitration. There must be good cause shown. The reason given by Mr. Soud in his affidavit and amplified by Mr. Mbwambo have not convinced us otherwise. We are satisfied that no substantial miscarriage of justice took place when the High Court refused to grant the leave sought to revoke the agreement to submit.

A In the result, and for the above reasons we dismiss the appeal with costs.

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